

LONDON
IN
THE JACOBITE TIMES

BY
D^R DORAN, F.S.A.

AUTHOR OF 'TABLE TRAITS' 'QUEENS OF THE HOUSE OF HANOVER'
'THEIR MAJESTIES' SERVANTS' ETC.

IN TWO VOLUMES
VOL. I.



LONDON
RICHARD BENTLEY & SON, NEW BURLINGTON STREET
Publishers in Ordinary to Her Majesty the Queen
1877

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Title: London in the Jacobite times, Volume I

Author: Dr. Doran

Release date: November 6, 2023 [eBook #72049]

Language: English

Original publication: London: Richard Bentley & Son, 1877

Other information and formats: www.gutenberg.org/ebooks/72049

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THE JACOBITE TIMES, VOLUME I *****

LONDON

IN

THE JACOBITE TIMES

VOL. I.

BY THE SAME AUTHOR



TABLE TRAITS AND SOMETHING ON THEM

HABITS AND MEN

KNIGHTS AND THEIR DAYS

MONARCHS RETIRED FROM BUSINESS

NEW PICTURES AND OLD PANELS

LIVES OF THE QUEENS OF THE HOUSE OF
HANOVER

HISTORY OF COURT FOOLS

THE BOOK OF THE PRINCES OF WALES

THEIR MAJESTIES' SERVANTS: ANNALS OF THE
STAGE

SAINTS AND SINNERS

THE LAST JOURNALS OF HORACE WALPOLE
(EDITED)

A LADY OF THE LAST CENTURY

'MANN' AND MANNERS AT THE COURT OF
FLORENCE

L O N D O N

IN

T H E J A C O B I T E T I M E S

BY

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LONDON: PRINTED BY
SPOTTISWOODE AND CO., NEW-STREET SQUARE
AND PARLIAMENT STREET

TO MY SON

ALBAN HENRY G. DORAN, F.R.C.S.

WITH EQUAL RESPECT AND

AFFECTION

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LONDON

IN

THE JACOBITE TIMES.



CHAPTER I.

(1714.)



ON the last morning of Queen Anne's life, a man, deep in thought, was slowly crossing Smithfield. The eyes of a clergyman passing in a carriage were bent upon him. The carriage stopped, the wayfarer looked up, and the two men knew each other. The one on foot was the dissenting preacher, whom Queen Anne used to call 'bold Bradbury.' The other was Bishop Burnet.

'On what were you so deeply thinking?' asked the bishop.

'On the men who died here at the stake,' replied Bradbury. 'Evil times, like theirs, are at hand. I am thinking whether I should be as brave as they were, if I were called upon to bear the fire as they bore it.'

Burnet gave him hope. A good time, he said, was coming. The queen was mortally ill. Burnet was then, he said, on his way from Clerkenwell to the Court, and he undertook to send a messenger to Bradbury, to let him know how it fared with Anne. If he were in his chapel, a token should tell him that the queen was dead.

IN THE
CHURCHES.

A few hours later, Bradbury was half-way through his sermon, when he saw a handkerchief drop from the hand of a stranger in the gallery. This is said to have been the sign agreed upon. The preacher went quietly on to the end of his discourse; but, in the prayer which followed, he moved the pulses of his hearers' hearts, by giving thanks to God for saving the kingdom from the doings of its enemies; and he asked for God's blessing on the King of England, George I., Elector of Hanover.

About the same time Bishop Atterbury had offered to go down in front of St. James's Palace, in full episcopal dress, and proclaim James III.—the late Queen's brother. The Tory Ministry wavered, and Atterbury, with words

unseemly for a bishop's lips, deplored that they had let slip the finest opportunity that had ever been vouchsafed to mortal men.

The Regency knew better how to profit by it. George was proclaimed king. Dr. Owen of Warrington preached a Whig sermon, from 1 Kings xvi. 30, 'And Ahab, the son of Omri, did evil in the sight of the Lord, above all that were before him.' The text was as a club wherewith to assail the soil of James II. A little later, Bradbury was accused of having preached from the words, 'Go, see now this cursed woman, and bury her; for she is a king's daughter.' This was a calumny. Burnet's sermon was on Acts xiii. 38-41, and defied objection. In those verses there was nothing to lay hold of. The most captious spirit could make little out of even these words, 'Behold, ye despisers; and wonder and perish, for I work a work in your days, a work which ye shall in no wise believe, though a man declare it unto you.' The Jacobites could turn it to no purpose.

Queen Anne was dead, George was proclaimed. The fine gentlemen in coffee and chocolate houses, and the fine ladies who breakfasted at noon, in bed, read in their respective papers that 'the late queen's bowells were yesterday buried in Henry the VII.'s Chappel.' 'If,' wrote Chesterfield to Jouneau, 'she had lived only three months longer, ... she would have left us, at her death, for king, a bastard who is as great a fool as she was herself, and who, like her, would have been led by the nose by a band of rascals.'

On the other hand, there were men who sincerely mourned the queen's death. These men were troubled in their walks by the revels at Charing Cross. There Young Man's Coffee-house echoed with sounds of rejoicing. Some of the revellers had been recipients of the most liberal bounty of the queen, and did not care to conceal their ecstasy. Men circulated the good news as they rode in carriages which the queen had purchased for them. At Young Man's might be seen an officer sharing in the unseemly joy, whose laced coat, hat and feather, were bought with the pay of the sovereign, whose arms were on his gorget. People who had been raised from the lowest degree of gentlemen to riches and honours, could not hide their gladness. And now, men read with diverse feeling a reprint, freshly and opportunely issued, of Steele's famous letter in the 'Reader,' addressed to that awful metropolitan official, the Sword-bearer of the City Corporation. The writer reminded the dignitary

IN THE
STREETS.

STEELE'S
SATIRE.

that, as the Mayor, Walworth, had despatched the rebel Wat Tyler with a stroke of his dagger, so 'is it expected of you,' said Steele, 'to cut off the Pretender with that great sword which you bear with so much calmness, which is always a sign of courage.' 'Let me tell you, Sir,' adds Steele, with exquisite mock gravity, 'in the present posture of affairs I think it seems to be expected of you; and I cannot but advise you, if he should offer to land here (indeed if he should so much as come up the river), to take the Water Bailiff with you, and cut off his head. I would not so much, if I were you, as tell him who I was, till I had done it. He is outlawed, and I stand to it, if the Water Bailiff is with you, and concurs, you may do it on the Thames; but, if he offers to land, it is out of all question, you may do it by virtue of your post, without waiting for orders. It is from this comfort and support that, in spite of what all the malcontents in the world can say, I have no manner of fear of the Pretender.'

There were, however, some who had hopes of that luckless prince, and who looked upon any other who should take the crown which they considered to be his, by divine right, as a wicked usurper. Accordingly, the Nonjuring Jacobites and High Church congregations sang their hymns, in their respective places of worship, to words which had a harmless ring, but which were really full of treason. One sample is as good as twenty,—and here it is!—

Confounded be those rebels all
That to usurpers bow,
And make what Gods and Kings they please,
And worship them below!

On the day the queen died, Parliament met to vote addresses to her successor. The Jacobite spirit was not entirely extinguished in either House. In spite of an attempt to obtain an adjournment in the Upper Chamber, the Lords carried an address, in which they said: 'With faithful hearts we beseech your Majesty to give us your royal presence.' In the Commons, Mr. Secretary Bromley moved an address so made up of grief expressed for Anne's death, that Walpole demanded 'something more substantial;' and loyal members insisted that congratulations rather than condolence should abound in the address from the Commons. To both Houses the king intimated that he was hastening to satisfy their 'affectionate urgences.'

Meanwhile rival papers watched each other as jealously as adversaries in churches and the streets. Abel, in the 'Post Boy,' happened to say, 'We patiently await the arrival of the king!' The 'Flying Post' flew at him immediately. 'Villain,' 'vile wretch,' and 'monster,' were among the amenities flung at Abel. Here was a 'fellow' who dared to say he '*patiently* waited' for an event for which the 'faithful Commons' had declared they '*waited impatiently.*' In his next number, Abel said he *meant* 'impatiently.' He was called a liar now, as he had been traitor before. Others said, 'Hang this odious beast!—he dares to say he waits impatiently the arrival of the king! *What king, Bezonian?* We guess it is his Bar-le-ducish Majesty!' Such was the nick-name given to the Chevalier de St. George, who was then residing at Bar-le-Duc, in Lorraine.

POLITICAL
AMENITIES.

People in streets and taverns next became anxious about the wind. The Whigs were desirous that it should blow so as to bring the new king speedily from Holland. If a gentleman in a coffee-house ventured to remark that 'it was strange the wind should have turned against his Majesty just as he had reached the Hague,' the speaker was set upon as a Jacobite who took that way to insinuate that God was ruling the elements in the Tory interest. Swords were whipt out, and he had to fight, beg pardon, or run for it. In the street if an old basket-woman lamented that the wind was bad, and a thoughtless porter rejoined that the wind was well enough, the loyal woman raised a cry which hounded on a hundred blackguards to hunt the porter down, and beat him to the very point of death. An indifferent man could not express, in any circle of hearers, a word or two of respect for Queen Anne without being accused of disrespect for King George. While Tories bought from the street-criers the broadsheet 'Fair and softly, or, don't drive Jehu-like,' the Hanoverian papers called for the imprisonment of the criers, and confiscation of the broadsheet. The latter, they said, implied that the established Government was acting fraudulently, and was likely to upset the State-chariot. 'Stand fast to the Church; no Presbyterian Government!' was the title of another sheet, published by word of mouth, in the City. Down swooped the constables on the criers,—audacious fellows, it was said, who dared to insinuate that the Government was abandoning the Church. Of course, the sight of Dr. Sacheverel on the causeway was provocative of hostile demonstration. As he once came from St. Andrew's Church into Holborn, a Whig, anxious for a row, shouted, 'There goes Sacheverel, with

SACHEVEREL:
MARLBOROUGH.
H.

a footman at his back. It ought to be a horsewhip!’ On the other hand, Tories entrapped Whigs into drinking ‘his Majesty’s health,’—meaning the health of King James. In a Smithfield tavern a gentleman said to an Essex farmer, ‘I will give you half-a-crown to drink “His Majesty’s health.”’ The farmer ‘smoked’ the Jacobite speaker, took the money, gave him a couple of kicks as equivalent to two shillings change, and then walked off, uttering the slang word ‘*bite!*’ by way of triumph.

There was one individual whose coming was as anxiously looked for as that of the king; namely, the Duke of Marlborough, who had been for some time in voluntary exile. England at last was informed that the duke had condescended to return to this ungrateful nation. On his arrival in London, after passing triumphantly through provincial towns, he was addressed by officials, the spokesmen of mounted gentlemen and of commonalty afoot. He is said, not without some sarcasm in the words, to have replied to these addresses ‘with that humble and modest air which is so peculiar to himself.’ At Temple Bar his state carriage broke down. Tories jeered him as he emerged from it. A humbler sort of coach was procured, and Whigs saluted him with *huzzas!* as he entered it.

ON PARADE.
FIRST BLOOD.

Loyal captains were spirited up by the news of the coming of their old leader. On the parade in the Park, Captain Holland addressed his company. He congratulated them on having acquired such a king as George the First after such a sovereign as Queen Anne! The captain swore that he would sustain the Hanoverian Protestant Succession. ‘If,’ he added, ‘If there’s any person among you that’s a Roman Catholic, or not resolved to act on the same principles with me, I desire him to march out!’

Pretty well the first blood drawn in the growing antagonism of Stuart and Brunswick was in a coffee-house dispute as to the merits of the Lord Chancellor of Ireland, Sir Constantine Phipps. A Cornet Custine, who shared Captain Holland’s opinion, spoke contemptuously of the Jacobite Chancellor. A Mr. Moore, described as a ‘worthy gentleman’ by the papers with Stuart proclivities, left the room in apparent displeasure. Custine followed him into the street, compelled him to defend himself, and ran him through the heart with the energetic *Hanoverian thrust*. Young Moore died of it, and the Cornet was imprisoned. ‘We wish Mr. Custine, on this occasion’ (killing a Jacobite), say some of the papers, ‘all the favour the law

can allow him.’ The alleged grounds for favour were that the duel was fairly fought, swords having been simultaneously drawn on both sides. At a later period, Chancellor Phipps was dismissed. He returned to England. Oxford immediately made him a D.C.L., and, as he resumed practice at the English Bar, the Jacobites confided to him the conduct of their cases, and Sir Constantine became the great Tory lawyer of Westminster Hall.

At length news arrived that the king and the prince had left the Hague, where, in their impatience to reach England, they had tarried eleven days, and laid all the blame upon the wind. Next, London was a-stir with the intelligence that the ‘Peregrine Yatch,’ bearing Cæsar and his fortunes, with a convoy of men of war, was off the buoy at the Nore. The new sovereign was to land at Greenwich, whither every sort of vehicle, carrying every sort of persons, now repaired. The loyal excursionists hoped to have a good view of their new sovereign as he went processionally through the Park. Pedestrians passed the gates without difficulty, but not even to the ‘Quality’ indiscriminately was it given to enter within the enclosure. Carriages bearing friends to the royal family were turned back full of malcontents, when they did not carry the great officers of the crown, privy-counsellors, judges, peers, or peers’ sons. The Duke of Ormond’s splendid equipage drove up to the palace, but the great Tory duke had to retire without alighting. The king would not receive him. His Majesty was barely more gracious to the Earl of Oxford. The ex-Lord Treasurer kissed the king’s hand, amid a crowd of other homage-payers, but the sovereign took no more notice of Harley than of the most insignificant unit in that zealous mob. The other mob outside were discussing the reported changes in the Administration, when a sovereign homage was rendered to that would-be sovereign people.

‘At Greenwich,’ say the London papers, ‘the king and prince were pleased to expose themselves some time at the windows of their palace, to satisfy the impatient curiosity of all loving subjects.’ Among those who were ready to be so were Scottish chiefs with historical names. There had been no lack of homage to Queen Anne on the part of Scottish peers. The Master of Sinclair was a Jacobite, who had been in trouble in Queen Anne’s time. His neck was in peril, but the queen pardoned him. His history of the insurrection of ’15, in which he

**THE
‘PEREGRINE
YATCH.’**

**THE KING AT
GREENWICH.**

took part, is severely condemnatory of all the leaders, and especially of Mar. In the introductory portion of it, the Master sketches in equally censuring terms the Scottish peers in London, a little before Queen Anne's death. 'While at London,' he says, 'I had occasion to see the meanness of some of our Scots nobilitie who were of the sixteen, and who I heard complain grievously of the Treasurer's cheating them, because he had gone out of town without letting them know, or giving them money as he had promised. I was told they wanted a hundred pound, or some such matter, to pay their debts, and carry them down to Scotland, and that they used to hang on at his levee like so many footmen. My God! how concerned I was to see those who pretended to be of the ancient Scots nobilitie reduced to beg at an English Court! And some of those, of which number was my Lord Kilsyth, were they who gave themselves the greatest airs in our affair,—so useful is impudence to impose on mankind!'—See 'Memoirs of the Insurrection in Scotland in 1715,' by John, Master of Sinclair, published by the Abbotsford Club, 1858, and reviewed in the 'Athenæum,' 31st December, 1859, by the able hand of the late Mr. Dilke.

SCOTTISH
HOMAGE.

In reference to the king's arrival at Greenwich, Mr. Dilke says: 'Queen Anne's ministers had taken the chiefs into the direct pay of Government, at the rate of about 350*l.* a year each. The Highlanders were then as quiet as Lowlanders, and when King George landed at Greenwich, an address was ready for him, signed with all the great names that so soon after figured in the rebellion, by Macdonel of Glengarrie, Macdonald of the Isles, Mackenzie, Macklean, Macleod, Cameron of Lochiel, Mackintosh, Macpherson of Cluny, Chisholm, and others, offering loyal and faithful service to 'a prince so highly adorned with all royal virtues, and expressing a hope that his Majesty's royal and kindly influence would reach them even in their distant homes.' His Majesty was not so advised; his kindly influence, that is, his money, did not reach them, and these poor people were driven to follow the standard of a little Mogul like Mar. Mar knew what would be influential, and in his Proclamation, though he called on them 'by their faith, honour, allegiance, by their devotion and love, to join the standard of their king, he wisely concluded with the promise of a gratuity and regular pay.'

After the king and prince had set out on their journey from Greenwich to London, the impatient curiosity of all loving subjects in Greenwich was directed to another object. At eight o'clock precisely they were in crowds about the *Ship*, calling on the landlord, Thomas Sweetapple, to make good his promise, namely, that he would broach a hogshead of the finest French claret behind his house, and give thereof to all true loyalists, to drink his Majesty's health. Mine host kept his word; but the liquor was out long before all true loyalists could taste of it. The unsatisfied drinkers were made as loyal to the Establishment as to the throne. One zealous Whig exclaimed, in proof of his zeal for the Protestant succession, 'It's true I never go to church, but d—n me if I don't always stand up for her!'

CLARET
LOYALTY.

For the royal entry into and through London every preparation had been made. Occasionally little difficulties presented themselves. For example, Captain Silk, whose office and principles may be guessed by his being described as 'Muster Master, with others of his kidney,' ventured to assert that the London Artillery Company had no right to appear officially at the royal passage through the City. The cannoneers, descendants of primitive heroic Cockneys, appealed to the proper authorities, and the appeal was allowed. Further, the Artillery Company had their little revenge. Captain Silk was prevented from even seeing the spectacle. The warlike company charged him with having drunk the health of the pretended James III. on his knees, while the song was sung of 'The king shall have his own again!' The captain was laid by the heels, and the artillery of London rejoiced at it. But 'Captain Silk's Jacobite Militia tune' became a favourite with Tory musicians.

THE
ARTILLERY
COMPANY.

Among the advertisements which offered places to spectators along the whole line, from Greenwich to St. James's, there was one which announced that 'several senior gentlemen, with their own gray hairs,' had resolved to ride before the king 'in white camblet cloaks, on white horses.' They advertised for volunteers, old and gray enough, who were assured that they 'would be led up in the procession by persons of eminence and figure.' It was subsequently reported that these 'senior gentlemen, in their own gray hairs,' applied too late to the Earl Marshal to have a place appointed for them in the procession, but that they would have seats in a gallery of their

own at the east end of St. Paul's. They would be presented, it was said, with lovely nosegays, to revive their spirits and refresh their memories, 'which will be a fine orange stuck round with laurel—the former to put them in mind of the happy Revolution; the latter, of the glorious victories gained under the Duke of Marlborough in the late wars.' The above is a specimen of the mild political wit of the day. Curious eyes looked at the gallery at the east end of St. Paul's. They saw nothing of the seniors and their emblems, but others swore they were there, nevertheless, or why was the heroic Marlborough factiously hissed as he passed? At other points, the Church and King party had their revenge. The king and prince in their state coach might have been excused for wearing an air of surprise at the unusual huzzaing and clapping of hands of the gentlemen, and the ecstasy of the ladies in the balconies of the Three Tuns and Rummer tavern in the City. The applause was not for Great Brunswick but for the Earl of Sutherland. The people in the balcony remembered that in King William's days, Lord Sutherland had been insulted in that very tavern. He had drunk King William's health on his birthday, and the Jacobites present flourished their swords and vapoured about the Earl as if they would slay him and all Protestantism with him.

The stately line—and it was a right pompous affair—was a little cumbrous, but it was well kept together, from the kettle-drums and trumpeters, followed by hosts of officials, troops, coaches, &c., to the dragoons who snatched a drink from the people, as they brought up the rear. Perhaps the road about the east end of Pall Mall was the most joyous; for there the balconies and galleries were filled with people who had something to satisfy besides curiosity or loyalty, and who had been attracted thither by the promise that all the fronts of the balconies and galleries should have 'broad flat tops large enough to hold plates and bottles.' The spectators there were primed to any pitch of loyalty as his Majesty passed.

**THE ROYAL
ENTRY.**

At night, the stage paid its first homage to the new sovereign. Graceful Wilks spoke an 'occasional prologue' at the theatre in Drury Lane; and loyal and dramatic people bought it in the house or at Jacob Tonson's over against Catherine Street, Strand, for twopence. But while Wilks was loyal, he had an Irish Roman Catholic servant, who was so outspokenly Jacobite, that the player

**THE PLAYERS'
HOMAGE.**

discharged him, lest evil might follow to himself. The fellow, however, had what the French call 'the courage of his opinions,' but not the discretion which many had who shared them. He went down to the colour-yard at St. James's, drew his sword upon the flag, abused the new king, gave a tipsy hurrah for his 'lawful sovereign,' and knew little more till he found himself next morning aroused from the straw to answer a charge of treason. He pleaded 'liquor,' and was allowed the benefit of his hard-drinking.

The press at this moment burst into unusual activity. There was especially great activity in and about the Black Boy, in Paternoster Row. It was from under that well-known literary emblem that Baker, the publisher, issued the popular edition of a work that all the world was soon reading, for exactly opposite reasons. Baker had, somehow, got possession of the Jacobite Lockhart's manuscript of his 'Memoirs concerning the Affairs of Scotland, from Queen Anne's Accession to the Throne to the commencement of the Union of the two kingdoms of Scotland and England, in May, 1707. With an Account of the Origin and Progress of the designed Invasion from France, in March, 1708. And some Reflections on the Ancient State of Scotland.' On the same title-page, notice was made of 'an Introduction, showing the reason for publishing these Memoirs at this juncture.'

**THE AFFAIRS
OF SCOTLAND.**

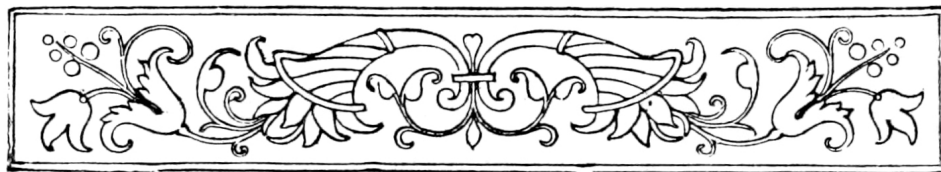
These Memoirs treat with immense severity all the leading Whig noblemen and gentlemen of Scotland. The book was therefore read with avidity, by the Tories, or Jacobites. But many Tories who had rallied from the Whig or Hanoverian side were handled quite as roughly, to the great delight of their former colleagues, and to a certain satisfaction on the part of present confederates. The volume showed both Whigs and Tories where their enemies were to be found, and it was accordingly read by both to the same end. But, it also recognised no other king than James the Third of England, and Eighth of Scotland, and, therefore, crafty Baker had an introduction written for the Whig party; that is to say, it warned all loyal people to put no trust now in men who had pretended to reconcile a sham fidelity to Queen Anne with a real one to her brother; men who, in 1708, had hoped to set aside the Protestant succession. 'And if,' says the last paragraph of the Introduction, 'a rebellion of that *Black Dye* was carried on against a Queen of the greatest Indulgence to their Follies, and who was wickedly represented by them as having concealed Inclinations to serve

their Interest, and keep the Crown in trust for their King, what Rancour, what Hellish Malice, may not King George expect from a Faction who put their Country in a Flame to oppose his Succession, and were reducing it to a Heap of Ruins to prevent his being Sovereign of the Soil!’

One of King George’s first acts was to issue a proclamation against the ‘Pretender,’ in which the reward of 100,000*l.* was promised to any person who should apprehend him, if he attempted to land in the British dominions.

A ROYAL
PROCLAMATIO
N.





CHAPTER II.

(1714.)



THE king's proclamation against the Pretender, in which 100,000*l.* was offered for the capturing him alive, caused angry discussion in the Commons. Pulteney said, in his lofty way, that if the Pretender did not come over, the money would be saved; and, if he did, the sum would be well laid out in the catching of him! Campion and Shippen denounced the outlay, and Sir William Wyndham, casting blame on the king's words, was called upon to assign a reason for his censure. Wyndham would not condescend to explain. By a vote of 208 to 129 he was subjected to be reprimanded by the Speaker. The minority withdrew from the House, and when the Speaker reproved the Jacobite member, and extolled his own lenity in the words and spirit of the reproof, Wyndham would neither admit the justice of the censure, nor acknowledge any obligation to him who administered it.

'What will King Lewis do for the Chevalier?' was the next query of the Londoners. The King of France and Navarre soon showed his indisposition to do anything for the substantial good of the Stuarts. Quidnuncs in the Cheapside taverns made light of 'your James III.' They advised him to learn to get his bread by tile-making, by cutting corns, by selling Geneva, or by turning horse-doctor. They cocked their hats as they swaggered home on the causeway, but the low whistling of a Jacobite air, by some hopeful person on the opposite side of the street, showed them that the White Rose was not so withered as they thought it to be. Men's minds were anxious as to coming struggles, though the Hanoverians affected much, and well-founded, confidence. Little else was thought of. The newspapers seemed to wake up from absorbing contemplation when they announced, as if they scarcely had time for the doing of it, that 'about a fortnight ago died Mr. William Pen, the famous Quaker.' One man, at least, as grave as Pen, stooped to make a joke, in order to show his principles. He walked abroad in a lay habit, but there were many people who passed by, or met him in the street, who very well

CARTE, THE
JACOBITE.

knew Mr. Carte, the ex-reader of the Abbey Church, at Bath. He had avoided taking the oaths which were supposed to secure the allegiance of the swearer to the Hanoverian king. Mr. Carte, happening to be overtaken in the streets by a shower of rain, was accosted by a coachman with the cry of ‘Coach, your reverence?’ ‘No, honest friend,’ replied the nonjuring parson, ‘this is no *reign* for me to take a coach in!’ Smaller jokes cost some men their lives. A nod or a shrug was a perilous luxury. At the first court held at St. James’s, Colonel Chudleigh, a zealous Whig, marked some jocular vivacity on the part of Mr. Aldworth, M.P. for New Windsor. The Colonel took it in an offensive light, and when exchange of words had heated him, he cast the most offensive epithet he could think of at Aldworth, by calling him ‘Jacobite!’ Almost at the foot of the king’s throne, it was nearly equivalent to calling Aldworth ‘Liar!’ The two disputants descended the stairs, entered a coach together, and drove to Mary-le-Bone fields. In a few minutes after the two angry men had alighted, the Colonel stretched Aldworth dead upon the grass, and returned alone to the levee. This was the second bloodshed in the old Jacobite and Hanoverian quarrel.

Shortly after this duel, Lord Townshend was seen to enter Lord Chancellor Harcourt’s house, in Lincoln’s Inn Fields, from which he soon after issued, carrying with him the Purse and Great Seal. These symbols of power he had obtained by warrant signed by the king’s hand. On his way from Lord Harcourt’s house to the palace, Townshend left word with Lord Cowper to wait on the king at St. James’s at one o’clock,—and men who saw my Lord on his way made, probably, as shrewd guess as himself as to the result of his visit.

AN OLD AND
NEW LORD
CHANCELLOR.

The king received him in the closet. Cowper’s acute eye recognised the Purse and Seal lying in the window. His Majesty, in a few words in French, shortly committed them to his keeping, ‘having,’ says Cowper in his Diary, ‘been well satisfied with the character he had heard of me.’ Cowper replied in English, saying, among things less noteworthy, ‘that he had surrendered the Great Seal to the late Queen, believing she was going into measures which would raise France again, and ruin the common cause.’

After the new Chancellor had taken his leave, the following little dramatic scene occurred. ‘The Prince was in the outer room,’ says Cowper, ‘and made me a very handsome and hearty compliment both in French and

English, and entered very kindly into talk with me. Among other things, speaking of the Princess's coming, I wished she was here while the weather was good, lest she should be in danger in her passage; he said Providence had hitherto so wonderfully prospered his family's succeeding to the Crown in every respect, by some instances, that he hoped it would perfect it, and believed they should prosper in every circumstance that remained.'

The next circumstance was the spectacle of the coronation, which soon followed that of the public entry. Among the advertisements offering accommodation to see the show, there was one of a house, near the Abbey, 'with an excellent prospect, and also with a back door out of Thieving Lane into the house. There will be a good fire,' it is added, 'and a person to attend with all manner of conveniences.' Meanwhile, Mr. Noble's shop in the New Exchange, Strand, was beset by ladies, or their servants, eager to buy the Coronation favour with the Union Arms, which had been sanctioned by the Earl Marshal, who had also (it is to be hoped, with reluctance) approved of the poetical motto without which the favour was not to be sold:

**PREPARATION
S FOR THE
CORONATION.**

King George, our Defender
From Pope and Pretender.

—There was a great pinning of them on as breast knots and shoulder knots, and a good deal of gallantry and flirtation went on between young ladies and gentlemen helping to adorn each other.

The ceremony was of the usual sort. King George was crowned King of France, as well as of Great Britain and Ireland. In proof of his right, 'two persons, representing the Dukes of Aquitaine and Normandy,' consorted with peers of more sterling coinage. These 'persons' were, on this occasion, a couple of players. They wore crimson velvet mantles, lined with white sarcenet, furred with miniver, and powdered with ermine. Each of them held in his hand a 'cap of cloth of gold, also furred and powdered with ermine.' They did homage to the king, as the English peers did, and when these put on their coronets in the royal presence, the sham Dukes clapped their caps jauntily on their heads. This part of the spectacle was the only part that afforded merriment to the Jacobite nobility, all of whom were present, from Bolingbroke, with

**THE SCENE IN
THE ABBEY.**

his three bows bringing his head to the ground, to James II.'s old mistress, the Countess of Dorchester, who made saucy remarks on all that passed.

The Whig Lady Cowper says in her Memoirs that the Jacobites looked as cheerful as they could, but were very peevish with every one that spoke to them. There was no remedy for them, remarks my Lady in her Diary, but patience. 'So everybody was pleased, or pretended to be so.' Lady Dorchester is an exception to the rule. When Archbishop Tenison went round the throne, formally asking the consent of the people at large to the making of the new king, the lively Jacobite countess remarked to Lady Cowper, 'Does the old fool think anybody here will say *no!* to him, when there are so many drawn swords?' The will was there, but the expression of it was kept down. Lady Dorchester was not the only saucily-disposed lady present. The Tory Lady Nottingham rudely shoved the ex-Tory Lady Cowper from her place. The latter found refuge on the pulpit stairs. 'Her ill-breeding,' says Lady Cowper, in her Diary, 'got me the best place in the Abbey, for I saw all the ceremony, which few besides did. The lords that were over against me, seeing me thus mounted, said to my lord that they hoped I would preach. To which, my lord laughing, answered, he believed that I had zeal enough for it, but that he did not know I could preach.' To which my Lord Nottingham answered, 'Oh, my lord, indeed you must pardon me, she can and has preached for the last four years such doctrines as, had she been prosecuted in any court for them, your lordship yourself could not defend!' After this little passage, when the scene was changed to Westminster Hall, the usual challenge was fruitlessly made by the hereditary champion. The banquet was held and came to an end. The king and guests departed. The weary waiting-men took *their* refreshment, and when they came to collect the 'properties' of the scene—plate, knives, forks, viands, table cloths—nearly all had disappeared. Great outcry arose, and the rogues were commanded in advertisements to make restitution, or dreadful penalty was to follow; but they seem to have kept all they took that day, and to have escaped detection.

The day did not pass off decorously in the streets. Some unwelcome cries reached the king's ears as he walked along the platform between the Abbey and the Hall. At night, Tory mobs, on pretence that the Whigs, by the motto on their 'favours,' showed a disposition to 'burn the Pope and the Pretender, with Dr. Sacheverel to

WHIGS AND
JACOBITES.

TORY MOBS.

boot,' lit up bonfires, danced round them to rebel airs, and while some of the celebrants shouted for Sacheverel, others uttered blasphemy and ill-wishes against King George. In country places, similar incidents occurred; but messengers were despatched thither, and they soon returned, bringing the worst of the offenders with them through London to its various prisons. York, Norwich, and Bedford; Reading, Taunton, Bristol, and Worcester, yielded the greatest number of seditious rioters. A boy, twelve years of age, was brought up as leader of the Taunton mob! The most notable person bagged by the messengers was Alderman Perks of Worcester. The Jacobites in London witnessed his passage to Newgate with manifestations that showed they looked on him as a martyr. On the other hand, the Irish Protestants in London made a manifestation in favour of Church and Government. In commemoration of the delivery of their fathers from the massacre in Ireland of so many of their contemporaries, in October 1641, by the Papists, these Whig loyalists marched in procession at 10 A.M. to St. Dunstan's, where they heard a sermon from Dr. Storey, Dean of Limerick. At noon, they again marched in procession to the Old King's Head, Holborn, where they dined, drank, and cheerfully celebrated the massacre in which so many innocent persons had perished.

Serious as the times were, the king and royal family manifested no fear. They were unostentatiously brave. The most bitter Tory could not but admire them, walking round St. James's Park, in a November afternoon, almost unattended; not guarded at all. This too was at the time when the Attorney-General was 'prosecuting authors,' as the journals have it, 'for reflecting expressions in their writings against the king.' The Government were at that very moment complaining of seditious meetings being held, by the encouragement of some whose duty it was to suppress them; meetings which were accompanied by rioting, and often followed by murder or attempts at such crime. It was a time when almost all the lords in office are said to have received the Pretender's 'Declaration' and his other manifestoes by 'foreign post' or the ambassadors' bags. In November 1714, a pamphlet was published with this significant title: 'The sentiments of our Forefathers relative to Succession to the Crown, Hereditary Right, and Non-Resistance. Dedicated to all those who prefer Hereditary Right to a Parliamentary one, notwithstanding the latter is likely to take place. By a Lover of Right.' Every night were significant works like this, and even

**THE ROYAL
FAMILY IN
THE PARK.**

more scandalous pamphlets, cried through the streets. As yet, however, no vindictive measures were adopted. It was thought politic to give the Tories good words, but not to put any trust in them. Their audacity sometimes challenged prosecution. Mr. Pottes was arrested for a 'provoking' pamphlet: 'Reasons for Declaring a War against France;' and messengers were busy in looking after the author of a 'Test offered to the Consideration of Electors of Great Britain, which at one view discovers those Members of Parliament, who were for or against the Hanoverian Succession.' A thousand pounds was the sum offered to anyone who could and would discover the author of the 'Test,' and half that sum was offered for the discovery of the printer. The Government dreaded the effects of these writings on the elections to the first new parliament under King George. When the matter was happily over, the 'squibs' did not die out. The Whigs, to show how Tories had triumphed, published a (supposed) list of expenses of a Tory election in the West. Among the numerous items were: 'For roarers of the word, *Church!* 40*l.*' 'For several gallons of Tory Punch drank on the tombstones, 30*l.*' 'For Dissenter Damners, 40*l.*' The Tory journal writers laughed, and expressed a hope that at the forthcoming anniversary of the birthday of glorious Queen Anne, there would be more enthusiastic jollity than on the natal anniversaries of Queen Elizabeth and King William, which were still annually kept. The public were requested to remember that Anne as much excelled every English sovereign since Elizabeth, as Elizabeth had excelled every one before her. Whigs looked at one another in taverns and asked, 'Does the fellow mean that Brandy Nan was better than King George?'

SEDITIONOUS
PAMPHLETS.

In the Tory pamphlet, 'Hannibal not at our gates,' the writer sought to persuade the people that there was no danger a-foot. In the Whig pamphlet 'Hannibal at our gates, or the progress of Jacobitism, with the present danger of the Pretender,' &c., Londoners were especially warned of the reality of the peril. The Jacobite clubs, it was said, had ceased to toast the Jacobite king, or 'impostor,' under feigned names. They were described as 'so many publick training schools where the youth of the nation were disciplined into an opinion of the justice of his title,' and into various other opinions which were strongly denounced. The writer has an especial grievance in the fact that an honest Englishman cannot show respect to King William by keeping his birthday, without running the chance of being in the Counter as a rioter,

JACOBITE
CLUBS.

if he only happens to fall into the hands of a Tory magistrate. Respect for princes, according to this Whig, is a courteous duty, and, forthwith, he speaks of the Chevalier as a 'notorious bastard,' and of his mother, Mary of Modena, as a 'woman of a bloody and revengeful temper.'

Rash deeds followed harsh words. Among the persons assaulted in the streets, on political grounds, was the Duke of Richmond, who was roughly treated one dark night. Such an attack on a Duke who was an illegitimate son of the Stuart King Charles II., by a Popish mistress, Louise de Querouaille, was taken by the Government as a certain evidence of a perhaps too exuberant loyalty. Nevertheless, the king continued to go about without fear. He drove almost unattended to dine or sup with various gentlemen and noblemen. We hear that 'His Majesty honoured Sir Henry St. John, father of Viscount Bolingbroke, with his royal presence at dinner.' The king thus sat at table with a man whose son he would unreluctantly have hanged! As for the Prince and Princess of Wales, they were as often at the play in times of personal danger, as princes and princesses are in times of no peril whatever. Perhaps they trusted a little in the proclamation against Papists and Nonjurors, whereby the former were disarmed, and were (or could be) confined to their houses, or be kept to a limit within five miles of their residences. The oath of allegiance was to be taken by all disaffected persons, and among the drollest street scenes of the day was that of some Dogberry stopping a man on the causeway and testing his loyalty by putting him on his affidavit!

There was zeal enough and to spare among the clergy of all parties. Not very long after the Princess of Wales was established at St. James's, Robinson, bishop of London, sent in a message to her by Mrs. Howard, to the effect that, being Dean of the Chapel, he thought it his duty to offer to satisfy any doubts or scruples the Princess might entertain with respect to the Protestant religion, and to explain what she might not yet understand. The Princess was naturally 'a little nettled.'—'Send him away civilly,' she said, 'though he is very impertinent to suppose that I, who refused to be Empress for the Protestant religion, do not understand it fully.' The Bishop thought that the august lady did not understand it at all, for the Princess had declared among her ladies 'Dr. Clarke shall be one of my favourites. His writings are the finest things in the world.' Now Dr. Clarke was looked upon as a heretic by Robinson,

ROYALTIES.

AT ST.
JAMES'S.

for Clarke was not a Trinitarian according to the creed so-called of Athanasius. Lady Nottingham, High Church to the tips of her fingers, denounced the Doctor as a heretic. Lady Cowper gently asked her to quote any heretical passage from Dr. Clarke's books. Clarke's books! The lady declared she never had and never would look into them. Cowper mildly rebuked her. Cowper's royal mistress laughed, and the 'Duchess of St. Alban's,' says Lady Cowper, 'put on the Princess's shift, according to Court Rules, when I was by, she being Groom of the Stole.'

The first election of Members of Parliament which was about to take place excited the liveliest and most serious interest throughout the kingdom, but especially in London.

**ELECTIONEER
ING TACTICS.**

Mighty consequences depended on the returns. To influence these, Popping issued from under his sign of the *Black Raven*, in Paternoster Row, a pamphlet entitled, 'Black and White Lists of all Gentlemen who voted in Person, for or against the Protestant Religion, the Hanoverian Succession, the Trade and the Liberties of our Country, from the Glorious Revolution to the Happy Accession of King George.' These lists, like others previously published, were as useful to the Jacobites as to the Hanoverians, and perhaps were intended to be so. A phrase in the Preface, which seems thorough Whig, was understood in every Jacobite coffee-house. 'French Bankers, Friends of the Faction, are continually negotiating great Sums for Bills of Exchange upon London,—to support the Pretender's party, and bribe Voters.' The various questions to which these division lists refer are very numerous. Among them may be noted the names of those who voted for or against the Crown being given to the Prince of Orange,—of members who, in 1706, voted for tacking the Bill for preventing occasional Conformity, to a Money Bill, to secure its passing in the House of Lords; finally,—of those members 'who are not numbered among Tackers or Sneakers.' On the other hand, a decidedly Tory pamphlet was circulated, in which the Londoners, and, through them, Englishmen generally, were implored not to vote for men who wanted war, whatever might be the motive. It bids each elector bless the present peace, 'while his sons are not pressed into the war nor his daughters made the followers of camps.' This was bringing the subject thoroughly home to the bosoms of the Athenians.

There were people who were to be more easily got at than the pamphleteers. Dr. Bramston, for a sermon

**ROYAL
CHAPLAINS.**

preached in the Temple Church, was struck out of the list of Royal Chaplains. He published the discourse, for his justification. The most rabid Whig in the kingdom could find no hostility in it, nor the most rabid Tory any support. The Court found offence enough. Dr. Bramston and his fellow chaplains, who had read prayers to Queen Anne,—Dr. Browne, Dr. Brady, the Rev. Mr. Reeves of Reading, and the Rev. Mr. Whitfield, were informed that they were not only struck out of the list of her late Majesty's chaplains, but that 'they would not be continued when his Majesty is pleased to make a new choice.' Compassion is not aroused for Dr. Brady, he being half of that compound author Tate and Brady, of whom many persons have had such unpleasant experience on recurring Sundays at church. Tate helped Brady to 'improve' the Psalms, after the fashion in which he had 'improved' Shakespeare; and it is hard to say which king suffered most at his hands—King Lear or King David!

On the other hand, the feeling on the Jacobite side very much resembled that which is recorded in the 'Memoirs of P. P., clerk of this Parish,'—in which parish, Jenkins, the farrier, 'never shod a horse of a Whig or fanatic, but he lamed him sorely.' Turner, the collar-maker, was held to have been honoured by being clapt in the stocks for wearing an oaken bough on the 29th of May;—Pilcocks, the exciseman, was valued for the laudable freedom of speech which had lost him his office;—and White, the wheelwright, was accounted of good descent, his uncle having formerly been servitor at Maudlin College, where the glorious Sacheverel was educated!

At a somewhat later period, a pamphlet was published, in which the Chevalier de St. George is introduced, saying:—'Old *Lewis* assur'd me he would never desert my Interest, and he kept his *Bona fide* till he was drub'd into the humble Condition of su'ing for Peace, and I was seemingly to be sacrificed to the Resentment of my Enemies; but our *dear Sister* and the *Tories* concerted privately to elude the force of the Treaty, and kept me at Bar-le-Duc, from whence I made a Trip to Somerset House, but was soon Frighten'd away again by the sound of a Proclamation, at which Sir Patrick and I scour'd off. Soon after, dear Sister departed this mortal Life, but the Schemes being yet not entirely finish'd, and my good Friends not having

**THE
CHEVALIER IN
LONDON.**

the Spirit of Greece, *Hanover* whipt over before me.' This passage will recall an incident in Mr. Thackeray's 'Esmond.'





CHAPTER III.

(1715.)



THE second homage paid by the stage to the royal family was, in 1715, rendered in person by Tom Durfey. Tom had been occasionally a thorough Tory. Charles II. had leant on his shoulder. Great Nassau, nevertheless, enjoyed his singing. Queen Anne laughed loudly at his songs in ridicule of the Electress Sophia; and yet here was the Electress's son, George I., allowing the Heir Apparent to be present at Tom's benefit. This took place on January 3rd, 1715. On this occasion, Tom turned thorough Whig. After the play, he delivered an extraordinary speech to the audience on the blessings of the new system, the condition and merits of the royal family, and on the state of the nation as regarded foreign and domestic relations! At the other play-house, in Lincoln's Inn Fields, a piece was acted called the 'Cobler of Preston,' in which *Kit Sly* and his story were 'lifted' from the 'Taming of the Shrew.' *Kit* was played by Pinkethman. When he said, 'Are you sure now that I'm your natural Lord and Master? I am devilishly afraid I am but a *Pretender!*'—the Whigs clapped till their hands were sore, and the Tories 'pished' at the poorness of the joke.

If more taste had been shown in those who catered for the royal family when they went to the play, it would have been as well. At an evening drawing room, in February, the Duchess of Roxburgh, hearing that the Princess of Wales was going to Drury Lane the following day, told the Countess of Lippe and Buckinberg that the play which was to be acted on that occasion 'was such a one as nobody could see with a good reputation.' 'It was "The Wanton Wife,"' says the Countess Cowper in her Diary, and the Princess's irreproachable lady-in-waiting adds of Betterton's play, which is better known by its second title, 'The Amorous Widow,'—'I had seen it once, and I believe there are few in town who had seen it so seldom; for it used to be a favourite play, and often bespoke by the ladies. I told this to the Princess, who resolved to venture going, upon my character of it.' The result is admirably illustrative of the morals of the

AT THE PLAY.

time.—‘Went to the play with my mistress; and to my great satisfaction she liked it as well as any play she had seen; and it certainly is not more obscene than all comedies are.’ ‘It were to be wished,’ adds the lady, ‘our stage was chaster, and I cannot but hope, now it is under Mr. Steele’s direction, that it will mend.’

While Princesses and their ladies were amusing themselves in this way, the public found amusement in watching the Duke of Shrewsbury, who was to be seen looking, half the day long, through his windows into the street. They knew therefrom that he had been turned out of his Lord Chamberlainship. Whigs who rejoiced at this disgrace were almost as glad at seeing the Earl of Cardigan leisurely riding down Piccadilly. He had nothing more to do, they said, with the Buckhounds. It was reported in the coffee-houses that Dean Swift had been arrested. This was not correct. It was quite true, however, that Lord Oxford was not only in the Tower, but was kept in closer restraint than ever. While Tories were buying Ormond’s portrait, ‘engraved by Grebelin,’ for 1s. 6d., as the portrait of a leader who had not fled, and was not under ward in the Tower, there was one morning partly a cry, partly a whisper running through the town,—‘Ormond’s away!’ It was time. Secretary Stanhope had impeached him and other, but less noble, peers, of High Treason; and the tender-hearted Whig, Sir Joseph Jekyll, had said in the Commons, ‘If there is room for mercy, he hoped it would be shown to the noble Duke.’ When the warrant reached Richmond, the nest was warm but the bird had flown.

FLIGHT OF
ORMOND.

On Sundays, the general excitement nowhere abated. At church, political rather than religious spirit rendered congregations attentive. They listened with all their ears to a clergyman, when he referred to the king’s supremacy in ecclesiastical affairs, and when he had to enumerate the royal titles in the prayer before the sermon. If he omitted to note the supremacy, and the congregation were Whiggish, there was a loyal murmur of disapproval. If he happened to speak of his Majesty, not as ‘King by the Grace of God,’ but as ‘King by Divine Permission,’ the more sensitive loyalists would make a stir, withdraw from the church; and certain of the papers would be full of a holy horror at such proceedings on the part of the minister.

In the sermon preached at St. Andrew’s, on the 20th of January—the Thanksgiving day for the accession of

SACHEVEREL.

George I.—Sacheverel (while the king was being almost deified at St. Paul's) reflected severely on the Government, and obliquely on the king himself and his family. Court, city, and army were alike charged with degrading vices. With still greater boldness did he attack the ministry for appointing as a Thanksgiving time the anniversary of the day on which Charles I. was brought to trial. Finally, Sacheverel denounced the Crown's interference with the clergy. They who advised that course, he said, might any day counsel the king to commit acts hostile to both Law and Gospel. During the delivery of this political harangue, the Doctor's friends were disturbed by an individual who took notes of the sermon. They said 'it was more criminal to steal the Doctor's words out of his mouth in the church than to pick a man's pocket in the market, or to rob him on the highway.' This sermon, which fired London, seems now to be but a poor thing. The text was from Matthew xxiii. 24-26. The discourse affirmed that national sins brought national punishment, especially '*the sin of that day*,' which, it was inferred, had for its penalty—the present sad condition of England. The Jacobite spirit manifested itself most sharply in a passage referring to the regicides 'who were concerned in the bloody actions of that bloody tragedy of that glorious martyr, King Charles the First, who was next of all to the Son of God himself.' After murdering the king, the greatest sin, said Sacheverel, was to usurp the place of the heir. Every hearer felt that George I. was here hinted at as the usurper of the seat which by right belonged to James III. The putting to death of Charles, Sacheverel declared to be 'the greatest sin that ever was.' The 'rebellion of the creature against the Sovereign' was censured almost as heavily. The censure appeared to point against those who dethroned James II., but every hearer felt that it was directed against those who kept the throne—against James II.'s son and heir.

When the discourse was ended, the congregation fell upon the note-taker. They demanded his papers, and were not enlightened by his exclamation:—'Ah! you've spoiled my design!' Each party took him for an adversary, and the man would have been murdered had not Sacheverel ordered his clerk and servant to go to his rescue. When it was discovered that the victim was 'one Mologni (*sic*), an Irish Papist,' the Whigs were probably sorry that they had not rolled him in the gutter that then ran down the centre of Holborn Hill.

**POLITICS IN
THE PULPIT.**

Every possible (and impossible) sin was charged upon Sacheverel for this sermon, especially by the notorious bookseller and pamphleteer, John Dunton. This worthy ally of Hanover, in his 'Bungay, or the false brother proved his own executioner,' which was circulating in London, immediately after the sermon of January 20th, roundly accused Sacheverel of being 'a man of the bottle that can sit up whole nights drinking until High Church is drunk down, and laid low or flat under the table, as you were at Sir J. N——rs in Oxfordshire, which occasioned that sarcasm, *There lies the pillar of our Church.*' Sacheverel was accused of being guilty of the most profligate gallantry. His own clerk, it was said, had to rouse him up from cards, on a Sunday, when service time was at hand! and as for blasphemy, Sacheverel, it was affirmed, could never make reference to Dissenters without damning them for Hanoverians, and consigning them to their master, the Devil! The list of crimes would have been incomplete if it had not closed with the assertion that Sacheverel was at heart really an Atheist!

**CALUMNY
AGAINST
SACHEVEREL.**

Tavern Whigs waxed religiously wrathful against Sacheverel. One Dunne, in a Southwark tavern, after roaring over his drink against the Tory parson, reeled forth on a dark and stormy night, and happened to come on a funeral by torch-light, on its way to St. Saviour's. A clergyman walked with it, as was then the custom. 'D—— me!' exclaimed Dunne, 'here's the Doctor of Divinity! I'll have a bout with him.' The clergyman was not Dr. Sacheverel, but his curate, Mr. Pocock. It was all one to Dunne, who assaulted the curate, pulled off his hat, tore off his peruke, and finally knocked him down. Dunne was conveyed away by the watch. The Tory 'Post Boy' was sarcastic on the incident, 'The clergy,' it said, 'within the bills of mortality, who are about six feet high and wear black wigs, are desired to meet at Child's coffee-house, St. Paul's Churchyard, next Thursday, in order to consider proper methods to distinguish themselves from Dr. Sacheverel, that they may not be murdered by way of proxy instead of the said Doctor.' The other side remarked, that there would be no safety for tall men with flaxen wigs till Sacheverel was hanged out of the way.

On similar occasions in London there were similar manifestations in an opposite sense. 'On the eve of the Pretender's birthday (10th of June), they make great boasts

**DANGER IN
THE
DISTANCE.**

of what they will do to-morrow,' said the Whig papers, 'which, they say, is the anniversary of his birth. But it is believed that the High Church wardens, who pretend a right to the bells, will not be very fond of hanging in the ropes. A serenade of warming pans will be more suitable for the occasion, and brickbats may serve instead of clappers for a brickmaking brat.'

In March, London had been called from personal to national considerations. There was a phrase in the king's speech, on opening Parliament in this month, which sounded like a trumpet-call to battle. 'The Pretender,' said the Prince who had leapt into his place, 'who still resides in Lorraine, threatens to disturb us, and boasts of the assistance he still expects here, to repair his former disappointments.' The national prosperity was said to be obstructed by his pretensions and intrigues. In reply to this, the faithful Parliament expressed all becoming indignation; and Jacobites who felt unsafe in London began to take measures for securing a refuge. On the 18th of March, or as some reports say, the 5th of April, a nobleman seemed to court notice at Drury Lane Theatre. He was now with one friend, now with another, among the audience. He was quite as much among the actors, having a word with Booth (who had experienced his liberality on the night that 'Cato' was first played) anon, gossiping smartly with Wilks, and exchanging merry passages of speech with delicious Mrs. Oldfield. All who saw him felt persuaded that the Viscount Bolingbroke had reason to be above all fear, or he would not have been there, and in such bright humour, too. Bolingbroke ordered a play for the next night, left the house, and half an hour after, having darkened his eyebrows, clapped on a black wig, and otherwise disguised himself, was posting down to Dover under the name of La Vigne, without a servant, but having a Frenchman with him who acted as courier. The fugitive reached Dover at six in the morning, but he was detained by tempestuous weather till two, when, despite the gale, the wind being fair, the master of a Dover hoy agreed to carry him over to Calais, where Bolingbroke landed at six in the evening. An hour later, he was laughing over the adventure with the governor of the town, who had invited him to dinner. At the same hour the next night, all London was in a ferment with the news of this flight of Bolingbroke. The Privy Council was immediately summoned. They were alarmed, but powerless; and finding

**FLIGHT OF
BOLINGBROKE**
E.

themselves helpless, they had nothing better to do than to commit to Newgate the honest man who had brought the intelligence to London!

Bolingbroke's enemies and friends were alike busy, the first to injure, the latter to defend him. His foes issued, at the price of 4*d.*, 'A merry letter from Lord Bol——ke to a certain favourite mistress near Bloomsbury Square.' It was 'printed and sold by the pamphlet sellers of London and Westminster.' It was in doggerel rhyme, not witty but, emphatically, 'beastly.' Towards the conclusion, the following mischievous lines occur, foreshadowing invasion and his own return:—

In the meantime, I hope
The mist will clear up,
That the thunder you'll hear
May soon purge the air,
And then that the coast
May be clear at the last.

This unclean and menacing pamphlet offended Tories who were not altogether Jacobites. It was not answered, no one could stoop to do *that*, but it was followed by a sixpenny pamphlet, from More's, 'near Fleet Street,' in which Bolingbroke was rather ill-defended by one of those friends whose precious balsam aggravates rather than heals. The writer, however, was earnest. With regard to Bolingbroke's idle talk at table over his wine, the anonymous advocate observed:—'My Lord, everybody knows, drank deep enough of those Draughts which generally produce Secrets, and had Enemies enough to give Air to the least unguarded Expressions in favour of the Pretender.' To the not unnatural query of the Whigs,—'Why did he fly?' Bolingbroke's champion loftily replies:—'My Lord had too elegant a Taste of Life to part with it, to gratify only the Resentments of his Enemies! If he was a Rake, it was his nature that was to be blamed; if he was a Villain, no one could charge him with hypocritically attempting to hide it.' 'As to personal Frailties, his Lordship had his Share, and never strove to hide them by the sanctified cover which Men of high Stations generally affect; whose private Intrigues are carried on with as much Gravity as the Mysteries of State. His Faults and Levities were owing to his Complexion, and that Life and Humour with which he enlivened them, made them so pleasing that those

**BOLINGBROKE'S
PAMPHLETS.**

**BOLINGBROKE'S
CHARACTER.**

who condemned the Action could not but approve the Person. A vein of Mirth and Gaiety were as inseparable from his Conversation, as an Air of Love and Dignity from his Personage, and a Greatness of Spirit from his Soul.'

Meanwhile, Lady St. John, Bolingbroke's mother, was showing to everybody at Court a letter from her son to his father, in which he protested that he was perfectly innocent of carrying on any intrigue with the Pretender. Of which letter, says Lady Cowper, 'I have taken a copy, but I believe it won't serve his turn.'

Court and parliament being agitated, the lackeys imitated their betters. The footmen, in waiting for their masters, who were members of Parliament, had free access to Westminster Hall. For six and thirty years they had imitated their masters, by electing a 'Speaker' among themselves, whenever the members made a more exalted choice within their own House. The Whig lackeys were for Mr. Strickland's man. The Tory liveried gentry resolved to elect Sir Thomas Morgan's fellow. A battle-royal ensued in place of an election. The combatants were hard at it, when the House broke up, and the members wanted their coaches. Wounds were then hastily bandaged, but their pain nursed wrath. On the next night, the hostile parties, duly assembled, attacked each other with fury. The issue was long uncertain, but finally the Tory footmen gained a costly victory, in celebration of which Sir Thomas Morgan's servant, terribly battered, was carried three times triumphantly round the Hall. There was no malice. The lackeys clubbed together for drink at a neighbouring ale-house, where the host gave them a dinner gratis. The dinner was made expressly to create insatiable thirst, and before the banquet came to a close, every man was as drunk as his master.

In March, 1715, Bishop Burnet, the man more hated by the Jacobites than any other, died. These perhaps further indulged their hatred of the very name, by attributing to his youngest son, Thomas Burnet, the authorship of a famous Tory ballad, which was long praised, condemned, quoted or sung in London coffee-houses,—it was named

**POLITICS IN
LIVERY.**

SATIRE.

BISHOP BURNET'S DESCENT INTO HELL.

The devils were brawling at Burnet's descending,
But at his arrival they left off contending;
Old Lucifer ran his dear Bishop to meet,
And thus the Archdevil, th' Apostate did greet:—
'My dear Bishop Burnet I'm glad beyond measure,
This visit, unlook'd for, gives infinite pleasure.
And, oh! my dear Sarum, how go things above?
Does George hate the Tories, and Whigs only love?'

'Was your Highness *in propriâ personâ* to reign,
You could not more justly your empire maintain.'
'And how does Ben Moadley?'—'Oh! he's very well,
A truer blue Whig you have not in hell.'
'Hugh Peters is making a sneaker within
For Luther, Buchanan, John Knox, and Calvin;
And when they have toss'd off a brace of full bowls,
You'll swear you ne'er met with much honester souls.

'This night we'll carouse in spite of all pain.
Go, Cromwell, you dog, and King William unchain,
And tell him his Gilly is lately come down,
Who has just left his mitre, as he left his crown.
Whose lives till they died, in our service were spent;
They only come hither who never repent.
Let Heralds aloud then our victories tell;
Let George reign for ever!'—'Amen!' cried all hell.

Court-life was certainly not particularly exemplary. A Stuart Princess would not have dared to seek reception at St. James's, but the mistress of a Stuart King was welcomed there. The old Louise de Querouaille, Duchess of Portsmouth, chief of the royal Husseydom in the apartments of Charles II., was presented to the Princess of Wales by the Duchess's granddaughter, the Countess of Berkeley, Lady of the Bedchamber, then in waiting! According to the records of the time, the Duchess was 'most graciously received.' Next evening (it was in March, 1715) this painted abomination of a woman sat at the king's side, at a supper given by the Duke of Richmond, in Priory Gardens. The royal harridan's granddaughter sat on the other hand of

George I.! Her husband, the Earl of Berkeley, and the Earl of Halifax made up this highly respectable party of six.

This laxity of moral practice, at Court, was made capital of by the Jacobites. Throughout April and May, they proclaimed that there was not a man about St. James's who was not noted for disaffection or lukewarmness to Church principles. There was a report that a 'new Academy was to be erected at Hampstead, for instructing youths in principles agreeable to the present times.' The existing Parliament was declared to be as capable of burning Articles, Homilies, and Liturgies, as 'Sacheverel's Parliament' was of burning the Oxford decree. Episcopalian clergymen were said to be looked on with such small favour by the Government, that a prelatie military chaplain in Scotland was removed by the authorities in London on the sole ground of his being an Episcopalian. This, the Duke of Montrose told the Archbishop of York, 'could not be got over.' Presbytery would be more perilous to England than Popery; but both menaces would disappear, if George and his hopeful family were 'sent back to their own German dominions, for which Nature seems to have much better fitted them.'^[1] This was said to be the opinion of the most sensible Whigs, as well as of all the Tories in England.

There is little doubt that the Tories in London were exasperated to the utmost by the disregard which the Whigs and the Dissenting preachers manifested for the decree in the 'Gazette' which forbade the meddling with State affairs in the pulpit. Bradbury made his chapel echo again with demands for justice against traitors. Tories called him the 'preaching Incendiary.' They had previously treated Bishop Burnet as 'a lay preacher who takes upon him, after a series of lewdness and debauchery, in his former life, to set up for an instructor of Ministry, and impudently tells the Ministers of State, the King's Majesty, and all, that he expects the last Ministry should be sacrificed to his resentments, and their heads be given to him in a charger, as that Lewd Dancer did to John the Baptist.'^[2]

Humble Jacobites, on the other hand, were often mercilessly treated. Ill words spoken of the king brought the hangman's lash round the loins of the speaker. Half the Whig roguery of London went down to Brentford in May, to see a well-to-do Tory butcher whipped at the cart's tail from Brentford Bridge round the Market Place. That roguery was very much shocked to see

**FLYING
REPORTS.**

**DECREE IN
THE
'GAZETTE.'**

wicked Tory influence at work in favour of the High Church butcher; for, he not only was allowed refreshment, but the cart went so fast and the lash so slowly, that the Hanoverian cockneys swore it was not worth while going so far to see so little.

To their loyal souls, ample compensation was afforded; **THE LASH.** soon after. There was a Jacobite cobbler of Highgate who, on the king's birthday, was seen in the street in a suit of mourning. On the Chevalier's natal day, he boldly honoured it by putting on his state dress, as holder of some humble official dignity. Jacobites who, on the same occasion, wore an oaken sprig or a white rose, well-known symbols, could easily hide them on the approach of the authorities, but a beadle who came out in his Sunday livery, to glorify the 'Pretender,' was courting penalties by defying authority. The magnanimous cobbler went through a sharp process of law, and he was then whipped up Highgate Hill and down again. To fulfil the next part of his punishment, the cobbler was taken to Newgate, to which locality he was condemned for a year. People in those days went to see the prisoners in Newgate as they did the lions in the Tower, or the lunatics in Bedlam, and parties went to look at the cobbler. If they were Tories, they were satisfied with what they saw, but Whigs turned away in disgust. 'Why,' said they, 'the villain lives in the press-yard like a prince, and lies in lodgings at ten or twelve shillings a week!' The disgusted Whig papers remarked that 'he was not whipped half as badly as he deserved.' They were not always thus dissatisfied. A too outspoken French schoolmaster, one Boulnois, was so effectually scourged for his outspokenness, from Stocks Market to Aldgate, that he died of it. The poor wretch was simply flogged to death. The Stuart party cried shame on the cruelty. The Hanoverians protested that there was nothing to cry at. The man was said to be not even a Frenchman, only an Irish Father Confessor in disguise! What else could he have been, since the Jacobites, before Boulnois was tied up, gave him wine and money. Such gifts to suffering political criminals were very common. An offender was **THE PILLORY.** placed in the pillory in Holborn, for having cursed the Duke of Marlborough and the ministry. He must have been well surrounded by sympathisers. Not a popular Whig missile reached him; and when, with his head and arms fixed in the uprights, his body being made to turn slowly round to the mob, he deliberately and loudly cursed Duke and ministry, as

he turned, the delight of that mob, thoroughly Tory, knew no bounds. They even mounted the platform and stuffed his pockets with money.

The author of ‘George III., his Court and family,’ in the introductory part illustrates the gentler side of George I.’s character, by quoting his remark when entrapped by a lady into drinking the Pretender’s health,—‘With all my heart! I drink to the health of all unfortunate princes.’ And again, when paying one of his numerous visits to private individuals in London, the king marked the embarrassment of his host as his Majesty looked on a portrait of the Chevalier de St. George, which the host had forgotten to remove. ‘It is a remarkable likeness,’ said the king, ‘a good family resemblance.’ Nor was he insensible to humour, if the following story, told in the above-named work, may be taken for a true one. ‘There was a gentleman who lived in the City, in the beginning of the reign of this Monarch, and was so shrewdly suspected of Jacobitism that he was taken up two or three times before the Council, but yet defended himself so dextrously, that they could fasten nothing on him. On the breaking out of the Rebellion in 1715, this person, who mixed some humour with his politics, wrote to the Secretary of State, that as he took it for granted that at a time like the present he should be taken up as usual for a Jacobite, he had only one favour to beg, that if the administration meant any such thing, they would do it in the course of next week; for, the week after, he was going down to Devonshire on his own business, which, without this explanation, would no doubt be construed as transacting the business of the Pretender. Lord Townshend, who was Secretary of State at that time, in one of his convivial moments with the king, showed him this letter, and asked him what his Majesty would direct to be done with such a fellow. “Pooh! pooh!” says the king, “there can be little harm in a man who writes so pleasantly!”’

A HARMLESS
JACOBITE.

[1] ‘Letter, from Perth to a gentleman in Stirling.’

[2] ‘Confederacy of the Press and the Pulpit for the blood of the last Ministry.’





CHAPTER IV.

(1715.)



THE popular demonstrations troubled the authorities less than the expressed discontent of some of the soldiery. The Foot Guards especially had become clamorous at having to wear shirts that would not hold together, and uniforms that *would* go into holes, while the wearers were liable to punishment for what they could not prevent. On the anniversary of the king's birthday (20th May), crowds of soldiers of the regiments of Guards paraded the streets, exhibited their linen garments on poles, and shouted, 'Look at our Hanover shirts!' Others stript off shirts and jackets, and flung them over the garden walls of St. James's Palace and Marlborough House. Some of the men made a bonfire in front of Whitehall, and cast their shoddy garments into the flames! The soldiers were treated with peculiar consideration. Marlborough reviewed them in the Park, and then addressed them in a deprecatory speech which began with '*Gentlemen!*' He acknowledged that they had grievances, promised that these should be redressed, informed them that he himself had ordered new clothes for them, and he almost begged that they would be so good as to wear the old ones till the new (including the shirts) were ready! The whole address showed that the soldiers were considered as worth the flattering. It ended with a 'tag' about 'the best of kings,' and as the tag was cheered, it was, doubtless, supposed that the flattery had not been administered in vain. Fears connected with the soldiery were certainly not groundless. A reward of 50*l.* was offered for the apprehension of Captain Wright, of Lord Wimbledon's Horse. The Captain had written a letter to a friend in Ireland, which letter had probably fallen into the hands of 'the king's decypherer.' The Government had, at all events, got at the contents. The offensive portion was to the effect that the Duke of Ormond would overcome all his enemies, and the writer expressed a hope that they should soon send George home again! The 'loyal' papers were not afraid to accuse the bishops of so far tampering with the soldiery

as to encourage them in thinking, or even in saying, how much better off they were in Ormond's days than *now*!

The papers proved both the watchfulness and uneasiness which existed with respect to the army. One day it is recorded that a Colonel of the Guards was dismissed. As danger seemed to increase, a camp was formed in Hyde Park, whither a strong force of artillery was brought from the Tower. A sweep was made at the Horse Guards of suspected men, on some of whom commissions were said to have been found signed by the 'Pretender!' All absent officers were ordered to return at once to their posts in the three kingdoms. An important capture was supposed to have been made of a certain Captain Campbell. London was full of the news that Mr. Palmer, the messenger, was bringing the Captain to town; but the messenger arrived alone. He had let the Captain escape, and people who expected that Palmer would be hanged were disappointed that he was only turned out of his place.

At this period, Fountain Court, in the Strand, was a quiet spot, with good houses well-inhabited. In one of these lodged two Captains, Livings and Spencer, and a Lieutenant, John Kynaston. The last had got his appointment through sending 'information,' under the pseudonym of 'Philo-Brittannus' to the Secretary of War. The Lieutenant looked for further promotion if he could only discover something that the Government might think worth a valuable consideration. Kynaston lounged in coffee-houses, listened to gossip on the parade, and was very much at home among the Captains of all services, and especially of some who assembled in the little room behind the kitchen at the 'Blew Postes,' in Duke's Court. But his well-regulated mind was so shocked at what he heard there that he unbosomed himself to the two Captains, his fellow-lodgers in Fountain Court. Loyalty prompted Kynaston to let King George know that his Majesty had dangerous enemies within his own capital. The Captains approved. But then, the idea of being an informer was hateful to Kynaston's noble soul! The Captains thought it might be. On the other hand, to be silent would be to share the crime. His sacred Majesty's life might be in peril. It was not acting the part of a base informer to put his Majesty on his guard. The Captains endorsed those sentiments as their own; and when Lieut. Kynaston went to make an alarming revelation to Mr. Secretary Pulteney, he carried in his pocket the certificates of the

POLITICS IN
THE ARMY.

LIEUTENANT
KYNASTON.

Captains that the bearer was a loyal and disinterested person, and that it gave them particular pleasure in being able to say so. Pulteney heard what the gallant gentleman, the principal in the affair, had to say, and he, forthwith, called together a Board of General Officers, with General Lumley for president, before which Kynaston and the naughty people whom he accused were brought face to face.

The latter bore it very well. Among the first whom Kynaston charged as pestilent Jacobite traitors were a Cornhill draper and a peruque-maker from Bishopsgate Street. The Lieutenant declared that when he was present they had drunk the Pretender's health. The honest tradesmen swore that they did not drink that toast, but that Kynaston had proposed it. They were set aside, while a lawyer and a doctor were brought before the Board for a similar offence. They pleaded their well-known principles. 'Aye, aye,' said the Lieutenant, 'your principles are better known than your practice.' This faint joke did not elicit a smile; and in the next accused individual, a 'Captain D——,' Kynaston caught a Tartar. The Lieutenant deposed mere 'hearsay' matter as to the accused being a Jacobite, but the Captain claimed to be sworn, and he then testified that Kynaston had said in the Captain's hearing: 'If I'm not provided for, I shall go into France,' which was as much as to say he would go over to 'the Pretender.' This pestilent Captain was then allowed to withdraw. 'As he was departing the Court,' says Kynaston, in a weak but amusing pamphlet he subsequently published, 'he gave me a gracious nod with his reverend head, and swore, "By God, I've done your business!"' The Lieutenant felt that he had. The best testimony he could produce,—that is, the least damaging to himself,—was in the case of the free-spoken roysterers of the little room behind the kitchen at the 'Blew Postes.' Ormond's health, Bolingbroke's health, and similar significant toasts, were given there—so he alleged. 'Yes,' answered the accused, 'but they were given by you, and were not drunk!' They called the kitchen wench in support of their defence. The loyal Lieutenant summoned rebutting testimony, but his cautious witnesses alleged that no such healths were proposed, and, therefore, could not be drunk by Kynaston or anybody else. The military Board of Enquiry thereupon separated, leaving informer and accused in ignorance of what further steps were likely to be taken. Kynaston went away for change of air, but such severe things were publicly said of him, by friends as well as foes,

**JACOBITE
PLOTTERS.**

**FALSE
ACCUSER.**

that he thought the best course he could take would be to show himself in the Mall.

There, then, is the next scene in this illustrative comedy. Kynaston, with his hat fiercely cocked, is seen at a distance by a ruffling major, named Oneby. The Major says, loud enough for the general audience,—‘As soon as I see Kynaston, I’ll make him eat his words and deny his Christ! I’ll *path* him, and send him quick to hell!’ The Lieutenant, leaning on the arm of one of his captains, blandly remarks to him as both draw near to the fire-eating major, ‘Gentlemen give themselves airs in my absence.’ And then looking Oneby sternly in the face, exclaims, ‘I value not a Jacobite rogue in the kingdom!’ According to Kynaston’s pamphlet, this had such an effect on Oneby, that the Major came daintily up to him and in the most lamb-like voice asked, ‘What news from the country, Lieutenant?’ To which the latter replied, ‘News, sir? that his Majesty has enemies there as well as here.’ And therewith, they cross the stage and *exeunt* at opposite sides.

**THE MILITARY
BOARD.**

This was not the ordinary style of Major John Oneby’s acting. He was an accomplished and too successful duellist. A few years after the above scene in the Park, he killed Mr. Gower in a duel fought in a room of a Drury Lane tavern—the result of a drunken quarrel—over a dice-board. The Major was found guilty of wilful murder, and condemned to be hanged; but he opened a vein with a penknife, as he lay in bed in Newgate, and so ‘cheated the hangman.’

The Military Board, meanwhile, went quietly and steadily about its work. What it thought of the disinterested Lieutenant and those whom he charged with treason, he learned in a very unexpected way. He was ill at ease in bed, reading the ‘Post Boy,’ when his much astonished eyes fell upon the following paragraph:—‘Lieutenant John Kynaston has been broke, and rendered incapable of serving for the future.’ This was the first intimation he had had of any return made to him by way of acknowledgment for his information. He accounted it a lie, inserted by ‘that infamous and seditious Bell-wether of their party, Abel Roper!’ In quite a Bobadil strain, Kynaston afterwards registered a vow in print that he ‘should, by way of gratitude, take the very first opportunity of promoting a close correspondence between Abel Roper and his brother Cain.’ Before that consummation was

**THE
LIEUTENANT
DISPOSED OF.**

achieved, Kynaston—it was a fortnight after the announcement appeared in the ‘Post Boy’—received a document, ‘On his Majesty’s Service,’ which convinced the ex-Lieutenant that he no longer formed part of it. He rushed to the Commander-in-Chief, the Duke of Marlborough. ‘It’s a hard case,’ said the Duke, ‘but I am going into my chair!’ and so he got rid of the appellant. Kynaston hired a chair and was carried over to General Lumley, the President of the Military Board. ‘You had better keep quiet,’ said the General, ‘you might get insulted!’ *Insulted* meant beaten or pointed out in the streets. Kynaston at once went to bed with a fever which conveniently kept him there for seven weeks. ‘The Lieutenant is sneaking,’ cried his enemies; but he appeared in the guise of a pamphlet, in which he said that he should never recover the surprise into which he had been thrown by discovering that the people whom he had accused had found readier belief than he—the accuser. Never again did John Kynaston ride with Colonel Newton’s Regiment of Dragoons.^[3]

Other informers were more profitable to listen to than Kynaston. Marlborough, who dismissed the ex-Lieutenant so cavalierly, was one day giving ear, with deep interest, to a sergeant in the Foot Guards. The staple of the fellow’s news was, that his captain, Paul, had in his desk a commission as Colonel of a regiment of cavalry, from the Pretender; and that he had promised a lieutenant’s commission to the sergeant, who had accepted the same, and now, out of remorse or fear, or hopes of getting a commission in a safer way, came and told the whole story to the great Duke. Marlborough dismissed him, bade him be of good cheer, and keep silent. An hour or two afterwards, Captain Paul was at the Duke’s levee. The Commander-in-Chief greeted him with a cordial ‘Good morning, Colonel!’ (Captains in the Guards were so addressed), ‘I am very glad to see you!’—and then, as if it had just occurred to him—‘By-the-by, my Lord Townshend desires to speak with you; you had better wait on him at the office.’ Paul, unsuspecting, rather hoping that some good chance was about to turn up for him, took his leave, ran downstairs, jumped into a chair, and cried, ‘To the Cock-pit!’ When his name was announced to the Secretary of State, Lord Townshend sent a message of welcome, and a request that Paul would wait in the anteroom, till some important business with some of the Ministers should be concluded. Paul was still waiting when the Duke of Marlborough arrived, and passed through the room to the more private apartment. As he passed, the Colonel

CAPTAIN
PAUL.

rather familiarly greeted him, but Marlborough confined his recognition to a very grave military salute, and disappeared through the doors. Paul looked the way that the Commander-in-Chief had gone, felt perplexed, and then, addressing the door-keeper who was within the room, said, 'I think I need not wait longer. I shall go now, and wait on my Lord another time.' The door-keeper, however, at once took all the courage out of him by civilly intimating that the gallant officer must be content to stay where he was, as Lord Townshend had given stringent orders that he was not to be permitted to depart on any account. The sequel was rapidly arrived at. Paul was taken before the Council, where he found that the knaves' policy was best—to avow all. He alleged that he got his commission at Powis House, Ormond Street, and it was found in his desk. He purchased comparative impunity by betraying all his confederates.

Conspirators who betrayed their confederates, like Colonel Paul, yielded such information that Parliament readily granted power to the king to seize suspected persons. His Majesty had grounds for getting within safe-keeping half a-dozen members of the Lower House. The suspected persons were, Sir William Wyndham, Sir John Packington, Edward Harvey of Combe, Thomas Forster, and Corbet Kynaston. King George, however, would not put a finger on them, without going through the form of asking leave. The Commons gave consent, with alacrity, thanking his Majesty, at the same time, for the tender regard he had manifested for the privileges of the House. Before five o'clock the next morning, Mr. Wilcox, a messenger, knocked at the door of Mr. Barnes, the bookseller in Pall Mall. The sight of the silver greyhound on his arm was as sufficient as if he had displayed his warrant in the face of the Bibliopole, himself. Wilcox was in search of Harvey, who lodged there, when in town, but he was not there on that morning. The messenger looked over his papers, sealed them up, and then went post-haste down to Combe, in Surrey. He arrived just in time to meet Mr. Harvey going out hawking. Harvey welcomed Wilcox as if he had been a favoured guest, and went up to London with him, as if it were a pleasure-excursion. Taken immediately before the Council, he was good-humouredly bold, till he was shown what he did not expect to see, a damaging treasonable letter in his own handwriting. He faltered, turned pale, complained of sudden illness, and asked for permission to withdraw, which was granted. Harvey, shut up in

ARREST OF
MEMBERS OF
PARLIAMENT.

HARVEY, OF
COMBE.

his room, stabbed himself with a pruning knife, and when he was found by his servant, almost unconscious from loss of blood, the unlucky Jacobite refused to have medical aid. He only consented, at the urgent prayer of his kinsman, the Earl of Nottingham, Lord President of the Council, to at least see those who had been sent for. Mead, Harris, and Bussiere restored him to a condition of capability to take the sacrament. A Whig Lecturer, the Rev. Mr. Broughton, was at hand, but that worthy man declined to administer, even after Mr. Harvey had made a general confession of his sins. When the Jacobite had expressed some measure of sorrow for his latest iniquities, the Whig clergyman performed the rite, but not till he had fortified himself with a warrant from the Council to give Harvey the comfort he desired.

Meanwhile, Sir William Wyndham had secretly fled from London, as soon as he knew the peril he would incur by tarrying there. Sir William's flight took him to Orchard Wyndham, his house in Somersetshire, where, surrounded by partisans, he deemed himself safe at least till he could devise means for putting a greater distance between himself and the Tower. One morning, in September, at five o'clock, before it was yet full daylight, two gentlemen arrived at the house, express from London, with letters for him, which were of the utmost importance. Sir William himself admitted them, in his night gear. They had scarcely crossed the threshold, when one of the visitors informed the Baronet that the two gentlemen he had admitted were Colonel Huske and a messenger, bearing a warrant to arrest and carry him up to town. 'That being the case,' said Sir William, 'make no noise to awake Lady Wyndham, who is in a delicate condition of health.' The Colonel had received orders that Lady Wyndham, being the Duke of Somerset's daughter, was 'on that account to be put in as little disorder as possible.' Accordingly, Colonel and messenger quietly followed Sir William to his dressing-room, where the Colonel told him that he was ordered to search his papers, and seize all that might be suspicious. Wyndham produced his keys, readily; and he expressed such alacrity in recommending a thorough search of drawers, desks, chests, &c., that the wary Colonel, thought it might be as well to look elsewhere, first. His eye fell on the Baronets garments, as they lay carefully flung over a chair, and the astute agent, judging that the unlikeliest place was the likeliest for treasonable matter to be stowed away in, took up Sir William's coat, with a 'what may we have here?' thrust his hands into one of the

SIR WILLIAM
WYNDHAM.

SEARCH FOR
PAPERS.

capacious pockets, and drew thence a bundle of papers. The emotion of Sir William was warrant of their importance. The Colonel read it all in his confusion and disorder, and urged the instant departure of his prisoner. 'Only wait,' said Sir William, 'till seven o'clock, and I will have my carriage and six horses at the door. The coach will accommodate us all.' Huske made no objection. Sir William proceeded to dress; and, finally, he remarked, 'I will only go into my bed-room to take leave of my lady, and will shortly wait on you again.' The Colonel allowed Sir William to enter the bed-room, and quietly waited till the leave-taking should be accomplished. As the farewell, however, seemed unusually long in coming to an end, the Colonel and messenger began to look at each other with some distrust. They had supposed that Wyndham was on his honour to return to them, but Sir William had supposed otherwise. Whether he stopped to kiss his sleeping wife or not, he never told, but he made no secret of what the Colonel discovered for himself, on entering the room, namely, that Wyndham had escaped by a private door, and perhaps his lady was not half so much asleep as she seemed to be. Her husband, at all events, lacked no aids to flight, the incidents leading to which were the common talk of the town, soon after the Colonel had come back to Secretary Stanhope. A reward of one thousand pounds was offered for the recapture of the Jacobite whom the Colonel had been expected to take, keep, and deliver up, in the ordinary discharge of his duty.

On the morrow of Wyndham's escape, Lord William Paulet and Paul Burrard were seated at a window in Winton market-place. From an inn-window opposite a parson was seen staring at them rather boldly, and both the gentlemen agreed that they had seen that face before, but could not well tell where. It was Wyndham in disguise; and in that clerical garb he contrived to get into Surrey, a serving-man riding with him. There, at an inn, his servant wrote, in Sir William's name, to a clerical friend of the fugitive, asking for an asylum in his house. If the friend's fears were too great to allow him to grant such perilous hospitality, he was urged to procure a resting place for the fugitive in the residence of the rector of the parish, who might receive an inmate in clerical costume without exciting suspicion. This letter chanced to reach the house of the person to whom it was addressed, during his absence. His wife had no scruples as to opening the missive; perhaps she suspected there was mischief in it. Having read its contents, and being anxious to serve and save

WYNDHAM'S
ESCAPE.

her husband before all the Sir Williams in the world, she promptly sent the letter to the Earl of Aylesford, who as promptly submitted it to the Ministry. Meanwhile Wyndham felt that the delay in answering his request was the consequence of a discovery of his whereabouts. He at once set forth again, and the magistrates being too late to seize the master, laid hands upon the servant. There was found upon him a cypher ring containing a lock of hair, at sight of which a Whig magistrate exclaimed, 'It's the Pretender's hair. Lord! I know the man and his principles. It cannot be nobody's else!' On examination, however, it was seen that the ring bore the cypher and carried the hair of Queen Anne. While the other magistrates were jeering their too confident colleague, Wyndham was quietly escaping from them.

Passing on his way to London, Sir William encountered Sir Denzil Onslow on horseback, escorted by two grooms. 'Hereupon,' says a pamphlet of the period, 'the knight, as it is customary for those of the black robe (whose habit he had taken upon him) to do to Men of Figure, very courteously gave him the salute of his hat and the right hand of the road, which the said Mr. Onslow, being some time after apprised of, acknowledged to be true, with this circumstance, that he well remembered that he met a smock-faced, trim parson on such an occasion, but that his eyes were so taken up, and his attention wholly employed, with the beauties of the fine horse he rode upon, that he had no time to make a true discovery of his person at that juncture.'

**DRAMATIC
COURTESY.**

Wyndham, finding the pursuit grow too hot for him, rode to Sion House, Isleworth, one of the seats of his father-in-law, the Duke of Somerset. The two went up to the Duke's town residence, Northumberland House, whence Wyndham's brother-in-law, the Earl of Hertford, sent notice of the presence of such a guest to Secretary Stanhope. That official dispatched a messenger, by whom Wyndham was carried before the Council Board. It was said in London that he there denied all knowledge of a plot; but the Council, nevertheless, committed him to the Tower. The next day all London was astir with reporting the news that the Duke of Somerset, having been refused as bail for his son-in-law, had at once resigned his office of Master of the Horse.

**UNCOURTEOUS
INTERVIEW.**

Before Wyndham surrendered, the carriage of the Duke of Somerset, his father-in-law, was seen standing at the door of the famous lawyer, Sir Edward Northey. After the surrender, Government suspected that this

interview was for the purpose of a consultation as to whether the proofs against Sir William could convict him of treason. Ministers resolved that the Duke should be deprived of his places, and Lord Townshend called upon him, with a sorrowful air, and a message from the king that his Majesty had no further occasion for the Duke's services. 'Pray, my Lord,' said Somerset, 'what is the reason of it?' Lord Townshend answered, 'I do not know!' 'Then,' said the Duke, 'by G—, my Lord, you lie!' 'You know that the king puts me out for no other cause, but for the lies which you, and such as you, have invented and told of me!' Such were the amenities which passed between noblemen in those stirring Jacobite times. The duke asked leave to wait upon the king, but he was curtly told to wait till he was sent for.

Still the plotters at large plotted on. The reiteration on the part of the Whigs that they were powerless and on the road to destruction, betrayed more fear than confidence. 'If the (Tory) Party were not under a judicial infatuation,' says one paper, 'they might plainly see that Heaven has declared against them, by depriving them of their Chief Supporters, and discovering their treasonable plots, which, when set in a true light, will appear so treacherous and barbarous against their lawful sovereign, King George, and so bloody against their fellow subjects, as must make the memory of the Party execrable to latest Posterity.' This seemed to have little influence on the Jacobites. The plot became so serious, there was so much uncertainty as to where it might break out, that officers were hurrying from London to assume command, in various directions, to Chester and to Dover, to Newcastle and to Portsmouth, to Berwick and to Plymouth, to Hull, to Carlisle, to York, to Edinburgh—east, west, north, south—there was a general hurrying from London to whatever point seemed likely to prove dangerous.

A GENERAL
STIR.

[3] Case of Lieut. John Kynaston.





CHAPTER V.

(1715).



RIGHTLY or wrongly, the Tory mob in London were in no wise daunted. They listened to street preachers of sedition. The listeners were generally called ‘scum,’ and the orator was often designated ‘as a Tory cobbler.’ Powder and arms were discovered on board ships in the Thames, and persons, accused of giving information to the Government, posted bills in the City affirming their innocence. Often the information was intended to mislead. Mr. Harvey, of Combe, was said to be expressing his contrition to a divine. The police messengers could not believe he was either so sick or so sorry as his friends affirmed. Their opinion was justified when they found him attempting to escape from his house through the tiles—an attempt which they frustrated.

Towards the end of the month, more of the lofty heads among the Jacobites were struck at. Sir John Pakington and Sir Windsor Hunlake were added to the list of prisoners, and the Whigs were elated by a display made in London by a delegation from Hanoverian Cambridge. The king had rewarded the loyalty of that University by purchasing, for 6,000*l.*, the library of the Bishop of Ely, which he presented to the Whig seat of learning. Cambridge, by delegation, came up to St. James’s. The king declared that his present was only an earnest of future favour.

Both the Whig and the Tory press exasperated the Government. From the former was issued a pamphlet, called ‘The necessity of impeaching the late ministry.’ The pamphlet took the form of a letter to the Earl of Halifax, and was written by Thomas Burnet. The amiable author, after such vituperation as was then much enjoyed by those who admired the flinger of it and were out of reach of the missiles, mildly remarks that,—‘having commenced an enemy to the late ministry even from their first entrance into power, he cannot forbear from pursuing them with his resentment even to their graves, the only place,

PAMPHLETEE
RING.

indeed, where their crimes can be forgotten!’ This was a Whig cry for blood. “‘England expects it,” as the saying is,’ rang out from the throats of the ultra Whigs.

A still more perplexing pamphlet was sold in the streets, despite the constables, namely, ‘The Soldiers’ humble address for the impeachment of the late ministry.’ Political soldiers were felt to be as out of place as militant parsons. It rained pamphlets; and the embarrassment caused thereby was increased by the circumstance that some of them bore on the title-page the names of eminent men as authors, whose sentiments were directly opposed to those set forth in the pamphlet. Great confusion ensued, and a fear of impending calamity fell upon many. So marked was this fear, that two months before the eclipse of April, the astronomers, Dr. Halley and Mr. Whiston, ‘thought it necessary to caution people against being surprised or interpreting it as any ill omen, wherein there is nothing but what is natural, or than the necessary result of Sun and Moon.’ ‘It is all very well,’ said the Tories, ‘but there has been no such eclipse in England, since the days of Stephen the Usurper.’

GENERAL
CONFUSION.

The eclipse and the Pretender were subjects that gravely occupied men’s minds. From the coffee-houses where ‘Captains’ more or less genuine used to congregate and talk loudly, those swaggerers began to disappear, and their acquaintances felt quite sure that mischief was afoot. The Secretaries of State knew all about those ‘Captains.’ They were followed whithersoever they went, till all of them, nearly two dozen, were pounced upon in Dublin, after spies had discovered that they were enlisting men for the Chevalier. Two-thirds of these Jacobite recruiters were, upon brief trial and conviction, hanged, drawn, and quartered. In England, a poor Jacobite who had drunk ‘Damnation to King George,’ was only fined 50*l.*; but as he was to lie in prison till he paid that sum, he probably slowly rotted away instead of being promptly hung. When the Tories had the opportunity to express hostile opinions with impunity, they never failed to avail themselves of it. They had this opportunity at the theatre. Whig papers remarked that ‘the Tory faction hissed as much like serpents from the galleries as their leaders, the High Church faction, did from the pulpits.’ Any allusion to desertion of allies or to a separate peace was sure to be greeted with volleys of hisses.

In the Mug Houses bets began to be laid as to the length of time King George was likely to be on the throne. Daring

JACOBITE

men, with their thoughts over the water, wagered a hundred **MOBS.** guineas he would not be king a month longer. The next day, on the information of some of the company, they would find themselves in peril of going to Tyburn in half that time. The Tory mob had a way of their own to show their sentiments. They kept the anniversary of Queen Anne's coronation-day, and made the most of their opportunity. They assembled at the Conduit on Snow Hill, with flag and hoop, and drum and trumpet. They hoisted the queen's picture over the Conduit, and a citizen having flung to them a portrait of King William, they made a bonfire and burnt it. They displayed a legend, the contribution of a Mob Muse, which ran thus, alluding to the queen:—

Imitate her who was so just and good,
Both in her actions and her royal word!

They smashed the windows that were not illuminated, **RIOTING.** and they pelted with flints the people who were lighting the candles intended to propitiate them. They stopped coaches, robbed those who rode in them, even of their wigs, and if the victims would not shout for Queen Anne, the rascalry stript them nearly naked. Right into a Sunday morning in April, this orthodox crew of incendiaries went about plundering, while they shouted God bless the Queen and High Church! They drank horribly the whole time, and toasted Bolingbroke frequently, but never King George. High Churchmen would not blame riot when it took the shape of burning down dissenters' chapels, and the pious villains danced to the accompaniment of 'High Church and Ormond.' At Oxford, town and gown overstepped limits observed in London. In one of the many tumults there, before they burnt in the street the furniture of one of the dissenting 'meeting houses,' they fastened a Whig Beadle in the pulpit and rolled him about the town till he was bruised in every limb. The Whig papers, thereupon, significantly pointed out to their friends, that there was a nonjuring congregation who met over a coffee-house in Aldersgate Street. These people, it was said, prayed for 'the rightful king,' and such wretches, of course, merited all that a Whig mob could inflict on them. One of the most dangerous symptoms of the time occurred on the arrest of some strapping young ballad wenches, who were taken into custody, opposite Somerset House, for singing ballads of a licentious nature against King George. The soldiers on guard rescued the fair prisoners; and when much indignation

was expressed at this fact, the officers excused the men on the ground that they did not interfere on political grounds, but out of gallantry to the ladies.

The street ballad-singers were irrepressible. They were the more audacious as they often sang words which were innocent in their expression, but mischievous by right application. The Jacobites were ever apt at fitting old words and tunes to new circumstances. There was a song which was originally written in praise of the Duke of Monmouth. That song which lauded the unhappy nephew of James II. was now revived in honour of that king's son. 'Young Jemmy' was to be heard at the corner of many a street. Groups of listeners and sympathisers gathered round the minstrel who metrically proclaimed that

**BALLAD-
SINGERS.**

Young Jemmy is a lad that's royally descended,
With ev'ry virtue clad, by ev'ry tongue commended.

A German gentleman, who subsequently published his experiences, was astonished at the remissness or lenity of the magistrates generally, but especially towards one arch-offender who, by song, furthered the Pretender's interests at the corner of Cranbourne Alley. 'There a fellow stands eternally bawling out his Pye Corner pastorals in behalf of *dear Jemmy, lovely Jemmy,*' &c.

The writer adds, in sarcastic allusion to nobler personages who were said to have the Chevalier's commission in some secret drawer—'I have been credibly informed this man has actually in his pocket a commission under the Pretender's Great Seal, constituting him his Ballad-Singer in Ordinary in Great Britain; and that his ditties are so well-worded that they often poison the minds of many well-meaning people; that this person is not more industrious with his tongue in behalf of his master, than others are at the same time busy with their fingers among the audience; and the monies collected in this manner are among those mighty remittances the *Post Boy* so frequently boasts of being made to the Chevalier.'

**POLITICAL
SONGS.**

The ballad, however, of 'Young Jemmy' did not mar the popularity of 'The king shall enjoy his own again.' The Jacobites knew no king but James III. It was he who was referred to when the singers vociferated

The man in the moon may wear out his shoon

By running after Charles's wain;
But all to no end, for the times will not mend
Till the king enjoys his own again.

Although songs in support of the house of Hanover were sung to the same tune by Whig ballad-singers, this tune was thorough Tory, and was profitable only to the Jacobites. Ritson compares it with *Lillibulero*, by which air James II. was whistled off his throne. 'This very air,' he says, alluding to 'The king shall enjoy his own again,' 'upon two memorable occasions was very near being equally instrumental in placing the crown on the head of his son. It is believed to be a fact that nothing fed the enthusiasm of the Jacobites down almost to the present reign (George III.), in every corner of Great Britain, more than "The king shall enjoy his own again."'

Among the gentlemen of the laity whose fortunes were seriously affected by the times and their changes was Colonel Granville. His brother George, Lord Lansdowne, was shut up in the Tower, with Lord Oxford and other noblemen. The colonel simply wished to get quietly away, and live quietly in the country. He ordered horses for two carriages to be at his door, in Poland Street, at six in the morning. The horse-dealer, finding that the colonel was making a secret of his movements, lodged an information against him with the Secretary of State. The spy accused him of being about to leave the kingdom, privately. Early in the morning, the two young ladies of the family, Mary and Anne Granville, were awoke in their beds, by the rough voices of a couple of soldiers with guns in their hands, crying out, 'Come, Misses, make haste and get up, for you are going to Lord Townshend's' (the Secretary of State). Hastily dressed, by their maid, the young ladies were conducted below, where the colonel and his wife were in the custody of two officers and two messengers, supported by sixteen soldiers. Colonel Granville devoted himself to consoling his wife, who went off into a succession of hysterical fits, which could not have been cheering to the daughters, the elder of whom was fifteen, the younger nine years of age.

Colonel Granville did not come to harm, but there was a general scattering of high-class Tories. Some fled in disguise; some were ordered, others had leave, to depart. The Earl of Mar found his offer to serve King

George promptly rejected. Whereupon he galloped through Aldersgate Street, and went northward, to serve King James.

Occasionally we meet with a Catholic Jacobite who preferred his ease to his principles. In one of Pope's letters *IN THE PARK.* he refers to a gentleman in Duke Street, Westminster, who, having declined to take the oath of abjuration, had consequently forfeited his chariot and his fashionable Flanders mares. Supported by spiritual consolation, he bore his loss like a patient martyr. Unable to take a drive, he watched from his window those who could exhibit themselves in their carriages. The sight was too much for his principles. These were maintained for the greater part of one day, till about the hour of seven or eight, the coaches and horses of several of the nobility, passing by his window towards Hyde Park, he could no longer endure the disappointment, but instantly went out, took the oath of abjuration, and recovered his dear horses, which carried him in triumph to the Ring. 'The poor distressed Roman Catholics,' it is added, 'now unhorsed and uncharioted, cry out with the Psalmist, "Some in chariots and some on horses, but we will invoke the name of the Lord."'

There were other people, who met events with a philosophical indifference. Sir Samuel Garth was to be seen squeezing Gay's forefinger, as Gay set Sir Samuel down at the Opera. The coffee-houses were debating the merits of Pope's 'Homer,' and of Tickell's. The wits at Button's were mostly in favour of the former, but they made free with Pope's character as to morals, and some few thought that Tickell stood above Pope. 'They are both very well done, sir,' said Addison, 'but Mr. Tickell's has more of Homer in it.' Whereat, Pope told James Craggs that 'Button's was no longer Button's,' indeed, that England was no longer England, and that political dissensions had taken the place of the old refinement, hospitality, and good humour. Politics superseded poetry, yet all the world of London, in spite of politics, was, according to Pope, discussing the merits of his translation. 'I,' wrote Pope in July, 'like the Tories, have the town in general, that is, the mob, on my side; 'and to show the Secretary of State how little politics affected him, he gaily notes that 'L—— is dead, and soups are no more.'

In that same July, however, there was a withdrawal of well-to-do Roman Catholics, especially from London. *INVASION
IMMINENT.* Their opponents gave them credit for having been warned of an approaching invasion, and of being desirous to escape imprisonment.

Popish disloyalty might be cruelly tested by any constable who chose to administer the oath against Transubstantiation. Towards the end of the month the king's proclamation was first posted in London. It announced that invasion was imminent, and it ordered all Papists and reputed Papists to withdraw to at least ten miles from London before the 8th of August. One hundred thousand pounds was the reward again offered for the body of 'the Pretender,' dead or alive, if taken within the British dominions. Meanwhile, at the Tory coffee-house in Warwick Lane, the portrait of the Chevalier was passed from hand to hand; while, to confirm waverers and encourage the converted, great stress was laid upon the heroic look, the graceful carriage, and the beautiful expression of clemency which belonged to the original! Whig London was scandalised at the circumstance of a 'priest in an episcopal meeting-house' in Edinburgh having prayed and asked the prayers of the congregation for *a young gentleman that either was, or would soon be, at sea*, on a dangerous enterprise. The London Whigs, moreover, complained that the importation of arms and ammunition for the service of the Pretender was favoured by Tory Custom-House officers who had been appointed by the late ministry. Among the king's own foot-guards, enlisting for the Pretender was again said to be going on. A strong recruiting party for the English army which went from London to Oxford, and entered the latter city with its band playing, was attacked by the Tory mob, by some of whom the big drum was cut to pieces. The mob in various places attacked the houses of the Whigs. Shots were exchanged, and if a Whig happened in defence of his life and property to slay a Tory, and the case occurred where a jury of Jacobites could be summoned on the inquest, the verdict was sure to be one of 'wilful murder,' whereat the 'loyal' London press waxed greatly indignant. It was with a sort of horror that the Whig papers announced that eight-and-forty dozen swords had been discovered in the north in the house of a tenant of Lord Widdrington. Some of the papers ridiculed all idea of real danger. The Duke of Ormond and Lord Rolle, the Duke of Leeds and Viscount Hatton, might be dining with French ministers, but some papers thought little would come of it. France objected to the English armaments going on, as uncalled for. 'Uncalled for!' cried the Whig papers, 'why, bloody riot is rife in half-a-dozen large towns! One of the rebels shot in Bromwicham had a fine lace shirt under his common frock!'

SOUND OF
SHOT.

Unpopular as the king and royal family may have been, there was never the slightest show of fear or uneasiness about them. Even in August, when an invasion was imminent, they went abroad among the people quite unprotected. One Saturday evening in that month we hear of them embarking in barges attended by many of the nobility afloat, and going down the river 'through bridge as far as *Limus*, to divert themselves with music, which was most excellently performed on a great number of trumpets, hautboys, and double curtails.' On the return, the boats on the river became so closely packed that the king ordered his watermen to ship their oars and drift up with the flowing tide, as there was no room left for rowing. The whole mass thus moved up together. The king and royal family had perfect confidence in the people, and this trust was not abused. The enthusiasm was unbounded. As twilight came down upon them, the shipping and also the houses ashore illuminated with lanterns and fired salutes. George I. was as safe as if he had been at Windsor; and when, on landing at Privy Garden Stairs, he turned round to salute the people, he must have felt that they were a noble people, and they must have acknowledged that he was a stout-hearted king.

**AFLOAT ON
THE THAMES.**

This was putting a bold face in front of peril. French emissaries were in London, and there was no knowing for what desperate ends they had been employed. Proclamations were despatched to Ireland for the arrest of all Tories, robbers, and raparees, of whom there were already too many concentrating for treasonable work about Dublin. The army itself was not free from the most audacious treason. One morning as the fourth troop of Horse Guards were about to turn out, an officer of the troop, named Smith, was arrested in Whitehall. He affected to be indignant, but the messengers produced the Secretary of State's warrant for his capture on a charge of high treason. Smith was shocked, and certainly did not recover his coolness when the messengers took from his pockets a commission signed by the Chevalier. The popular report as Smith passed on his way to Newgate was, that on that very day he was to have sold his post at the Horse Guards!

**THE HORSE
GUARDS.**

The king had no fear of assassination, but the 'faction,' as the Jacobites were called, did their best to render his life uncomfortable. There was natural indignation on the part of all moderate men when a reprint appeared of the nonjuring Rev. Dr. Bedford's work, 'The Hereditary Right of the

Crown of England Asserted.’^[4] This reprint was denounced as being equivalent to the Pretender’s declaration, in folio. The burthen of the book was, that to attempt the life of an usurper in aid of the rightful prince was not murder. ‘As the rightful prince’ was not the same personage in the eyes of Whigs and of Tories, those who put forth the book thought that neither party would be angry at the justification of the murder of the chief of the opposite party.

While such publications were being printed, the metropolitan authorities narrowly watched the temper of the people. The Lord Mayor and Common Council were against the holding of Bartholomew Fair. One newspaper, nevertheless, announced that the festival would be held as usual. This step so smelt of sedition that the ‘author’ (as an editor was then called) was only too glad to be let off by an abject apology. It ended with:—‘We humbly beg his Lordship’s pardon for such an affront.’

On September 13th news reached London that the Chevalier de St. George had at last set out from Lorraine ‘in a Post Calash,’ in order to travel incognito and so the more easily reach a seaport where he could embark unobserved for some point in Great Britain. The Calash, it was said, had not gone far before it was overturned. The august traveller was reported as being generally hurt and bruised, but particularly about the neck. This last was especially pointed out, as if it were very significant. James was, at all events, so shaken that his attendants had to carry him back. The Whigs eagerly longed for confirmation of this news. ‘If it only proved true to the letter, then,’ cried the Whigs, ‘it will give his party a further occasion to remember the month of August, and furnish them with an opportunity to drink as liberally to the Confusion of some other horses as they drank to the “health of Sorrel,” the name of the horse that stumbled with King William, and gave him the fall of which he died.’

There was growing uneasiness in London, despite the general confidence. When the king prorogued Parliament in September, he was described in the papers as being ‘pleased to take notice of the rebellion in Scotland.’ He roundly laid that rebellion and the intended invasion to the tumults and riots which had prevailed in the capital and in various parts of the kingdom. Protestants, he said, had been deluded into seditiously joining with Papists by false reports

**THE
CHEVALIER
DE ST.
GEORGE.**

**THE KING’S
SPEECH.**

of the Church of England being in danger under his administration. The king thought this step was both unjust and ungrateful, considering what he had done and what he had undertaken to do for her. The king naturally sneered at the idea that a Popish Pretender was likely to be a better head of the Church of England than a Protestant king. That informers were not lacking may be perceived in a curious advertisement for a minister to have put into the papers. It was to this effect:—‘Whereas a letter was directed to the Right Hon. Robert Walpole, Esq., proposing to discover matters of great importance, signed G. D., Notice is hereby given that the said letter is received, and that if the person who wrote it will come to Mr. Walpole’s lodgings at Chelsea any morning before nine o’clock and make out what he therein proposes, he shall receive all due encouragement and protection.’

On September 20th the ‘Daily Courant’ made no allusion whatever to the troubled and anxious state of the nation, but it gave the satisfactory intelligence that ‘All is in tranquility in France.’ On the same day, however, a proclamation in the king’s name was issued, wherein it was stated that ‘a most horrid and treacherous conspiracy’ was afoot, and ‘an invasion’ intended for the establishing of the Pretender.

The pulpits thereupon began to ring, but the Government made a commendable attempt to muzzle the preachers, whether the latter were blind adversaries or blinder advocates. The employment of violent and malevolent terms against any persons whatsoever was prohibited. The ‘intermeddling,’ in sermons, with affairs of state, was strictly forbidden. The authorities, in fact, enjoined Christian ministers to observe the charity which is the leading feature in Christianity. The ministers, for the most part, claimed and exercised a rather unchristian liberty. Foremost among the blaring trumpeters who sounded on the Hanoverian side was White Kennett, Dean of Peterborough. Kennett was a man who, in his early days, had offended the Whigs, by his political publications; and, something later, had gratified the Tories by putting forth an English translation of Pliny’s panegyric upon Trajan, which was supposed to apply to James II.; while, at the same time, he displeased the Jacobites by declaiming against popery and by refusing to read the royal declaration of indulgence. The Whigs whom he had offended, he appeased by his fierce opposition to Sacheverel. Kennett was a man of great parts, as it is called, and was particularly qualified for maintaining his opinions in a

**PREACHERS
AWAKE.**

controversy. Scholar, gentleman, priest and politician, he steadily went up the ladder of preferment, till his merits and patronage had now brought him to the deanery of Peterborough and the rectory of St. Mary, Aldermanbury. It was in the church so named that Kennett, on September 25th, 1715, preached his famous sermon on witchcraft. The text was taken from 1 Samuel, xv. 23:—‘Rebellion is as the sin of witchcraft, and stubbornness is as iniquity and idolatry. Because thou hast rejected the word of the Lord, He hath also rejected thee from being king.’ The sermon, a long one, and full of an invective that almost reaches ferocity, is stuffed with inflammatory politics from beginning to end, incendiary matter which *then* made men half-mad with joy or indignation, but which seems *now* a poor thing save in weight of mischievous words. The preacher, of course, proved to his own satisfaction that all concerned in promoting the imminent rebellion were bewitched by the devil; that stubbornness in opposing the royal authority was the iniquity and idolatry alluded to in the text; and that the Pretender, like his father, had lost the crown because he did not care to be of the true community of faith. The sermon was ‘inspired,’ according to the Whig papers;—but by the devil, according to the Tories and Tory critics in the clubs. Art took a curious revenge for this discourse. An altarpiece was painted for St. Mary’s, Whitechapel, by order of Welton, the Jacobite rector. The subject was The Last Supper. It gained a certain modest amount of admiration, till some spectator remarked that Judas Iscariot not only seemed a more than usually prominent figure in the group, but that the face was wonderfully like Dr. White Kennett’s. It was, in fact, Kennett’s portrait, and when this became known, all London, but especially Jacobite London, was crowding to Whitechapel to behold this novel pillorying of the modern Iscariot. If any spectator had a doubt on the matter, it was removed by the black patch on Judas’s head. Kennett, in William’s days, used to go out with his dog and his gun, and with companions in his shooting excursions. On one of these ‘outings,’ an awkward companion let part of the charge of his gun go into the head of the divine. The consequences were grave, but Kennett was saved by undergoing the operation of trepanning. Ever afterwards he wore a black patch over the place. The artist had not forgotten the fact. Delighted Jacobites gazed at the figure in jeering crowds; and when the picture had been seen and re-seen by all the Tories in town, the Bishop of London interfered, and ordered it to be put away. Kennett could

A FAMOUS
SERMON.

SATIRICAL ART.

afford to laugh. His sermon on the witchcraft of the rebellion carried him to the episcopal throne at Peterborough.

The pulpits were not silenced. As what was considered the supreme moment of peril became imminent, they shook again with the trumpet-like roar of the preachers. The High Church lecturers inculcated obedience to the *rightful king*, without naming him. The thorough Whig Hanoverian clergy spared no epithets that they could fling, winged with fire and tipped with poison, at the Jacobites' sovereign, 'a boy sworn to destroy this kingdom,' said one. Others were both foul and ferocious in dealing with the Chevalier who desired to get possession of his inheritance. The more eagerly they pelted him with unsavoury missiles, the more lavish they were in terms which amounted to worshipping the god-like monarch whom Heaven had sent for the advantage of England and the wonder of the world. On October 16th, 1715, one of these sermons was preached in St. Katherine Cree Church, London, by the minister, the Rev. Charles Lambe. The text was taken from Proverbs, xxiv. 21, 'My son, fear thou the Lord and the king: and meddle not with them that are given to change.' Such a text foreshadows its comment in such hands as those of Lambe. But he went out of his way to assail the Chevalier, into the circumstances of whose birth—to show he was not the born son of Mary of Modena and James II.—Lambe entered in the gossiping manner of such matronly midwives as his bishop was then in the habit of licensing. 'That was done in a corner,' he said, with an air of mystery, 'which should have been done openly to the utmost extent of decency.' Had Lambe's congregation been disposed to sleep, he had matter prepared for the awakening of them in a passage which was certain to touch them nearly. He knew that distant danger was unheeded, but he brought this suggestive picture of London to the attention of Londoners, and it could not have done otherwise than make their souls uneasy, and rouse their spirits to be up and doing. 'Have you any notion of a civil war, your Treasury exhausted, your Banks plundered, your Trade decayed, your Companies bankrupt, your Shops rifled, and the various species of Stocks sunk, run down, and lost? Have you any idea of Fields flow'd with blood, your Streets pav'd with the carcasses of fellow citizens, your Wives and your Daughters torn from your Sides, and made a Prey to enrag'd undistinguishing Soldiers. Think that you see this beautiful and spacious City burnt, destroy'd, made a ruinous Heap, attended with all the dismal

MISCHIEVOUS
SERMONS.

Horrors of Fire and Sword even from Fellow Countrymen, Fellow Subjects, and Fellow Protestants!’

Citizens and fathers must have stared in a sort of dismay. Lambe might well say that if any disloyal man was present, he hoped such person had been cured of his malady. Jones, probably, went home thinking of a pavement made out of the carcasses of Brown and Robinson; and the ladies of citizen families walked behind them in a flutter of speculation as to what part of the force those undistinguishing soldiers belonged.

A SOUND OF
ALARM.

London may be called the head-quarters of the rebels, before actual war broke out. Captain John Shafto (on half-pay), an ex-Captain John Hunter, and an Irish Papist who had served in the brigade in France, were among the more active and daring agents. The leaders of the party kept their secret tolerably well. They met, debated, provided all things needful for their success, and carried on a correspondence with friends at a distance. While agents moved quietly away from London to teach the ‘Rurals’ the sacred duty of rebellion, more trusty messengers, still, rode or walked through and away from town, bearing letters and despatches which, if discovered, might cost a dozen lives. These trusty gentlemen were sent into various parts of the kingdom. They rode from place to place as travellers, pretending a curiosity to view the country; and they performed their dangerous duty with a success which perplexed the king’s messengers. The most dexterous of these agents were Colonel Oxburgh, Nicholas and Charles Wogan, and James Talbot, all Irish and Papists. There were others, men of quality too, and occasionally a clergyman, who were entrusted with important but still dangerous duties. ‘All these,’ says Patten in his ‘History,’ ‘rid like Gentlemen, with Servants and Attendants, and were armed with swords and pistols. They kept always moving, and travelled from place to place, till things ripened for action.’

JACOBITE
AGENTS.

Meanwhile, the otherwise curious part of the public might be seen wandering in troops to Duke Street, Westminster, to gaze at the house, the master of which, the Earl of Scarsdale, was there put under confinement. There was, elsewhere, a good look-out kept for perils ahead; there was no indulgence of any mean spite. His Majesty’s ship ‘Ormond’ was then lying at Spithead. The Government did not stoop to the little vindictiveness of painting out the name of the great rebel who was then aiding and fostering

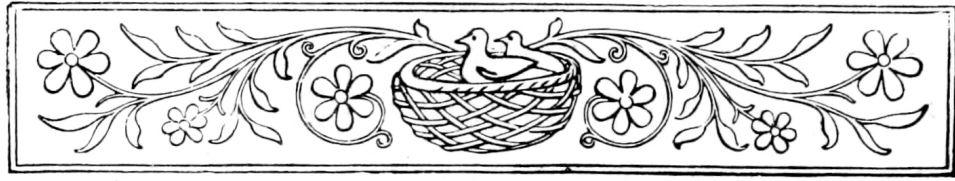
rebellion, abroad. Sedition at home was hottest very close to the Royal Palace. There was quite a commotion at the bottom of St. James's Street, at seeing messengers and guards enter Mr. Ozinda's chocolate-house, next door to the palace. Ozinda himself was brought out captive, and when the mob saw him followed by Sir Richard Vivyan and Captain Forde, also captives, they began to smell a new gunpowder plot, and to surmise that the blowing up of the royal family was to be one of the means for restoring the Stuarts.

Much of the safety of London was entrusted to the Westminster Cavalry Militia, who were now very active. **ARRESTS.** Record is made of their rendezvousing in Covent Garden, going thence to *Tuttle Fields*, where, says the sarcastic 'Weekly Packet,' 'they exercised without so much as one Man falling from the saddle.' At the same time, captures were being effected in every direction. Now, a whole club might be seen, properly secured, and passing on their way to Newgate, amid the jeers of most spectators, and with the sympathy of a few. Country gentlemen of many thousands a year were not held sacred even in the middle of their dinner at an ordinary. It was a regular frolic to carry off half the guests in eating-houses, before they had finished their repast, for which perhaps they had little appetite left. Then, unlucky Italians or demonstrative Frenchmen were ever and anon being handcuffed in country places and hurried through London on suspicion of being the Pretender. Ambassadors from foreign Powers had endless trouble thrown upon their hands in protecting the rights of foreign hawkers of flash jewelry, suspected of designs upon the throne. The Whig writers seriously warned the London apprentices, who had Tory proclivities that Heaven was certainly **POPULAR FEELING.** against them. At a feast in celebration of the expiration of a young fellow's apprenticeship, the freedman, in an after-dinner speech, railed furiously at his late Whig master and at Whiggery generally. Before the speaker, with anti-Hanoverian expletives for fireworks, had come to an end, the young fellow's excitement became too much for him. A fit laid him senseless, and he died in an hour or so. The Whig patriots protested that the Judgment of God was never so manifest as in this case.

[4] The authorship of this pamphlet, first published in 1713, for which Bedford was condemned to pay a fine of 1,000 marks, and to be imprisoned

three years, was subsequently assumed by another nonjuring clergyman—the Rev. George Harbin.





CHAPTER VI.

(1715.)



EXT, the idea of a camp and mimic war in Hyde Park was viewed, by *some* ladies, with unconcealed delight. Pope wrote half sportively, half seriously, to one of those gay women of the period—most of them Jacobite at heart. ‘You may soon have your wish,’ he says, ‘to enjoy the gallant sights of armies, encampments, standards waving over your brother’s corn-fields, and the pretty windings of the Thames stained with the blood of men. Your barbarity, which I have heard so long exclaimed against, in town and country, may have its fill of destruction.’ The writer adds a notification of the perils that may environ lovely women who delight in war, and he thus proceeds:—‘Those eyes that care not how much mischief is done, or how great slaughter committed so they have but a fine show, those very female eyes will be infinitely delighted with the camp which is speedily to be formed in Hyde Park. The tents were carried thither this morning. New regiments with new clothes and furniture, far exceeding the late cloth and linen designed by his Grace for the soldiery—the sight of so many gallant fellows, with all the pomp and glare of war, yet undeformed by battles, those scenes which England has, for so many years, only beheld on stages, may possibly invite your curiosity to this place.’

The Guards, while encamped in Hyde Park, were preached to, on Sundays, with an earnestness which stood for an apology. It seemed necessary to persuade them, as the preachers did, that the happiness of Great Britain, in having a wise and just Protestant king, was beyond all conception.

CAMP AND
PULPIT.

The ‘Friends,’ too, lifted their voice. In November the Quaker spirit was moved to uplift a shout against the Jacobites. A Ministering Friend of the people so called gave a blast through the press of ‘a trumpet blown in the North and sounded in the ears of John Ereskine, called by the Men of the World Duke of Mar.’ At the Cheshire coffee-house, in King’s Arms Court,

Ludgate Hill, this pamphlet might be bought, or read over the aromatic cup which was sold in that locality.

Pamphleteers came out with ‘bold advice,’—that Jacobitism should be stamped out by vigorous laws. Everywhere the clerical Jacobites, who prayed for the Pretender, by *innuendo*, were denounced. In Holland, it was said, when a clergyman meddles with affairs of State, the magistrates send him a staff and a pair of shoes, and that significant course was recommended for Tory parsons. Another Dutch custom was highly approved of. It was gravely proposed for adoption here, that the clergy, generally, should preach only from texts prescribed for them by the civil authorities!

Throughout this year, on days popular with either party, the streets resounded with different cries, according to the anniversary. Now, it was ‘a Stuart!’ ‘an Ormond!’ ‘No Hanoverians!’ or ‘High Church and Ormond!’ which last cry was interpreted by the opposite party to mean ‘Pope and Pretender!’ Tory mobs of patriots went about asking High Churchmen for money, to drink ‘Damnation to Whigs and Dissenters.’ The same men went to the other side to ask drinking money for damning the Pope; and when the Tories accused the Whigs of burning down their own meeting houses, it was perhaps because the leading incendiaries were recognised by Tories as having been active in supporting with their sweet voices what they were then destroying torch in hand! The same men would, the next day, burn the Pretender in effigy, in Cheapside, and get drunk on the wages of their infamy. On the king’s birthday, it was observed that loyalty prevailed among the lower orders, wherever wine was to be had for nothing. Some made a demonstration. ‘In the Marshalsea,’ said the papers, ‘after the king’s birthday, our prisoners, wherever able, had select companies to drink King George’s health.’ As some keepers of prisons distributed punch at the prison gates, nobody refused to drink ‘The king’s health,’ as long as the liquor lasted.

The London Jacobites showed their characteristic spirit on the night of Friday, November 4th, the anniversary of King William’s birthday. They built up a huge bonfire in Old Jewry, and prepared to hang over it an effigy of that monarch. The Williamite Club, assembled at the Roebuck in Cheapside,

POPULAR
SLOGAN.

PERILOUS
ANNIVERSARIES.

hearing of the insult, rushed out with ‘oaken plants’ in their hands, and made furious and effective onslaught on the ‘Jacks,’ They scattered the faggots, broke the heads of all opponents, and ultimately carried off the effigy in triumph. Some Jacks pleaded that it was only an effigy of Oliver, but they were kicked for gratuitously lying. The Whigs installed the captured figure in their club room, where it was preserved as an ‘undeniable proof of that villainous Design which the Faction had not then the courage to own and now have the Impudence to deny.’

On the following day, loyal Londoners had their revenge. They celebrated the national deliverance from the Gunpowder Plot, and, through William III., from popery, slavery, and wooden shoes. With bands of music, flaunting of flags, and continued hurrahs from loyal and thirsty throats, the procession moved or stumbled through the city. The effigies borne along with them in derision were those of the Pope, the Pretender, the Duke of Ormond, Lord Bolingbroke, and the Earl of Mar. There were men who carried warming pans, in allusion to the legend that the Pretender had been brought in one into the palace on the day that the queen, his mother, believed she had borne him. There were men who represented the prince’s nurses, and others who carried nursery emblems. The music played ‘Lillibulero,’ and tunes of similar quality. The effigies of Ormond and Mar rode together in the same cart. The former wore an extravaganza sort of uniform, with an emblematic padlock on his sword. Ormond was in scarlet and gold. Mar was in blue and silver, with a paper pinned to his staff. It bore this inscription: ‘I have sworn sixteen times to the Protestant religion, and I ne’er deceived you but once.’ Pope and Pretender followed, cheek by jowl, in another cart. They were pontifically and royally decked out, in caricature. Bolingbroke, in absurd court dress, sat at the tail of the cart, as in dutiful attendance on both masters; and a paper above him bore the words, ‘Perjury is no crime!’ All these personages rode backwards like traitors. The lengthy procession passed westward, from the Roebuck in Cheapside by Holborn to St. James’s Palace, returning by Pall Mall and the Strand. For the time being they were in full possession of the streets. They paused at the houses of celebrated personages, to hail them with blessings or curses equally highly-pitched. ‘Sometime before their arrival at the Roebuck, on their return, a sneaking Jacobite mob, perceiving the pile for the bonfire unguarded, came up with a shout of “King George for ever!” the better to

POPULAR
DEMONSTRATI
ONS.

deceive the people, and scower'd off with the faggots into bye-lanes and corners.'

Eastward, the procession went as far as Grace-church Street, amid vast multitudes of people. The trumpets and hautboys now played none but Protestant tunes. A double set of effigies were burnt on gibbets over two huge bonfires, one in front of the Roebuck, the other before the Royal Exchange,—the devil being added to the rest as a *bonne bouche* for the loyal and pious people. The mob at last separated in pursuit of liquor, and over their cups they talked of how an Irish priest had just been clapped into Newgate for attempting to blow up the powder magazine at Greenwich; and how Governor Gibson had saved Portsmouth Castle from being seized and the fleet in the harbour burnt by rascally Jacks who had conspired for the purpose. Before the next day had dawned, expresses were galloping into London with news from the North.

Letters of November 3rd, sent express from Edinburgh, were printed in the London papers of the 8th. They brought news of London to the Londoners themselves, namely, that, according to a proclamation made by Lord Mar, the Pretender's friends had risen in such numbers in and about London, that 'King George had made a shift to retire.' Fortified in Perth, and awaiting communications from James, Mar 'affects to seem merry, diverts himself with balls, and has a press, with which he prints and disperses false news, to keep up the spirit of his party.' Among the reports sent to London was one that Mar's detachments had crossed the Forth, and swept the country clear as far as Newcastle. Other chiefs, Lord Ogilvy, the Earl of Seaforth and Glengarry, were said to be in occupation of the most important roads, bridges, and passes.

NEWS FROM
THE NORTH.

Letters from Stirling assured the Londoners that the Duke of Argyle was fully prepared to meet and defeat any movement that could be made by the rebels. Great comfort was it to the Whigs in the metropolis to hear that in some places those rebels were met on their march by members of synods, who urged on the insurgents the duty of loyalty to King George. Jacobite Foot and Horse were said to be in extremely bad condition. The newspapers then say:—

'Before they went into Kalso, they plundered the house of the Right Hon. George Baillie of Jerviswood, and broke

REPORTS
FROM

open everything that was locked. They did the like to Sir **SCOTLAND.** John Pringle's house at Stichel. When they went from Hawick, the Highlanders being unwilling to march, they gave them a crown a-piece to go with 'em to Langham, where, being alarm'd in the night, the Horse mounted, abandoned the Foot at two o'clock in the morning, and marched towards Lancashire, upon which the Foot marched to Ecclefechan, where they were divided about the course they should take. Some of them were for going to Moffat and some to Dumfries, but hearing that there were four thousand of the king's friends at the latter, seven hundred of them marched to Moffat, where they dispersed to make the best of their way. Two hundred of them got as far as Lamington in Clydesdale, where they were made prisoners in the churchyard. The rest are picked up in parties of fifty or sixty, as they march. The Lord Kenmure, with the Scots horse, is gone along with the English; and Mackintosh of Borland with him. Mr. Forster commands the (rebel) English Horse. The Lords Derwentwater and Widdrington be with him, but they decline command because they are Papists. Borland left his nephew sick at Kelso, under the care of Dr. Abernethy.'

London laughed at the simplicity of Mar, who sent a trumpet to Argyle, soliciting him to spare Mar's plantations at Alloway. Mar also hoped Argyle would 'treat his prisoners civilly.' The report that 'Cameron of Lochiel had been prevailed upon by some means or other from Inverary to stay at home,' made curses ring against him in the Tory coffee-houses of London. The loungers and politicians in the Whig coffee-houses laughed as they read or heard read that 'Mar wrote to Captain Robertson, offering him great Incouragement if he would come over to him and bring others with him. The letter was delivered to the captain by a lady, but he was so honest that he carried both the lady and the letter to the Duke of Argyle.'—From Tiviotdale, under date of October 31st, the London papers of November 8th gave accounts of dissensions among the rebels. 'The Highlanders were unwilling to cross into England in support of the rebel English Horse; and although they offered the Highlanders 12*d.* a day, could not prevail with them.'

Then there is report of irresolute tarrying here, and of equally irresolute wending elsewhere—of scares and scurries, of hurried saddling of horses,

leaving mangers full of corn, and of panics—which sent crowds of rebels pell mell into rivers, which they forded at great peril,—all to avoid General Carpenter, who was supposed to be at their heels. In various ways they were said to have helped themselves. ‘Kelso has lost 7,000 marks by them, and Selkirk in the article of shoes 100*l.* sterling.’ Numbers of the gentry and common people were said to have joined Carpenter. This day’s news must have been discouraging to the Tories. It had such a depressing effect on Dr. Sacheverel, that he gave up the Jacobite cause. On the following day, November 9th, the reverend gentleman, with another or two of less note, quietly slipped into the Court of Exchequer, and took the oaths of allegiance to King George!!!

The news of the battle of Sheriff Muir and of the crowning affair at Preston reached London only four or five days after the events. The St. James’s ‘Running Post’ was the first in the field with anything like details. The public were told that Major-General Wills, being informed that the Popish Lords Derwentwater and Widdrington, with the Scotch and Northumberland rebels, in all between 4,000 and 5,000 men, were in Preston, Wills marched upon that town on Saturday, November 12th. He had with him regiments of horse and dragoons, known as Pitt’s, Wynne’s, Honeywood’s, Dormer’s, Munden’s, Stanhope’s, and Preston’s. Other dragoons held Manchester, and prevented the Jacobites there from rising in arms as they had promised.

**NEWS FROM
PRESTON.**

On arriving at the bridge over the Ribble, about a mile from Preston, Wills saw about 300 of the insurgent horse and foot precipitately retreating towards Preston, which they entered and barricaded. The bridge was at once crossed, the town was reached, and a hot engagement took place at the first barricade. The assailants suffered severely from the shots fired by men from windows and in cellars. The infantry, however, got a lodgment. When night came on, all the avenues of the town were blockaded by Wills’s cavalry, the men keeping by the horses’ heads throughout the night. At nine on Sunday morning General Carpenter joined Wills with three additional regiments of cavalry.

Private letters confirmed the report of the deadly nature of the defence made by men under cover. This led Wills to fire the houses, upon which the Jacobites withdrew to the centre of the town and into the church, fighting again behind new

**JACOBITE
FURY.**

barricades. When the resistance became hopeless, offers to capitulate were sent to the attacking general, but Wills refused all terms. They must surrender, he said, at discretion. He would not treat with rebels. The surrender followed; and the same day saw the fatal issues of Preston and of Sheriff Muir.

This news from Preston infuriated rather than depressed the London Jacobites. On Queen Elizabeth's birthday, November 17th, it was whispered about that they intended to profane the day by burning the effigies of his sacred Majesty King George himself, as well as that of King William. The Whigs of the Roebuck assembled in and about that hostelry, armed and resolved to prevent the profanation. At seven p.m. one of their scouts rushed in breathless with the news that the 'hellish crew' were mustered in St. Martin's-le-Grand to cries of 'High Church and Ormond,' 'Ormond and King James,' 'King James and Rome for ever!' The Roebucks, thus interrupted when they were drinking to the memory of Queen Elizabeth, while keeping their powder dry for contingencies, at once marched out. The hostile forces encountered at the east end of Newgate Street. The Jacobites were thoroughly thrashed, and the assailants carried in triumph to the Roebuck the figures, which had been destined for the flames in Smithfield, of the above two kings, and also that of 'the victorious Duke of Marlborough.' The figures were carried to the tavern-head-quarters of loyalty, and with them a sort of Scaramouch, who had brandished in their defence a huge scymitar, four fingers broad. The Whigs had scarcely got safe within their stronghold when it was vigorously assaulted by at least five hundred Jacobites. The latter, after whetting their rage by smashing windows on their march, commenced their attack on the Roebuck fortress by pulling down the sign, and breaking everything that was breakable in front of the house. Finally, the crowning assault was made by the hatchet and cleaver wielders against the gates. They laughed at being rather politely requested to desist, and were amused when shot at from the windows with powder only. Then, in self-defence, the Whigs fired into the mass with ball. Down went two or three into the London November mud, dead for James and the High Church. Up went, at the same time, the shrieks and curses of the wounded. The remnant were staggered; for a moment indecisive, they soon came to a resolution and to action upon it. At this moment appeared in Cheapside the Lord Mayor with a guard, some officers and citizens, shouting, 'King George for ever!' The Jacobites fled in

**STREET
FIGHTING.**

precipitation. The Scaramouch and some other prisoners were lodged in Newgate. Great tribulation prevailed in all the Jacobite quarters. In London, as at Preston, the star of the Stuarts paled before the fire of Brunswick.

The Londoners now looked for nothing more eagerly than for the arrival in town of the prisoners taken at Preston. Some officers among them had been shot for desertion. On the march to London the body consisted of about three hundred men. The officers walked or rode first. The gentlemen-volunteers followed, and the Highlanders brought up the rear. They travelled by easy journeys, and were sometimes fettered, at others free, according to the caprice of those who had them in guard. The public were informed that they would enter London in four bodies, ‘according to the several prisons they were to go to,’ the first body to the Tower, the second to Newgate, the third to the Fleet, the fourth to the Marshalsea. On the march several attempted to escape. A few succeeded; others were recaptured; some were cut down by pursuing soldiery. Among the slain was a Cornet Shuttleworth. There was found on his body the Chevalier’s banner. It was of ‘green taffety, with buff-coloured silk fringe round it—the device, a pelica feeding her young, with this Latin motto, “Tantum valet amor regis et patriæ,” “So prevalent is the love of King and Country.” All London was in a fever of agitation for this arrival—friends, that they might condole; foes, that they might exult.

Even the march of Major-General Tatton’s detachment of Guards up Gray’s Inn Lane to Highgate, to meet the prisoners there, attracted crowds, despite the severe weather. The last day of November a spectacle of a gloomier character attracted the Londoners. Three Jacobite captains—Gordon, Kerr, and Dorrell—went up Holborn Hill in carts to Tyburn. They had been captains under William and under Anne, but had flung up their commissions under George to take others from ‘King James.’ Even the Tyburn mob must have respected them—they died in such heroic, gentlemanlike fashion. They were calm, and declined to acknowledge the justice of their sentence. ‘Obstinate and sullen’ were the terms applied to them by the Whigs. To the last they persisted in justifying themselves. To account for which it was illogically said that ‘Gordon died a Papist, and ’tis shrewdly suspected the other two were tainted with the same principles.’ ‘It is therefore no great wonder,’ said the Whig ‘Evening Post,’

**THE
PRISONERS
FROM
PRESTON.**

TYBURN TREE.

‘that the precepts of their Religion as well as the Sake of their Cause should inspire them to leave the World in such an unrelenting Manner.’ These captains had striven to secure Oxford for their king.

In rebel times and crimes, every captain is not a captain who is called by that title. Thus, Captain Gordon was an adventurer who had killed one man in England and another in Bengal. The captain was brought in chains to England, but the chief witness against him died on the voyage, and Gordon was set free. Dorrell had been a hostler at the inn which gave its name to Hart Street, Covent Garden. Early in King William’s reign he had risen through a sea of troubles to the rank of ensign in the army, into which he had enlisted. His scarlet coat, cocked hat, and sword, rendered him acceptable to a rich old widow, with a portion of whose money Dorrell bought a share in a brewery near Clare Market. Bankruptcy carried him to the Fleet, whence, issuing in due time, he became a ruffler and gambler in taverns. When he was hanged as a martyr to Jacobitism, the hostile papers said that he had already earned that fate by cheating one Harper at the Cock and Pye in Drury Lane, of a hundred pounds. These little incidents illustrate the morals and customs of the period.

**JACOBITE
CAPTAINS.**

There is tradition of the gallant bearing of Lord Derwentwater on the progress of the captives towards London. Thus, it is said in the Jacobite ballad:—

Lord Derwentwater to Lichfield did ride,
With armed men on every side;
But still he swore by the point of his sword,
To drink a health to his rightful lord.

The earl took another view of the cause as he drew nearer to the capital.

After arriving at Barnet, Lord Derwentwater, conversing with an officer of General Lumley’s horse, which force had the prisoners of quality in their keeping, asked him if he knew how they were to be disposed of? The officer communicated his belief that they would be divided among three or four prisons, according to their rank. Derwentwater was silent for awhile, and then he remarked, ‘There’s one house would hold us all, and we have a better title to it than any other people in Great Britain.’ ‘What house is that,

**DRAWING
NEAR
LONDON.**

my Lord?’ asked the officer. ‘It is Bedlam,’ answered Derwentwater, as the madness of the enterprise in which he had been, not too willingly, engaged presented itself, not for the first time, to his mind.

On the whole way from Lancashire to Highgate most of the Jacobite captains were unsubdued in spirit. Many of them, however, on reaching Highgate, and perceiving preparations for pinioning them, suddenly became more sedate. Kindly-hearted Whigs in the London papers suggested that the rebels were sad, from a thought of similar ropes that would soon be about their necks! Allusion was made to the men of lesser quality who would speedily be ‘under hatches in the Fleet before they sailed for *Hanging Island*.’

There were noble men among these unfortunate Jacobites. The Earl of Derwentwater and his brother, Charles Radcliffe; the three brothers, Lord Widdrington, with Charles and Peregrine Widdrington; old Edward Howard, brother of the Duke of Norfolk; even Alexander and William, sons of Sir Alexander Dalmahoy, were bound together. Two other brothers, John and James Paterson, of Preston Hall, were also in fond, but melancholy, companionship. William Shaftoe, of Bevington, had his son, John Shaftoe, at his side; two other Shaftoes, kinsmen of the former, and also father and son, rode near them. John Cotton, of Geding in Huntingdonshire, supported his father, Robert Geding. Two brothers Swinburne were among the prisoners, but not their father, Sir William. James Dalzell cheered the drooping spirits of his nephew, the Earl of Carnwath. Two Heskeths of Whitehill, Gabriel and Cuthbert, were pointed out by the soldiery as another father and son. In the same relationship were the two George Homes of Wedderburn; the George and Alexander Home of Whitfield; and George and John Winraham of Eymouth. William and George Maxwell were two brothers. Of cousins there were many. And among those of best blood not yet named were the Earls of Nithsdale and Winton, Viscount Kenmure, and Lord Nairn, with the Master of Nairn, his son. The flower of Northumberland chivalry, members of the old church, were there, Ordes, Forsters, Griersons, Riddells, Thorntons, Claverings, and Scotts. These, with commoner men, yet men in all essentials of manhood equal in quality, descended Highgate Hill amid crowds of spectators, who lined the roads from the hill to the Tower, the Fleet, Newgate, or the Marshalsea, into

HIGHGATE TO
LONDON.

which prisons the noble herd was driven, according to their degree of nobility. 'The crowd gave most remarkable demonstration of their abhorrence of this rebellion and of their loyalty to his Majesty,' so says the 'London Gazette;' and no one expected it to say otherwise.

Even a Quaker could exult at the sight of the procession of captives. Gerard Penrice, a prisoner, gave the following instance in his so-called 'Life of Charles Radcliffe': 'A Quaker fixed his eyes upon me, and distinguishing what I was, said, "Friend, verily thou hast been the Trumpeter of Rebellion to these men. Thou must answer for them." Upon this a Grenadier gave him a push with the butt end of his musket, so that the Spirit fell into the ditch. While sprawling on his back, he told the soldier, "Thou hast not used me civilly. I doubt thou art not a real friend to King George."'

ARRIVAL IN
TOWN.

From first to last the prisoners had looked to be rescued. The Highlanders asked where the High Church Tories were? If they had had no heart for the fight, could not they now come to the rescue? Forster told his fellow-captives that a gentleman of Highgate had assured him that a Tory mob would rescue them before they reached London. Nothing came of it. Forster thought his quality might have taken him to the Tower instead of to Newgate. 'When,' says a Whig paper, 'he understood that Gordon, Carr (Kerr), and Dorrell were executed the day before, and their quarters then in the box just by, in order to be set upon the gates, it spoiled his stomach so that he could not eat with his then unhappy companions. It was the Whig crowd that shouted at the prisoners in a triumphant manner. Not only were the streets thronged, every coign of vantage in and about the houses was occupied, and spectators on horseback and in coaches accompanied, followed, and in some cases drew up to enjoy the pitiful, yet triumphant spectacle. 'It gave a very lively idea,' said the 'Flying Post,' 'of the triumphs of the ancient Romans when they led their captives to Rome.'

The rebel chaplain-general, Mr. Patten, rode by the side of the ex-Northumbrian M.P. Forster, the leader of the English Jacobites. It is hard to say which was the most coarsely assailed. The chaplain was audacious enough to talk treason as he went on his way. Forster was more reticent, but he was loudly taunted as a perjurer. He had taken the oaths to King George, before he transferred his

THE JACOBITE
CHAPLAIN.

loyalty to King James. The slang term for him was, 'the Man under the Rose.'

Of priests and clergymen among the prisoners, few attracted more attention than this Rev. Mr. Patten. The Londoners looked with curiosity on a man who had delivered a sermon from such a significant text as the following—Isaiah xiii. 15, 16, 'Every one that is found shall be thrust through, and every one that is joined unto them shall fall by the sword. Their children also shall be dashed to pieces before their eyes. Their houses shall be spoiled, and their wives ravished.' This looks like a weak invention of the enemy, but it was believed in, at least by the Whigs. Even while the procession of captives was passing, swords were drawn at tavern doors, and in tavern rooms. If a Whig was there to call Mar a villain, and the prisoners hang-birds, a Jacobite's rapier was speedily thrusting at his ribs to teach the other better manners.

Lady Cowper confirms these accounts. In her Diary, under date, December, 1715, she says:—'This week the prisoners were brought to town from Preston. They came in with their arms tied, and their horses (with the bridles taken off), led each by a soldier. The mob insulted them terribly, carrying a warming-pan before them, and saying a thousand barbarous things which some of the prisoners returned with spirit. The chief of my father's family was among them. He is above seventy years old.' Lady Cowper's maiden name was Judith Clavering; and it was the aged chief of that Jacobite house who rode defiantly through the Low Church blackguards. 'A desperate fortune,' adds Lady Cowper, 'had drawn him from home, in hopes to have repaired it. I did not see them come into town, nor let any of my children do so. I thought it would be an insulting of the relations I had here; though almost everybody went to see them.'

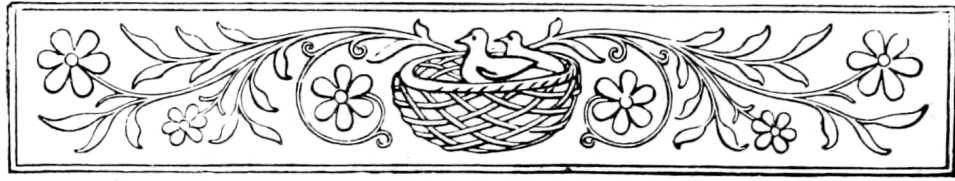
**LADY
COWPER'S
TESTIMONY.**

From the very outbreak of the rebellion London had teemed with reports which had no shadow of foundation. They were spread chiefly by Jacobite incendiaries of figure and distinction. They protested that if King George reigned, he would make a bridge of boats from Hanover to Wapping,—a phrase which served to intimate that the kingdom would be annexed to the electorate. People in the country were told that the London churches were closed, and that a clergyman could not appear in the streets in his clerical dress without

**JACOBITE
REPORTS.**

risking a knock on the head. As for resisting the Jacobites, the Highlanders were described as too powerful to be resisted. It was certainly in ridicule of such exaggerations that a story ran for a few days to the effect that those terrible Highlanders had cut off the Dutch auxiliaries, had put on their breeches, and, advancing on an English detachment which did not recognise them, had cut the Whig soldiers to pieces. It is quite as certain that the London Jacobites claimed the victory at Preston for *their* side, and were not silenced till the cavalcade of Jacobite captives was passing from Highgate to the London prisons. Even then, ultra-Tories were found who strongly suspected, or said they did, that half the prisoners were hired players who were dismissed when the public performance came to an end!





CHAPTER VII.

(1715-16.)



THE mournful procession of Scottish nobles, gentlemen, and brave fellows of less degree, was not the first spectacle of the same kind witnessed by the Londoners. After the abortive attempt at insurrection, made in 1708, the year after the Union of England and Scotland, under the title of Great Britain,—the castles of Stirling and Edinburgh, and all the prisons in Edinburgh, were crammed full of nobility and gentry; ‘at first,’ says George Lockhart of Carnwath, the gentle Jacobite, ‘no doubt, the Government expected to have proof enough to have brought several of them to punishment, but failing, blessed be God, in that, the next use they made of them was to advance their politics; for no sooner did any person who was not of their party pretend to stand a candidate, to be chosen a Parliament Man, at the Elections which were to be next summer, but were clapt up in prison, or threatened with it, if he did not desist; and, by their means, they carried, generally speaking, whom they pleased; but to return to the prisoners;—after they had been in custody some weeks, orders came from London, to send them up thither; which was accordingly done; being divided in three classes, and sent up three several times, led in Triumph, under a strong Guard, and exposed to the Raillery and Impertinence of the English mob; and now it appeared to what a fine market Scotland had brought her Hogs, her Nobility and Gentry being led in chains, from one end of the Island to the other, merely on account of suspicion, and without any accusation or proof against them.’

This last made all the difference between the captives of 1708 and those of 1715. Those of the former year were in time liberated, on agreement on the part of the most influential to serve the English Government at the Scottish elections, else, ‘I am afraid,’ says Lockhart, ‘some heads had paid for it.’ This was the payment exacted at the later period.

**THE
CHEVALIER IN
SCOTLAND.**

It was fatal to the political prisoners that the rebellion was carried on after the double defeat at Sheriff Muir and Preston. The Chevalier de St. George, otherwise James III., arrived in Scotland as inopportunately as the chief actor in a tragedy, when the curtain is falling. On December 22nd, 1715, he landed at Peterhead. All was lost before he appeared. His progress was made with the saddening conviction that nothing could be recovered. He marched with a loose array from Peterhead to Dundee. From Dundee he went and played 'king' for a few days in regal Scone, after having burnt a village or two. On January 9th, he entered Perth. A stand was to be made there, but, on that day three weeks, the anniversary of the execution of his grandfather Charles I., the stand was abandoned. News reached Perth that Argyle was coming down upon them. The Jacobite army dispersed in various directions, but chiefly scattered through the Highland fastnesses. A faithful few accompanied James to Dundee, a fewer still to Montrose. There was then further talk of holding out, but the unhappy prince slipped away from the talkers, went on board the little vessel waiting for him, and on February 9th, 1716, he was quietly dining at Gravelines. Altogether, he was about six weeks in Scotland. It would have been as well for him, and better for his followers, had he been at the Antipodes. London would not then have raved so cruelly as it did against the prisoners of Sheriff Muir and Preston.

**THE
CHEVALIER
OUT OF
SCOTLAND.**

On February 6th, 1716, when news of the dispersion from Perth had reached London, Lady Cowper went to the play, to see 'The Cocker of Preston.' It was 'the poet's night.' The good news, in fact, 'had reached town the previous day. The good effects of the news, which not only told of the withdrawal of the Jacobites, but that King George's forces had taken possession of that important city, were manifested in the theatre; for there was not a word that was loyal but what met with the greatest acclamations.'

The prisoners claim more notice than the players. Those who were marched to Newgate had the worst of it; but in that worst there were degrees of difference. An Act of Parliament allowed a rent of half-a-crown a week to be levied, for indulgence that would barely save the lodger from lying on hard boards or harder stone. Instead of half-crowns, pounds were exacted. For twenty guineas a prisoner might buy the right of living in the governor's house. When he had paid the fee, he found he had bought the right of

**COST OF
LIVING IN
NEWGATE.**

walking all day long in the fetid press yard, and of eating in the pot-house rooms connected with it. The governor argued that his house consisted of every part of Newgate which was not really within the prison. It suited his purpose to call the press yard external; and he derived profit from it, accordingly.

As soon as a prisoner passed within the gates, it was quickly ascertained if he had money in his purse; and, if this proved to be the case, wine and brandy were called for, in his name, by a horde of ruffians, male and female, and drunk by them, till they could drink or call no longer. But there were other birds of prey. If the victim had a few guineas left, after he had paid his garnish, the turnkeys would take down various sets of fetters, handle them in his presence, affect a shudder at their fearful weight, or praise their lightness,—one pair being so many guineas lighter than the other. Should the novice be reluctant, he received a taste of the quality of the ‘Condemned Hold’ for the night. This dungeon was in the arch beneath Newgate. At noon-day it was so dark that a candle only showed its darkness,—and a candle, duly paid for, had usually only a lump of clay for its ‘stick.’ To escape from the horror, the victim was docile enough in the morning, when he negotiated with the governor, over a bottle of brandy, for a removal.

If this removal brought him to the comparative luxury of the press yard, he was not necessarily privileged to partake of all its enjoyments. On entering there, he saw, perhaps, one or two captives studying books, a few reading newspapers, others at skittles, cards, or toss-penny; and a numerous company in the drinking boxes or at the windows of the different floors of the boozing kens looking into the yard. In an instant, these left their occupations, to surround and examine the new comer, and to exact his ‘footing,’ of a dozen of wine; with tobacco in proportion. If he could afford it, this was the company with which he might associate till he was hanged, or was otherwise disposed of. ‘Lovely women’ formed part of it, and with these, marriage might be contracted on limited liability. At ten (but later hours were to be had, for the paying for them) the ladies and gentlemen were sent to their respective rooms, but if they were docile and generous, the turnkeys left their room doors unlocked, only bolting the doors at the foot of the various staircases.

INSIDE
NEWGATE.

In these places at night, 'Hell let loose' is the only phrase that can becomingly describe the scene and its incidents.

A man with a decent spirit might leave this stage of iniquity and drunken despair, if he could muster 18d. daily, to have fellowship with felons, in a stinking cellar on the master's side. But this was only to fall into a lower depth of this Hell.

When the staircase doors were unbolted in the morning (at eight o'clock!), the prisoners were called over in the press yard, and every one who had been drunk the night before was fined a groat. All pleaded guilty to the soft impeachment if they possessed a groat, and the liquor was drunk with the turnkeys, as an antepast of breakfast. One day was not altogether like the others. Amid the despairing jollity, a poor wretch might now and then be seen at a table, dictating his last dying speech and confession to a friend, and sorrowfully admiring the neatness of some of its points. Perhaps the 'ordinary,' as the chaplain was then called, would venture a little of his ministry with him, and utter the small standing joke of how 'a passage of the Gospel' meant, to such an offender, 'in at one ear and out at the other.' On a summer's evening, company from outside resorted to the press yard, as some did to suburban tea-gardens, and drank and smoked, and sang and swore with the regular inmates. On winter evenings, they resorted to the rooms, and gave their orders from the windows to the tapsters below. It was on one of those evenings that the prisoners in Newgate were attracted by the sudden joyous peals ringing out from the London steeples. Political prisoners looked sullen over their liquor, for they knew that the side with which they sympathised had suffered some defeat. Governor and officials looked glad, for orders had come down to prepare for a large body of prisoners, and from Governor Pitt to Marvel, the hangman, there was joyous expectation of a golden harvest at hand.

VISITORS TO
NEWGATE.

'It's all up!' was the prison comment, 'from Lord Derwentwater to George Budden, the upholsterer: they are all netted.' The latter was among the party who entered Newgate. The London Jacobite entered quietly; whereas, Forster, full of pride and wrath, fumed because, he, a member of parliament, and Jacobite General, for the nonce, had not been taken, like Derwentwater and the other lords, to the Tower.

The rebel prisoners were soon sorted. The moneyless were consigned to the 'Lions' Den,' the 'Middle Dark' and the 'Common Side.' They who had guineas in their purses paid dearly for all they required.

SORTING THE PRISONERS.

The rebels had scarcely passed under the shadows of their respective prisons, when the police messengers narrowly searched among the crowd for traitors. A Justice of the Peace recognised a spectator in a lay habit, who was perhaps too sympathetic in his aspect, as a clergyman named Paul, who had preached seditious sermons in London and the country, and who had been with the rebels at Preston. Paul's audacity or curiosity cost him dear. The Justice pointed him out to the rogue-takers, and the parson was speedily hurried to the Cock-pit, and thence was committed to Newgate.

It is related that when a handsome young prisoner, named Bottair, was seen among the suffering crowd of captives, as they entered Newgate, a kind-hearted 'clerk of the prison' cut away his tightened bonds. Young Bottair expressed his regret. 'The cord,' he said, would have served to hang me; or to show, if I escape the gallows, how I have been led, like a dog in a string, for twice two miles together.' The handsome lad then dismissed the subject of himself, to think of his more destitute fellow prisoners in other prisons. 'I must desire you,' he said to the clerk, 'to make enquiry after them. They have been brought so many miles from home, out of observance to my orders, that I hold myself obliged to see that they do not want.'

It was only those who had plenty of money who could procure some lightening of their prison burthen. From twenty to twenty-five guineas was now the fee for not being obliged to wear irons. Five pounds weekly was the charge for lodging and being allowed to diet in the 'Governor's house.' Even the brigadiers, colonels, and captains, who had less 'cash' than the generals and gentlemen of wealth, had to pay dearly for places of little ease, 'for which they advanced more money' (say the papers) 'than would almost have paid the rent of the best house in St. James's Square, or Piccadilly, for several years.' Every one who wished to avoid being thrust into the horrors of the common side, could only escape by a fee of ten guineas, and a weekly rent, for such accommodation as was then allotted them, varying from two shillings to two guineas, and for that, in some rooms, ten men lay in four beds. Thousands of pounds including costly gifts—*both* from outside sympathisers—fell into the hands of

EXTORTION.

officials. Indeed, but for ‘outsiders’ the prisoners generally would have been miserably off.

While some of the Jacobite prisoners exchanged moral or philosophical reflections, others, embittered by misfortune, fell to quarrelling. Forster and Brigadier Mackintosh fought the battle of Preston over and over again, in Newgate. The cause of quarrel sprang from an incident in that unlucky town. During the contest, Forster rode up to the barrier which Mackintosh held, and commanded him to make a sally against the assailing force which was within gun-shot. The Brigadier flatly refused. Forster declared that if he outlived the day, and his king’s cause triumphed, he would have Mackintosh before a court-martial. General and Brigadier were captured and confined together. In the corridors, court-yard, and common-room of Newgate, the leader and subordinate angrily discussed this incident, while eagerly listening groups—for there was almost unlimited freedom of entrance into the prison, in those days, visitors eating and drinking with the captives—stood around and learned more from the wrangling chiefs than they could from the newspapers or from any other source.

Some of the prisoners, like the aged, refined, and witty ex-paymaster-general of the Jacobite army, found solace in writing verses, ‘which gained applause,’ says Patten,^[5] ‘from good judges of poetry.’ Four Shaftoes, Northumberland men, two fathers and two sons, were in Newgate. The elder, William Shaftoe, was a rich Northumbrian squire, well-disposed to live at home at ease, but, being easily persuaded, he joined the Rebellion at the instigation of his wife. Mr. Justice Hall, his cousin, shared his captivity in Newgate. Patten tells a story of the kinsmen, which, he says, ‘has something diverting in it.’ They were walking in the press yard together when Shaftoe (who was a Church of England man, but had been formerly a Romanist) exclaimed, ‘Cousin Jack! I am thinking upon what is told us, that God will visit the sins of the fathers upon the children to the third and fourth generation. I am of opinion that it is so with us, for your grandfather and my grandfather got most of their estates as sequestrators, and now we must lose them again for being rebels.’

Another captive, the Rev. Mr. Patten (to whom reference has already been made), on finding himself in close confinement, soon turned his thoughts upon the

DISSENSIONS.

*JACOBITE
PATTEN.*

method for getting out of it. He found he had leisure for reflecting on his past life. He took for especial subject of consideration that part of his life which he had spent in promoting the unsuccessful rebellion. He had been a fool. Could he save his neck by becoming a knave? He thought he might, and that the attempt was worth the making. The reverend gentleman, on the allegation of his being troubled with scruples, petitioned the Secretary of State, Lord Townshend, to be pleased to allow a clergyman to converse with him. The noble lord freely granted what was asked, and in a short time the Rev. Dr. Cannon was dispatched to the wavering Jacobite. He was, says Patten, ‘a man of singular good temper and literature, who applied his best endeavours to satisfy me in every Point and Query I proposed. In which, his Learning and solid Reasoning prevailed upon me; for which good Service, my best Wishes shall always attend him.’

Dr. Cannon’s course was made known by its results. Patten became suddenly convinced that it was a duty incumbent upon him to make all the reparation he could, for the injury he had done and had intended to do to the Hanoverian cause. By being a traitor to his old comrades, he would serve the cause against which he had been in arms, and secure safety to himself by doing his best to destroy his former friends. ‘As the first thing in that way,’ he tells us, ‘I became an Evidence for the King; which I am far from being ashamed of, let what calumnies will follow.’

HANOVERIAN
PATTEN.

His revelations were received and recorded by commissioners who had no need to ‘bribe or brow-beat him,’ as they were accused of doing in other cases. Patten ‘was used in the most gentleman-like manner.’ His treachery was quickened by their politeness, and the Rev. Robert Patten saved everything but honour.

Patten had first, however, to satisfy the Government that his testimony was worth having. He made full confession, not only of what he knew of others, but of his own preachings and practices. He told of his more than ordinary activity at Penrith, where he had once been curate; how, in obedience to orders from Forster, he had headed a troop of horse and beset the house of his own brother-in-law, Mr. Johnston, collector of the Salt Tax, whom he was charged to bring in prisoner, with his books, papers, and, above all, with whatever money he had belonging to the Government. Johnston, however, escaped, taking documents and money with him. Patten,

unwilling to return empty-handed, made prisoners of the *posse-comitatus* and brought them to Forster's camp, where they were despoiled of their arms, and then turned loose. At Preston he acknowledged that he was constantly riding from one post to another, giving accounts of how the battle was proceeding, and doing in fact aide-de-camp's work till his horse was shot under him. He thus succeeded in being accepted as king's evidence.

Before his evidence was wanted, partisan newspapers mocked and misrepresented the unfortunate prisoners, as **ADDISON'S SATIRE.** was only natural in *them*; but it is with pain that one sees Addison flinging dirt at them and ridiculing them, in his paper, the 'Freeholder.' In an imaginary diary of a Preston rebel, given in one of the numbers, the diarist is made to state that, at a meeting of Jacobites, before the outbreak, a resolution was passed that, as no cause existed for that outbreak, they would rebel first and give reasons for it afterwards. All Jacobites, it was agreed, were in want of something, and if they could overturn the throne and King George with it, carry fire and sword into England, as their chaplains recommended in their sermons, and divide property amongst themselves, there would be a fair chance of happiness under a new state of things, for the accomplishment of which they had had the prayers of all the harlots in the kingdom!

In similar unfairness of spirit, Jacobite squires in England were described as maintaining that there had been **LACK OF CHARITY.** neither tolerable weather nor good laws in the country since the Revolution of 1688. Such squires read only 'Dyer's Letter,' and that rather for the style than for news. They were heart and soul for Passive Obedience, and were ready to knock out the brains of whoever held contrary opinions. A fling at 'Dyer' was a favourite amusement with the Whig Essayist, who also assailed the news-writer on the stage. 'The reasons,' says Vellum in 'The Drummer,' 'why I should believe Sir George Truman is still living, are manifold.' One of them is, 'because the news of his death was first published in "Dyer's Letter."'

For a few days, the noblest of the prisoners were lightly held. Their going to and fro between prison and the Secretary of State's office, in order to be questioned, kept the streets lined with gazers. Soon, however, the various cases assumed more gravity. In the Tower the captives were put

under closer restraint, and the privilege of visiting them was abolished. The wives and other relatives of the chief prisoners endeavoured to present petitions on their behalf to the king, but mostly in vain. The guards kept them at a distance from the royal person. The Whigs were now thinking less of the prisoners than of their estates. The St. James's 'Evening Post' was delighted to inform the public that all the estates and property, forfeited by rebellion, would be 'strictly applied to public uses.' In some of the papers the Jacobite ladies who were petitioning for their husbands' or kinsmen's lives, were denounced as barbarous women who had driven their husbands and relatives into rebellion. They were stigmatised as 'tigresses,' and it was pointed out to them that, to find themselves compelled to seek mercy at the foot of that throne which they had sought to overturn by fire and sword, was a retribution which they had justly incurred. London was told to be glad at having escaped the tax which the chiefs of the rebellion in Scotland were levying upon gentlemen who voluntarily failed to join them, namely, 50 per cent. of their property. Whig liberality was praised in the person of Lord Strathnaver, the Earl of Sutherland's son. He had promised his vassals to make good all their losses; and if the married men fell in battle for King George, Lord Strathnaver undertook to transfer their leases, if they held any, to their widows—gratis, and for their lives. Many a Scottish wife in London sighed when she thought of the pleasant alternative here suggested. With regard to the rank and file of the Preston prisoners, who were not thought worth the expense of bringing to London, judges left the capital to dispose of them in a singular way. Every twentieth man taken by lot was to stand a trial, all the rest were to be transported! This was the sternest of jokes that the Whigs had ever had to laugh at, between the capture and trial of the Jacobite prisoners of war in London. In the meantime, the law myrmidons kept sharp eye and ear on London sympathisers. With respect to these, it must be allowed that justice was very capricious. While men were put to death for little more than wishing King George back in Hanover, others were fined only a few marks for much worse offence. For instance, one Thomas Smout was fined five marks 'for speaking traiterous and devilish words of his most excellent Majesty, namely, devoting that sacred Majesty to the nethermost hell and protesting that he would sooner fight for t'other King than for him.'

WHIG
LIBERALITY.

In illustration of these times, nothing more strongly proves the influence which women exercised in politics, especially on the Jacobite side, than the persistence with which Addison addressed himself to them in jest or in earnest. He insisted on the superiority of the charms of Whig ladies, and he assured those on the Tory side that they might improve their attractions by changing their politics. He counselled the former to turn their fans into banners, and to make them convey a declaration of principles by a display of loyal and significant portraits. Such display, he thought, would lessen the Tory interest much more than the Jacobite figures in the Oxford Almanack would advance it. He characterised the Whig ladies as gentle creatures, but the Jacobite women, he said, were shrews in their families and scolds in politics. The vulgarity of the latter is offensively assumed, and never more so than in the passage where Addison affects to counsel the Jacobite ladies to be as gentle in their utterances as Cordelia. If they were loud-tongued they would be taken for harlots, all of whom (he said) were notorious Jacobites.

**WHIG AND
JACOBITE
LADIES.**

While Addison's papers were being read at private breakfast tables and in the coffee and chocolate-houses, the High Church mobs, less loyal than the Drury Lane players, went about breaking the windows of the meeting houses, where prayers were put up for the welfare of King George. A diabolical attempt was made by a High Church ruffian to blow up the people in the meeting houses in the Old Jewry, during divine worship. Perhaps it was intended to suffocate them. Gunpowder and other combustibles are mentioned in the reports. Their ignition filled the place with flames, attended by a smoke and stench which nearly killed those exposed to them. In the tumultuous rush to escape many persons were grievously maimed; but no one was killed on the spot. The building suffered much damage, and those who staggered from it helplessly into the street, were speedily set upon by thieves, who carried off a great booty in wigs, watches, and scarves.

About this time Mr. Matthew Prior shocked his old Jacobite friends by taking the oaths at Hicks's Hall, in order to prove that he was a good Whig. Trimming Tory gentlemen who took the same oaths, on the first day of Sessions, excused themselves for doing so, by writing pointless epigrams to prove they had

**MATTHEW
PRIOR.**

committed perjury. Jacobites, on the other hand, greeted with hurrahs Swan, the Mayor of Newcastle-under-Line, and two other Magistrates of that place, as they passed to Newgate in custody, for having shown kindness to some of the destitute Preston prisoners, as they were being escorted through that midland town. Tories, in coffee-house debates, held Cuthbert Kynaston, M.P. for Salop, to be a fool for having surrendered himself a prisoner. Soon they had other things to think of. There was the fair on the hard frozen Thames. That grand festival of the time was got up by the Whigs. They roasted an ox whole on the ice near Whitehall, in honour of the ninth anniversary of the birthday of Prince Frederick, and they made night hideous with their toasts and drunken revelry.

Roasting oxen whole soon became an ordinary occurrence. The frozen-out watermen were made glad by contributions of joints; to which were added liberal donations from the royal family. While the ice was still in solid block, a little procession of sedan-chairs was seen, one bracing morning, going rapidly from St. James's to Westminster. The hard-trotting bearers set down their honourable load in Old Palace Yard. The Prince of Wales and the Duke of Marlborough issued from their respective chairs. Noblemen and gentlemen had come by similar and by other conveyances. When all were afoot they went down to the river which they crossed on the ice to Lambeth, and then returned, seeing 'all the fun of the fair,' as they walked, or sometimes, as they tarried. The prince was unguarded, though well accompanied, and the enthusiasm gave extraordinary warmth to the occasion. When the king went publicly, a few days after, to stand as godfather to the second son of the Earl of Portland, Jacobites admired his fearlessness, and Whig ladies began to call their new-born sons by the monarch's Christian name.

The king's words which announced the Chevalier's arrival in Scotland were still vibrating in the ears of Parliament, when Mr. Lechmere rose in the House of Commons to take the preliminary steps for the condemnation of 'the seven lords.' In other words, he moved that the House should impeach them. The motion was grounded, not on evidence, but on common report. The speech was an able speech, with a craftily seeming fairness in it. The speaker maintained that the existing rebellion was the

**ROYALTY ON
THE ICE.**

**IMPEACHMENT
OF THE
REBEL LORDS.**

natural consequence of long preparation, and that those most forward in it, here, were the guilty tools of equally guilty men who were withdrawn from the public eye, or who conspired in greater personal safety, abroad. A portion of the press, at home, by denouncing the old Revolution, had knowingly made way for the new. The lenity extended to writers who encouraged treason against King George by denying the legality of the dethronement of King James, only inspired more venomous authors to write down the Hanoverian dynasty and the Protestant succession.

Then, adverting to the conspirators, as Queen Anne's Tory friends were called, Mr. Lechmere pointed out that Ormond, for whose sake Marlborough had been traduced, now avowed his treachery, by serving the Pretender, and by the preparations he was carrying on for a fresh invasion of England, and the establishment of Popery in this country. The enemy of Townshend—Bolingbroke—was then on the point of manifesting the principles which had made him the enemy of so virtuous a man, by becoming one of the ministers of the Chevalier. While the great engines were actively working from afar, the lesser engines and more ignoble tools were, said Mr. Lechmere, as actively carrying on their work 'below stairs.' By this phrase he implied that the juries in Westminster Hall, who acquitted men charged with sedition against the present powers, were the enemies of the reigning House. But, he added—making reference again to the Tory ministry of the last reign,—those conspirators made their master-stroke when they traitorously made England a party to her own destruction, by procuring a majority of votes in Parliament which gave sanction to a Peace, whereby France was restored to her former power of dominating over Europe, and the barriers which guarded the liberties of this and allied nations were broken down. The same influences, added the speaker, had nearly sacrificed the trade of England to the interests of France.

The weakest point of the speech was in the passage in which, by almost deifying King George—especially for his alleged divine quality of mercy—Mr. Lechmere seemed to make of the sovereign a conspirator against himself. The monarch, he said, was of such a tender nature that he could not find it in his heart to be severe against his enemies. 'On the contrary, those who have shown the greatest aversion to his government, have received the kindest invitations and enjoyed the highest indulgences from him.' Equally at fault

**CHARACTER
OF KING
GEORGE.**

was the Impeacher when he avowed that impeachment of the seven lords was a safer process than leaving their case to be treated in the ordinary course of law and justice. More vindictiveness was exhibited by Mr. Lechmere when he expressed his gladness at the thought that, if the lords were convicted, no plea of pardon under the Great Seal could stay the execution of a sentence which was the result of an impeachment by the Commons. Not, of course, that the Commons would be influenced by vindictive considerations! It was certainly not to keep them calm and clear and justly minded that he ended by shaking the Pretender's declaration in their faces. That act seemed to arouse the majority of the House to fury, as a red rag might excite the fierceness of a sufficiently angry bull. The terms in which it was written, and the epithets applied to those terms by Mr. Lechmere, stirred the Whig members as the alarm stirs the war-horse to dash forward whithersoever his rider would force him. In a burst of frenzy, the House voted, on the motion of Mr. Lechmere, the impeachment of James, Earl of Derwentwater and his six confederates, the Lords Kenmure, Nithsdale, Carnwath, Widdrington, Nairn, and Wintoun, for high treason.

Shortly after, of all the London sights, the most interesting was the passing to and fro of those captured Jacobite Lords, between the Tower and Westminster, where they underwent preparatory examining by the privy council. When they went by water, the public knew little of the matter. It was otherwise when they were taken to Westminster in one huge lumbering coach; especially as on their way back they stopped to dine at the famous tavern, the *Fountain*, in the Strand. The House had long been patronised by the Tories, so that the Jacobite lords were 'at home;'—and Jacobite mobs cheered them as they entered and when they departed. The repast, however, could not have been a joyous one—seven lords eating roast beef and drinking port, with the something more than chance of soon dying on the scaffold! They dined, closely guarded by twelve Warders. Before they left, they who would, might have their snuff-boxes filled at Lillie's, next door, and for one of the street Jacobites to get a pinch from this supply, made him happy for a week.

This indulgence brought the Lieutenant of the Tower into trouble. He was summoned before the Peers, and was questioned as to the unseemly dining of the rebel lords in a.

**FROM THE
TOWER TO
WESTMINSTER.**

**THE DRUM
ECCLESIASTIC**

tavern. The perplexed officer replied that those lords had complained of feeling faint, and he had therefore allowed them half an hour for dinner, at the *Fountain*, under rigorous guard; but he was peremptorily forbidden to do so on any future occasion. 'If their lordships require refreshment,' said the Chancellor, 'they must refresh here.'

On January 30th, Addison preached a smart lay sermon in the 'Freeholder,' and loyal pulpits resounded the universal sameness. One of the exceptions was at St. George's, Southwark. This place was said to be the mint where all the lies were coined which were afterwards put in circulation at the Royal Exchange. It is obvious that a sermon on the dethronement and martyrdom of a king could be made to serve two purposes. In the Whig pulpits, the discourse illustrated the wickedness of treason against the powers that be,—the Government of King George. In the Tory pulpits it was well understood that the Government of that king was daily committing High Treason against the power that ought to be,—that of James III. Accordingly, when the Rev. Mr. Smith, Tory curate of St. George's, gave out his text on January 30th (1 Samuel xii. 25), 'If ye shall still do wickedly, ye shall be consumed, both ye and your king,'—there was scarcely a person present who did not interpret its sense as antagonistic to King George. A Whig gentleman was there, and he began to take notes of the sermon. This disturbed the Jacobite preacher, who probably recognised in him a Government agent. At all events, he called upon the note-taker to desist, but the latter showed no signs of obedience. This led to the clergyman exclaiming, 'Mr. Wicks, if you go on writing, I won't preach any more!' The imperturbable Wicks added this remark to his notes, and then the Tory parson called at the top of his voice, 'Take away that fellow that writes, out of church!'

The muscular christians of the congregation not only flung Wicks into the street, they hunted him home, assailed his house, and threatened to destroy it with all his family therein. They had committed much damage when a civil and an armed force arrived, and compelled the assailants to raise the siege and retreat. The virtuous mob, however, having heard that Wicks had recently buried his father, scampered to the neighbouring churchyard and commenced digging up the grave! They were on the point of committing still more horrible violation, when they were put to flight by the constables and a few soldiers.

**MUSCULAR
CHRISTIANS.**

Whig writers in the papers ask, jeeringly, if the preacher objected to notes being made of his sermon, because he was about to say ‘something extraordinary and smutty.’

The full High Church flavour of this anniversary is given in the ‘Weekly Remarks,’ of which the following is a sample: ‘Last Monday being the anniversary of the martyrdom of King Charles the First, who now wears a crown of glory in Heaven, and is the greatest saint there in the English calendar (the English saints would neither let him wear his crown nor even his head on earth), the Reverend Dr. Trap, who is lecturer of St. Martin’s, preached an excellent sermon in the morning at St. Andrew’s, where the church was so crowded that many could not be admitted to the audience; and in the afternoon, the very Reverend Dr. Henry Sacheverel, rector of St. Andrew’s, preached at St Martin’s, where there was a like concourse of people and a like elegant sermon. Their texts followed one another. They were taken out of St. Matthew xxiii., 31st to 36th verses. In these sermons they have shown themselves glorious Ministers of the Gospel.’

**CHARLES I.
KING AND
SAINT.**

The same Jacobite paper thinks that the death of Dr. Williams, the eminent dissenting preacher of Hogsden, is a very ominous matter to the Dissenters. ‘The good old cause,’ it said, ‘must be playing the crab, and going backwards.’ The writer in the ‘Weekly Remarks’ affects to be grieved that the doctor did not outlive the 30th of January, to make merry with his congregation at a ‘Calves Head Feast,’ on the anniversary of the murder of King Charles.

But more serious scenes in the drama were now to follow. The rebel peers were to be tried, and Lord Cowper was appointed to act as Lord High Steward. Lord Cowper’s appointment to the office vexed both himself and his lady, but he had to support it with dignity. The going down to Westminster Hall was a grand sight for the Londoners. All the Lord High Steward’s servants had new liveries. There were five coaches, four with two, and one (in which Lord Cowper rode) with six horses—two footmen behind each. Garter with the wand, and the Usher of the Black Rod were in the same coach next to that of the Lord High Steward. Eighteen ‘gentlemen’ out of livery were on horseback between these two carriages. Although the liveries of the coachmen and footmen were new, Lady Cowper had them made plain,

**THE REBEL
PEERS.**

expressly. 'I think it very wrong,' she says in her Diary, 'to make a parade upon so dismal an occasion as that of putting to death one's fellow creatures.'

Their lordships entered the Hall in procession from the Upper House. A proclamation for silence hushed the remaining buzz of talk among the excited spectators. The managers of the impeachment for the Commons then took their places with much punctilious reverence. Next, order was given for the prisoners to be produced, one after the other, and then all eyes were directed towards the door from which each entered—the centre figure of a group of officials of distinguished rank, who held him in custody. The most remarkable official walked immediately behind the captive, bearing the processional axe with the edge turned away from the prisoner. This official was not the executioner, whose presence would not have been tolerated in such an assembly, but 'the gentleman-jailor.' The processional axe is not the weapon which is publicly exhibited; it is in charge of the resident governor. As soon as the prisoner reached his appointed place he sank on his knees, from which position the Lord High Steward blandly begged him to arise. Having obeyed, the poor prisoner turned to the peers and saluted them with the lowest bow he could accomplish, in testimony of his respect. Not to be behindhand in courtesy, the peers arose (such of them as were covered took off their hats), and bowed in return, as if they were quite glad to see the unhappy gentleman who was standing there for life or death. Lest he should build too lofty hopes on that basis of civility, or on any other token of politeness vouchsafed to him, the Lord High Steward, almost invariably, hastened to observe to him that he had better keep in memory that all those little attentions were tributes to his *rank*, which he hoped the peers would never forget. It was further intimated that they would send him to death should he be found a traitor, with every mark of detestation that their sense of politeness to him as a peer would permit them to show.

The Earl of Derwentwater was the first in rank, and therefore had the poor privilege of being the first of the seven lords who was called upon to plead. The crimes for which he was impeached by the Commons having been published, the prisoner was asked what answer he had to make thereto? Was he guilty or not guilty? The reply was a mean apology. The best thing that may be said

SOLEMN
POLITENESS.

DERWENTWAT
ER'S PLEA.

for it is, that it was probably the work of Lord Derwentwater's legal advisers, and that he was counselled to be almost abject, as the only means of rescuing at least his life.

The sum of it amounted to this. The poor earl was quite sure that if the ordinary course of justice had not been followed, it was because mercy might be the more readily extended to him, if the circumstances of his case could authorise it. He complimented the king for his royal attribute of clemency, and the earl the more urged its exercise on the ground that forgiveness would not encourage anyone to the future commission of treason, upon the presumption that his offence would necessarily be mercifully visited.—Guilty, no doubt, he had been, but he could hardly account for having become so. Constitutionally he was disposed to lead a quiet life. He knew nothing of any conspiracy (!); and, if he went to the first gathering at Plainfield, in Northumberland, he went innocently, having been told that he would find many friends and kinsmen assembled there. He joined them, he confessed, but it was done thoughtlessly; and, after casting in his fortunes with the enemies of King George, he never used the arms he wore. He might have cut his way through the king's forces at Preston, but he had shuddered at the bloodshed that must ensue. The spilling of blood he was always anxious to prevent, and, in point of fact, he had yielded at the first manifestation of opposition; but, on assurance that the king's mercy would be extended to him. When he was in the hands of the king's generals, as a hostage for the surrender at Preston, he had urged on his friends the necessity of their honourably observing the promise, for the keeping of which he was himself a guarantee in safe custody. And he had told General Wills, whose prisoner he was, that whatever might happen, he would remain with the royal army;—from which there was no possibility of his getting away!

Every phrase in this reply to the charge fell cold on the hearts of many hearers who were ready to sympathise with a gallant gentleman, standing in peril of a horrible death. The half apology, half confession; the hope of mercy, and the hint that he was not unworthy of it, did not serve the ill-fated nobleman. The Lord High Steward asked him to plead 'Guilty' or 'Not Guilty.' Brought to this alternative, Lord Derwentwater answered 'Guilty.' He made appeal to the royal clemency, and withdrew, so gracefully self-

possessed as to give assurance to all present that a true gentleman, having done all he could to save his life, would now meet his fate with dignity.

The answer put in by Lord Widdrington, who was brought in with the same grim ceremony as Lord Derwentwater, was even more abject than that of the earl who had just retired. He stood aghast, as it were, at the measure of his own guilt, 'but he came,' as he said, 'unawares into this sudden and unpremeditated action.' He went with his kinsmen to the assembling at Plainfield in October, 1715, without any definite knowledge as to what was intended! When treason came of it, he took credit to himself for having practised it with small amount of wrong or violence to those who withstood the traitors. Moreover, as he was the last to take up arms, he was the first to lay them down, by which Lord Widdrington suggested that he was less of a rebel than some of his comrades in misfortune. He added that the surrender at Preston was made on the encouraging assurances from the general on the other side that they would experience the royal clemency. 'Nature must have started at yielding themselves up,' on other grounds. Those who were in arms against King George at Preston might have escaped had they chosen to spill more blood, but they preferred to yield on the happy prospects held out to them. In the same strain the answer went on to the end, concluding with the assertion that clemency from the throne, and the recommendation of mercy by the parliament, would make him for ever the most loyal of subjects to King George, and cause him to have undying esteem and veneration for the two Houses of Lords and Commons!!!

As Widdrington remained standing at the bar, he was asked if he had anything further to say. Whereupon he replied, that he hoped for mercy; that he had the gout in the stomach! that he had not been able to finish his answer till that morning; that it was doubtless full of defects; and that 'he humbly implored their Lordships' intercession to his Majesty for favour and mercy'—and therewith the unhappy lord withdrew.

Patten's testimony of him, if it be true, would lead us to expect this undignified bearing in the unheroic son of a most heroic race. 'There is but a small part of that left in this lord. I could never discover anything like boldness or bravery in him, especially after his Majesty's forces came before Preston.' Patten states that Lord Widdrington was as unfit for a

WIDDRINGTON'S
REPLY.

APPEAL FOR
MERCY.

general as Mr. Forster himself, over whose easy temper he had considerable influence. The peer's family had been distinguished for their bravery and their loyalty to the English Crown; but 'yet there is little of it left in this lord,' writes Patten, 'or at least he did not show it that ever we could find, unless it consisted in his early persuasions to surrender, for he was never seen at any barrier or in any action but where there was the least hazard. He was wonderfully esteemed at home by all the gentlemen of the county, and it had been happy for him, and so we thought it had been better for us (the rebels) had he stayed at home.'

Lord Widdrington having been taken out, the Earl of Nithsdale was ushered in, with the usual tedious formality. On being called on to answer to his impeachment, he made a reply that must have caused the audience to doubt their own accuracy of hearing. He stated, indeed, what his two predecessors had stated, and, like them, he reiterated the perfectly incredible assertion that till after he joined the Jacobite forces, he had never heard of any intended invasion, or of any projected insurrection! He acknowledged that the authorities at Edinburgh had previously summoned him to appear and give security for his loyalty, but then he suspected they wished to imprison him, for which he had the greatest distaste. Nothing is more astounding than this repeated declaration of original innocence and ignorance made by men of such birth and quality. Once in, however, Lord Nithsdale went on to the commission of the most abominable treason. He confessed it in the utmost confusion, and he trusted that he was not unworthy of the royal clemency.

**NITHSDALE'S
APOLOGY.**

It was much more dignified on the parts of the Earl of Carnwath and Viscount Kenmure that they put in no apologetic reply, nor made any statement to show that they were less guilty than the co-accused. They did not even aver that they had surrendered on promise of mercy. They simply said they were guilty of bearing arms against King George, but that if he could find some reason to spare their lives and fortunes, he should have no more faithful subjects than themselves. After Widdrington's puling excuses and his plea of gout in the stomach, the modest, manly remarks of these two lords must have fallen agreeably on the ears of all in the assembly who sympathised with truth and courage.

**CARNWATH
AND
KENMURE.**

But, after all, the most extraordinary answer to the impeachment was that made by William, Lord Nairn. It is true, he at once pleaded guilty, and asked for mercy; but, having done so, Lord Nairn presented a petition, which was intended as an apology, with something of a justification. Reduced to as few words as will convey its sense, it was to this effect: he was a Church of England Protestant, but he had unwarily imbibed mistaken principles in his tender years, which caused him to be in no conformity with the Revolution of 1688, 'lying under the less necessity, for that he had married an heiress, in whom all Lord Nairn's, or rather *her* own, estate was invested.' He had never taken the oaths, but he had lived as loyally as if he had, till he was *inadvertently involved* in this rebellion by Lord Mar and his forces surrounding his estate and occupying his house, which lay between Perth and Dunkeld, both of which cities they had fortified. Lord Nairn solemnly declared that, up to that moment, he was ignorant of any movement on behalf of the Pretender, and knew nothing of the passage of the Forth till he found himself of the party making it! He ventured his own person therein to avoid the imputation of cowardice, but he sent back all his dependents. As for the invasion of England, he gave a curious reason for being innocent of having share in it, 'having been bred a seaman,' he said, 'he had no pretensions to knowledge in the land service! For the sake of his twelve children he asked for that mercy which at the time of his surrender he was made to believe he might reasonably expect.'

NAIRN'S
EXPLANATION

Lord Wintoun, on his request, was allowed to defer putting in his plea.—Six of the seven lords, however, having thus pleaded guilty,—each urging extenuating circumstances,—they were speedily brought again to the Hall, to hear the pronouncing of doom.

When the condemned lords were brought to Westminster Hall to receive sentence, the Lord High Steward addressed them in a speech which, highly praised as it was, at the time, has a very dull and commonplace ring about it now. He spoke of King George, of course, as the lawful sovereign, to make war against whom, and to compass whose death, was a compound crime to be paid for by forfeiture of life. Yet, they, as individuals, had attempted to destroy a monarch who occupied the throne, by virtue of rights confirmed by the legislature of King William and Queen

THE LORD
HIGH
STEWARD.

Anne. The rebel lords, he said, had been convicted of ‘an open attempt to destroy the best of kings, and to rase the foundations of a Government, the best suited of any in the world to perfect the happiness, and to support the dignity of human nature.’ Had the wicked attempt succeeded, King George would speedily,—so Lord Cowper inferred,—have passed from the throne to the grave; for, being of a valiant race (which was perfectly true), neither he nor any of his family would have condescended to save themselves by flight.

Earl Cowper artfully turned the silly, almost base, plea of the lords,—that they had been drawn into rebellion without thinking of it,—into a charge of insane eagerness to commit treason. It was not so well to represent these rebels of quality as men more concerned to live on in this world than to prepare for the next. It was in worse taste to enjoin those whom he was despatching to that farther realm, to cast off—if they were Roman Catholics—such comfort as their own Priests could bring them, and to commit themselves to the richer solace they might obtain from Protestant ministers! To the Protestant lords, he exclaimed, with a ‘good God!’ to give force to his sentiment, that they must surely be covered with confusion when they reflected that they had entered upon this treasonable enterprise, without even stipulating for a faint promise of toleration for the Protestant religion. At the conclusion, the Lord High Steward said, he must sentence them in the terms used towards the lowest-born traitors, but, that ‘the most ignominious and painful parts’ were usually remitted to persons of their quality! Thus, the more ignorant rank and file of the rebels would be disembowelled before they were half hanged; but the leaders, being ‘of quality,’ would enjoy a happy and honourable dispatch under the edge of the axe!

The principal actors in this tragic drama were quietly withdrawn, but not without formal courtesy passing between them and their judges. The audience broke up as from a popular spectacle, more or less moved. Lady Cowper was absent, as one of the condemned, Lord Widdrington, was her cousin. The Countess says, in her Diary, ‘that the Prince of Wales was there, and came home much touched with compassion for them. What pity it is that such cruelties should be necessary!’ Yet one thing gratified her. She was delighted beyond measure that her lord’s speech, on pronouncing sentence,

CONCLUSION.

LORD
COWPER’S
SPEECH.

was universally commended. ‘But,’ says the lady, ‘I esteem nobody’s commendation like Dr. Clarke’s, who says, “that it is superlatively good,” and that “it is impossible to add or diminish one letter, without hurting it.”’

[5] *History of the late Rebellion.*





CHAPTER VIII.

(1716.)



HE Prince, after hearing the sentences pronounced, went home much touched by compassion. The Princess was more active in her pity. She had a great mind to save Lord Carnwath. 'She has desired me,' writes Lady Cowper, 'to get Sir David Hamilton to go and speak to him, *to lay some foundation* with the king, to save him; but he will persist in saying that he knows nothing. 'Tis a thousand pities. He is a man of good understanding, and not above thirty. He has had his education at Oxford,'—the Whig lady adds, by way of fling at the Tory university—'as one might judge from his actions.'

Lord Carnwath, however, wrote a letter which Hamilton carried to court, and which Lady Cowper delivered to the Princess of Wales. She took the letter, and was much moved in reading it, and wept, and said, 'He must say more to save himself. Bid Sir David Hamilton go to him again, and beg of him, for God's sake, to save himself by confessing. There is no other way,' said Caroline Dorothea, 'and I will give him my honour to save him, if he will confess; but he must not think to impose on people by professing to know nothing, when his mother goes about talking as violently for Jacobitism as ever, and says that her son falls in a glorious cause.'

The simple comment of Lady Cowper when the persons arrested endeavoured to shift their responsibility—fathers on sons, and sons on fathers—has at least the merit of common sense. Alluding particularly to those who pleaded that they were drawn into treason unconsciously, she says in her Diary: 'They all pretend to know nothing, and would have people believe this affair was never concerted; and nobody knows how he came into the Rebellion. God help them! 'tis a wrong way to mercy to come with a lie in their mouth.'

Lord Carnwath's confession, if it may be called so, related how he went to Lorraine where he had an interview with the Chevalier. He had persuaded the Prince, he said, to

CARNWATH'S
CONFESSION.

make sure of friends in England and to appear in person in Scotland. The Chevalier waited for an expression, which he might take for one of encouragement, from the Parliament in London. Some of his followers afterwards told Carnwath, that, if the Parliament here expressed no desire for a Restoration, the Jacobite scheme would be to engage the King of Sweden to go to Scotland and establish James on the Scottish throne.

Applications for mercy troubled the king. He especially wished to avoid having petitions thrust upon him by persons deeply interested in their object. King as he was, his wish was compelled to give way to circumstances. Lord Nithsdale had prepared such a petition; and his noble wife undertook to put it into the king's hands, though she had no hope that it would be followed by the slightest favour. 'The first day,' says the noble lady, in her letter to her sister Lady Traquair, 'I heard that the King was to go to the Drawing Room. I dressed myself in black, as if I had been in mourning, and sent for Mrs. Morgan, because, as I did not know his Majesty personally, I might have mistaken some other person for him. She stayed by me and told me when he was coming. I had also another lady with me, and we three remained in a room between the King's apartments and the Drawing Room, so that he was obliged to go through it; and, as there were three windows in it, we sat in the middle one, that I might have time enough to meet him before he could pass. I threw myself at his feet, and told him, in French, that I was the unfortunate Countess of Nithsdale, that he might not pretend to be ignorant of my person. But, perceiving that he wanted to go off without receiving my petition, I caught hold of the skirt of his coat, that he might stop and hear me. He endeavoured to escape out of my hands, but I kept such strong hold that he dragged me upon my knees, from the middle of the room to the very door of the Drawing Room. At last, one of the blue-ribands who attended his Majesty, took me round the waist, while another wrested the coat out of my hands. The petition, which I had endeavoured to thrust into his pocket, fell down in the scuffle, and I almost fainted away through grief and disappointment.'

The Countess of Derwentwater fared no better, even under more favourable opportunity. Her husband was a grandson of Charles II.; his mother, Lady Mary Tudor, being the daughter of that religious and gracious king, and

THE KING AND
LADY
NITHSDALE.

THE KING AND
LADY
DERWENTWATER.

Mary Davies. There were then two dukes at the Court of George I.—the Dukes of Richmond and St. Albans—who were sons of Charles II. Richmond's mother was Louise de Querouaille. St. Albans was the son of Nell Gwynne. These two dukes undertook to present the Countess of Derwentwater to the king. If the sovereign sanctioned such presentation, it should have been followed by his granting, if not a full pardon, at least some gracious favour on behalf of the prisoner under sentence. The countess was accompanied by the Duchesses of Cleveland and Bolton and a group of other ladies of high rank. The two dukes presented the young countess to the king, in the royal bedchamber. She prayed for the pardon of her husband with passionate earnestness. The king listened civilly, and quite as civilly dismissed her, in tears and despair.

Lady Cowper furnishes two scenes in connection with the attempts to save the condemned lords, which admirably illustrate the time and its character—‘1716. Feb. 21.’ ‘The ladies of the condemned lords brought their petitions to the House of Lords, to solicit the King for a Reprieve. The Duke of St. Albans was the man chosen to deliver it, but the Prince advised him not to do so without the King's leave. The Archbishop of Canterbury (Wake) opposed the Court strenuously in rejecting the petition. Everybody in a consternation. 'Tis a trap laid to undo the Ministry.’ The Archbishop's mercy-fit did not last long. Lady Cowper went to him on the following morning, by order of the Princess, to talk with him. She wrung from him a humiliating concession: ‘He says, he's far from flying in the King's Face, after all the obligations he has received from him, and that he thought himself in the right way of serving him; but, if the King was not of the same opinion, he would stay at home, which was all he could do.’

SCENE AT
COURT.

On the evening of the day on which the ladies of the condemned lords took their petition to the House of Peers, the Duchess of Bolton—(Henrietta Crofts, a natural daughter of the Duke of Monmouth, by the daughter of Sir Robert Needham, though Lady Cowper demurred to the parentage)—went to Court. ‘The Duchess,’ says Lady Cowper, ‘went with the ladies to make them believe she was one of the Royal family; though that won't do. It's too plainly writ in her Face that she's Penn's Daughter, the quaking preacher. The Princess chid her and she made all the excuses she could. She said,

Lady Derwentwater came crying to her when the Duke was not at Home, and persuaded her to go and plead for her Lord.'

Lady Cowper describes Lord Nottingham as 'behaving sadly' in the discussion on the matter of the sentenced peers. But, my lord did nothing sadder than express a hope that the king would reprieve the illustrious criminals whether they confessed or not. The Duke of Bolton, by command of the House, presented to the king the address of the peers, beseeching him to reprieve such of the lords as deserved it, and for as long a time as he should think fit. To this address, his angry Majesty very civilly replied—'I shall always do what I think most for the Honour of my Government, and the safety of my Kingdom.' To the record of which circumstance Lady Cowper adds, 'The Lords that had gone astray the Day before plainly showed by their Looks that they felt they had played the Fool.'

**THE
CONDEMNED
LORDS.**

The king was angry, inasmuch as the lords, by addressing him, implied that he required to be moved to clemency. He told Mademoiselle von der Schulenburg 'that he should be ashamed to show himself after this.' Forthwith Lords Derwentwater, Kenmure, Nithsdale, Widdrington, Nairn, and Carnwath were ordered for execution.

On the Sunday before the appointed day, the High Church clergy took care to manifest their opinions, perhaps to exhibit their charitable feelings, by asking their congregations to join with them in prayers for the condemned lords. The scene that ensued was solemn and impressive, scarcely marred by the angry flinging-out of church of some exasperated Whig hastening home to write to the papers. Pray for lords like these, was the cry. 'Are their souls dearer to God than the souls of thieves and murderers who die monthly at the common place of execution?' On the other hand, there were Tory partizans among the lower classes who thought practice might as well follow praying. They made a feeble attempt on the Sunday night to pull down the scaffold which was erected in readiness for the tragedy on Tower Hill. The sight of a solitary soldier made them desist. As anyone caught would certainly have been hanged, and as anyone who tarried might have been shot, the Jacobite sympathisers cleared away from the hill with remarkable alacrity.

On the evening before the execution a little drama was being performed, the success of which is altogether inexplicable. Lady Nithsdale, accompanied by Mrs. Mills, in whose house she lodged, and by a Mrs. Morgan, *alias* Hilton, went in a hackney-coach to the Tower. The last two went in the character of friends of Lord Nithsdale, introduced by the wife to take their last farewell. They were really two confederates suddenly secured to further the plan for my lord's escape. To keep them from reflection, Lady Nithsdale talked incessantly as they proceeded on their way. Mrs. Mills, who was 'in the family way,' and of the figure as well as height of Lord Nithsdale, wore clothes which she was to give up to the prisoner, dressed in which he was to attempt to make his escape! The tall and slender Morgan wore, under her riding hood, a second hood and other clothes in which Mrs. Mills was to be attired, after giving up her own dress to my lord. 'The poor guard were not so strictly on the watch as they had been,' wrote the countess, in after years, to her sister. They seem really to have been rather confederates than guards. The only restraint was that the supposed lady-friends should be introduced one at a time. Mrs. Morgan was the first to be taken in. During the brief time she was in Lord Nithsdale's room, she divested herself of the garments in which Mrs. Mills (after the latter lady should have given up her own for Lord Nithsdale's use) was to leave the Tower. Mrs. Morgan was then conducted to the gate by the countess who, feigning to be anxious for the arrival of her maid, Evans, implored Mrs. Morgan to send her forthwith. Mrs. Morgan having been thus got rid of, Lady Nithsdale took Mrs. Mills by the hand and led her, with her face buried in her handkerchief, as it had been all the time she had been waiting, to the chamber in which the earl stood, the passive, yet hopeful object of the countess's devotion. Mrs. Mills stripped to the extent that was necessary, and my lord put on the cast-off garments, his wife having pinned her own petticoats about him. She also painted his eyebrows to match those of Mrs. Mills, and distributed white and rouge over his face and chin, the better to give him the appearance of a woman and to conceal that of an unshaven man. Mrs. Mills then put on the dress which Mrs. Morgan had brought in for her under *her* clothes, and Lady Nithsdale led her out, as she had done the other lady, but with no feigned weeping in her handkerchief, as when she passed in—imploping her to hasten, for her life, the coming of the tardy Evans. Guards, their wives and daughters, looked sympathisingly

LADY
NITHSDALE.

CHANGES OF
DRESS.

as they passed, and the sentinel officiously opened the door; but for whom he and the rest took this second departing lady, in a new costume, is beyond all conjecture.

The countess having now passed out the two ladies whom she had brought in with her, returned to the earl's cell, to further prepare for his escape in the guise of the weeping woman, Mrs. Mills. When all was ready, save the half-ashamed, but not too reluctant earl himself, and the time was 'twixt the gloaming an' the murk,' the dusk before the lamps were lit, Lady Nithsdale led her lord over the threshold. He buried his face in his handkerchief as Mrs. Mills had done. His lady kept him close before her, that the guard might not observe his gait, and went on imploring him as my dear Mrs. Betty, 'for the love of God, to go and hasten the company of her maid, Mrs. Evans.' At the foot of the stairs appeared the faithful Evans herself. She took the supposed woman by the arm and went away with him out of the Tower.

**ESCAPE OF
LORD
NITHSDALE.**

Thus, the countess had brought in two ladies and had passed out *three*; and no guard or gatekeeper seems to have been at all awake to a fact so suspicious.

Lady Nithsdale returned to her lord's empty room in the same feigned fear of being too late to go to Court with a petition for the earl's life, in consequence of the dilatoriness of her maid who had come and had just gone away with the supposed Mrs. Betty, who was despatched on a mission to find the provoking Abigail, and send her to dress her mistress, at once. The rest of the scene in Lord Nithsdale's apartment may be best told in Lady Nithsdale's own words:—'When I was in the room, I talked to him as if he had been really present, and answered my own questions in my lord's voice, as nearly as I could imitate it. I walked up and down, as if we were conversing together, till I thought they had enough time to clear themselves of the guards. I then thought proper to make off also. I opened the door and stood half in it, that those in the outward chamber might hear what I said; but held it so close that they could not look in. I bid my lord a formal farewell for that night, and added that something more than usual must have happened to make Evans negligent on this important occasion, who had always been so punctual in the smallest trifles, that I saw no other remedy

**LADY
NITHSDALE.**

than to go in person; that if the Tower were still open when I finished my business, I would return that night; but that he might be assured that I would be with him as early in the morning as I could gain admittance into the Tower; and I flattered myself that I should bring favourable news. Then, before I shut the door I pulled through the string of the latch, so that it could only be opened on the inside. I then shut it with some degree of force, that I might be sure of its being well shut. I said to the servant, as I passed by, who was ignorant of the whole transaction, that he need not carry in candles to his master, till my lord sent for him, as he desired to finish some prayers first. I then went down-stairs and called a coach, as there were several on the stand. I drove home to my lodgings, where poor Mrs. Mackenzie had been waiting to carry the petition, in case my attempt had failed.' Her first words were: 'There is no need of a petition! My Lord is safe and out of the Tower, though I know not where he is.' The countess, restless in her joy, went in a chair to her friend, the Duchess of Buccleuch, who, friend as she was to the sentenced earl and to his countess, was 'seeing company' on the eve of the execution. Lady Nithsdale did not enter the mansion. She went, in a second chair, to another friend and confidant, the Duchess of Montrose. The countess was so excited by the strange success of the night, that the duchess was frightened, and scarcely crediting the extraordinary story, thought that the poor lady's troubles had driven her out of herself. Her Grace, however, cautioned her to secrecy, and even to flight.

But the countess was bent upon joining, that very night, the husband whom she had restored to liberty and life. The faithful Evans, who had both courage and discretion (qualities which were utterly wanting in the husband of Mrs. Mills, whose timidity and confusion made him a burthen instead of a help), had safely led her master to a friend's house, whence she had as discreetly and secretly removed him to another. This fact accomplished, she met her mistress at a trysting place, and conducted her to the earl. The temporary asylum was 'opposite to the guard-house.' The poor and honest woman who owned it, knew nothing and asked nothing about what must have seemed not above suspicion. When the gentleman's wife arrived, she was shown up to a very small room with a very small bed in it. To be heard walking up and down was, the fugitives thought, a thing to be avoided. They threw themselves on the bed, and there consumed the wine and bread which had been brought up by the mistress of the house.

VISITING
FRIENDS.

While these incidents were making the night memorable in one part of London, a circumstance of another character, yet not altogether unconnected with the adventures of the Nithsdales, was taking place at Court.

THE EVE OF
EXECUTION.

The Princess of Wales had a curiosity to see one of ‘the Pretender’s Cross-Bows.’ This was the name given to the gags which had been discovered among the spoils of the war. These iron instruments were a devilish invention, and it is said that they were made by the hundred weight. The sharp, straight part of the gag passed over the tongue into the throat, the semi-circular portion pressed against the cheeks. Any attempt to speak would cause both tongue and cheeks to be cut. The instrument of torture was shown to the Princess and her ladies, by Countess Cowper, giving rise to great unanimity of comment. When this grim pastime was over, other occupation was taken up, not by, but in presence of, the noble and illustrious ladies. ‘We sat up till past two,’ says the countess, ‘to do a pleasing office, which was to reprieve four of the Lords in the Tower.’ It was resolved that only Lords Derwentwater and Kenmure should die. Lords Widdrington, Nairn, Carnwath, and *Nithsdale* were reprieved. When this resolution was being made, the last-named lord and his lady were lying on the little bed in the little room near the guard-house, unconscious that a reprieve deferred the execution of himself and three other lords to the 14th of March.

How did, what is now called the Fourth Estate, deal with the trial, the criminals, and the penalty?

THE PRESS,
ON THE
TRIALS.

The newspaper press neither reported the proceedings, nor made any comments on the judgment delivered. The simple facts that the Jacobite lords had pleaded *guilty*, that they had been sentenced, and that the Prince was present when the lords were condemned, were chronicled in few words. On February 21st the public were told that ‘the dead warrants had come,’ and that the master carpenter of the Tower had marked out the ground on ‘Great Tower Hill,’ for the scaffold. The ‘London Gazette’ despatched the lords in three lines. ‘Whitehall, Feb. 25th. Yesterday, James, late Earl of Derwentwater, and William, late Viscount Kenmure, condemned for High Treason, were beheaded on Tower Hill.’ The ‘Flying Post’ went into details, nine lines long, in which it was said that the lords, ‘being conveyed from the Tower to the Transport Office on Tower Hill, were

beheaded in sight of many thousands of spectators, without the least disturbance or disorder; and we hear that the other four are reprieved till the 14th of March next. The Earl of Derwentwater's corpse was taken down from the scaffold into a Hackney Coach, and that of Viscount Kenmure into a hearse.' A paragraph, as brief as it is interesting, is appended to the above details. It runs thus: 'P.S. We hear that the Earl of Nithsdale made his escape from the Tower, on Thursday night, at seven o'clock, in woman's apparel.' The 'Daily Courant' tells of the execution and the escape, in four lines. When the news of Lord Nithsdale's escape reached Lady Cowper, at Court, she rejoiced at it, declaring that she was never better pleased with anything in her life, and that everybody else was as pleased as she was. 'I hope he'll get clear off!' she exclaimed, when the report of the escape was confirmed. King George himself good-naturedly remarked, on the same report being made to him,—'It was the very best thing a man in Lord Nithsdale's condition could have done!'—Lord Campbell calls this, 'a quaint saying,' and takes the trouble to tell posterity, 'I have often been tickled by it!'—After all, there is some doubt as to the truth of this story. Lady Nithsdale says, in her letter to her sister, Lady Traquair: 'Her Grace of Montrose said she would go to Court to see how the news of my Lord's escape was received. When the news was brought to the King, he flew into an excess of passion, and said he was betrayed, for it could not have been done without some confederacy. He instantly despatched two persons to the Tower, to see that the other prisoners were well-secured.'

THE KING, ON
THE ESCAPE.

The Earl of Derwentwater, after all hope of mercy had left him, repudiated the principles he had affected while he was seeking for mercy. He had called the judgment of the Lords a 'just judgment,' and he acknowledged a difficulty in advancing anything that could extenuate his guilt. When the hour of execution was approaching, he expressed a desire that the inscription on his coffin-plate should intimate that he had died in the cause of his lawful and legitimate sovereign. With this desire the prudent undertaker declined to comply. On the scaffold, where the earl did not allow his sensible terror of death to mar his manly dignity, he read a paper, in which he denied the guilt he had formerly admitted, and also the authority of the peers who had pronounced a judgment which he had acknowledged to be just! He protested that the only lawful king was King James; and he asserted that the

LORD
DERWENTWATER.
ER.

country would not be free from disturbances and distractions till that most praiseworthy king should be restored. Yet, he remarked that he himself would have lived in peace, if King George had only granted him his life! That Lord Derwentwater should have been allowed to read such a paper to a multitude witnessing his execution, is a proof of the indifference of the Government to the consequences of such an appeal. As far as the author of it was concerned, it was in bad taste. In every other respect, the unfortunate earl met his fate with becomingness. At a single stroke of the axe, he passed from life unto death; but the plaintive spirit of his last words lives in that stanza of 'Lord Derwentwater's Last Good Night,' in which, referring to his countess, he says,—

Farewell, farewell, my lady dear,
Ill, Ill, thou counseled'st me,
I never more may see the babe,
That smiles upon thy knee.

Viscount Kenmure—'the bravest Lord that ever LORD Galloway saw'—was beheaded as soon as the body of Lord KENMURE. Derwentwater had been removed. He too had confessed his guilt, and, in return for the mercy which he prayed for, had promised to show himself the most dutiful of the subjects of King George. On the night before his execution, he wrote to a friend in quite a different spirit. He disavowed all he had said to the Lords. He now knew no king but the one to whom he offered the devotion of a dying man—King James III.! On the scaffold—whither he was accompanied by his eldest son!—he did not follow Lord Derwentwater's example of making a public profession of his principles, but Lord Kenmure prayed audibly for King James, for whose sake he sacrificed his life. That life perished under two blows of the axe. The unfortunate lord did full justice to the bard who said that there never was a coward of Kenmure's blood, nor yet of Gordon's line. He left, weeping for him, the widow who had counselled him neither to go into, nor to refrain from going into, the struggle that ended so fatally for him and her. That she approved what her lord had resolved is suggested in the Jacobite song, which says:—

His lady's cheek was red, Willie,
His lady's cheek was red,
When she his steely jupes put on,

Which smell'd o' deadly feud.

Lady Kenmure, however, was a woman of good sense. She had friends around her in London, and it will be presently seen how she turned them to account.

Terrified by these examples, many people took the oaths, who had hitherto been sullenly neutral. The more prominent of these were laughed at by the Whig press.

**TAKING THE
OATHS.**

'Some few days past,' said the 'Flying Post,' 'one Linnet, curate to the famous Whitechapel Doctor (Welton), after much consideration, deliberation, and premeditation, but at last without any hesitation, took the oaths of allegiance, supremacy, and abjuration, without any mental reservation, before some of his Majesty's Justices of the Peace for the County of Middlesex.' Poor Linnet, however, was unable to digest the oath of abjuration which he had taken. This inability and the above critical sarcasm killed the ex-Jacobite in a few days. The reverend gentleman was taken suddenly ill at a house in Mansel Street, where he was used to visit, and where he died (say the press-reporters of that day, with a brevity and lucidity that are not without their merits), 'of a Twisting of the Guts.' Other Jacobite parsons who declined to take the oath which had choked Linnet, found safety in withdrawing within the fortifications of the Mint, in Southwark. There they had sanctuary, and might drink to what king they pleased as long as they could pay for the liquor, share it with their landlord, and pay their rent in advance.

Lady Cowper, in her Diary, protests that Linnet took the oaths which secured him in his preferment, much against his will; 'and they choked him, for he actually died the next day of no other disease but swearing to the Government.'

That day was the last Tuesday in February, when London, just after dark, was attracted by strange flashes of light in the North West. The light was diversely compared to the dawn of day, to that of the moon breaking through the clouds; and a newspaper philosopher cheerfully described it as 'darting many streams towards all parts of the sky, which looked like smoak.' Its progress was towards the South-East, and it died out at the witching hour of night. Superstition sharpened or deceived the eyes of beholders in all parts

**THE
DERWENTWATER
LIGHTS.**

of the country. The London Jacobites hailed this Aurora as a message from Heaven to cheer them after the depression caused by the execution of the sentence on the Jacobite leaders. The London Whigs did not know what to make of it, but men of both parties, whose eyes were made the fools of other senses, agreed in seeing in the field of the sky armies fiercely engaged, giants flying through ether with bright flaming swords, and fire-breathing dragons flaring from swift and wrathful comets. They swore they heard the report of guns; they were quite sure they smelt powder. What one man said he saw, another assented to, and proceeded to see something more monstrous. Whatever din of battle was heard by one group, a thousand echoes of it were heard by another. The journals were not nice in calling such people by rude names. The scientific critics saw nothing but what was natural, and they schooled the Londoners in this wise:—‘The Sun having been hot for two days past, and particularly that afternoon, by which vapours were exhaled both from the Earth and Water, and the sulphurous Particles mixed with them, taking fire, might occasion that Light, and some coruscations, as is very common upon marshes in fenny places, in Spring and Summer nights.’ The explainer spoke with more confidence as to the intentions of Providence. The Jacobites had taken courage at the eclipse of the preceding year. To them it was a sign that the temporary adumbration of the Sun of Stuart would be followed by triumphant effulgency. The Sun of Stuart had proved to be only a mock Sun. *Argal*—‘they have,’ writes the philosophic critic, ‘all the reason in the world to believe that this last prodigy, if they will have it so called, portends a due chastisement for their obstinacy in carrying out designs against their King, their Country, and the Protestant Religion.’

SCIENTIFIC
EXPLANATION
S.

Nobody looked on that northern aurora in the way prescribed. Sentiment connected it with an individual. The aurora might not be an omen of good for a party, yet it might be a symbol of grief for an individual, and an assurance that Heaven had taken to its glory what men had destroyed. The sentiment has not quite gone out, even now, in the vicinity of Dilston. The aurora is still popularly called there the ‘*Earl of Derwentwater’s Lights!*’

Lady Cowper describes the spectacle more simply than scientifically. ‘First appeared a black cloud, from whence smoke and light issued forth at once, on every side, and

LADY
COWPER, ON
THE AURORA.

then the cloud opened and there was a great body of pale fire, that rolled up and down and sent forth all sorts of colours—like the rainbow on every side; but this did not last above two or three minutes. After that it was like pale elementary fire, issuing out on all sides of the Horizon, but most especially at the North and North-West, where it fixed at last. The Motion of it was extremely swift and rapid, like Clouds in their swiftest Rack. Sometimes it discontinued for a While; at other Times it was but as Streaks of Light in the Sky, but moving always with great Swiftness. About one o’Clock this Phenomenon was so strong that the whole Face of the Heavens was entirely covered with it, moving as swiftly as before, but extremely low. It lasted till past four, but decreased till it was quite gone. At one, the Light was so great that I could, out of my Window, see People walking across Lincoln’s Inn Fields, though there was no Moon. Both Parties turned it on their Enemies. The Whigs said it was God’s Judgment on the horrid Rebellion, and the Tories said it came for the Whigs taking off the two Lords that were executed. I could hardly make my Chairmen come home with me, they were so frightened, and I was forced to let my glass down and preach to them as I went along, to comfort them! I am sure anybody that had overheard the Dialogue, would have laughed heartily. All the People were drawn out into the Streets, which were so full One could hardly pass, and all frightened to Death.’

The Rev. Dr. Clarke lost no time in explaining the phenomenon to the Chancellor’s wife; and in a few hours the public were informed that if they wished to know all about it, they had only to repair, on subsequent Friday nights, to hear the Rev. Mr. Whiston lecture on the subject, at Button’s coffee-house; admission one shilling.

While terror affected some persons, others were given up to gaiety. The Duke of Montague showed his bad taste and lack of feeling by giving (almost while the tragedy on Tower Hill was a-doing) a ball and masquerade of the most splendid description to ‘three hundred people of quality.’ The guests were the duke’s confederates in bad taste and over-affected loyalty.

The king and court were present and were witnesses of the demonstration; but while they savoured the incense, M. d’Herville, who had come over, Ambassador Extraordinary from France, to notify the death of Louis XIV., glided among the gay throng, and whispered to some of the

masks whom he recognised, that London must not suppose that all was over. 'The Chevalier's retreat from Perth,' said the Envoy, 'is all a feint. It was concocted in France, only to prolong the time till the Regent of France can succour him openly!' The next day, this whispered secret found loud and angry, or joyful expression, in London, according to the political feeling of the reporter. A few days later, the public had to speak on a subject of much more peaceful tendency. Sir Isaac Newton, accompanied by Dr. Clarke, had gone to St. James's, and was received graciously by the Princess, in her own apartment, where Sir Isaac explained to her Highness and her ladies his system of philosophy. The Princess took great interest in the venerable octogenarian; and it was at her request that he drew up his 'Abstract of a Treatise on Ancient Chronology.'

On the 1st of March, the spirit of loyalty was further developed. It was the birthday of the Princess of Wales, and Addison seized the opportunity to overwhelm that lady with the most fulsome praise,—in the current number of the 'Freeholder.' According to the writer, she was the most beautiful, most religious, and most virtuous lady of her time. Her mirth was without levity, her wit without ill-nature; and then, as if the writer was mocking himself as well as the subject of his praise—the Princess's delicacy was said to be on a par with her husband's virtue—a touch of satire which happened to be perfectly true. On that day, too, church steeples rang peals of congratulations. 'It was observable,' said the Whig papers, 'that the High-Church Wardens were very sparing of their bells; though they need not spare their ropes for the use of their friends, since there's enough to be had for *their* service elsewhere.'

ADDISON, ON
THE PRINCESS
OF WALES.

Lord Lumley, Master of the Horse, and eldest son of the Earl of Scarborough, distinguished himself by his loyal liberality. In front of his house, in Gerrard Street, Soho, as soon as night set in, an enormous bonfire of faggots was kindled. Three barrels of ale and beer were broached in the street, and thirst with means to quench it caused Jacobites to pass for Whigs, or to fraternise with them in drinking the health of the Princess. From the windows of the houses of the Earl of Manchester and of other peers, and from those of the house of the Ambassador from Morocco, gazed spectators of various hue and quality. The street was a highly fashionable street; but perhaps a little descending from its highest quality, as Lord

Manchester's house is occasionally described, for the benefit of enquirers, as 'next to the Soup Shop.'

While Soho was thus indulging in gaiety, a coach-and-six set off from the door of the Venetian Ambassador in Leicester Fields. It was on its way to Dover to meet his Excellency's brother, who was expected to arrive at that port. Among the servants in the Ambassador's livery was one who was not in the Ambassador's service. This was the Earl of Nithsdale. After a sojourn of several days in the little room where he and his wife had found refuge, a more secure asylum was procured for him in the above Envoy's house. Within the coach rode one Michel, one of his Excellency's upper servants, but the Ambassador was doubtless in the secret. On arriving at Dover, Mr. Michel and the livery servant went on board a boat, hired by the former for Calais. The wind was so fair, the tide so favourable, and the passage was made so swiftly, that the captain remarked—things could not have been better if his passengers had been flying for their lives. The passengers on landing set forward together for Rome, where Michel became the confidential servant of the Earl. Soon, all London was certain of the fact that Lord Nithsdale had escaped to the continent.

Shortly after, the Duchess of Buccleuch, from a house in Drury Lane, received a note from Lady Nithsdale, who would not write till she was assured of the earl's safety. In her note, and in a private interview with the duchess, she stated that it was natural her lord's escape should be attributed to her. It was flattering to her to be supposed worthy of the merit of such a deed; but that a mere supposition ought not to render her liable to punishment for an imaginary offence. She was desirous to obtain permission to live in freedom; and the Solicitor-General went so far as to state that as the countess had so much respect for Government as not to appear in public, it would be cruel to make further search for her. The Government, however, was less generous, and intimated that, if she publicly appeared in either England or Scotland, she would not remain unmolested.

At the same time, more comic scenes in this drama were being acted by Sir Robert Walpole and Colonel Cecil. That agent of the Chevalier was not aware he was playing the part of dupe. He was a simple, unlearned, honest fellow who had got it into his head that Walpole intended to restore the

NITHSDALE IN
DISGUISE.

LADY
NITHSDALE
IN DRURY
LANE.

Stuarts, and that nothing better was to be done, meanwhile, than to let the minister know how the subordinate agents were proceeding, in order to bring about the same end. Walpole had the colonel to his house, pumped him dry, and then left him undisturbed till the springs were flowing again. *Then*, the poor Jacobite tool (applied to Hanoverian purposes) might be seen going down to Walpole's house, crammed with intelligence which he was about to reveal where, for Jacobite objects, it should never be known.

Next came the serio-comic incidents. Influential men in London were applied to with more or less earnestness, to intercede for the lives of some of the doomed men. These applications had their grimly-grotesque aspects. Lady Cowper gives in her Diary a remarkable instance, which admirably illustrates this fact. A Mr. Collingwood, taken in the North, lay in a Liverpool dungeon, under sentence to be hanged. 'Mrs. Collingwood,' writes Lady Cowper, 'wrote to a friend in town to try to get her husband's life granted to her. The friend's answer was as follows: "I think you are mad when you talk of saving your husband's life. Don't you know you will have £500 a year jointure if he's hanged, and that you won't have a groat if he's saved? Consider, and let me have your answer, for I shall do nothing in it till then." The answer did not come time enough,' adds the diarist, 'and so he was hanged!'

It was impossible to kill all the captives. Accordingly, persons remaining in London or in country gaols were induced to petition for banishment. They were then made over as presents to trading courtiers. The courtiers might sell to them their pardons. Such prisoners as could purchase them might be seen viewing the Lions of London before they returned home. Others came up from country prisons to look at the capital whither they had hoped to carry and there to crown their king. Prisoners who were unable to buy their pardons of courtiers who had them to sell, and that, at very high rates, were simply sent off to the Plantations. The veriest Whigs who saw a group of these unfortunates on their way to the river, must have covered their eyes for shame.

COMIC AND
SERIO-COMIC
INCIDENTS.

TO THE
PLANTATIONS.





CHAPTER IX.

(1716.)



ON March 15, 1716, the wily Earl of Wintoun, after repeated attempts to defer his plea, may be said to have been brought to bay. The Lords would allow of no further postponements; and, ready or not ready, they now brought him to trial. He had all due honours paid him. There was a long processional entry, which opened with the Lord High Steward's Gentlemen Attendants, in pairs, and ended with that great dignitary walking alone, and a supplementary group of pages bearing his train. Between the two extremes of the procession walked Clerks and Masters in Chancery, Serjeants at Law, the Judges, the elder sons of Peers, Heralds, with Garter King-at-Arms in the midst of them, and the Peers who were the judges in this solemn issue.

When all these great personages had reached their proper places, the Clerk of the Crown appeared on the floor of the House making demonstrations of respect, in manner somewhat theatrical. As he advanced to the Lord High Steward on the wool-pack, he stopped three times and bowed very low. When he reached the wool-pack, he sank on one knee, presented the king's commission for holding the trial, and then cleverly retired backwards, pausing thrice again to bow, as he retreated. This little feat having been accomplished to the silent approbation of the spectators, the Royal Commission was read to the Peers. At the first word, they arose, taking off their coronets; and, as the document was long and was in Latin, they seemed relieved when it was over, and they sank back on their seats with a look of satisfaction.

STATE-TRIAL
CEREMONIES.

Further relief ensued when another ballet-sort of movement was performed by Garter, the lesser Heralds, and a corps of Gentlemen Ushers. They advanced in a body, executed the triple 'reverences' at the proper moments, and on arriving before the Lord High Steward, they all went on their knees, while Garter, also kneeling, presented to the great official the white staff, which was the symbol of his office. My Lord took what was

presented, the effect of which was, that he was moved from the wool-pack to a chair of state placed on the highest step but one of the throne. Shortly after, not caring for the elevation, or finding himself too far removed from the body of the court to hear accurately what might pass, Lord Cowper descended to the table—permission being granted by the Peers.

While this performance was proceeding, three persons were in a neighbouring chamber—one of whom was the most interested in the issue. They were the Earl of Wintoun, the Lieutenant of the Tower, and the Gentleman Gaoler. Whatever may have been the tenour of their conversation, it was arrested by the triple *Oyez* of the Sergeant-at-Arms and his sonorous command, as deputy of the Peers, to the Lieutenant of the Tower to bring his prisoner into court. The three gentlemen, of course, instantly obeyed. The Lieutenant, as deputy-governor of the Tower, preceded the earl, at whose left side walked the Gentleman Gaoler, carrying the official toy axe, with the edge turned away from the accused rebel. As soon as Lord Wintoun crossed the threshold, he made one deep general bow to the hushed assembly. All the Peers rose and returned a ceremonious salutation.

**LORD
WINTOUN IN
COURT.**

When all this formality had come to an end, the Lord High Steward recited the charges on which the earl at the bar was about to be tried—rebellion, regicide, murder, and robbery—general and particular.

After some preliminary observations on matters which were known to all the world, the Lord High Steward congratulated Lord Wintoun on his being about to be tried by the whole body of his peers, summoned indifferently. ‘Hence,’ added Lord Cowper, ‘your Lordship may be assured that justice will be administered to you, attended not only with that common degree of compassion which humanity itself derives to persons in your condition, but also with that extraordinary concern for you which naturally flows from a parity of circumstances common to yourself and to them who judge you—those bonds, the weighty accusation laid upon you with its consequences, almost only excepted.’

If Lord Wintoun had hitherto felt as he looked, not very seriously concerned, the last words must have enforced some gravity of feeling and of bearing. What followed, as it sounded still more gravely, was calculated to inspire the accused with

**OPENING OF
THE TRIAL.**

something like awe. It was to this effect: ‘You must not hope that if you shall be clearly proved guilty, their Lordships being under the strongest obligations to do right that can be laid on noble minds, I mean that of their honour, will not break through all the difficulties unmerited pity may put in their way, to do perfect justice upon you, however miserable that may render your condition.’

Lord Wintoun was then told that he might cross-examine any of the witnesses brought against him, but that his counsel might *not*. And he was bidden to observe that he was the first person impeached of high treason, whose witnesses in defence would be heard upon oath, whereby their credibility would be equal with that of the sworn witnesses of the Crown.

Finally, Lord Cowper bade the impeachers proceed, on the part of the Commons, with their work. Thereupon, these gentlemen flew at the earl like hawks at a defenceless pigeon. As soon as one was out of breath, and had exhausted one point, a colleague got up, fresh in wind, and roared out other charges. Mr. Hampden, in opening the accusation, contrived to strike at other persons as well as at the prisoner. He ridiculed Lord Wintoun’s plea that he had unconsciously as it were fallen into rebellion, and that when in it, he was rather passive than active. Hampden could see some shadow of reason for Papists seeking to overturn a Protestant throne, and to murder one whom they called a ‘heretic king;’ but he could not understand the infatuation of sympathising Protestants on any other ground than that they had been denaturalised by the late Tory administration under Queen Anne! One curious remark was made by Hampden in the course of his speech, in these words: ‘Whatever misrepresentations other prosecutions were formally liable to, the notoriety of this rebellion has been so evident that the most malicious of our enemies want confidence to deny it.’

THE LEGAL
ASSAILANTS.

Sir Joseph Jekyll, who followed, made almost as singular a remark, namely, in his protest that he could not do so vain and wicked a thing as to impose upon their lordships or divert them from the true merits of the case. Jekyll chiefly dwelt on the absurdity of Lord Wintoun hoping to make anyone believe that he could join the rebel forces, take his armed retainers with him, march, fight, pray, and plunder for the Pretender, without meaning any harm to King George.

Jekyll was succeeded by Sir Edward Northey, Attorney-General, in a practical speech which was a condensed history of the Rebellion. He laid great stress upon the facts that Lord Wintoun supplied his armed servants who followed him with two shillings a day as military pay, and that he distributed among them the blue and white ribbon cockade, which distinguished the Jacobite soldiers from King George's troops, who wore on their caps a cockade of white and red. The hardest blow struck in this speech was a sarcastic allusion to Wintoun's comparative passiveness. When that lord surrendered to Lord Forester at Preston, said the Attorney-General, his chief complaint was, that the Jacobite commander, Forster, had not treated him with the consideration due to a man of quality; except, by putting him in the place of honour when to fill it was dangerous.

These speeches over, the witnesses were called. First came the approvers—Quarter-master Calderwood, James Lindsay, and Cameron. They all swore to the presence and active services of Lord Wintoun at every step of the outbreak. The Lords treated them with great civility, and the courtesy of the prosecuting counsel was remarkable. But the latter were so eager to get answers, that before the witness could reply to Jekyll, Mr. Cowper put a question, while Hampden asked queries of another deponent who was yet considering how he was to satisfy a demand made by the Attorney-General!

**THE KING'S
WITNESSES.**

When Cameron closed his damaging evidence against the earl, the latter was told by Lord Cowper that he might question the approver, if he thought proper. Lord Wintoun looked in vain towards his counsel, and then said, 'My Lords, I am not prepared, so I hope your Lordships will do me justice. I was not prepared for my trial. I did not think it would come on so soon; my material witnesses not being come up; and therefore I hope you will do me justice, and not make use of Cowper (Cupar), Law, as we used to say in our country, "*Hang a man first, and then judge him!*"'

At this sarcastic fling, Lord Cowper exclaimed to the Peers, '*Did you hear?*'—and then begged Lord Wintoun he 'would be pleased to speak it again.' Wintoun only reiterated his demand for more time,—leaving Cameron to go away without any cross-examination. Then was summoned the supreme villain among those who had turned king's evidence, namely, the Rev. Robert Patten. All eyes were bent on him, all ears eagerly listening for 'the parson's'

**THE REV. MR.
PATTEN.**

revelations. The hearers were disappointed. Patten, in his replies which affected the earl, merely stated that he himself joined the rebels at Wooler, and that he first saw Lord Wintoun at Kelsoe carrying a sword and taking part in the proclaiming of the Pretender. At Jedburgh, Patten saw my lord at the head of his men awaiting an attack, which turned out to be a false alarm. A similar case occurred at Hawick. At Langholme, when some of the rebel horse went to Dumfries, and part of the Highlanders withdrew from the English Border, Wintoun went after them, but he voluntarily returned to the rebel force about to invade England. At Penrith, he was among the armed men at whose appearance the valiant *posse comitatus* suddenly evaporated. At Kirby, Patten stated that he dined with *all* the lords, and that, after dinner, they drank to the Pretender, and success to the cause in hand. To this, the approver added that he was present when the rebels carried off the guns which they employed against the king's forces at Preston, where he saw the lord at the bar actively engaged. This was the sum of this witness's deposition, which was made in a few minutes. In one part

of it, he expressed ignorance of Wintoun's opinions with regard to the march into England. After the trial, however, in a book which he published, Patten spoke of Lord

**PATTEN'S
CHARACTER
OF WINTOUN.**

Wintoun as follows: 'This Earl wants no courage, nor so much capacity as his friends find it for his interest to suggest, especially, if we may judge by the counsel he gave. He was always forward for action but never for the march into England, and he ceased not to thwart the schemes which the Northumberland gentlemen laid down for marching into England, not so much from the certainty, as he said there was, of their being overpowered, as from the greater opportunity, which he insisted there was, of doing service to their cause in Scotland, in order to which he argued with and pressed them back into Scotland, and, leaving Edinburgh and Stirling to their fate, to go and join the Western Clans, attacking in their way the town of Dumfries and Glasgow, and other places, and then open a communication with the Earl of Mar and his forces. Which advice, if followed, in all probability would have tended to their great advantage, the king's forces being then so small. However, therefore, some people have represented that Lord, all his actions, both before a prisoner and whilst such, till he made his escape out of the Tower, speak him to be master of more penetration than many of those whose characters suffer no blemish as to their understandings.'

When Patten retired, the audience felt that the chief actor had left the stage, and that he had not come up to the general expectation. The officers of the royal army succeeded him. Lord Forrester (being a lord, he was ordered rather than allowed, to be seated on a chair) deposed that in the attack on Preston, his regiment alone had thirty men killed and forty wounded. On entering the place, he found the lords at the *Mitre* tavern, where he disarmed them, Wintoun delivering up his pistols.

**MILITARY
WITNESSES.**

General Carpenter, who had been summoned at the earl's request, spoke to the attack and surrender. It was then seen why he had been called by the earl,—who asked the very absurd question,—if *he* had had anything to do with the capitulation. Carpenter replied that Wintoun did not directly and personally interfere, but that he was included under the general treaty. Carpenter positively declared that he had held out no hope to the rebels that surrender would necessarily ensure the safety of their lives. When General Wills came forward to add his testimony, the attention of the audience was deepened, to hear if, on the last point, he would corroborate General Carpenter, and the audience must have been satisfied that no assurance of mercy was held out even to induce the Jacobites to surrender. General Wills deposed that when the first overture was made, by Mr. Oxburgh (an Irish ex-officer), sent out by Forster, the former offered that the force in Preston should lay down their arms and submit; and he expressed a hope that General Wills would 'recommend them to the king's mercy.' On this, Wills refused to treat at all with rebels who had slain the king's subjects; but, on pressure of appeal to his sense of honour and feelings of mercy, he, Wills, agreed that if the rebels would surrender at discretion, 'he would prevent the soldiers from cutting them to pieces.' It was while these terms were under consideration that the Earl of Derwentwater and Mr. Mackintosh were sent to the English camp, as hostages, that nothing might be carried on for future furtherance of the defence, while the terms were being considered. At seven o'clock in the morning of the next day, Forster sent notice of their willingness to surrender at discretion. Mackintosh, standing near Wills, expressed his doubt of the Scots consenting to surrender on such terms. The negotiation was then, temporarily, broken off, but, at last, the surrender at discretion was made and accepted. Wills reiterated that no hope of mercy was held out to induce them to yield the place and themselves. Patten, in his

**THE
SURRENDER
AT PRESTON.**

‘History of the Rebellion,’ states, in confirmation of the above, that he ‘heard the answer which Colonel Cotton, whilst he was at the White Bull, gave to a gentleman among the Rebels, who asked if they might have mercy.’—‘That, Sir, I cannot assure you of,’ replied the Colonel, ‘but I know the King to be a very merciful Prince;’ and then he demanded of all the noblemen and gentlemen ‘to give their Parole of Honours to perform what they on their part promised.’

When Lord Wintoun asked Wills if he had not attacked the town without summoning it, thus *compelling* it to resist, Wills readily answered that such was the case, but then, while he was viewing the place, the rebels shot two of his dragoons, and the attack was made in consequence. Colonels Cotton and Churchill, with Brigadier Munden, confirmed the testimony of their commanders by whom they had been sent into the town to treat with the insurgents. Wintoun asked Cotton if some of the rebel soldiers had not been shot, after the capitulation. The Colonel, answering as readily as Wills, said, ‘Yes, certainly; because they were trying to escape, contrary to the letter and spirit of the terms of surrender.’ That was partly the reason why, as Brigadier Munden said, when the leaders of the rebel force were taken to the English camp, ‘Mr. Wills received them with the utmost detestation and contempt.’

A PRISONER
AT BAY.

When the Lord High Steward called on Wintoun for his defence, the earl made the whole audience smile, by his cool demand for a month in which to prepare it. He had never seen his counsel, he said, but once. He knew nothing of law. His witnesses were on their road, delayed by the bad weather which made travelling difficult. ‘They will be of no use to me,’ he said, ‘if they arrive after I am dead!’ Up to this time, his counsel had not opened their mouths, and lest they should do so now, the Attorney-General and Mr. Cowper started to their feet and made speeches against any delay in a trial which had once commenced. Cowper was particularly bitter—he who afterwards needed judicial indulgence, and was so near being hanged himself! The public looked on from the galleries like spectators gazing into the arena where a deadly struggle for life was going on. When, at the close of the day, the Peers refused to allow Wintoun further time, as being contrary to custom after a man was once on trial, the earl remarked: ‘I think it very hard and great injustice that I should be tied down to a foolish form, when I

INCIDENTS OF
THE TRIAL.

am in danger of my life!’ He curtly bowed, walked out between his two over-officious friends, the Lieutenant and the Gentleman with the axe, and was shortly after conveyed in a carriage to the Tower. The mob did not know how it had gone with him. They were silent. In the coffee-houses, the earl’s sayings and doings of the day gave additional liveliness to those not usually dull localities. But, on that night, the men who brought news were more welcome than the men who brought nothing but wit.

On the second day of the trial, after the usual processional circumstance, and a formal permission to the Judges to put their hats on over their wigs, Lord Wintoun was again called upon for his defence. He looked towards his counsel. His counsel looked towards him. The earl then said to the clerk, who stood near him throughout the trial, and repeated his words aloud to the House, that he was ignorant of law, and that his counsel would speak for him. Then ensued a scene that occurred more than once while the trial was in progress. The Lord High Steward complained that he had to tell the earl again and again that his counsel dared not speak except to a point of law, and that he, against whom the indictment was laid, must first state what the point of law was! He was then invited to state it. The earl answered, with the slightest touch of impatience, ‘It is impossible for me to do a thing I don’t understand. I don’t know what the point of law is no more than a man that knows nothing about it!’ At this natural remark some of the lords tittered; whereupon Lord Wintoun said with quite natural gravity: ‘I am only speaking in my own defence. I do not expect to be laughed at!’ On which words, falling amid a sudden silence, the Lord High Steward came to the earl’s support, saying with dignity: ‘I think his Lordship does observe well. I hope every one will forbear that!’ At the end of this incident, the old dialogue was renewed. Wintoun was invited to speak; he referred to his counsel; Lord Cowper explained the law and custom, till he was weary of repeating it, but Wintoun was never weary of provoking him to the tiresome process.

**WINTOUN
BAITED BY
COWPER.**

At length, Wintoun, the Jacobite earl, asserting that it would be useless to produce his witnesses then in town, until he could bring up others from the North to corroborate them, demanded further delay. Mr. Cowper impatiently arose to press for immediate proceeding. He taunted the earl by acknowledging that he had taken the best course he could in such desperate

circumstances; beating about the bush; fencing with direct questions; trying to show that he might commit treason without being a traitor;—yet being unable to disprove what had been alleged and confirmed against him.

Wintoun fearlessly replied that his counsel could show he was incapable of committing treason, with which crime he was charged in the indictment. This was in his boldest style of fencing. There can be no doubt that when he asserted the loyalty of himself and family, and denied that he had any design to overthrow the constitution of the realm, he thought of loyalty to James III. and the constitution as it was established under the Stuarts. At length, the Lord High Steward bade the managers for the Commons to proceed. Mr. Cowper jumped to his feet, and showed with alacrity that every iota of evidence against the prisoner was confirmed. He alluded to no rebutting testimony being even attempted; and, with something of a sneer, he commented on the absurdity of Lord Wintoun wishing his treason to be viewed in a light that should make it appear something quite different.

**THE KING'S
COUNSEL.**

When Mr. Cowper had finished, Sir William Thomson rose to make his thrust at a man who could not speak for himself, and who was not yet allowed to have others speak for him. Sir William was strongest when he denounced Wintoun's plea,—that there were circumstances in his case which made it different from that of others, and entitled him to be more mildly dealt with,—as simply nonsense. It certainly was ignoble. As for the earl's innocence of heart, ignorance of law, and loyalty to 'the King,' Sir William laughed at all three. He concluded by a demand for 'justice,' as the only way of obtaining safety and security for England.

Then, without a word having been spoken in Wintoun's defence, the verdict of the peers was taken. There were ninety present. Thomas, Lord Parker, was the first called upon to pronounce an opinion; and this youngest lord, whose coronet was not a week old, arose, placed his right hand on the spot where he supposed his heart to be, said '*Guilty*, upon my honour!' and resumed his seat. Each succeeding peer performed exactly the same action, and repeated precisely the same words. The last fatal word was pronounced by the Lord High Steward himself. Not one of the ninety was favourable to Wintoun, but the first who pledged his honour to the verdict soon became a greater criminal than the lord at the bar. He it was who as Lord Chancellor, the Earl of Macclesfield, anticipated

THE VERDICT.

being driven from his post by resigning the Great Seal. He had sold masterships in Chancery for great sums of gold, and winked at, if he did not encourage, those masters in recuperating their purchase money by embezzling that of the suitors.

Wintoun heard the adverse judgment with perfect calmness, but that Friday night's drive from Westminster Hall to the Tower was not a pleasant one. The Gentleman Gaoler carried his axe all the way, with the edge towards the condemned earl. The London Jacobites, as they grouped together in their public or private resorts, had some faint hope in an application for arrest of judgment.

The day to make that application was Monday, March 19th. All the preliminary ceremonies having been duly performed, the earl was asked what he had to say why judgment should not pass. Wintoun turned his eyes towards Sir Constantine Phipps, and that great lawyer, in the most apologetic tone, had only half expressed his 'humble hopes that, if their lordships pleased, there was a point of law,'—when, suddenly, the Attorney-General arose in a flutter of indignation, 'I hear,' he cried in a sort of pious horror, 'a gentleman of the long robe offering to speak!—and to a point of law; before, too, the accused had propounded the point, and their lordships had allowed that it was one!' The Attorney, having fallen back on his seat, full of breathless amazement, Mr. Cowper, with the utmost legal fervour, could hardly find words to express his surprise that Sir Constantine should presume to speak! 'If,' said Phipps, 'I had only been heard ten words more——.' 'No!' interrupted Thomson, 'he has no right to be heard one word more!' And the Lord High Steward followed with a stinging rebuke at Sir Constantine's audacity in daring to speak before he had obtained the permission of the House. That was what Phipps was about to ask for when Northey heard his voice and choked it in the utterance. Sir Constantine sat perfectly silent under the accumulated rebuke, but he was at length allowed to speak on the point that in the impeachment the time of any alleged overt act was not stated with proper certainty. The Jacobite lawyer made a good speech, in which he said that,—if in an indictment for less perilous actions the time of action was omitted, the indictment would fail. How much more should an indictment fall through which perilled life, and omitted to state the date on which the act was committed, which placed the accused in

SIR
CONSTANTINE
PHIPPS.

danger of death. To general charges the Earl of Wintoun could not be expected to give particular answers. Had a day been named, which brought him and a stated act together, he might have brought forward witnesses to prove an *alibi*. But every charge was laid down against acts committed ‘on or about.’

Williams followed up his leader on this line by saying that ‘on or about!’ a certain day would be bad; ‘on or about September,’ worse; but ‘in or about September, October, and November,’ was worse than all. Then, in allusion to Wintoun being called ‘the unhappy lord,’ Williams remarked, ‘He is unhappy as being in that doubtful state of memory,—not insane enough to be within the protection of the law, nor sane enough to do himself in any respect the least service whatever.’ At this natural observation all the managers of the Commons became ‘uneasy,’ as they said, at the learned gentleman going into a matter of fact. Mr. Williams therefore restored their equanimity by simply declaring that as the impeachment was defective, judgment should not be executed.

**A FIGHT FOR
LIFE.**

The managers and their legal advisers had agreed that Lord Wintoun’s counsel should be allowed to speak only on condition that the managers of the impeachment on the other side should have the last words. They followed accordingly. Mr. Robert Walpole suggested that Sir Constantine Phipps had forgotten that Lord Wintoun’s case was not in an ordinary court of law, but in a Court of Parliament, which was not to be bound by common procedure. ‘What might quench,’ he said, ‘an Indictment in the courts below should never make insufficient an Impeachment brought by the Commons of Great Britain.’ The delighted Attorney-General went on the same war-path, and proclaimed that parliamentary impeachments were not to be governed by the forms of Westminster Hall. Mr. Cowper added that the courts below had many forms for which no reason could be given. ‘I believe,’ he said, ‘in parliamentary process, that nothing is necessary that is not material.’ ‘Besides,’ said Thomson, ‘time, date, and places *were* laid in the five days at Preston. For the deeds done there, Lord Wintoun had been convicted, and judgment could not legally be stayed.’

**THE FIGHT
GROWS
FURIOUS.**

Phipps and his colleagues replied that they were not convinced by the arguments of their opponents; and the Attorney-General had the last word in

a speech, the chief point in which was the assertion, sarcastically conveyed, that as far as concerned the rights of the Commons of Great Britain, Lord Wintoun's counsel had left the case just where they found it.

Lastly, 'the unhappy lord' himself, who was the subject of this mortal controversy, was asked if *he* had anything to say why the sentence of the law should not be carried out against him. He referred to his counsel, and then the old series of explanations and irritable squabbling, which Wintoun seemed delighted to provoke, ensued. At length, on being told that if anything was to be said in arrest of judgment, it must come from him, the doomed earl tranquilly remarked, 'Since your lordships will not allow my counsel to speak, *I don't know nothing.*'

The Lord High Steward then proceeded to deliver sentence. He prefaced it by a speech, full of commonplaces about his own office, the crime of rebellion, and the duty of punishing rebels. Lord Cowper then proceeded to reconcile the earl with what he had to go through, by observing:—'Believe it, notwithstanding the unfair arts and industry used to stir up a pernicious excess of commiseration towards such as have fallen by the sword of justice (few if compared with the numbers of good subjects murdered from doors and windows of Preston only), the life of one honest loyal subject is more precious in the eye of God, and all considering men, than the lives of many rebels and parricides!'

**THE
SENTENCE.**

The Lord High Steward fully illustrated those sentiments by condemning the earl to be hanged, to be cut down alive, to be 'disembowelled before his face, the bowels to be burnt, and the body quartered.' It was the old sentence against treason. Its form and spirit showed the ancient horror of that crime.

The Earl of Wintoun behaved as became a gentleman. He was calm and dignified. His bearing won for him much sympathy. He turned away from the bar, with his head nobly raised, his eye fixed on the edge of the axe which was now carried thus significantly before him, and with something on his brow that may have been the reflection of his thoughts that he had not so nearly done with life as their sternly polite lordships perhaps expected.

**DOOM BORNE
WORTHILY.**

Lady Cowper made rather harsh record of Wintoun in her Diary. She says, 'He received sentence of death, but behaved himself in a manner to

persuade a world of people that he was a natural fool, or mad, though his natural character is that of a stubborn, illiterate, ill-bred brute. He has eight wives. I can't but be peevish at all this fuss to go Fool-hunting. Sure, if it is as people say, he might have been declared incapable of committing Treason.'

The truth is that the 'illiterate brute' may have spoken such English as he used to hear in the smithy, but it was as good as much that was spoken by country squires. The Jacobites would have made London echo with their shouts if he had been acquitted. The Whigs manifested no gladness that he was condemned. His passage to the Tower was witnessed in respectful silence.

The Earl of Wintoun never asked nor sanctioned others to ask for the life he had forfeited. He had defended it, but not altogether heroically, for he had attempted to show that he had been deluded into joining the rebels, that he had never been actively engaged for them, and had never had an opportunity of escaping from them. Apart the defence, his action was not without dignity; and the ultimate result showed that he had more brains than he had credit for, even from the friends and acquaintances who imagined they knew him best.

It is fair to Lord Wintoun's Jacobite defender to say that Sir Constantine—the displaced Tory Lord Chancellor of Ireland—did his duty, at Lord Wintoun's trial, in an able and dignified way. Duhigg, in his 'History of the King's Inns,' states, that after Phipps returned to the English bar, 'he seemed to consider official station as still encircling him, and violated professional decorum at the bar of the House of Lords, for which that august assembly most justly gave the offender a public reprimand.' The comment of Mr. O'Flanagan, in his biography of Phipps, in the 'Lives of the Lord Chancellors of Ireland,' is —'The historian of the King's Inns uses such strong language in reference to all whom he dislikes, that I am not disposed to place implicit reliance on all his statements.' The Tory party naturally honoured Sir Constantine, often escorting him to his mansion in the new, fashionable, and semirural Ormond Street, with marks of enthusiasm.

The mug-houses, the coffee-houses, and the taverns, were crowded with people more or less excited by the trial and its results. Friends and

**THE JACOBITE
LAWYER.**

acquaintances spoke without reserve, but when a stranger drew near a group, the topic was changed. Some spoke of the new play, 'The Drummer,' which they had seen on the previous Saturday, and others talked of friends who had gone to the Lincoln's Inn Fields Theatre, to patronise the benefit performance of Bullock, the favourite low comedian of the time.



CHAPTER X.

(1716.)



Two days after the last trial, the Lord High Steward stood up and declared that there was nothing more to be done by virtue of his present commission. The House of Lords then ordered that a full report of the Earl of Wintoun's trial should be printed. This was on Wednesday, March 21st. Mr. Cowper, clerk of the Parliaments, accordingly appointed Jacob Tonson to print and publish it; and my Lords 'forbade any other person to print the same.' Jacob, forthwith, issued an edition, handsome in the getting up, and rather high in price. Immediately, a spurious edition, in six folio pages, tempted the general public—at two pence! It bore the name of 'Sarah Popping, at the Black Raven, Paternoster Row.' The Lords, angry at this contempt, ordered Mrs. Popping to be brought before them. On the 13th of April, the famous antiquary, Sir William Oldys, Gentleman Usher of the Black Rod, appeared before the House with the statement that he had Sarah Popping under arrest, but, said Oldys, 'She is so ill that she is not in a condition to be brought to the bar; but a person is attending at the door who can give an account concerning the said Paper.' Whereupon, one Elizabeth Cape was brought in, and she deposed to such effect, that the Lords ordered the immediate arrest of two Fleet-Street publishers and booksellers,—one, a John Pemberton; the other, the notorious Edmund Curll.

While the deputies of the Gentlemen Ushers of the Black Rod were in search of Curll and Pemberton, Sarah Popping petitioned the Lords for a full pardon, on the ground that she, being ill, knew nothing of the printing of the trial, which had been unwittingly undertaken by her sister, and 'it being usual in such cases to discharge the publisher upon the discovery of the bookseller'—that is of the retailer, such as Curll was, in this case. The Lords, having all the incriminated persons before them, on Thursday, the 26th of April, discharged Popping and Pemberton, ordered that Curll be detained in custody, and issued a warrant for the arrest of Daniel Bridge, charged with

EDMUND
CURLL.

being joined in the printing of the earl's trial. Bridge, on the 2nd of May, confessed to the House that he was the printer of the twopenny edition; and he accused Curll of having furnished him with the 'copy' to print from. Curll and Bridge were 'laid by the heels,' but in a couple of days they sent up a petition, in which they pleaded utter ignorance of their Lordships' prohibition to print any other account of the trial than that which Tonson alone was authorised to put forth. They acknowledged that their Lordships were justly offended; and they asked to be set free, as they had families 'which must be entirely ruined unless your Lordships have compassion on them.' Their Lordships were not hard upon the offenders; both of whom were to be seen, one afternoon before the week was out, humbly kneeling as they listened to a sharp reprimand from the Lord Chancellor. After which process, the offenders paid their fees, and then walked from Westminster to Fleet Street together. To Curll, this 1716 was an eventful year. In it were included his first appearance in the House of Lords, his quarrel with Pope, and the humiliating indignities which he underwent at the hands and 'tyrannick rod' of the boys in Westminster School.

Another publisher took advantage of the State trials to stimulate the public to purchase three little poems, on the ground that they were 'Published faithfully, as they were found in a Pocket-Book taken up in the Westminster Hall the last day of the Lord Wintoun's Tryal.' Roberts, the publisher in Warwick Lane, stated in his advertisement that, upon reading them at the St. James's coffee-house, they were with one voice pronounced to be by a *Lady of Quality*. The foreman of the poetical jury at Button's, considering the style and thought, declared that 'Mr. Gay must be the Man.' On the other hand, a gentleman of distinguished merit, who lived not far from Chelsea, protested that the poems could come from no other hand than the judicious translator of Homer. The wits at St. James's were of course nearest the mark, and it is now known, as Mr. Roberts knew then, that these 'Court Poems,' 'The Basset Table,' 'The Drawing-Room,' and 'The Toilet' were from the pen of that lively lady, Mary Wortley Montague.

Another lady, the widowed Viscountess Kenmure, was otherwise engaged in the stern prose of life. She prepared a petition to the king in which she prayed that 150*l.* a year might be added to her jointure, for the education of her

THE NEW
POEMS.

PRINCESS OF
WALES AND
LADY
KENMURE.

children. She asked for that sum out of her late lord's confiscated estate. The young widow earnestly prayed for an interview with the Princess of Wales. When this was made known to her royal highness, that lady said, 'I know that she will burst into a flood of tears and I shall do the same, and I shall not be able to bear the sight of so much grief as she will bring with her.' This way of declining the interview was made known to the viscountess. Lady Kenmure eagerly replied that, if the princess would only see her, she would not shed a single tear nor utter one poor sob. Caroline consented. She not only received Lady Kenmure with cordial sympathy, but after some conversation, the princess took her by the hand and led her to the king's apartments. On presenting her to the sovereign, Caroline recommended the poor lady to his generous consideration, and she did this so well that the king not only granted the petition, but made her a present of 300*l.* The Princess of Wales again took Lady Kenmure by the hand back to her own apartments, where she added 200*l.* to the sum given by the king; and finally, she conducted her interesting visitor to the very foot of the stairs. The papers state that Lady Kenmure was subsequently heard to say, 'Good God! are these the people that have been represented so odious to us, and for rebelling against whom I have lost my dear husband? Sure, if this had been known, we had never been so unfortunate!' The royal example had beneficial influence. The Duchess of Marlborough collected subscriptions among her lady friends, and her grace placed fourteen hundred guineas in the widow's hands to carry with her back to Scotland.

The execution of Lords Kenmure and Derwentwater, and the sentence on Lord Wintoun, sobered the spirits in Newgate, where the too profuse liberality of the outside Jacobites had caused many of the captive rebels to put off dignity and decency, for riot, revelry, and licentiousness. The author of the 'History of the Press Yard' states, that they, after a time, lived profusely and fared voluptuously, by the help of daily visitors, and of sympathisers who sent their money, but avoided personally appearing. 'While it was difficult to change a guinea almost at any house in the street, nothing was more easy than to have silver for gold, in any quantity, and gold for silver, in the prison; those of the fair sex, from persons of the first rank to tradesmen's wives and daughters, making a sacrifice of their husbands' and parents' rings and other precious movables, for the use of those prisoners.' The aid was so reckless that forty shillings for a dish of early peas and beans, and

**LUXURY IN
NEWGATE.**

thirty shillings for a dish of fish, with the best French wine, ‘was an ordinary regale!’

During the first ten days of April the Jacobite sympathy was everywhere manifested for ‘General Forster,’ who was to be tried on the 18th. On the 11th of the month, Jacobite London was in ecstasy. In every Jacobite mouth was the joyous acclaim: ‘Tom Forster is off and away!’ The Whigs damned themselves, the Tories, and Pitt, the keeper of Newgate, that ‘the rascalliest of the crew had broke bonds.’ The Government shut up Pitt in one of his own dungeons, offered 1,000*l.* for the recovery of the ‘General,’ and ordered strict examination of all persons at the different sea-ports attempting to leave England. Forster did not intend to come in the way of such examination. His escape was well planned and happily executed. His sharp servant found means to obtain an impression of Pitt’s master-key, from which another key was made and conveyed to Forster, without difficulty. Pitt loved wine, and Forster seems to have had a cellar full of it. He often invited the governor to get drunk on the contents. One night Pitt got more drunk than usual, finished the wine, and roared for more. Forster bade his servant to fetch up another bottle. This was the critical moment. The fellow was long, and Forster swore he would go and see what the rascal was at. On going, he locked the unconscious Pitt in the room, and, the way being prepared by his servant, and turnkeys, as it would seem, subdued by the ‘oil of palms,’ master and man walked into the street, where friends awaited them. Pitt soon sounded an alarm, but everything had been well calculated. A smack lay at Holy Haven, on the Thames, which had often been employed by the Jacobites in running between England and France. At midnight two gentlemen, a lady, and a servant arrived in a coach at Billingsgate, and made enquiries touching this suspicious vessel. So ran a popular report. The Dogberrys concluded that Forster was one of these men, and that he was lying hidden by the river side. He was, however, far off beyond their reach. He was so well served and so well protected, that by four in the morning he and five horsemen galloped into Prittlewell, near Rochford, in Essex. They quietly put up at an upland ale-house, and sent for a skipper who expected them. This man, Shipman, took them three miles below Leigh, where a vessel awaited them. Men and horses were there embarked at noon, and Shipman accompanied them to France, on which coast they were safely landed. The

**GENERAL
FORSTER’S
ESCAPE.**

**A RIDE FOR
LIFE.**

joy of the Jacobites was uncontrollable. The Whigs shook their heads and doubted if such an escape could have been accomplished without connivance on the part of persons in high places.

Forster's escape was so easily effected as to almost warrant a suspicion that, for service rendered, he was allowed to get away. Others, however, got off from Newgate and the Tower whom the Government undoubtedly intended to keep there, with Tyburn in view as their utmost limit abroad. In the old ballad—

Lord Derwentwater to Forster said:—
Thou hast ruin'd the cause and all betray'd,
For thou did'st vow to stand our friend,
But hast prov'd traitor in the end.
Thou brought'st us from our own country,
We left our home and came with thee;
But thou art a rogue and a traitor both,
And hast broke thy honour and thy oath.'

The remaining prisoners and their possible destiny continued to occupy the public mind. One day, a group of them might be seen on their way to the Thames, where they were to be shipped for 'the Carolinas.' Lord Carnwath, it was said, would be pardoned, but Lords Widdrington and Nairn would be transported to the Plantations for seven years, and then set free on finding bail for their future good behaviour. The captives in Newgate fought in the court-yard, or laid informations against each other, while their wives traversed London wearily in search of powerful friends to liberate them. Great interest was evinced in Lord Wintoun. This was increased when a morning paper quaintly informed its readers that 'as for the Earl of Wintoun, his Counsel having insinuated that he is not perfect in his Intellectuals, 'tis said he will be confined for Life!'

**THE
PRISONERS IN
THE TOWER.**

The lords, under sentence of death, in the Tower, continued to be reprieved from time to time. As various alterations in the process of the trials followed, it was not doubted, 'Mercurius' says, 'but there had some light been given in return for that grace, by which further discoveries were made than had been before.' If this be true, the baseness of such informers was more detestable than that of the Rev. Mr. Patten. This man began now

to be treated by the public as a double-dyed rascal; and this treatment urged him to publish his reasons for turning king's evidence, in a letter addressed to one of the Shaftoes, a rebel prisoner in Newgate. The letter is long and very wide of its pretended purpose. It affects indeed a certain horror of rebellion against the Church and Throne; and it insinuates that Shaftoe might do well to follow the example of the writer, who mendaciously pretended that in becoming a witness against his old confederates, no promise of pardon or of any advantage was made to him, and that he was utterly ignorant as to the way in which it might please God that he should die!

‘I shall mention one particular,’ he says, ‘which has been a matter of astonishment to me to find out a Falsehood so industriously reported. I hope it will be so with you when I assure you it was industriously reported that the Prince of Wales, who was represented to us under the greatest disadvantages, as to the Shape and Frame of his Person, is quite the Reverse of all Reflections, for he has really a comely Appearance, and a Liveliness in his Looks and Gesture, which is very taking, and speaks a great deal of Goodness. This I beheld with Admiration at Westminster Hall, when I was present at the Trial of the Earl of Wintoun.’

PATTEN ON
THE PRINCE
OF WALES.

Among a batch of 180 Jacobite convicts sent to Maryland, there was one who was both malefactor and Jacobite. His name was Wriggelsden. He was such a hater of King George, that he tried to carry off his Majesty's plate from the Chapel Royal in Whitehall. The Tory thief was transported, but the Whig papers in London soon abounded with complaints that this enemy of kings and men was better off than he had ever been before. ‘He had got,’ says the News Letter, ‘a cargo of cutlery ware, and a Mistress like a Woman of Fashion, in rich clothes and a gold striking watch, with other proper equipage, at Annapolis, where they live with great show of affluence.’ The Whigs complained that knaves and traitors should thus flourish. They also complained that the sentinels at St. James's Palace neglected to safely guard the prince and princess; that Tory inn-keepers cursed the king, even on his coronation-day, and that Nonjurors were not to be trusted, even though they took the oath of fidelity, like the Rev. Nicholas Zintens, who, they sneeringly say, ‘took the oath by mere impulse of conscience in the absence of his wife.’

Meanwhile, detachments of Horse Guards patrolled the suburbs, and delegations of Scotch Presbyterian ministers marched up, day after day, to St. James's, to congratulate the king on being securely seated on his throne. Now and then one of the above guards, yielding to love of liquor, would drink the Pretender's health, for a draught of ale, gratis; and would find himself next day, in Newgate, in the company of priests whose papers and persons had just been seized by Messengers, or in the place of rebel-prisoners who had just escaped, or who had died, as *poor* captives died, of that loathsome confinement. Captivity could not tame the bolder spirits. Sunderland, the coffee-house man, locked up for circulating that inflammatory pamphlet,—‘Robin's Last Shift,’—talked more Jacobitism in prison than out of it; while Flint,—ultra-Jacobite author of the ‘Weekly Remarks,’—wrote more seditiously in his cell than in his own printing office;—till orders came down to keep pen, ink, and paper from a man who made such bad use of them.

IN AND OUT
OF NEWGATE.

As Oxford and Cambridge represented, the first, Tory;—the second, Whig principles; so Drury Lane Theatre was popular with the Whigs, while the house in Lincoln's Inn Fields lay under the suspicion of being Jacobite. The suspicion probably arose from the fact that, in the days of Queen Anne, one of the company, the handsome actor, Scudamore, had often gone to St. Germain as an agent of the London Jacobites. The Lincoln's Inn Fields' players, however, repudiated all grounds for suspicion against their loyalty. Mrs. Knight, on the occasion of her benefit, published an address in which she told the Jacobites their money was as good as that of other people, but that their political principles were *not* so good. She told the Whigs that her ‘zeal for government had been expressed in the worst of times.’ At night, she delivered an epilogue, in the character she had been playing, ‘Widow Lockit,’ in which politics were thus introduced into the domain of the drama:—

POLITICS ON
THE STAGE.

Whatever t'other House may say to wrong us,
We have, as well as they, some honest Whigs among us,
Who do our Country's Enemies disdain,
And hate disloyalty as much as Drury Lane.

But there were dramas elsewhere, as interesting as any on the stage.

On the 28th of April, two travellers arrived in town from the North, whose arrival caused considerable sensation. One was the young Duke of Hamilton and Brandon, under the care of his uncle, the Earl of Selkirk. 'He was destined for Eton, in order to perfect him for one of the Universities.' This boy was met in the northern suburbs by about a hundred noblemen and gentlemen on horseback, and many more noble and gentle ladies, in coaches, who escorted his hopeful grace to his house in St. James's Square. The second, Simon Fraser, afterwards known as Lord Lovat, came more privately. The king received that faithful person, two days later, with condescending cordiality. In every tavern, it was soon known that his Majesty had spoken highly of Fraser's services, and had promised to give him marks of his royal favour. Simon Fraser, on that day, kissed the hands of the king and the Prince of Wales, after which the 'Duke of Argyle took him in his own carriage to pay visits to the various ministers.'

**SIMON
FRASER, AS A
WHIG.**

Early in the month of May, Bishop Atterbury, who had not been quite three years in possession of the see of Rochester, gave unmistakable signs as to the way *he* was going. A large body of the Dutch troops who had served in Scotland, had marched back to London. They were thence sent down to Gravesend, where they were quartered, till they sailed to their own country.

They were supposed to be God-fearing men; and they had an undoubtedly pious commander. This Dutch Colonel, one Saturday in May, waited upon the Rev. Mr. Gibbons (a curate who had in his sole charge the religious welfare of the place), and asked him for the use of the Church at eight o'clock on the Sunday morning, that his men might have the benefit of attending Divine Service, conducted by their own chaplains. The service, the Colonel said, would be over long before the hour for the regular Church of England one to begin.

**DUTCH
SERVICE IN
GRAVESEND
CHURCH.**

Worthy Mr. Gibbons asked if, on the march from Scotland, English clergymen had granted the use of their churches for Dutch services on the Sundays on which the soldiers had halted. He was assured that such had been everywhere the case. The curate no longer hesitated. The Dutch were the king's faithful Christian allies, and they should have the church for the

good purpose desired,—the more particularly as the churchwardens sanctioned the whole proceeding.

The Dutch soldiers marched to the old edifice accordingly; joined in the prayers with soldierly devotion; sat covered during the sermon; and marched back to their parade ground, to the admiration of nearly all who saw them. The whole affair was the talk of the town; and the ‘High-fliers’ were furious.

Furious too was the Bishop of Rochester. Shortly after the event, Atterbury had to officiate at a confirmation at Gravesend. On the moment of his arrival in the church, he sent for the curate, and demanded how he had dared to grant the use of the church for the Dutch service, and why he had not first sent to HIM? ‘My lord,’ said the curate, ‘Christian charity compelled me; the churchwardens sanctioned it, and the time, too short to allow for deliberation, did not leave me the opportunity of applying to your lordship.’

Atterbury answered in a high tone and acted with a high hand. He announced that he himself would preach, and he prohibited the curate from even reading prayers. The prelate’s sermon so exalted his wrath, that, at the conclusion, he was not satisfied with this suspension of Mr. Gibbons from duty, but Atterbury turned the poor clergyman out of his cure! The bishop, however, was made to feel that he had gone too far. The record of suspension was erased; the dismissal of Mr. Gibbons from his cure was followed by his restoration, and it is agreeable to read that, on the great Thanksgiving Day, he preached in his old church ‘an Excellent, Loyal, and Honest Sermon.’

AIDS TO
ESCAPE.

In London itself, loving hearts and planning heads, outside Newgate, were doing all that sympathy and cunning could effect, for the relief of those who were inside. Women lingered about the walls, and men lounged near, ready to obey any call for the deliverance of the remaining captives. As this seemed more and more hopeless, an attempt was made on the virtue of a sentinel. A lady offered him 30*l.* in hand, and a bill (a very questionable bill) for 500*l.* more, the former for present aid in setting the prisoners free; the latter to be cashed when they were beyond recapture. The sentinel’s integrity could not be overcome. He went and swore to the whole story, before the Lord Mayor. That official put the governor and subordinates on

the watch. The guard was increased. An unceasing vigilance was enjoined; and the Jacobite prisoners were looked upon as men doomed to the scaffold, or to some fate as bad, if not worse. Mackintosh, nevertheless, appeared to be perfectly at his ease; and the equanimity of the old brigadier gave hope and courage to such other 'rebels' as needed them.

In the first days of May, the public had promise of fresh excitement. On the 3rd a Committee of Council examined Mr. Harvey, of Combe. Finding him recovered from the stab he had inflicted on himself, they sent him from the custody of a messenger to Newgate. This the public heard. On the following day, they saw Basil Hamilton, a son of Lord Nairn, and the Honourable Mr. Howard publicly carried, at mid-day, from the Tower to the same prison. The day's spectacle was followed by another just before twilight. Crowds witnessed the brief march of ten pinioned prisoners, from the Fleet to Newgate also. The expectation of their trials following close upon this change in no wise affected the spirits of the Jacobite captives.

**SHIFTING OF
PRISONERS.**

Their arrival within the walls of the latter, ill-kept gaol, was welcomed in the usual way. Anyone detained there could eat or drink whatever he could pay for. Gold not being wanting, dainties graced the board, wine flowed, punch was sent round, and the banquet was not confined to a single day. At that period, Newgate chaplains drank with the prisoners and gallantly saw their female visitors to the outer gate. The practical example of such reverend gentlemen was cheerfully followed by guardians whose vigilance relaxed under the strength of good liquor. The prisoners were now allowed indulgences beyond what was usual. They might cool themselves after their drink, by walking and talking, singing and planning, in the court-yard, till within an hour of midnight. Evil came of it. On the night of the 4th, the feast being over, nearly five dozen of the prisoners were walking about the press-yard. Suddenly, the whole body of them made an 'ugly rush' at the keeper with the keys. He was knocked down, the doors were opened, and the prisoners swept forth to freedom. All, however, did not succeed in gaining liberty. As the attempt was being made, soldiers and turnkeys were alarmed. The fugitives were then driven in different directions. Brigadier Mackintosh, his son, and seven others overcame all opposition. They reached the street, and they were so well befriended, or were so lucky, as to

**BREAKING
OUT OF
NEWGATE.**

disappear at once, and to evade all pursuit. They fled in various directions. Most of them knew where safety lay, others trusted to chance. About fifteen more got also through the gates into the street, but seven of them were overtaken and brought back. Thirty others took a wrong turning, into the keeper's house, which was immediately entered by the soldiers who drove the whole of them into a parlour, where the Jacobites attempted a desperate defence. The soldiers simply fired into the flurried group. The smell of the powder was stronger than all other argument. They yielded, were carried within the gaol, and with the other recaptured fugitives, were not only heavily ironed, and thrust into loathsome holes, but were treated with exceptional brutality. This treatment was resorted to by the guardians to compensate for their own carelessness, and to manifest their good will for the Government.

There was a very prevalent idea that only the richest men had escaped. Seven of the fifteen who got into the street, but who were not so lucky as to disappear from pursuit as quickly as Mackintosh and his son, took a wrong turning into Warwick Court, which had no thoroughfare. As they were returning, all bewildered, yet eager and furious, they were met by an armed force, were driven into a corner, and there bound tightly and escorted back to dark dungeons, heavy fetters, and a certainty of the halter.

Mackintosh took his own method of enlargement so coolly as to lead to the conviction that if he was helped from without, he was unobstructed from within. Four of his companions in flight turned down Newgate Street and were soon lost in Cheapside. The brigadier and two others turned in an opposite direction. They 'went softly and boldly,' so contemporary prints record, 'through the Gates of Newgate, where the Watch and Guards were set, and passed without any examination.' It is added that this occurred because the 'Constables were not come to the Watch.' The Dogberrys were the questioners. The military guard took into their keeping such suspicious persons as Dogberry and Verges consigned to their ward.

Who had got clear off was hardly known till the Lord Mayor and Aldermen had come down, affrighted, to the gaol, and called over the names. No answer of 'here' came from Brigadier William Mackintosh, from his son, nor from his brother, John Mackintosh; nor from Robert Hepburn, Charles Wogan, William Dalmahoy, Alexander

Dalmahoy, John Turner, and James Talbot. There were some others who were of minor importance, and the deputy keeper (Pitt being a prisoner, under suspicion of favouring the escape of Forster) took the first step towards repairing a serious fault, by offering money for the recapture of the brigadier especially, whose escape, it was thought, was the purchased consequence of money cautiously invested. The brigadier, or ‘William Mackintosh, commonly called Brigadier Mackintosh,’ was so well described in the placards set up, in, and about London by the chief turnkey of Newgate, that we seem to see the man clearly before us:—‘A tall, raw-boned man, about 60 Years of age, fair Complexioned, Beetle-browed, Grey Eyed, speaks broad Scotch.’ For his recapture the sum of 200*l.* was offered by Bodenham Rowse, the turnkey.

Old Mackintosh and his son safely reached the Thames, where a boat received them, and took them on board a vessel, from which they were landed on the French coast. The brigadier’s brother lost his way, and after some time, was retaken. The Jacobite bards expressed their feelings in the words,—

DOMICILIARY
VISITS.

—Old Mackintosh and his friends are fled,
And they’ll set the hat on another head;
And whether they are gone beyond the sea,
Or, if they abide in this country,
Tho’ the King would give ten thousand pound,
Old Mackintosh will scorn to be found.

The king, by advice of his Privy Council, proclaimed in the ‘London Gazette’ that he expected all his loving subjects to join in recapturing those audacious prisoners at large. The sum of 500*l.* was to be the guerdon of him who should deliver any one of the prisoners to the next justice of the peace,—excepting Brigadier Mackintosh. For that noble quarry the king offered 1,000*l.*

There was hot pursuit, chiefly made at hap-hazard, after the fugitives. Any gentleman heard of in private lodgings, and keeping pretty close within them, might reckon on having his apartments invaded by the eager constables. A gentleman was said to be living very quietly in rooms in St. Martin’s Lane. A group of informers and officers broke in upon him, and found him to be Mr. Thomas Harley, the brother of the Earl of Oxford.

Now, the former gentleman had been committed to the Gate House, and was not known to be at large. The keeper of the Gate House entertained such a regard for his gentleman-prisoner that he allowed him to live in private lodgings, with an understanding that he was not to break bounds, but to be within call. This understanding was further secured by the presence of a keeper, who probably passed as a servant. The gaoler justified the course he had taken on the ground that the poor gentleman was in ill-health. The authorities had nothing to say against this clemency; but Mr. Harley was ordered back into durance.

Another prisoner, the ultra-Jacobite Talbot, found a temporary asylum in a house in Drury Lane. The Whigs styled it 'a Popish House.' In a day or two he removed to a box-maker's, in a court in Windmill Street, at the top of the Haymarket. 'Talbot, with the white hand,' loved drink, as was natural in the alleged son, though illegitimate, of drunken Dick Talbot, once Earl of Tyrconnel, and Lord Lieutenant of Ireland. Talbot and the box-maker sent so frequently for considerable amounts of liquor, to a neighbouring tavern, that mine host expressed his wonder to the Hebe, who fetched it, as she said, for her master and for 'master's cousin.' The cousin had come to be a lodger, she added, but for private reasons she suspected the cousinship. This babble of this maid-of-all-work awakened the curiosity and the cupidity of her hearers. The escape of the prisoners, the king's proclamation, hopes of reward, flashed into their minds. With a couple of constables they rushed into the presence of the thirsty tipplers, and had no difficulty in discovering or in seizing poor Talbot. They carried him before a Secretary of State, with whose warrant they brought him back to Newgate. They conveyed the luckless fellow in a sort of brutal triumph. As soon as the doors of the old prison closed behind him, Talbot was loaded with double fetters, and was flung into the Condemned Hole, where he had leisure to curse his outrageous thirst. His captors went home with the complacent feeling of loyal men who had earned 500*l.* by bringing a poor devil within reach of the halter.

John Mackintosh, the brigadier's brother, was suddenly come upon at Rochester, where he had safely arrived with the intention of reaching the coast. Messengers in search of the fugitive Jacobites were often roughly treated by

**TALBOT
RECAPTURED.**

**ESCAPE OF
HEPBURN OF
KEITH.**

Jacobite sympathisers. The latter feigned loyalty to King George, and pretended to see in the messengers some of the men who had broken prison. This obstruction facilitated the escape of several fugitives. Accident helped others, of whom Hepburn of Keith was one. Hepburn's wife and family lodged near Newgate. They knew of the attempt that was to be made, and they prepared for it accordingly. Hepburn, in the rush from prison, was encountered by a turnkey, whom he overpowered, and he then gained the street. As he was an utter stranger in the locality, he did not well know what direction to take. He was afraid to ask his way lest his speech should betray him. He plunged on therefore, but not altogether at haphazard. He went on till, on that May night, he saw in a window a plated flagon, well known in his family as the Keith Tankard. It was the signal that the fugitive would find safety within. He entered without hesitation, and found himself in the arms of his wife and children.



CHAPTER XI.

(1716.)



HERE were some of the unfortunate doomed **DAVID LINDSAY.** men in Newgate who had heard 'the legend of Lindsay,' an old Jacobite captive there, and they boasted they would be as true to the cause as Davy had been. This David Lindsay had been guilty of traitorous visits to France,

but, comprehended within an amnesty, he returned to England, where, under an Act of William III.'s time, he was tried, convicted, and sentenced to die. His real offence was his refusal to betray his confederates in the interest of King James. In spite of the amnesty, David was carted to Tyburn, serving for an unusual public holiday. When his neck was in the fatal noose, the sheriff tested David's courage, by telling him he might yet save his life on condition of revealing the names of alleged traitors conspiring at St. Germain or in Scotland against Queen Anne. David, however sorely tempted, declined to save his neck on such terms. Thereupon, the sheriff ordered the cart to drive on; but even this move towards leaving Lindsay suspended did not shake his stout spirit. All this time the sheriff had a reprieve for the unnecessarily tortured fellow in his pocket. Before the cart was fairly from under Lindsay's feet, it was stopped, or he would have been murdered. The mob beheld the unusual sight of a man, brought to Tyburn to be hanged, returning, eastward ho, alive! Whether it had not been as well for him to have gone through with it while he was about it, is a nice question. In such case his suffering would have been quickly ended; whereas, he was closely confined, and nearly starved, in the most loathsome of the Newgate holes; and at the end of three or four years was condemned to perpetual banishment from the English dominions. Lindsay found means to reach Holland, where all other means failed him. He died there of hunger and exposure, but the fidelity of the poor Jacobite was remembered in Newgate; and equally unfortunate Jacobites declared they would be as true as David Lindsay.

On the day after the burst from Newgate, the trials of the Jacobite rebels, of gentle, and of lower, degree, formed a rare show for the Londoners. On the 5th of May, seven coaches, carrying prisoners and armed messengers within, and surrounded by armed guards, set out in procession from Newgate to Westminster. The streets were thronged to see them pass. Sympathisers and opponents in the crowd got up fights in support of their respective opinions. The former cheered lustily. The populace were at the very height of their enjoyment, when the procession was suddenly stopped. It then turned and began to retrace its steps; finally, it became known that the judges at Westminster, flurried at the escape of so many prisoners the night before, had postponed arraignments and trials till the 7th, and had sent messengers with orders for the return of the dismal array to the place from whence it had come.

On Monday the 7th were to have been arraigned at the Exchequer Bar, at Westminster, the Brigadier Mackintosh, Richard Gascogne, Henry Oxburgh, Alexander Menzies, and John Robertson. The brigadier having otherwise disposed of himself, Gascogne, said to be six feet eight in height, was put to the bar. Gascogne pleaded for more time, 'very modestly,' in order to find an important witness. This was allowed, but the chief judge expressed an opinion that applications for putting off trials were often made with a view of escaping altogether, if possible; and that the gaolers had better look more sharply after their prisoners. Fourteen other prisoners were arraigned;^[6] they pleaded 'Not Guilty,' and Henry Oxburgh was subsequently put upon trial for his life.

**TRIALS OF
REBEL
OFFICERS.**

Short work was made with some of the accused Jacobites, or these made short work with the judges. Charles Radcliffe, for instance, when brought up for trial, declined to plead, and was returned *Guilty*. Later, the streets were crowded to see the procession of half a dozen coaches, containing Mr. Radcliffe and eleven others, to Westminster, where the convicted dozen were condemned to death.

The trials bore a grim similitude to each other. That of Colonel Oxburgh was as grim as any that followed. King's Counsel denounced rebellion, in general. King's evidence, like knave Patten and his fellow knave, Quarter-Master Calderwood, denounced this rebel, in particular. They swore to his presence and great

**COLONEL
OXBURGH.**

activity on the rebel side, to which both rascals had belonged, at Preston. There was no gainsaying it. Oxburgh's counsel took exception to his name which, falsely spelt in the indictment as Oxborough, rendered it invalid. This catching at a straw was of no avail. They then protested that he was never in arms. He wore a sword? Yes, every gentleman wore a sword! What then? Besides he had surrendered upon hopes of mercy. These and other throwings out of matters of little use to a drowning man, could not rescue their gentleman-like client. The judge was brief. The jury were briefer. Speech and reflection were quickly over. Oxburgh was found *Guilty*, and the judge pronounced the disgusting sentence, hanging, disembowelling, and quartering, without sparing a word of it. Colonel Oxburgh stood calm; he was a little pale, but he turned from the jury with the air of a gentleman, as the gaoler beckoned him away, to his approaching fate.

A few days after, on Monday, the 14th of May, Colonel Oxburgh was executed at Tyburn. From the time he was sentenced till he died, the gallant soldier behaved with unostentatious bravery. 'To give the Colonel his Due,' says the 'Mercurius Politicus,' against which no charge of sympathy will lie, 'his Behaviour was very composed, and though decently Bold, yet very Serious and Religious in his Way. It is reported,' adds 'Mercurius,' 'that he fasted the day before his execution, and that all the prisoners who were Romans did the like for him; and then sent him word, they would come and visit him, if he pleased; but he thanked them, and declined it, desiring to be alone in his preparations. He was drawn in a sledge, with a book in his hand, on which he fixed his eyes, without once looking up till he came to the place of execution. When he was in the Cart, he applied himself immediately to his private devotions; and afterwards delivered the following paper to the Sheriff.'

THE COLONEL
AT TYBURN.

The paper here alluded to abounded in sentiments of charity. The writer died 'a member of the Holy Roman Catholic Church,' in charity with all men, including those who had brought him to this death, for whom he desired the blessings that he himself had missed. Oxburgh solemnly declared that his allegiance to James III. was not paid to that prince as a Catholic, but as his legitimate sovereign. It would have been rendered as unreservedly had James been a Protestant. He then expressed, without bitterness, his disappointment that England should be, as he believed, 'the

only country where prisoners at discretion are not understood to have their lives saved.' Finally, he prayed for unity and happiness among Englishmen, whose only objects, he trusted, would soon be, the glory of God and the true interests of the nation.

Noble as the sentiments of this last address of a dying man must be allowed to be, it gave great offence to the Whigs and Hanoverians. An *ultra* among both those classes declared that 'Lord Derwentwater's speech and Colonel Oxburgh's paper, both certainly came out of the same mint; for they were sent to the printer's, both written in the same hand. So that we doubt not but that there is a common speech-maker for the party, and much good may do him with his office!' In examining the two addresses, the ultra Whig says he is doing no wrong to the English peer or to the brave soldier, but that he is only dealing with a 'cunning Jesuit.' The examination of the document extends to more than five columns of a newspaper, and is in the fierce ultra-Protestant spirit of the times.

On the evening of this execution, a man was seen, with a small bundle under his arm, ascending a ladder, to the top of Temple Bar. Arrived there he took the white cloth from off that which he had carried in it, and then the men and boys gathered below saw that it was a human head. The man thrust it on to an upright iron rod, then descended to the cart which awaited him, and drove away towards Newgate. Next day, idlers were peering at the head through a glass, and pious 'Romans' secretly crossed themselves and prayed that Heaven would give rest to the soul of the colonel. 'And may God damn those who put his head up yonder!' cried a too zealous Jacobite, who got a month in the Compter for his outspokenness.

A HEAD ON
TEMPLE BAR.

There was not a coffee-house in which Colonel Oxburgh's paper was not discussed. In a Tory house in St. Paul's Churchyard, one guest read the document aloud to the company, who listened with profound attention. When the reader came to the part in which the colonel said, that his life should have been granted to him as he surrendered at discretion, an old Tory remarked, 'Had it happened in the good Queen's time not a soul of 'em would have suffered!' He then added with a sigh, 'But God preserve the Church!' A taciturn Whig guest who happened to be in the room, reported this incident to the papers, as illustrating the disloyal spirit of the 'Jacks.'

The trials went on rapidly at the Marshalsea and in Westminster Hall. The day after Oxburgh was condemned, James Home, said to be a brother, but really a son of Earl Home, was tried with Mr. Farquharson. The evidence differed but little, yet the jury seeing that it might lead them to infer that Farquharson was more certainly forced into the rebel ranks than Home, found the latter guilty, and acquitted Farquharson. This Southwark jury accordingly began to be suspected of Jacobite proclivities by the Whigs, and their ripeness of judgment to be doubted by 'my lords.' In Westminster Hall, the jury went more in accordance with what were held to be loyal principles. Mr. Menzies was tried there on May 11th. It was shown that he was with the rebels, from Perth to Preston; but no overt act could be proved against him. Menzies, undoubtedly, tried to escape from the Jacobites who held him, and he was so holden probably, because he had openly spoken in favour of King George. He certainly never was in action. It was urged against him that he had not persisted in making attempts to escape; but, it was answered, that those who failed in such attempts were cruelly treated. The law was pressed more cruelly against him now. The judges ruled that his appearance among rebels, although he exercised no command, nor shared in any hostilities, was high treason. The obsequious jury found accordingly, and this poor gentleman was sentenced to death.

Jacobite construction of law and judicial leaning had its turn at the Marshalsea on the 12th. Two Douglasses, with Maclean, Scrimshire, and Skeen, retracted the plea of 'not guilty,' which they had made when they were arraigned, and now pleaded 'guilty,' throwing themselves on the king's mercy. It was beginning to be understood that such acknowledgment would save the lives of the less prominent Jacobites, though it might not win their liberty. Two others, Ferguson and Innes, stood stoutly to the plea which they had made on the day of their arraignment. They asserted, and their assertion was sustained by very good evidence, that their presence with the rebels was involuntary; their action, the result of force applied against them. The jury acquitted both gentlemen. Then arose a shout and a joyous disorder in court. Numerous Jacobite gentlemen eagerly pressed forward, some to shake hands with, others to embrace, the so-called unwilling friends of James III. The bench was naturally indignant with audience and jury. Two of the noisiest offenders were seized and brought up to suffer for their offences. One, a

MORE TRIALS.

**JACOBITE
JURYMEN.**

Lambeth tallow-chandler (waiting, it was said, on a summons to be a jurymen), was sentenced to a year's imprisonment and a fine of 100*l*. The second offender, a looking-glass maker's son, on London Bridge, was condemned to the same term of imprisonment and half the amount of fine.

On May 15th, two important trials attracted universal interest. The accused persons were gentlemen of great estate in Lancashire, namely, 'Towneley of Towneley,' and 'Tildesley of the Lodge.' The evidence was very damaging against both. On the king's side it was proved that Towneley headed the troops called by his name, in a red waistcoat and with a blunderbuss. His butler, coachman, and postillions rode in that troop. He joined at Preston, of his own free will, and might have left it whenever he chose up to the time of its being invested. The badness of the cause of both prisoners was shown by an attempt made to bribe the king's witnesses to get out of the way. There was also a Tildesley troop, and although Mr. Tildesley was never seen at the head of it, he was seen with his sword drawn, and it was certain that he dined in Preston with rebel officers, and drank rebel toasts.

For Towneley, it was alleged that he first fled from his own house to avoid the militia, and that in his flight he was taken by rebels and kept under constraint in Preston, whither he had sent horses and servants for safety. This statement was treated with scorn by the king's counsel, especially the idea of his flying *from* the king's forces to find refuge with traitors. The answer to this—that a Romanist under suspicion was exposed to loss of property and freedom—was but a poor one. It was more successfully established that the man in the red waistcoat who rode at the head of the Towneley troop, blunderbuss in hand, was one Leonard. It was reasonably suggested that the rebel leaders called troops by the names of wealthy landowners, to give dignity to those companies; and that, in such cases, the consent of the gentlemen was not asked. For Tildesley, Sir George Warrender swore that he was an inoffensive person, not given to speak against King George. Tildesley's housekeeper deposed that he was carried away from his residence by rebel forces, against his inclination; and the owner of the house in Preston where Tildesley lodged, testified that he had expressed dissatisfaction at the manner of his coming there. Further, that female attire had been prepared, and a horse was about to be hired, in order to enable him to escape. This statement elicited an

**TOWNELEY
AND
TILDESLEY.**

THEIR TRIALS.

observation from the opposite side, to the effect that, doubtless, when the fatal end of the affair at Preston was imminent, very many of the rebels would have been glad to have had disguises and horses to facilitate their escape. The prisoners were tried separately. The judge, in both cases, summed up vigorously for a conviction. The jury, after half an hour's consideration, found Towneley 'not guilty.' They hardly considered at all in Tildesley's case, but acquitted him at once. The Jacobites in court shouted! The judge could hardly contain himself for indignation. Mr. Baron Montague protested that all good subjects would be lost in amazement at finding that rebels, who ought to be convicted, could actually find favour. The angry baron pointed out, not without force, that five men who had followed Towneley and Tildesley into making war against the king, had been hanged for it in the country, and yet the two who had drawn them into it, were allowed to escape! Such a jury was no longer to be trusted with the lives of alleged traitors, and that judicial body was ignominiously discharged.

Friends and enemies were alike amazed at these verdicts. Joy possessed the one, rage affected the others. The two Jacobite gentlemen left the court with their friends, and went through Southwark in a sort of delirious ecstasy. On the following day, says 'Mercurius,' 'Mr. Towneley gave a handsome Treat among his Friends, as a Testimony of his Thankfulness for his Deliverance, and sent a good sum of money to be distributed among the poor Men in Prison for Debt, in the Marshalsea, where he had been confined.'

**THEIR
ACQUITTAL.**

Towneley very wisely considered that, acquitted as he was, he might not be as safe in England as abroad. Consequently, he rode out of London one morning in June, after taking leave of the friends who accompanied him to the outskirts. He made quietly for France, and had got undisturbed into Sussex, when he was arrested and brought before a magistrate. As Towneley showed he had a right to ride in whatever direction he listed, and the country Minors could not deny it, the great and thrice lucky Lancashire Jacobite continued his ride, unmolested, towards the coast.

The Towneleys continued to ignore King George. In the fourth Report of the 'Historical Manuscripts Commission,' published in 1874, record is made of a MS., now among

**THE
CHAPLAIN AT**

the papers of Colonel Towneley of Towneley Hall, Burnley, endorsed, 'Baptisms and Anniversaries'—the memorandum book of the priest who acted as family chaplain. The most interesting entries are the 'intentions' of the masses which the priest celebrated, from May 1706, to the 31st December, 1722. Among these, frequent mention is made of masses celebrated 'pro Rege nostro Jacobo!' King James was honoured in similar manner by many a Jacobite chaplain.

The theory that if a man was seen among rebels (although he might be there only by force laid upon him, and did not avail himself of every opportunity to escape, but by his presence abetted and comforted them)—he was guilty of high treason, prevailed with the jury assembled at Westminster on the 11th. They had to try separately, Mr. Hall, of Otterburn, a county magistrate, and Robert Talbot who served as captain of a troop of four-and-twenty horse, the whole way from Kelso to Preston. Hall proved clearly that as he was riding home from Alnwick, he and his man were surrounded and carried off by mounted rebels. The 'man' himself deposed that, after they were carried to the rebel head-quarters, his master rode about at pleasure. Patten swore that Hall of Otterburn, moved about as freely as that ordained knave did himself. In Robert Talbot's case, two of his own troopers swore away the life of their old captain by their testimony, which saved their own necks. They swore, however, to what was true. In Robert Talbot's case there was no doubt. He had been a dangerously active Jacobite. Poor Hall had been merely passive, and he protested that he was no Jacobite at all, but a loyal supporter of the king on the throne. Both were found guilty. Talbot did not pretend to have anything to say why sentence of death should not be passed on him. 'He had drawn the wine,' he remarked, 'and now he must drink it.' Justice Hall pleaded that he was in a strange place, friendless, and tried by a new law which he did not understand. If time were given him, he could prove that his principles were sound, and that he had never been disaffected to the Government. Time was refused. Justice Hall and Captain Robert Talbot were condemned to be hanged.

On the 17th Richard Gascogne was put to the bar. He had travelled over England, plotting, planning, collecting material and storing it away, with a view of dethroning King George. Gascogne's spirit, astuteness, courage, restless activity, and

unselfishness, made him almost the head and front of the rebellion. The king's counsel curiously remarked that 'there were some evidences (witnesses) of his, under their own hands, as would put the matter out of all doubt, but that there were some reasons which rendered it not so proper yet to divulge those evidences, but which would, however, be produced when time served.'

Patten then appeared to further merit the mercy which had been extended to him, by aiding in the taking away of another man's life. His testimony was of the usual quality: he had seen Gascogne busily and hotly engaged, a fierce Jacobite partisan. Patten's fellow knave, Calderwood, also appeared. When the ex-quartermaster stepped into the box, Dick Gascogne probably felt a ray of hope beginning to beam upon him; for Calderwood had called upon his old comrade in Newgate a day or two before, and told him that he, Calderwood, could depose nothing of importance against him. The prisoner was struck with amazement, therefore, when the pardoned Jacobite now swore that, at Preston, Gascogne sat as a member of the Council of War. The latter protested down to his dying hour that he did not even know the house in which the council assembled.

Great interest was given to this trial by the appearance in court of the Duchess of Ormond and Lady Emily Butler, the duke's sister. There was a great gathering outside to see the wife of the 'once illustrious' Ormond pass into Westminster Hall to give evidence in behalf of the Jacobite prisoner. Chairs were placed for them in court. They were both sworn, and their testimony was given in order to weaken that of a gentleman named Wye, who seems to have been a secret agent in the pay of the Government. Wye deposed that he once saw the prisoner in a room at the Duchess of Ormond's when the duchess was present, and also 'a gentleman dressed very fine, in laced scarlet clothes,' whom he afterwards knew as Mr. Charles Cotton,—one of the criminated Jacobites. Wye must have been in the duchess's closet in the character of a Jacobite himself. He deposed that on Gascogne being introduced, he stated that he had just come from France, that he had seen the duke six days previously at Bayonne, in good health, and that King James and his grace would soon be in England. The duchess called for a map to note the locality; and then asked Gascogne if the report was true that there had been found on Sir William Wyndham 'letters of dangerous consequences?'

**THE DUCHESS
OF ORMOND.**

Gascogne did not know, but he said that, if Sir William carried such letters, he deserved to be whipped like a school-boy; and that if he were really in custody, the whole design was ruined, and that above a hundred gentlemen would be compromised, as they waited for his signal to bring forward eight or nine thousand men, of whom he was to be the leader.

Gascogne vehemently denied what Wye had sworn to, and ‘to which he stuck close in general with great assurance.’ The duchess supported Gascogne with calm dignity. The hostile counsel could neither break down her self-possession, nor get the better of her woman’s wit. Sir William’s name, she said, was doubtless mentioned when Mr. Gascogne and the other gentleman were in her closet. Bayonne? ‘Well, that place might also have been referred to.’ As to the raising of an insurrectionary force, and as to other particulars, she could remember nothing of them,—nay, on being hard-pressed, her grace affirmed that she ‘could almost be positive there were no such things said.’ Lady Emily Butler deposed, generally, that what the duchess had said, was true, and that her own knowledge went no further. ‘It seemed possible,’ says ‘Mercurius,’ ‘that some affairs of a very great consequence might at that time employ her grace’s thoughts, so that she might not exactly remember or observe all that passed.’

GASCOGNE’S
DEFENCE.

Gascogne, against whom a warrant had been issued, on Wye’s information, as long ago as the 2nd of November, tried to damage that worthy’s reputation. Wye rejoined that he could have deposed to many particulars that would have damaged Gascogne’s reputation, but ‘he chose to omit them because he would not aggravate things against him.’ Things, indeed, were grave enough. Gascogne struggled against them as long as he could. In vain he endeavoured to show that he had gone from Bath northward without any intention of joining the Jacobite army, and that he was ultimately arrested by some of its soldiers and carried to head-quarters. Once there, however, he could not deny that he was well received, well entertained, and actively employed by General Forster. The usual result followed. Found guilty, he had to listen to all the horrible details of the sentence of death in cases of high treason. He suffered with becoming dignity. In a paper, handed to the sheriff, he gently complained of—and he heartily forgave—the witnesses who had brought him to death by false testimony. In modest terms he expressed an uncommon ardour or zeal in his

duty to his 'most injured and royal sovereign, King James III.' Gascogne added, 'My loyalty descended to me from my ancestors, my father and grandfather having had the honour to be sacrificed in doing their duties to their kings, Charles I. and James II.' Gascogne gloried in being a Roman Catholic. The paper ended by an expression of thankfulness to God 'for enabling me to resist the many temptations I have had frequently in relation to a Gentleman, upon whose account, I presume, they have taken my life, because I would not concur to take *his* life.'

The 'Weekly Journal,' referring to this paper, charitably remarked that Roman Catholics who died on the gallows generally died with a lie in their mouths! Living Jacobites and Tories, the public were informed, lied as impudently as their dying partisans. It was a Tory lie to say that Gascogne might have saved his life, and have had 1,000*l.* and a commission, by telling all he knew and betraying his cause. The 'Weekly' did not think such information was wanting. 'We know enough,' says the good Christian, 'to hang him and others of his stamp.'

CHRISTIAN
FEELING.

At the Smyrna coffee-house, St. James's, Mr. Cole, having read the report of Gascogne's trial, turned to a friend, as he laid it down, and remarked on the Duchess of Ormond's evidence, that it was well for her this had happened under so mild a Government as that in England. In any other country, he added, her grace would have been prosecuted as being, on her own testimony, privy to a design against the Crown.

FRACAS IN A
COFFEE-
HOUSE.

Mr. Cole was well known to all present as having been English Envoy at Venice. An Irish Jacobite looked him in the face, while he made a general remark to the effect that whoever dared hint anything against the Duke or Duchess of Ormond was a rascal. Mr. Cole remained silent, as became a man who loved peace, and saw himself in near collision with a hot-headed individual who was determined to break it. The Irish gentleman repeated the above remark with such emphasis that Mr. Cole, compelled to notice it, quietly observed that he had only stated a point of law grounded upon matter of fact. Whereupon, to use the words of the 'Flying Post,' 'the blustering Teague grew more insolent at this generous explanation, told him he was a rascal, and offered to strike him! But Mr. Cole repelled the blow, kicked him till he drew his sword, and then wounded and disarmed him!'

At this time the Rev. Mr. Patten served the Whig cause in various ways; among others, by preaching charity sermons in City churches. For a season he was an occasional fashionable preacher. Whigs flocked to look at, if not listen to, the villain. It is wonderful that the London Jacobites did not pull him out of the pulpit, and break every bone in his body! This fellow is described as having preached, on one Sunday in July, in the Church of St. Mildred, Broad Street, 'an excellent sermon' on the text Gal. v. 1, 'Stand fast, therefore, in the liberty wherewith Christ hath made us free, and be not entangled again with the yoke of bondage.'

When some of the accused persons were now to be seen, much at their ease, in public places, Whigs wondered and Jacobites frowned. The latter asked what service Lord Scarsdale, Lord Dupplin, Captain Halstead, and others, had rendered to the Government, which had admitted them to bail, and thus allowed them to figure in the parks? In Newgate there were both joy and sorrow. News reached the prisoners that the old Brigadier Mackintosh had got safely to France. Extra drink was consumed in honour of the occasion. Some sorrow was felt at the demise of Charles Radcliffe's servant, a good fellow whom the sentence of death could not rob of his cheerfulness. Spotted Fever killed him and others. Extra drink was again taken in order to defy Spotted Fever. When intelligence came down that of a batch of prisoners, capitally convicted, only one or two would be executed, the king's clemency was honoured in good liquor. Several rebels, as they walked up and down the yard, discussed the expediency of pleading guilty, and throwing themselves on the king's mercy. Such among them as resolved to take this course, ordered a bowl of punch, whereby to fortify them in their resolution.

The trial of another great Lancashire Squire, Mr. Dalton, was followed with immense interest. There were, as usual, numerous groups of sympathising ladies. There was no new feature in the case. Squire Dalton pleaded that he was forced into the rebel army, and his friends swore roundly, to sustain the plea. The clergyman of the parish deposed to Dalton's loyalty, inasmuch as the Squire had once uttered some scruples against the Romish religion. 'Why,' bawled Chief Justice Parker, 'did you not improve the occasion, and confirm him in his tendency towards the better faith?' 'I did make an Essay

JOY AND
SORROW IN
NEWGATE.

CHIEF
JUSTICE
PARKER.

that way,' replied the clergyman, 'but Mr. Dalton had by that time recovered himself, and nothing could be done with him.' Found guilty, he threw himself on the king's mercy. Whereupon, Parker assailed the unfortunate gentleman with reproaches, The judge accused the prisoner of having 'stuck out' to the last, and of having given them all the trouble he possibly could. Mercy was for those who acknowledged guilt, not for those who denied being guilty, and who were afterwards proved to be so!

This hint moved the next gentleman put to the bar, William Tunstal. He was anxious to save his lordship all trouble; and therefore he pleaded *guilty*, and asked for mercy in return. Parker made some joke upon Tunstal's king running away, a disgrace to which King George would never stoop; he then left Tunstal some ray of hope that his life might be saved.

The hope that saving the time of the court by pleading guilty might perhaps redeem life, if it failed to secure liberty, not only induced many prisoners to make that plea, but others to withdraw the plea they had previously put in, of not guilty. James Swinburne had pleaded not guilty, but he and his friends took a new course. They had so manipulated the king's evidence, that the witnesses now stoutly swore that they believed Swinburne was mad. The Judges, at all events, were in possession of *their* senses. They knew nothing about 'exacerbation of insanity,' and cared as little for 'the mad doctor' who was said to have had the prisoner under his care. They wisely remarked that if a criminal was proved to be mad, his life might be saved, 'but then it must be such a madness as showed a total deprivation of reason, which appeared not the case with the prisoner.' Swinburne was found guilty, and the judge sentenced him to death. His brother, Edward Swinburne, was put to the bar after him. Patten was the chief evidence, and that rascal coolly deposed:—'I saw Mr. Edward Swinburne at Wooler, where I myself joined the rebels. I brought in eighteen men with me; and Mr. Edward said, I was welcome with my troop, and need not fear being ill received.' Patten added other evidence equally condemnatory of himself, on which, not he, but Edward Swinburne was convicted, and condemned to be hanged! Mr. Richard Butler was sentenced to the gallows, on similar testimony!

Meanwhile, they were sent back to various prisons, but most of them to Newgate.

THE
SWINBURNES.

Scott (in 'Rob Roy') has reflected the interior of Newgate at this time. Sir Hildebrand Osbaldiston with his wounded son John, and the memory of his other son, Wilfrid, slain at Preston, had an original in that gloomy prison. The dying John, bequeathing, with his last breath, his cast of hawks, at the Hall, and his black spaniel bitch called Lucy, was not without a prototype in that dungeon. So it was with the religious visit of the chaplain of the Sardinian Ambassador, permission for which was got with difficulty;—and the dying, less of fear of the future, than of utter breaking down of mind, heart, and body;—and the suspicion on the part of the Jacobites as to the intentions that lay under the proffered kindness of a Whig. The following picture too appears to be a faithful reflex of the original:—

**SCOTT'S
NEWGATE.**

'The arm of the law was gradually abridging the numbers of those whom I endeavoured to serve, and the hearts of the survivors became gradually more contracted towards all whom they conceived to be concerned with the existing government. As they were led gradually and by detachments to execution, those who survived lost interest in mankind, and the desire of communicating with them. I shall long remember what one of them, Ned Shafton by name, replied to my anxious enquiry whether there was any indulgence I could procure him. "Mr. Frank Osbaldiston, I must suppose you mean me kindly, and therefore I thank you. But, by G—, men cannot be fattened like poultry, when they see their neighbours carried off, day by day, to the place of execution, and know that their own necks are to be twisted round in their turn."'

Several contrived that their turn should not arrive, and, from day to day, slipped out of Newgate. For the use of persons lucky enough to get free, a great trade was driven in forged 'passes,' which sometimes brought the forgers to Tyburn. On the other hand, Lord Dupplin, the Marquis of Huntly, Sir John Erskine, and others, were released, and the 'Jacks' recognised them in the streets, with cheers. At the same time, Lord Duffus was caught and brought in, under uncomplimentary salute from the Whig mobile. The Tory mobs were ferocious. A serving-girl had informed the Government of the whereabouts of a so-called Jacobite 'Colonel,' who was wanted. Some Jacks attacked the house in which the girl lived, seized her, and flung her to the roaring mob, without. She would there have had as much mercy as a fox from a pack of

**MOB
FEROCITY.**

hounds, had she not been ‘risqu’d by some brave loyal gentlemen,’ and some constables who are described as being ‘very affectionate towards the government.’

[6] Charles Radcliffe, brother to Lord Derwentwater, Charles and Peregrine Widdrington, brothers of Lord Widdrington, John Thornton, Robert Shaw, Thomas Errington, Phil. Hodgson, Donald Robertson, James and Edward Swinburne, Angus and William Mackintosh, James Macqueen, and Alexander Macrudder.





CHAPTER XII.

(1716.)



THE loyal Whig gentlemen had celebrated their king's birthday on May 28th. The Tories were all the more alert on the following morning to celebrate the anniversary of King Charles's Restoration, as they supposed their adversaries would be too seedy, after their riot and revel, to molest them.

The Jacobites,—emphatically spoken of by the Whig papers as 'rascals,'—came in from all the parishes, and also from the suburban country. They appeared in their best, with oaken boughs in their hats, the women wearing sprigs in their bosoms, and as the leaves were mostly covered with gold or silver leaf, the same was held (by the Whigs) to be a proof of malice prepense.

In great numbers, the Jacobites paraded the streets, or stood about in defiant groups, till church-time pealed out, and then the most of them filed off to various churches and chapels, where they knew sermons were prepared to their liking. The chief of the 'High Church Faction' went to St. Andrew's, Holborn. Sacheverel, it is to be presumed, had returned from an excursion he was said to have taken with two ale-house men the day before, in order to avoid noticing the king's birthday. The professed Jacobites, decked with all the insignia worn by the High-flyers, mostly favoured the chapel, in Scrope's Court, nearly opposite. This place was especially crowded, and especial mention is made of the presence of 'several men in a genteel habit, booted and spurred.' After devotion, dinner; at and after dinner, drinking; and then a general mustering and marching in the streets, with, in addition to oaken boughs in their hats, oaken towels, or clubs in their hands. They were—so say the Whig authors—'animated as they went along by Jacobite Trulls, and several Scaramouches, of whom one might be named not far from a Jacobite Conventicle, only,' adds the Whig insinuator, with droll reasoning, 'he was so much elevated with the spirit of Malt that he was "Non compos."' Of course, they shouted the usual Slogan; not only complimenting High

**FESTIVE
FIGHTING.**

Church and Ormond, but Sacheverel and Queen Anne, the latter in the words ‘the Doctor and the Queen!’ The Whigs describe them as ‘crews of tatterdemallions, blackguardly boys, wheelbarrow men and ballad-singers;’ but these could not be the same people who, in the morning, had crowded the churches. The genteel men in cloaks, boots and spurs, were not to be seen in the streets where now hell seemed to have broken loose. The ‘street’ Jacks knocked down all passengers who did not sympathise with them by voice or by carrying Jacobite tokens. They were furious in denouncing Presbyterians, and they were proceeding to carry on war against certain chapels, clubs, and mug-houses, when the ‘loyal societies’ from these houses, and the gallant Hanoverians from the *Roebuck* descended to the highway, met their foes in fair fight, and after an hour of it, scattered all save those who lay senseless, or who were in the hands of the police. If there had been any thought of rescuing the Jacobite prisoners that night, or furthering the Chevalier’s pretensions by the demonstration, the realisation was prevented by this sort of fiercely civil war, in which the Whigs took the law into their own hands, and quelled a sanguinary riot by a sanguinary fight, left the field of battle to be watched by soldiers who arrived after the victory, and then went home as modest and harmless as lambs!

It was very observable that among the noisiest and most violent of the Jacobite mob or army were the ‘Charity School Boys.’ Possibly, they thought that any change must be the better for them; but moralists ventured to believe that the benefactors of schools had not founded them for the furtherance of popery and slavery, which were put down as among the objects of the rioters. The real criminals were, it was said, the masters and mistresses of the schools, who ‘poysoned’ the children with principles which would surely conduct them to Bridewell or the gallows. However, the writers take courage in the conviction that the Pope has as little cause to sing *Te Deum*, for the success of the mobs of London, as for that of his armed rebels who appeared at Dunblane and Preston.

The presence of the Charity Boys as active fighters and rioters with the Jacobite mobs, was accounted for naturally enough. They had been told that the Institute from which they derived so much advantage was about to be abolished. This tale had been invented by ‘Popish Priests or Jesuits, who, going in a genteel habit to

**JACOBITE
BOYS.**

**FLOGGING
SOLDIERS.**

apple stalls, oyster women, wheelbarrow folks, and peddling ale-houses, frequented by poor people, put base, erroneous notions into the heads of the populace, purely to raise animosities and divisions among the King's subjects.'

Strong appliances were employed to repress all Tory audacity. It had been allowable, in former years, to wear oak apples, or sprigs of oak, in the hat on May 29th. Now the symbol of rejoicing for the Stuart was construed as being meant offensively to Hanover. This must have been strongly impressed upon the army, when two soldiers were whipt, in Hyde Park, almost to death, and were then turned out of the service for wearing oaken boughs in their hats on this 29th of May!

While uproar reigned in the streets on that anniversary, King George, during a part of the day, was quietly sitting in the Chapel Royal, St. James's, with a brilliant congregation, some of whom feared God, and a greater number honoured the king. The faces of all were turned to the Rt. Rev. Father in God, Benjamin (Hoadly), Lord Bishop of Bangor. All ears were ready to hear how the preacher would illustrate the occasion,—the anniversary of the Restoration. The text was 126th Psalm, v. 3—'The Lord hath done great things for us, whereof we are glad!' Nothing could well be more appropriate. How the king, however, could look the preacher in the face while Hoadly was overwhelming him with flattery is not conceivable. He perhaps smiled when the bishop described loyalty to Charles II., after the Restoration, as a thing falsely so-called. The happiest touch was where Hoadly brought Charles II. and King George together, by Heaven's decree. Providence, he intimated, had a great design in hand, when the Restoration was permitted, which was only the lesser half of that design. The divine scheme was made complete by the birth of King George on the very day before that 29th of May, 1660, on which the Restoration was accomplished. In George, the great work was to culminate, and it was now concluded. And then, the bishop eulogised the sovereign, who was perhaps incapable of comprehending a tenth part of the words which fell from Hoadly's lips, as a king resplendent by his virtues! The difference on this point between the two kings being that Charles loved handsome hussies and George fat ones. Hoadly was not only in an ecstasy at the present overwhelming happiness, but he was lost in wonder at the almost excess of felicity which England

**HOADLY IN
THE PULPIT.**

would experience in the existence of the descendants of such a virtuous king! The very contemplation of that future delight was almost too much for him. He recovered by bewailing the not delightful fact that, beaten as the Jacobites had been, they were already growing daily more audacious!

This audacity was also noticed by Addison, in the 'Freeholder.' 'It is impossible,' he wrote, 'to reflect with patience on the Folly and Ingratitude of the Men who labour to disturb the King in the midst of his Royal Cares and to misrepresent his generous Endeavours for the Good of his People.' Under a Stuart, the English people would be in helpless slavery. Under a king like George, there would be freedom—perhaps with some dissensions, but, 'a disturbed Liberty,' it had been well said, 'is better than a quiet Servitude.' Subsequently, he praised a healthy despotism, and remarked that under Augustus (the Whig poets called George 'Augustus'), Rome was happier than when she was in possession of her ancient liberty! What a prince Augustus must be, seeing that when he left Hanover, 'his whole people were in tears!' All other monarchs sought his counsel and friendship. No man retired from his presence but with admiration of his wisdom and goodness. Addison professed, therefore, to be unable to account for the fact that his royal client should still suffer under the attacks of malicious tongues and more malicious pens.

There seemed nothing but enthusiasm on the part of the people, at all events, of the Whigs, when the Prince and Princess of Wales took the young princesses on the river. The royal barge thus pleasantly freighted, and quite unguarded, was a familiar object between London and Greenwich. The Thames was often the scene of more splendid spectacles than the above. On the 5th of June, the Duke of Newcastle was the giver of one of those gay and gorgeous entertainments. His Grace was early afloat in his new barge, pulled by a dozen rowers, in new liveries. He was soon joined by the Duke of Montague, the Earl of Carnarvon, and other members of 'the quality,' in similar state. Last of all came the Prince and Princess in royal barges, scarlet and gold, flags flying, trumpets proclaiming, while cannon and human throats on the shores roared their rough welcome. As the royal barges glided into the space left for them within a half-circle of other brilliant galleys, the Haymarket orchestra, especially engaged, gave to the

FLATTERY BY
ADDISON.

ON THE
SILVER
THAMES.

royal guests a most harmonious welcome. In the simpler record of this aquatic festival we are told that ‘There was a very fine cold Treat consisting of above eighty Dishes, the three principal Barges to be served in Place,’ whatever that may mean. When twilight descended upon the scene, the guests, landing, accompanied the Duke of Newcastle to his house at the north-west corner of Lincoln’s Inn Fields, where a magnificent ball and a sumptuous supper detained them till long after the dawning of another day.

About this time, the Scottish gentleman, in lodgings in Rathbone Place, Simon Fraser, who had had public audience of the king, was received by his Majesty, in private. Fraser of Lovat thus wrote of what passed to Mr. Duncan Forbes:—

‘I can tell you, that no man ever spoke freer language to his Majesty and the Prince than I did of our two great friends, in letting him know that they did him more service, and were capable to do him more service, than all those of their rank in Scotland, and it is true. I hope what I said will be useful, and let it have what effect it will as to me, I am overjoyed to have occasion to serve the two prettiest fellows in Europe.’ Lovat spoke of King George as ‘one of the best men on earth, but strangely imposed upon by certain persons. I hope it will not be always so,’—While serving the ‘two prettiest fellows in Europe,’ Lovat did not neglect a prettier,—himself. In one of his letters to Forbes, in the Culloden papers, he says, ‘If you suffer Glengarry, Frazerdale, or Chisholm to be pardoned, I will never more carry a musquet under your command.’ Lovat’s motive is betrayed in another letter, in which he says: ‘The king has been graciously pleased to grant me, this very day, a gift of Frazerdale’s Escheat, and M. Stanhope told me I was so well in his Majesty’s spirit, that all my enemies are not able to do me harm.’ The crafty rascal is fully manifested in the following passage: ‘I spoke to the Duke and my Lord Islay about my marriage, and told them that one of my greatest motives to that design was to secure them the joint interest of the North. They are both fully for it, and the Duke is to speak of it and propose it to the King.’

**TWO PRETTY
FELLOWS.**

His Majesty, just then, thinking there was something to be grateful for, appointed the 7th of June as a Thanksgiving Day, for the glorious suppression of the late rebellion. Tory parsons tried their best not to be thankful. Sacheverel suddenly found that St. Andrew’s was out of repair,

and must be immediately shut up, but his more discreet churchwardens were afraid to support him. They maintained that, in this case, whatever they thought, the congregation at St. Andrew's must at least look thankful, by duly assembling.

This Thanksgiving Day, being a holiday, the streets were made lively by the onslaughts of contending factions. The Whigs wore orange-coloured ribbon cockades, and a bit of laurel in their hats. The Jacobites sported a scrap of rue or thyme, symbols of their sorrow and of their hopes as to what Time might bring round to them. The Jacobite women wore the same emblems, and they were foremost in the fights which invariably took place when the antagonistic mobs met on the highway. The Whig papers report the total defeat of their adversaries. 'They were thrashed, cut, and wounded to that degree,' says the facetious 'Weekly Journal,' 'that many of them will have reason to Rue the Time that ever they met the Whigs, on the 7th of June.'

**THANKSGIVING
DAY.**

While they were fighting, Sherlock, Dean of Chichester, was preaching his Thanksgiving sermon before the House of Commons, in St. Margaret's, Westminster. His text was from Psalm cxxii. 6, 'Pray for the peace of Jerusalem: they shall prosper that love thee.' The most remarkable passage in the discourse was one which quietly reasserted the Sacheverel maxim that resistance to constituted authority is unrighteous. Sherlock did not mean to tell the senators that the opposition to James II. was unrighteous. Nevertheless, he says of those who would rebel on grounds real or imaginary, 'Where did they learn that Rebellion is the proper remedy in such cases? The Church of England has no such doctrine; and if they cannot govern their own passions, yet in justice to her, they ought not to use her name in a cause which she ever has and ever will disclaim.' The dean drew no ill picture of the public feeling just before the revolution. 'Oh, that I had words to represent to the present generation the miseries which their fathers underwent; that I could describe their fears and anxieties, their restless nights and uneasy days, when every morning threatened to usher in the last day of England's liberty, when men stood mute for want of counsel, and every eye was watching with impatience for the happy gale that should save the kingdom, whose fortunes were reduced so low as to depend upon the chance of wind and weather.' After this poor compliment to Providence, Sherlock hinted at the possible

**SHERLOCK'S
SERMON.**

occurrence of another attempt of the Jacobite Prince to overthrow the established Church and Throne. Private and party selfishness facilitated such an attempt, but ‘it is as absurd,’ he said, ‘for a man, under any resentment whatever, to enter into measures destructive of his country’s peace, as it would be for him to burn the Title to his Estate, because the Tenant was behind in his rent.’ There were few of the listeners to this passage who did not feel that if the words condemned revolution against George I., they equally condemned (to Jacobite thinking, at least), that which overthrew James II.

The dean was not afraid to say a word in favour of the Nonjurors. The rashness of some of these persons had involved the whole body in obloquy. He observed:—‘The principles on which the legality of the present Establishment is maintained, are, I think, but improperly, made a part of the present quarrel which divides the nation. There are but few who have not precluded themselves on this point, those, I mean, who have had courage and plainness enough to own their sense and forego the advantages, either of birth or education, rather than give a false security to the government, which under their present persuasion they could not make good. To these, I have nothing more to say, than to wish them what I think they well deserve, a better cause.’

A large concourse of people flocked on this day to Ely House Chapel, to hear the Bishop’s Thanksgiving sermon; which was preached from the text,—‘Let them give thanks, whom the Lord hath redeemed and delivered from the hand of the enemy,’ Psalm cvii. 2. The ‘Holbourn’ congregation had to listen to a highly-spiced discourse. Indeed, the prevailing taste of all the discourses was a sharp attack on Popery, its ends, and its cruelty in establishing and maintaining them. The Bishop, Fleetwood, stated that, had the rebellion been successful, London would have seen the slaughter of the whole of the royal family, in order to have no other but a Popish succession possible. The most mischievous and calumnious party cry that he had heard was ‘The Church in danger!’ ‘I have lived myself,’ he said, ‘in and about this city, six or seven and twenty years, and been as careful and diligent an observer how things went with relation to the Church, as I could.’ The prelate declared that neither in William’s nor Queen Anne’s reign, nor in the existing one, had there been the slightest foundation for the cry. There was no such cry

**BISHOP OF
ELY’S
SERMON.**

during the last three or four years of Queen Anne's reign, because there were men then in power at Saint James's 'some of the greatest of whom are now actually in the service of the Pretender.' When the bishop alluded to the unhappy persons who had suffered for their active Jacobitism, he let drop words which, somewhat strange, perhaps, as coming from a Christian prelate, enable us to see into some of the practice of London hitherto unknown. 'The marvellous compassion, the strange and hitherto unpractised charity of public prayers and tears bestowed upon the few State Criminals that have fallen of late, by the hands of Law and Justice, this new and unusual tenderness, I say, was shown rather for their sufferings than their sins, by such as approve their cause.'

Nothing was more clear than the king's statement, published soon after his accession,—that he had succeeded to the crown of his ancestors. His hereditary right was there proclaimed. The bishop, in his sermon, told his hearers of many ways in which the king did *not* ascend the throne. Among them is this: 'Nor did he come by what they call Hereditary Right.' The king was called, according to the prelate, by the Nation represented in a free Parliament, 'not,' he quaintly remarked, 'not by gratitude for any benefits or service past.... He was called to the Throne by all the Nation, King and Parliament; and also afterwards by *Queen* and Parliament, if that will please some people better.' When the congregation dispersed, Ely Place was resonant with the diverse comments such passages were calculated to elicit.

**KING
GEORGE'S
RIGHT TO THE
THRONE.**

The press was as active as the pulpit, but not exactly in the same way.

The Crown messengers in pursuit of copies of the more stinging written works, having Nonjuring and Jacobite tendencies, discovered in Dalton's printing office copies of the famous pamphlet, '*The Shift Shifted*,' and in Redmayne's, the equally offensive work, '*The Case of Schism in the Church of England truly stated*.' In the first matter the Government could get hold only of the printer, and Dalton was fined, imprisoned, and sentenced to the pillory. With the 'Case of Schism,' it was different. Justice not only laid hands on the printer, Redmayne, but on the author, the Rev. Lawrence Howell. Redmayne suffered for sending forth the libel, but the learned author was more severely dealt with for writing it. On conviction at the Old Bailey, the reverend scholar was condemned to three years' imprisonment,

**A NONJURING
CLERGYMAN,
TO BE WHIPT.**

to pay a fine of 500*l.*, to be whipped, and to be degraded and stripped of his gown by the public executioner. To his question, ‘Who will whip a clergyman?’ the court replied, ‘We pay no deference to your cloth, because you are a disgrace to it, and have no right to wear it. Besides, we do not look upon you as a clergyman, in that you have produced no proof of your ordination, but from Dr. Hickes, under the denomination of Bishop of Thetford: which is illegal, and not according to the constitution of this kingdom, which has no such bishop!’ Thereupon, the executioner, in obedience to command, stepped up to Howell, and stripped Howell’s gown from off his back, as he stood at the bar.

The Tories generally, and ‘the Nonjurants’ in particular, thought the sentence severe; and that the Common Sergeant, Duncan Dee, was sarcastic when he told Mr. Howell that he ought to be obliged to the king for his great mercy, who might have ordered him to be tried for High Treason,—and also to *him*, the Common Sergeant, for his lenity in ‘pronouncing so easy a sentence!’ The whipping was far worse than hanging; and Mr. Howell was, in fact, likely to be in prison for life; as, after his three years’ imprisonment, he was condemned to find security for his good behaviour as long as he lived, himself in a thousand pounds, and four sureties in five hundred pounds, each!—Robinson, Bishop of London, at once stepped in to save the Nonjuror from the most cruel and degrading part of the punishment. At his intercession, the whipping was not carried into execution. ‘Well,’ cried the coffee-house Whigs, ‘the fellow ought to be hanged!’ The Nonjurors and the Papists suffered persecution because of him. The former were arrested wherever they attempted to meet, and the houses of both were rigorously searched for arms, to the loss of property and much ruffling of the tempers of indignant womankind.

Mr. Justice Dormer subsequently asserted that Howell’s ‘Case of Schism’ attempted to show that all the clergy and laity who were loyal to King George were in a state of damnation!—‘*I think,*’ said Mr. Justice, ‘that the Pretender is about as near to the Crown as this Howell is to the Church!’

June 10th found the Jacobites prepared to celebrate *their* Prince’s birthday. The fact that during the preceding week, three of the force captured at Preston—Dalzell, Ramsay, and Shaftoe—had been condemned to death, did not prevent the Jacobites

**SAVED BY THE
BISHOP OF
LONDON.**

**THE ROSE IN
JUNE.**

at large from procuring a store of white roses, to be worn 'in favour' of James III. According to the papers, most of these roses were 'nipped in the bud.' Yet, political prisoners in Newgate decked their windows with them, or flung them to passers by. Other Jacobites walked in the highways with the emblematic rose in their bosoms, but 'they met with severe Rebukes.' 'One of them,' says the 'Weekly,' 'dressed somewhat like a Gentleman, was challenged by one of His Majesty's Officers, near Gray's Inn Lane, had his Badge torn from him and was wounded and disarmed.' Thus, private war was still kept up, after the public one had been gloriously concluded. It was more easy for a Whig official to whip a white rose out of the button hole of a 'gentle' Jacobite's coat, and draw a little Jacobite blood in the process, than it was to suppress the seditious sayings and doings of the common people. The streets, lanes, and public markets of the City were still infested with people singing ballads, or crying for sale pamphlets and broadsides hostile to the Government, and, as the Lord Mayor's proclamation, threatening heavy penalties against the offenders, says, 'corrupting the minds and alienating the affections of his subjects, causing animosities and stirring up seditions and riots.' In these riots, blood was shed, especially when the soldiery appeared on the scene, and the Jacobite mob saluted them with the exasperating cry of 'George's Bull Dogs!' Private quarrels on the great political question came to as bloody conclusions. Major Cathcart and Colonel Gordon fought a fierce fight with swords in Kensington Gardens, from which neither came out alive. It took the major six deadly thrusts at his adversary, before he could deliver the fatal one, but at that moment Gordon ran the major through, and slew him on the spot.

After the demonstration of the 10th of June was over—**MORE
BLOODSHED.** in which, it must be confessed, the Jacobites had the worst of it—the 'Flying Post' thought it would not be amiss to 'caution the Jacobites of both sexes, not to appear any more in public with badges of sedition and rebellion, lest they meet with severer treatment than hitherto.' The 'He-Jacobites' that were 'drubbed till they eat their rue ... are advised to take care lest the next dose be Hemp or Birch; and the She-Jacobites ought to be wise, lest they meet with the same fate as some of their sisters near Charing Cross, who, for insulting gentlemen that wore orange ribbons, on May 28th, were committed to the care and management of some of the worshipful Japanners of Shoes, who painted them, they best know where, with the proper mark of the Beast.'

Addison, in the 'Freeholder,' satirised them without mercy. He ascribed to the Jacobite ladies a want of grace, resulting from their country life; whereas the Whig ladies, daily in attendance at Court, possessed a courtly air to which the Jacobite ladies could never attain! The latter were as raw militia-men compared with the accomplished soldier in all his glory. Addison accuses the Jacobite ladies of having a tone of vulgarity and mendacity in the expression of their disloyal prejudices. Before the 'beautiful part of creation' became antagonistic in politics, they were perfect as mistresses of households, or as maidens worthy of becoming such. But in the present disturbed times, he describes wives and maidens as mere 'stateswomen.' 'Several women of this turn are so earnest in contending for hereditary right, that they wholly neglect the education of their own sons and heirs; and are so taken up with their zeal for the Church that they cannot find time to teach their children the Catechism,' A 'pretty bosom heaving with party rage' is moved by wrong impulses. 'We sometimes,' writes Addison, 'see a pair of stays ready to burst with sedition; and hear the most masculine passions expressed in the sweetest voices. I have lately been told of a country gentlewoman, pretty much famed for this virility of behaviour in party disputes, who, upon venting her notions very freely in a strange place, was carried before an honest Justice of the peace. This prudent magistrate, observing her to be a large black woman, and finding by her discourse that she was no better than a rebel in her riding-hood, began to suspect her for my Lord Nithsdale, till a stranger came to her rescue, who assured him, with tears in his eyes, that he was her husband!'

**JACOBITE
LADIES.**

Addison further told the ladies that they must by nature be Whigs, as were a Jacobite Popish Government to be established, it would be the vocation of women to be nuns, while all the beaux, officers, and pretty fellows generally, would be priests or monks, and then celibacy would be almost universal. The great Essayist approves of various Ladies' Associations for the suppression of Jacobitism. At one, there was an open tea-table, accessible only to Whig gentlemen. At a second, there was a Basset table, where none but the loyal were admitted to punt. Young ladies are praised who recognise the doctrine of passive obedience only in lovers to their mistresses. One Whig nymph hit upon a way of wearing her commode so seductively, that Tory lovers were converted at her feet, and Tory damsels imitated the

**LADIES' ANTI-
JACOBITE
ASSOCIATIONS**

fashion. Another nymph went abroad in a pearl necklace which, according to the Essayist, manifested her abhorrence of the Popish fashion of beads. Maids, wives, and widows, are reviewed at this crisis, and such counsel is given them as a writer at the beginning of the last century *could* give without any imputation of audacity.

A publisher, with a name that bespeaks his being baptized before the Puritan fire was extinguished—Bezaleel Creak—now sent forth, from the Bible and Ink-Bottle, in ‘Germain Street, St. James’s,’ a poem, ‘occasioned by the many Lies and Scandals Dispersed against the Government, Since the late Rebellion.’ The piece was entitled ‘Rebellious Fame,’ as that allegorical personage was just then given to report wonders and miracles on land, in the sea, in rivers, and in the skies, all which—by ‘the Members of the British Society and the Mugg-Houses about the City of London,’ to whom the book was satirically dedicated—were said to portend the speedy restoration of the king over the water to his own again. The doggrel is of the worst sort. The most descriptive bit in it refers to Lorraine, the Newgate Ordinary, whose Calendar is called a history which

with pious dread
Is ev’ry Morn by pious Porters read.

Lorraine is told that the greatest rascal in his record is Paul, who affected piety in Newgate, was having his speech penn’d by non-juring parsons, and would be turned off, singing.

How decently the Caitiff ends his days,
With Howell’s Rhetorick and Sternhold’s lays.

The churches were occasionally as disturbed as the streets at this troubled period. It was by order of his diocesan that the Rev. Mr. Hough, a temperate rector of St. George’s, Southwark, dismissed his ultra-Jacobite curate, the Rev. Mr. Smith, ‘as a clergyman,’ says the ‘Flying Post,’ ‘of the most infamous Morals and outrageous Impudence against the Government.’ Sunday after Sunday, the rector was hissed and buffeted by the Tories for this dismissal. On one occasion the mob tried to stone him, but Mr. Hough escaped in a coach. On each occasion he was assailed, say the Whig papers, by ‘a vile, rascally, beggarly mob,’ and it is added that the ‘Rev. but scandalous Smith led the

**RIOT IN A
CHURCH.**

mob himself to the charge, from St. Sepulchre's.' The 'Postmaster' quaintly describes the particulars as being 'not only dreadful, but shameful.'

On the 23rd of June the Jacobite congregation at St. George the Martyr, Southwark, were punished by having the chaplain of the Duke of Newcastle sent down by authority to pray for and preach to them. They would neither have his prayers nor heed his preaching. During the whole service the Tories behaved in a most irreverent manner. At its close, the clergyman's calm self-possession so exasperated them that they showed symptoms of using personal violence towards him. Some of his friends ran off to the Marshalsea to ask the guard there to come to the rescue. The soldiers arrived just in time to save him from the rough proceedings of 'the High Church Mob.' They hurried him into a coach, and escorted him to the duke's house in Lincoln's Inn Fields.

Pope tells Gay, in June, 1716, 'I suffer for my religion in almost every weekly paper. I have begun to take a pique at the Psalms of David, if the wicked may be credited, who have printed a scandalous one in my name.' This might serve to show an anti-romanist illiberality did we not now know that Pope himself wrote the indecent parody of the first psalm, of which he complains, and advertised in the 'Postman' that he would give a reward of three guineas for the discovery of the author and publisher. 'When Mrs. Burleigh,' says Pope's editor, Mr. Elwin, 'announced that she had the original in his own hand-writing, he relapsed into silence.' Pope, in the above letter to Gay, reflects the views on Church matters which were entertained in the London coteries and coffee-houses:—'The Church of Rome, I judge from many modern symptoms, as well as ancient prophecies, to be in a declining condition; that of England will in a short time be scarce able to maintain her own family; so Churches sink as generally as Banks in Europe, and for the same reason—that religion and trade, that at first were open and free, have been reduced into the management of Companies and the roguery of directors.'

**POPE'S
DOUBLE
DEALING.**

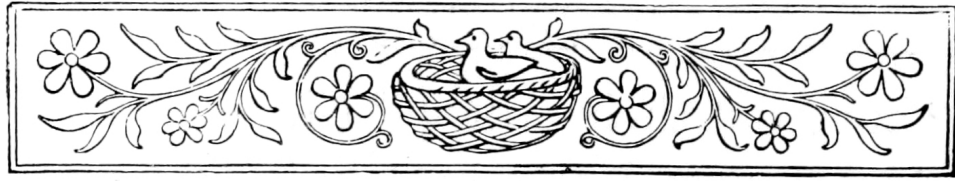
When the Parliament and Addison's 'Freeholder' came to an end together, the Essay writer boasted of having given the 'complexion of the times.' He was sorry that there were men still left who thought they could never be wrong as long as they opposed a Minister of State; and that the Government

**ADDISON, ON
LATE AND
PRESENT
TIMES.**

was blamed for severity towards the rebels, when the friends of the administration rather murmured at too great leniency being practised towards them. He thought it was a pity, since oak garlands used to be the reward of those who saved cities, that oak apples and oaken clubs were the signs and weapons, on one day in the year at least, of those who would bring destruction on the kingdom. He deplored the ruffianism of both Whig and Tory mobs, of the women as well as of the men. It was not so in Charles II.'s time, when men, instead of declaring their opinions by knocking out one another's brains, 'hung out their principles in different coloured ribbons.' He traced the brutal violence of the times to the general conceit which visited all hostile argument with a blow. Children were taught politics, and to hate each other, before they understood the meaning of words. Squires came up from the country like dictators from the plough, and got drunk in praise of the aristocracy. Oyster women concerned themselves with the abolition of Episcopacy, and cinder wenches were sticklers for indefeasible right. Addison is alarmed at the novel establishment of country newspapers. They would make provincial towns as turbulent and uncomfortable as London. It was some consolation to him that the very sight of the royal family, particularly of the pretty princesses, was sufficient to soften many a Jacobite; and, though Jacobite ladies *would* distinguish themselves by wearing white roses—less white, of course, than the bosoms against which they lay—how much more beautiful were the loyaler ladies who proclaimed their principles, and excited the most tender sympathies, by fastening in their hair the simple but significant Sweet William!—a compliment to William of Nassau.

POLITICAL
WOMEN.





CHAPTER XIII.

(1716.)



UT while the great Essayist revelled in this social and political banter, earnest tragedy was being enacted elsewhere. On July 8th the death warrant for the execution of two dozen Jacobites seems to have been stayed at Court before it went on its dreadful way. There was such effectual discussion upon it, that the good souls there snatched twenty-two lives from the hangman. 'All to be reprieved,' says Lady Cowper, 'but Justice Hall and Parson Paul.' The Duchess of Shrewsbury pleaded hard for the lives of the whole four-and-twenty; but the hangman got his allotment of one in the dozen.

Patten sketches the incidents of the Rev. Mr. Paul's first appearance on the scene. It occurred at Lancaster. Forster, the commander, was at dinner with Patten in the Recorder of Lancaster's house. 'He (Paul) entered the room in a blue coat, with a long wig and a sword, and Mr. John Cotton of Cambridgeshire with him. They let him (Forster) know who they were, and in a flourishing way, made a tender of their services for the cause, which Mr. Forster accepting, they withdrew. Then Mr. Forster told Mr. Patten, that the taller of the two gentlemen was a clergyman and was of St. John's College in Cambridge, and that he (Paul) had given him a perfect account of General Carpenter's marches, and that he was then at Barnard's Castle, in the bishoprick of Durham, that his men and horses were soon fatigued, and the like, all which,' adds the turncoat Patten, 'was true enough, though their being so fatigued did not hinder their march after us.'

THE REV. MR.
PAUL.

The Reverend Mr. Paul, undoubtedly, acted both as spy and messenger. Before the surrender at Preston, Paul rode away, charged, 'as he then said,' to use Patten's significant words, 'with letters, to a noble lord in Staffordshire and some friends in Leicestershire.' Paul had a narrow escape on the road, but it did not lead him to ultimate safety. He met General Wills,

at the head of his troops. By the former, he was stopped and questioned, but the general, not suspecting that Paul was one of the rebels, 'he himself also putting on a contrary face,' Wills let him go.

Mr. Paul had no desire to die a martyr for the Jacobite cause. After his condemnation, he addressed himself to the great object of saving his life. He wrote to bishops, archbishops, and ministers. To the Lord Primate he said he had pleaded *guilty* only on the advice of his lawyers, as the surest way to obtain mercy. The Government wished him to make a clean breast of it, and tell all he knew and all he did after running away from Preston. But, he observed, 'what confession the Court would have from me, I can't tell. I am sure your Grace would not have me, for the world, speak more than I know.' He denied having been guilty of promoting rebellion, after he left the rebels 'as fast as I could.' He prayed earnestly that his life might be spared, and that if he were not allowed to spend the remainder of it in England, the Government might be pleased to send him to the Plantations or anywhere rather than Tyburn! He protested that since he was in Newgate he had not prayed for the Pretender, by any name or title; and he humbly desired his Grace would take him from 'this nasty prison.'

A CRY FOR
LIFE.

Writing to the Bishop of Salisbury, Paul spoke of his being unfortunately at Preston among the rebels; but that he left them 'upon the first opportunity.' He asserted that 'Fear more than Choice' had taken him there. He had once the honour to be under the bishop's patronage. If the prelate would only get his life spared, he promised that it should be wholly employed in pouring down abundance of blessings on King George, the Royal Family, the three kingdoms generally 'and the Church in particular.' In despairing terms, Paul again turned to the archbishop. Life, only life! The truly repentant rebel asks for no more. 'I do not question,' he said, 'but that your gracious temper and compassion will move you to assist one that had once the honour to be instituted into a Living, in your diocese of Lincoln, by your Grace.'

On Monday, July 9th, the poor man again wrote in a fit of abject terror to the archbishop: 'The Dead Warrant is come down for Execution Friday next.' Then he, as it were, screamed for mercy. Except, being at Preston, he was entirely innocent of all 'ill steps,' and knew of no designs against King George, beyond that

PAUL AND
PATTEN.

town. ‘The things that are laid to my charge, namely, the preaching up rebellion, advising my parishioners to take up arms, and that I preached several seditious sermons, all these are false, upon the word of a clergyman, as I have a certificate to prove, for six years, the time of my being at Orton, handed by most of the parish.’ He begs that he may be ‘saved from that ignominious death of the halter;’ and he promises a rich return in prayers for the benefit of all who had done their best to bring him ‘out of these great troubles.’

Between the day on which the last letter was written and the eve of the day of execution, no better messenger of joy visited poor Paul than the reverend rascal Patten. This worthy was sent, apparently, to ‘pump’ him, but he brought no promise of mercy for any communications Paul might make; and accordingly the doomed man, as he wrote to Lord Townshend, on that terrible eve, simply called Heaven to witness that, to quote his own words, ‘I carried no letter off from Preston, though I told Mr. Patten so, which was only a feint, that I might go off; and if Mr. Patten will do me justice, he can tell you, my Lord, how uneasy I was when I discovered my rashness.’ His last words were, ‘I once more crave your Lordship’s kind assistance to procure me my life.’

This prayer was not heeded. On the following day, crowds witnessed the journey of both Paul and Hall to Tyburn. Other crowds were to be seen outside the newspaper office window at Amen Corner, eagerly reading the original letters of Paul to the Archbishop and Viscount Townshend, by whom they had been sent into the city, to gratify public curiosity.

PAUL, A
JACOBITE
AGAIN.

Mr. Paul at Tyburn recovered his spirits, and turned Jacobite, again. He asked pardon of God for having taken oaths of allegiance to an usurping power.—‘You see by my habit,’ he said to the crowd, ‘that I die a son, though a very unworthy one, of the Church of England, but I would not have you think that I am a member of the schismatical church, whose bishops set themselves up in opposition to those Orthodox Fathers who were unlawfully and invalidly deprived by the Prince of Orange. I declare that I renounce that communion, and that I die a dutiful and faithful member of the Nonjuring church, which has kept itself free from rebellion and schism; and I desire the Clergy and all members of the Revolution church to consider what bottom they stand upon, when their succession is

grounded upon an unlawful and invalid deprivation of Catholic bishops, the only foundation of which deprivation is a pretended Act of Parliament. The Revolution instead of keeping out Popery, has let in Atheism.’ As Justice Hall was standing meekly at Paul’s side, a cowardly Whig ruffian, in the crowd, flung at the doomed man a stone which reached its aim. The poor gentleman bowed his head in acknowledgment of the civility, turned to the hangman, and died without fuss or protest. The Whig press spared him. They did not attack him as they did Paul.

In July, the king, longing to revisit Hanover, and satisfied that his throne was now unassailable, took his departure. A few hours previously, Lady Cowper saw the sovereign, at a drawing-room, ‘in mighty good humour.’ She wished him a good journey and a quick return; and, ‘he looked,’ she says, ‘as if the last part of my Speech was needless, and that he did not think of it.’

A curious encounter took place in Fleet Street, as George I., in a semi-state coach, with a kingly escort, was on his way to the Tower, where he was to take water for the continent. The king was met with a procession of six coaches coming from Newgate. They contained eleven prisoners with attendants, the former on their way to Westminster, to receive formal sentence of death. The royal carriage and one in which was Mr. Radcliffe, with a fellow prisoner, and a ‘servant of Newgate,’ were the first to meet. The latter drew on one side; those which followed did the same. The king looked hard at the Jacobites and passed on, without remark. When the king had gone by, Charles Radcliffe, seeing that the carriage in which he was seated was drawn up in front of a tavern, called for a pint of liquor, and he and his fellow in misfortune drank to the health of King James. If the ‘servant of Newgate’ got a good pull at the tankard he said nothing about it at Westminster to aggravate their position or to make unpleasant his own.

**THE KING IN
FLEET
STREET.**

At the council, held by ministers in the evening, it was found that the king had some cause to dread the perils of his way. ‘At night,’ says Lady Cowper, ‘Lord Lovat brings a man, called Barnes, to the Council, who deposed upon oath that two Sulivants, cousins to Sulivant whose Head is upon Temple Bar, told him that Sulivant’s brother, who is a Partizan, was to kill the king in a wood between Utrecht and Loo, and that he was to command a “Party Blue,”

**A READING AT
COURT.**

which is a cant phrase for fifty Men.’ ‘The Men were seized,’ says Lady Cowper, and the then Hanoverian Fraser of Lovat was probably rewarded for his services.

The knowledge of such regicidal designs may have led to a discussion at Court on the killing of Cæsar, where his slayer, Brutus, found partisans. One morning, in July 1716, Lady Cowper was reading aloud to the princess and the ladies, from the works of Madame Deshouillières, the French ‘tenth muse.’ The reader came upon a passage referring to Brutus. ‘As much a Whig as I am,’ she says, ‘I cannot come up to it.’—‘I think Brutus should either have been faithful to Cæsar, or he should have refused his favours, the baseness of his ingratitude blackening, in my opinion, all that could be said for his zeal for his country.’ She evidently had in her mind the people about Court who, while accepting favour from George, were often serving James. ‘This,’ she says, ‘occasioned a great dispute among us.’

Turning from Court to Newgate it will be seen that the zeal of some of the servants of certain of the condemned Jacobite gentlemen sadly outran their discretion. Mr. Cassidy and a Mr. Carnegie were sentenced to death. Their valet, Thomas Beau, immediately headed a Jacobite mob, out of a mere spirit of revenge. After trying their strength in assaulting Mr. Gosling’s tavern, the Blue Boar’s Head, near Water Lane, and mercilessly treating the Whig gentlemen there, by whom they were ultimately repulsed, after much blood was shed on both sides, the Jacks rushed in a body to that most hateful of all mug-houses, Mr. Read’s, in Salisbury Court, Fleet Street. Various previous attempts to demolish this stronghold of thirsty loyalty had been valiantly frustrated, with much damage to limb, and at serious risk to life. On the last assault, the ‘Papists and Jacks’ carried their ‘hellish design’ to ultimate but costly triumph. They smashed the windows, forced an entry into the lower rooms, and burst open the cellar. They broke up the furniture, broached the casks, and, filled to the throat with strong liquors, began to set fire to the premises. The loyal Whig guests discharged their pieces into the seething crowd. They fought in the passages, and on the stairs, but they unfortunately lost their standard. The sign of the house was also triumphantly captured. It was carried at the head of the besiegers, as they marched away, by Tom Beau. In the *mêlée* which occurred at the hottest part of the struggle, many of the rioters were terribly wounded. One of

SANGUINARY
STRUGGLES.

them, Vaughan, a seditious weaver, to whom the inside of Bridewell was not unfamiliar, was stretched dead on the threshold by a shot from the end of the passage of Read's house. The Jacks declared that Read was the murderer. The coroner's jury were as much divided as the mob and the gentlemen who met at Read's mug-house, 'only to drink prosperity to the Church of England, as by law Establisht.' Half were for a verdict of wilful murder against Read. The other half stuck out for justifiable homicide. An adjournment ensued, to enable each side to sleep, think, and drink over it.

Meanwhile, the husseydom of Fleet Street, a sisterhood rough and readily named in another way by the papers, sustained the riot in the Jacobite interest. These nymphs were described quaintly as 'walking the streets a nights without impunity by constables.'

At the judicial enquiry, the evidence was against Read, despite his loyalty. Witnesses swore to the attack, repulse, devastation, robbery of till and liquor, and also to the fact that Read had deliberately shot Vaughan as the former stood at his door, and the latter, an unarmed and innocent victim, as the witnesses with Jacobite bias described him, was standing doing no harm and thinking no evil, in front of the attacking force. The coroner's jury, on reassembling, proved more Jacobite than ever. They would agree to no other verdict but that of wilful murder against Read. The coroner refused to receive this verdict, and while the dispute was pending, private individuals with Hanoverian sentiments subscribed handsome sums, and awarded liberal compensation to the owners of mug-houses who had suffered so much for their integrity and loyalty, and who met only to drink health to the royal family and 'good luck to the Church of England by law establisht.'

**A JACOBITE
JURY.**

Then arose an individual, the proto-special correspondent. He made a tour of the mug-houses, chiefly because the Jacobites had accused the guests of drinking 'damnation to the Church,' and similar consummation to the prelates. This early original correspondent gives testimony to the contrary. 'He was struck into an amazement,' he tells us, 'at the piety, charity, courtesy, and good liquor which abounded in all the Mug houses in London.' We hear too that some baser sort of Tory would go to mug-houses to decoy Whig gentlemen by 'damning and cursing Queen Anne.' One Adams, a medical student or

**THE MUG-
HOUSES.**

apprentice, in Lothbury, tried this game, but he had to ask pardon for it on his knees, and was afterwards sent to the Compter to digest his humiliation.

At length, the coroner's jury, again suffering political changes, declared themselves, seven for wilful murder; five for manslaughter. The perplexed coroner washed his hands of it, and sent the matter for decision to the judges at the Old Bailey; when Read narrowly escaped the gallows; but Beau, and a few others, swung at Tyburn.

To watching the doings of Jacobites at home, was to be added the trouble ministers had in watching, through their agents, Jacobites abroad. Our agent, Lord Stair, in Paris, kept the Hon. Charles Cathcart (afterwards eighth Lord) well advised of what was going on, or was to be attempted in London. In July, my Lord states that the Duke of Leeds had left Paris, for Rouen, on his way to England, 'to put some very wise project of his own contrivance into execution. The Pretender and his court have given in to it, and the party in England are ready to assist him.' Lord Stair suspected a design upon Sheerness. 'I thought it better,' he adds, 'to let him go than to stop him.' The writer left the ministers in London to do as they pleased with the duke, after he arrived. The duke escaped, singularly enough. He got drunk in London, was knocked down and run over by a hackney-coach, and he lay ill in bed, instead of going about conspiring for James III.

**THE STREET
WHIPPING
POST.**

The police, however, was on the alert, the laws were severe, and ignorant people abounded. One of the acute messengers of the time, Nightingale, heard two women in the street, crying for sale 'The whole trial, examination, conviction, and sentence of Conscience, who was tried and condemned at Conventicle Hall,' &c. The messenger charged them with sedition. He carried them before the next justice of the peace, and his worship, finding them guilty, sent them forthwith 'to be corrected at the next Whipping Post.' The anti-Jacobite mob delighted in the cruel spectacle which was there offered to them.

They, and Jacobites generally, were still more delighted at reading the following matter-of-fact paragraph in all the papers. 'On Saturday night' (the first Saturday in August), 'between 8 and 9 o'clock, the Earl of Wintoun made his escape out of the Tower.' Lord Wintoun, who was not such a fool as he was taken for, had sawn the bars of his prison-window,

and had oiled the palms of his keeper, and had passed into the street unmolested. He had a servant, Nicholson, in Newgate (taken also at Preston), but as the master had freed himself, the Government kindly liberated the servant, and took their revenge on the warden of the Tower. They accused him of having connived at the escape of both Lords Nithsdale and Wintoun; and they dismissed him from the Tower without allowing him to sell the wardenship, for which he himself had once given a good price.

In August, London saw the last not only of Wintoun, but also of that worthy parson, Patten. In the above month, he shook hands with his fellows in town, and set off for his old parish in Allendale, Northumberland. His incumbency had been kept open for him by a substitute, who resigned as soon as Patten returned to his old flock. On the Sunday after his arrival, Patten preached to a crowded congregation; 'being,' say the London Whig papers, 'always well respected in his parish.'

**PATTEN IN
ALLENDALE.**

The most singular sight of all, in August of this year, was at Hampton Court. While antagonistic mobs kept London in continual perturbation, the heir to the throne and the Princess of Wales dined in public—to which spectacle that public was freely admitted, and in such crowds that the illustrious lady would graciously call upon them so to place themselves that all present might have their fair share of the sight. The affability of the royal pair delighted all the spectators. The papers speak of one citizen of London, hitherto of Jacobite principles, being so deliciously subdued by it to Whig sentiments that, on reaching home, he removed the portraits of the Duke of Ormond and Dr. Sacheverel, from his 'parlor,' and showed his contempt for the originals by 'removing their likenesses to a remote part of his establishment.'

The Whig and Tory holiday makers who resorted to Hampton Court must have beheld one of the scenes of the political comedy played by their royal highnesses, while the king was abroad, with considerable astonishment. On one occasion, after the public dinner, a gentleman was as publicly presented. This was Simon Fraser, Lord Lovat, who kissed hands on having obtained the estates formerly belonging to Mackenzie, as a reward for Simon's loyalty! There was not so much to surprise in this as in another presentation. Fraser was (for the nonce) a Whig; but the second presentation

**SCENES AT
HAMPTON
COURT.**

was that of a Jacobite gentleman who had been recently condemned to death, and was subsequently pardoned. This Jacobite was the famous Farquharson of Invercauld, who had only just been set free from the Marshalsea. Lord Townshend led him by the hand, and presented him to the Prince; the Earl of Bridgewater next took him, and presented him to the Princess. Spectators were lost in astonishment, and could not guess what service Invercauld could have rendered to the 'Elector of Hanover' to merit such distinction.

The outspokenness of the Nonjurors at this period grew more audacious than ever. Their enemies threatened to rout 'the diabolical wretches' from their chapels, and the Nonjurors replied, in their papers, with a 'Come, if you dare!' The latter prayed for 'the King,' without naming him. On one Sunday, in the chapel in the Savoy, a Whig, at this part of the service added aloud, 'George!' Forthwith, a dozen infuriated Jacks sprung to their feet, exclaimed 'James!' and with a cry of 'We'll George you!' flourished their sticks, whereupon a battle-royal ensued, heads were broken, and provocation was given to make many a subsequent Sunday disgracefully distinguished by the bigots on both sides. The temper of the times was fatal to the then noted school at Edmonton, where Mr. Le Hunt received Roman Catholic young gentlemen from all parts of the world. Foreign families were afraid to send their sons. The house, indeed, was never molested; but, 'for want of encouragement, Mr. Le Hunt was forced to withdraw.'

**BIGOTS ON
BOTH SIDES.**

Later in the autumn, the opening of a Nonjuring chapel in Spital Fields roused the fury of 'loyal people.' The pious and peaceable 'Weekly Journal' hoped that 'all persons loyally affected to King George will timely suppress the diabolical society, as they have done the like seditious assemblies of blind, deluded fools in the Savoy, Scrope's Court in Holborn, and in Aldersgate Street;'—where the chapels had been set on fire, and the congregations beaten and kicked, as they tried to escape, by the Hanoverian roughs.

The Jacobites used similar arguments, and found approval for their application, from grave Tory scholars. A Berkshire vicar, named Blewberry, preached a sermon in a City church against Queen Anne. 'The auditors,' says Tory Hearne, 'pulled him out of the pulpit.' Blewberry printed his sermon. "Tis

**AT DRURY
LANE
THEATRE.**

wretched stuff,' says Hearne, 'in commendation of usurpers, for which he deserved to be mobbed as he was.'

In October, Whigs heard with some surprise that Lords Carnwath, Nairn, and Widdrington were, as the papers put it, 'allowed the liberty of the Tower to walk in.' The public was, subsequently, more concerned with an incident which took place at the theatre. On the 6th of December, the Prince of Wales was in his box, at Drury Lane, heeding, as well as he could, the utterances of Wilks, Booth, Cibber, and Mrs. Oldfield, when an excited gentleman, named Freeman, endeavoured to pass into the house. The Grenadiers crossed their bayonets and prevented his ingress. That Freeman was a mischievous Tory seemed clear enough to the Guards, when he drew a pistol from his pocket and fired it point blank into the body of one of the Grenadiers. The shot was heard within the house, where no one was unmoved but the Prince. Of the ladies, all who did not indulge in shrieking, went off silently swooning into gentlemen's arms. Of the gentlemen, all who were not thus pleasantly employed, put their hands to their swords. Some drew their weapons and held them aloft. Others rushed sword in hand into the lobbies, and drew up there ready for the onslaught of any number of Jacobites. While this hubbub prevailed, the officer on duty reported the exact state of things to the Prince. Freeman was a lunatic, the Jacobites were not rising, and the Prince, in token of his complete satisfaction, sent out five guineas to the Grenadiers; and the man who was shot into did not find himself sufficiently hurt to prevent his getting drunk with his fellows. The *beaux* who had held the fainting ladies, rather than draw swords for the Prince, called the next day to make enquiries, and were to be seen combing their periwigs as they tripped up the door-steps. The belles

received them, with a laugh on their lips, and the fashionable *guittara* in their hands. Highly-spiced compliments passed in the afternoon as the orange brandy, aniseed, citron and cinnamon waters were handed round with the tea. The stouter champions took the sack and toast presented to them on a salver, or were divided between hock with a dash of palm in it, a glass of noble canary with a squeeze of Seville orange, or a tankard of cyder, sweetened with a little old mead, and a hard toast. It was a perspiring time for Running Footmen, who beat the post in carrying the news of 'Freeman's shot' into the country. The runners are well described in a comedy of the period, in the query of a

AFTERNOON
CALLS.

gentleman who encounters one of them, ‘How now, Pumps, Dimity, and Sixty miles a day! Whose Greyhound are you?’

The year ended with a great surprise. Mr. Charles Radcliffe literally walked out of Newgate without molestation! Wardens and turnkeys saw a strange gentleman, in a mourning suit and a brown tye-wig, pass them, and did not question him! This suit and wig were called his ‘disguise;’ but it was no better than a theatrical disguise, which deceives nobody, not even those who seem to be deceived. Mr. Radcliffe passed as easily to France as if no one was interested in stopping him. His old ‘chum’ in the room which they occupied together ‘in the Press Yard, overlooking the garden of the College of Physicians,’—Basil Hamilton—did not more easily pass into freedom, under the Act of Grace, than Charles Radcliffe did under his so-called disguise, and his resolution not to owe his freedom to the ‘Elector of Hanover.’ The chief wardens lost their places, which they had bought at 200*l.* a-piece, and which they were not allowed to sell; but they probably had already had their places’ worth from Radcliffe’s friends.

**ESCAPE OF
CHARLES
RADCLIFFE.**

The above dramatic incident was thus simply set down, with additions, in the newspapers. ‘Charles Radcliffe, Esq., brother to the late Earl of Derwentwater, made his escape out of Newgate on Thursday last, December 13, as did a few days before, Mr. James Swinburne out of the hands of persons who had him in cure for lunacy.’ Gibson of Stonycroft, Northumberland, less lucky, died of broken heart, in the prison which he could not ‘break,’ and from which he could not pass on plea of being mad. Radcliffe, like Wintoun, had all along refused every offer of royal pardon, a proud, honest, but in Radcliffe’s case, a fatal refusal. Had he been content to wait in bonds a little longer, he would have been in the Act of Grace whether he liked it or not. Thirty years later he pleaded, in vain, the pardon he had scornfully refused, and the Act, from the application of which he had withdrawn himself.

Considering the critical condition of the country, in 1715 and 1716, the drama was remarkably backward in outspokenness to support the new order of things, as well as in suggestiveness through plays or portions of their dialogue to allude, with friendly intention, to the Jacobite side. Royal commands were so frequent that actors may have recognized patrons in the

**THE STAGE
AND
PLAYGOERS.**

king and his family, and have honoured them accordingly. As in Charles I.'s time, they were independent as individuals, taking sides in agreement with their opinions. One poor, obscure player, named Carnaby, was arrested on a charge of seditious action for the benefit of the 'Pretender.' We lose sight of him under the parting kick of the Whig papers, that he was a wretch of an actor who unluckily died in Newgate before he could be taken to Tyburn! On the other hand, when the prospects of the kingdom were at least gloomily uncertain, there was a class of individuals who lost no opportunity of being gay. Twice, within three weeks, the performances at Lincoln's Inn Fields, were 'by desire of several Ladies of Quality.' On one occasion, the ladies ordered the highly spiced 'Recruiting Officer;' on the second occasion, that comedy of still higher gusto, 'The Old Bachelor.' When most men were, or should have been, bracing themselves to share in, or to meet, the serious issues that as yet were hidden from them, we find among the entertainments at Mrs. Thurmond's benefit—'A Scaramouch dance by a Gentleman, for his diversion.'

It was when the struggle was over that the Stage began to ridicule the losing side, and Mrs. Oldfield, at Drury Lane, on her benefit night, spoke a new epilogue to the 'Man of Mode' in which the cause of liberty was recommended to the beauties of Great Britain. It was not till August, 1716, that in honour of the accession of the House of Hanover, Doggett, the Drury Lane comedian, gave 'an Orange-coloured Livery with a Badge representing Liberty, to be rowed for by Six Watermen that are out of their time within the year past—they are to row from London Bridge to Chelsea—it will be continued annually on the same day for ever.' This incident gave rise to the still popular operetta of 'The Waterman;' and, with some modifications, the match is still rowed on the annual first of August.

**LOYAL
PLAYERS.**

Christmas cheer gave many Jacobites a courage to which they would not have given expression at another time, considering how death, fines, transportation, imprisonment or whipping had been inflicted on outspoken and more active Jacobites during the year. One John Humphreys, a lawyer's clerk, displayed no ordinary audacity in Mr. Read's Mug-house, Salisbury Court, Fleet Street, by proposing the health of James III. For such a Christmas toast, however, he was carried before a magistrate, who sent him to Newgate, to answer for his boldness—the last Jacobite victim of the year.

But this was of small account compared with a much more exasperating incident. Baker, at the Black Boy, in Paternoster Row, issued many aggravating pamphlets against the adherents of the king over the water, but never one which provoked them to such fury as the following:—‘A true account of the proceedings at Perth; the debates in the Secret Councils there, and the reasons and causes of the sudden finishing and breaking-up of the Rebellion. Written by a Rebel. London: printed by J. Baker, at the Black Boy in Paternoster Row, 1716. 12mo.’ This ‘true account,’ like the Master of Sinclair’s, exposed the conceit, incapacity and folly of the Jacobite leaders, and left its readers with a much lower opinion of the cause generally than they had previously entertained.

AN ANTI-
JACOBITE
PAMPHLET.





CHAPTER XIV.

(1717.)



HE streets this year were occasionally disturbed, but violence gradually abated. Now and then there were sorrowful sights, as exasperating as they were full of sorrow. One of these was the procession of a hundred chained Preston prisoners from the Savoy to the lower part of the Thames, where they were embarked to serve as slaves in the West Indies. Such freight did not invariably reach its destination. A few months previously, a similar freight of thirty prisoners, similarly bound, rose upon the crew, got possession of the vessel, and carried her to France, where they sold the ship and quietly settled themselves in trade or service. There was a procession of another sort, from Cheapside to Charing Cross, in January (soon after the king's return to England), by torchlight, which, we are told, was very acceptable to those who saw it. It ended by burning the figures of Pope, Pretender, & Co., at the latter place, after which the mob drank his Majesty's health. Thereupon, the officers at the windows of Young Man's coffee-house 'returned thanks,' and civilians at other windows followed with similar speeches! All anniversaries did not pass so happily, because the Whigs were the most readily irritated..... A man with an oak apple in his hat, on May 29th, walked the causeway in danger of a broken head, and a too audacious fellow mounting a turnip was certain to be knocked down, as insulting King George (who had threatened to turn St. James's Park into a turnip ground), unless the bearer of the audacious symbol took the initiative, with confederates, and knocked down those who looked at him too angrily. Ruffianism was not confined to the common folk afoot. There is record of a gentleman leaping from his chariot to tear a white rose from the bosom of a Jacobite young lady, on the Pretender's birthday—and, after lashing her with his whip, flinging the poor girl to a Whig mob to be stript pretty well naked, but a body of more gallant Jacks rushed in and escorted the young lady home.

Secretly, out of the streets, treason was quietly at work.—How early the Jacobites were again actively engaged in London, in pursuit of their purpose, is shown in the fact that Atterbury, Bishop of Rochester, was then in correspondence with ‘James III.’ That prince seems to have been impatient at Atterbury’s silence as to how the new project was progressing. ‘I depended upon it,’ said the prelate in his letter of reply, ‘that the best construction would be put upon that silence by one who was well acquainted with the manner in which I was employed,’ The bishop was then in the full strength of his manhood and his intellect. Born in 1662, the son of a country parson, he passed creditably through Westminster and Oxford. He was ordained priest in his 30th year, and was one of the most ‘pushing’ men of his time. When a tutor at the University, he complained to his father of the unsatisfactoriness of his prospects. The father treated his son to both rebuke and counsel. ‘You have only,’ he said, ‘to put your trust in God, and marry a Bishop’s daughter!’ Atterbury did as well by marrying Kate Osborn, daughter of Sir Thomas Osborn, a pretty girl, with a handsome dower of 7,000*l*.

**BISHOP
ATTERBURY.**

The course taken by Atterbury was known to a few only; but there was strong suspicion against him and Sacheverel. The Whigs sent ‘note-takers’ to write down the remarks made by them in the pulpit, and the muscular Christians and Jacobites flung these reporters into the street. On the last Sunday in May, after the Act of Grace had been issued, Dr. Sacheverel preached at St. Clement’s, in the Strand, ‘a virulent and railing sermon. He was attended,’ according to the Whig papers, ‘by a numerous mob who testified their approbation of his Billingsgate discourse, by huzzaing him to his coach. So that we find other Princes have savage Beasts to govern, besides the Czar of Muscovy.’ It took very little to offend the orthodox Whigs. In July, after the trial of the Earl of Oxford had come to nothing, that nobleman, with his son and brother, attended at Lincoln’s Inn Chapel, and took the sacrament! The clerk was savagely censured, by Whig writers, for selecting the 124th Psalm to be repeated on this occasion, ‘in respect of which,’ say the loyal papers, ‘we refer our readers to their Common Prayer Books,’—where they would find the acknowledgment that the Lord saveth him against whom the wicked combine.—A much more serious affair was the mustering of the drummers of the Guards in front of Lord Oxford’s house, where they beat a point of war, in congratulation of his escape. That

**JACOBITE
CONGREGATIONS.**

they were all locked up in the Marshalsea, on bread and water, was a small penalty for such impudent insubordination.

It was said of the motive which produced the Act of Grace that the king, having nothing to fear, was inclined to be merciful. The messengers' houses were cleared of 'the King's witnesses' (men who had saved their necks by giving testimony against their old Jacobite comrades)—where they had been in custody, and Jacobite gentlemen captives were removed from the Tower, Newgate, and Marshalsea, to the more tolerable custody of the messengers. Several were persuaded to ask for transportation, and they obtained it as a favour. The ministry had so softened that, hearing Lord Duffus had not wherewithal to subsist handsomely in the Tower, they allowed him three pounds, weekly! They were a little troubled when they found that the prisoners at large resorted publicly to Nonjuring chapels, and that they talked too loudly and insolently in Jacobite coffee-houses. This was not the case with all. One of the Mackintoshes, called 'the Laird,' was so touched by the royal clemency, he protested that if another rebellion should ever break out, he would lead a thousand of his clan in support of King George. On the other hand, one of the Talbots talked so saucily, when the order of release for himself and others came down to Newgate, that he was detained in custody to teach him better manners. So, Dalzell, uncle of Lord Carnwath, who had been condemned to die, but was removed, with others, to wardship under a messenger, was re-committed to the Tower, for 'impudently frequenting company who talked too freely against the present government, and whose seditious and licentious pamphlets were read and handed about.' Meanwhile, mobs hailed or hissed Lord Lansdowne when he was released from the Tower, and even the street Whigs refrained from pelting Sir William Wyndham as he crossed Old Palace Yard, after being discharged at the King's Bench Bar, Westminster. A few called him 'Flat Nose,' popular slang for Tory! For the poorer Jacobites at large, and for the political prisoners in custody, raffles were got up, almost exclusively by active and sympathising women, 'for the use of the unhappy persons in confinement.' Articles of dress and diet were constantly being sent to these captives, and not unfrequently (and generally by generous and courageous women's help), a prisoner, from time to time, made his escape.

**LIBERTY
USED, AND
ABUSED.**

**JACOBITES AT
LARGE.**

The Act of Grace, however, which was dated May 6th, was slow in taking effect—especially in the cases of the peers. It was not till September that a pardon passed the seals—for Lord Duffus. In November, Lords Carnwath and Widdrington, and in December Lord Nairn, pleaded their pardon, on their knees, at the bar of the House of Lords, and were discharged. Provision was made for them, out of their own estates, to Widdrington, 400*l.*; to Carnwath, 200*l.*; and to Lord Nairn, 150*l.* a year. To Lord Duffus, having nothing, nothing was given. Lord Nairn's case will show how slowly liberty, with confiscation of estates, was effected. When Lord Nairn walked, a comparatively free man, across Tower Hill, in August, to a messenger's house, he had been in confinement a year and eight months. He was committed to the Tower in December, 1715, and was liberated in August, 1717. During that time, he was obliged to pay 3*l.* a week for his chamber, and 1*l.* as wages for the warden who waited on and guarded him. Eleven months more were spent before Lord Nairn got back again to Scotland. He was in London under a sort of *surveillance*. Six months after his enlargement, he had to appear before the House of Peers, 'to get up his bail and make his recognizance,' so that he did not return to his own home till July, 1718, all which cost him about 4,000*l.* Much of the money went to legal advisers and Court ladies. Lord Nairn set this down in his account book, in this blunt fashion, 'Gave to Lawyers and Bitches, during that time, 1,500*l.*'

AN ENTRY IN A
CASH BOOK.

At the very time Lord Nairn, by effect of the Act of Grace, left the Tower, Atterbury, as his published correspondence now reveals, was conspiring in the interest of James III. To this prince, the bishop addressed a letter from London, in which is the following passage:—'My actions, I hope, have spoken for me better than any letters could do.... I have for many years past neglected no opportunity (and particularly no advantage my station afforded me) towards promoting the service.... My daily prayer to God is that you may have success in the just cause wherein you are engaged. I doubt not but He will at last grant it, and in such a manner as to make it a blessing not only to your fast friends and faithful servants, but even to those who have been and are still averse to the thoughts of it. God be thanked, their numbers increase daily.... May I live

BISHOP
ATTERBURY,
THE
CHEVALIER'S
AGENT.

to see that day' (of success to the Stuarts) 'and live no longer than I do whatever is in my power to forward it.'

On the other hand, to cultivate loyalty and gain popularity, the Prince and Princess of Wales continued to make the Thames their highway, in summer time. They made frequent voyages to Putney and Hampton Court, and did not forget to propitiate those who were worth the trouble of it. Oxford, for the most part, hated the royal Hanoverian family. On one of these water excursions, the Princess, meeting an Oxford barge, went on board. She ate of the barge meat and bread, and drank out of the bargemen's bowl. To each of the men, she gave two guineas. The men, after arriving at Oxford, went through the city with tokens in their hats; 'and,' says Hearne, 'carrying their bowl to Balliol College, were made drunk there, by the care of Dr. Baron, our Vice-Chancellor.'

Notwithstanding these amenities, those in authority were conscious that danger threatened 'the happy establishment,' and their 'messengers' were kept actively employed. In the course of this year a messenger and constables entered a house in Plough Yard, Fetter Lane, and arrested one of the inmates. His name was Francia, and he passed for a Jew and general dealer. Letters and papers were seized in his room. They treated of business in such a way as to read also very like treason, at least, they could be so interpreted. Francia was carried before Lord Townshend, Secretary of State. He and Mr. Harvey of Combe were charged with holding traitorous correspondence with Alban Butler of Cambray, and the Duke d'Aumont. Francia seems to have been, at once, pressed to give evidence against Harvey. At the interview with Lord Townshend, the latter put in Francia's hand five guineas. The Secretary said it was done out of charity. Francia looked on it as a bribe. He took the money, and as he failed to be as communicative as it was at first hoped he would be, Francia was committed to Newgate. At his trial, he challenged nearly every jurymen on the panel. One of them was a Sir Dennis Dutry, latinized on the usual list as 'Dionysius,' which, Francia insisted, was not Latin for Dennis, but the Chief Baron declared that it *was*, and, after many other frivolous objections were disposed of, the trial proceeded; Francia pleading 'Not Guilty.'

Jekyll, in opening the case, used a singular expression with regard to the rebellion of '15, which, he said, 'was not

MORE
PROSECUTION
S.

TRIAL OF

publicly known till his Majesty *was pleased*, in July, to **FRANCIA.** acquaint the public with the coming invasion.’ The letters and papers seized in Francia’s lodgings referred to business transactions, under which form the rebellion was clearly to be understood. The prisoner’s defence was that he was an alien, born at Bordeaux, in 1675, and owed no allegiance to King George, but also, that he had practised no treason against him. The main feature of the defence was that Francia was accused because he had refused to bear false evidence against Harvey, for which purpose Townshend had given him money. One Mary Meggison swore that being in the same room in Newgate, with Francia, she heard an agent of the Government press Francia to swear Harvey’s life away. If the agent did not see her it was because the room was ‘the Lion’s den’ and was as ‘dark as pitch.’ Lord Townshend swore by all his great gods, that he had been moved solely by compassion when he put the five guineas into Francia’s hands,—partly, however, also, as it would seem, because Francia, when he was first brought before my Lord, had made some disclosures, and had sworn to the truth of them on a Hebrew book—produced in court. ‘Ah!’ said Mr. Hungerford, the Jew’s counsel, taking up the book, ‘I understand a little Hebrew. This is a book to pray by—not swear by. It is a collection of Jewish prayers and rituals, I believe taken out of Maimonides. You had better send it to the learned Montfaucon in Paris; he is compiling some critical observations on the Eastern languages.’ What purpose that might have served does not appear. The only important circumstance was that the Secretary of State swore vehemently one way; the Jew, as vehemently in an opposite direction; and that the Jury believing Francia—acquitted him accordingly.—The subsequent jollity in Fetter Lane, and Jacobite resorts, generally, showed that Francia, be he what he might, was not a supporter of ‘the Elector of Hanover.’

Support came from other quarters—from the Press and from the Stage;—from Mr. Patten, the priest, and Colley Cibber, the player. In literature, undoubtedly, *the* book of the year, 1717, was the Rev. Mr. Patten’s ‘History of the late Rebellion. With original papers and characters of the principal noblemen and gentlemen concerned in it.’ Baker and Warner’s shop, the *Black Boy*, in Paternoster Row, was beset with parties purchasing, or with footmen sent to purchase, copies. The ex-Jacobite knave who wrote it had the impudence to dedicate it to the Generals Carpenter and Wills. He quite

**PATTEN’S
‘HISTORY OF
THE LATE
REBELLION.’**

as impudently gave assurance to the world, that it was to ‘their prudent management and unshaken bravery,’ at Preston, ‘animated by the Justice of the CAUSE,’ that the defeat of the Rebels (‘unfortunate Gentlemen, whose principles were once my own,’ but ‘some of which kept themselves warm in a Chimney Corner during the Heat of the Action’) was to be attributed.

Of the fate of those who perished on the scaffold he speaks unfeelingly. Of others, he asserts that they did not hesitate to bribe all who would take their money, ‘and by that means, not unfrequently gained their ends.’ And to this assertion, the frocked rascal adds the following precious remark:—‘It may be said, in the Face of Heaven, that fairer Trials were never allowed, at least, to Men who so little deserved it.’—The critics in the coffee-houses and taverns must have felt the regret they may have feared to express, that the Reverend Robert Patten had not also had a trial and an issue in accordance with his deserts.

SLANDER
AGAINST THE
JACOBITES.

Patten especially hated these tavern and coffee-house critics. In his book, he is never weary of depreciating such Jacobites. He wrote of them summarily and contemptuously in 1717, as ‘a party who are never right hearty for the Cause, till they are mellow, as they call it, over a bottle or two.... They do not care for venturing their carcasses any further than the Tavern. There indeed, with their *High Church and Ormond!* they would make men believe, who do not know them, that they would encounter the greatest opposition in the world, but after having consulted their pillows, and the fumes a little evaporated, it is to be observed of them that they generally become mighty tame, and are apt to look before they leap; and, with the snail, if you touch their houses they hide their heads, shrink back, and pull in their horns. I have heard Mr. Forster say he was blustered into this business by such people as these, but that, for the time to come, he would never again believe a drunken Tory.’

Patten’s narrative greatly amused the Londoners, who were the first to read it. He delights in it, in speaking sarcastically of the Clergy, whether they were High-flyers or of the lower-soaring party. He describes the perplexity into which he, and other parsons with the Jacobite army, put simple country vicars and their curates by requiring them to pray for ‘James III., Mary, Queen Mother, and all the dutiful branches of the Royal Family!’ Some clerics modestly

PATTEN’S
DETAILS.

declined and handed their churches to Patten or his colleague, Buxton. Others, simply refused, but sat in church, and while Patten, in the pulpit, prayed for James, they made mental protest which was taken as acquiescing. Patten confesses that he himself preached genuine Jacobite sermons. One of the strongest against King George was on the text, Deut. XXI., 17, 'The right of the first-born.' Patten so well served the Hanoverian Right, after he came to London, that the king could not hang him, as he deserved. This cleric seemed even to be sorry at the escape of some of his confederates who did *not* turn king's evidence. There was Edward Tildesley, the Papist who was acquitted by the jury of the Marshalsea, 'though,' says the scandalised Patten, 'it was proved that he had a troop and entered Preston at the head of it with his sword drawn. *But his sword had a Silver Handle!*' In another instance, he seems to turn unconsciously to his Jacobite proclivities, and probably there was many a laugh in the Jacobite Walk, in the Park, over Patten's story of one Mr. Guin, who went into all the churches on the way of the march, where Patten served as chaplain, 'and scratched out his Majesty King George's name, and placed the Pretender's so nicely that it resembled print very much, and the alteration could scarce be perceived.'

An idea still prevailed, with ministers, that loyalty could be secured by binding it by an oath. One of the curious sights of the year was the assembling, by summons, of a thousand Middlesex tavern-keepers in front of Hicks's Hall, where announcement was made to them that, in future, no licence would be granted save to those who had taken the oath of allegiance before the justices of the various parishes. Later in the year, a justice of the peace and a posse of constables pounced upon Dr. Welton (the Jacobite ex-rector of Whitechapel), and his Non-conformist congregation, in their place of meeting. There were about 250 Nonjurors present. The constables interrupted the service, and proceeded to administer the oath. Many indignantly refused to take it, and these were arrested on the spot, or were ordered for trial, by a justice, who allowed them their bail.

In this year occurred the famous incident in the House of Commons—on occasion of the king asking a grant of money to provide against a Swedish invasion. Downright Jacobite Shippen felt as others felt, that the demand was for English money

**DOWNRIGHT
SHIPPEN.**

**SHIPPEN, ON
GEORGE I.**

to be applied to the defending of Hanover. Shippen opposed the reception of the message, on the ground of want of detailed information. He added that such a proceeding was unparliamentary, and that it was to be regretted that the king was as ignorant of parliamentary rules as he was of the English language. A committee, however, was formed, which, by a majority of 15, proposed a grant of a quarter of a million; but the question, when submitted to the House, was carried by four votes only—153 to 149. This almost compensated the Jacobites for what they had suffered this year by Bishop Hoadly's 'Preservative against the Principles and Practices of the Nonjurors.' The High Church priesthood took some little comfort from it, too. The bishop's sermon on 'My kingdom is not of this world,' had seemed to deny them all temporal power. It led to the famous Bangorian Controversy which ultimately deprived Convocation, for ever, of being actively mischievous. The Nonjuring preachers were violent in their pulpits. And the Nonjurors were out-done in Parliament by that outspoken member, Shippen.

In December, the king opened Parliament with a speech, which the 'Downright' representative treated as that of his ministers. He discussed it and the measures recommended in it, with the utmost freedom. 'We are,' he said, 'at liberty to debate every proposition in it, especially those which seem rather calculated for the meridian of Germany than of Great Britain. 'Tis the only infelicity of his Majesty's reign, that he is unacquainted with our language and constitution; and 'tis therefore the more incumbent on his British ministers to inform him that our government does not stand on the same foundation with his German dominions, which (by reason of their situation and the nature of their constitution) are obliged to keep up standing armies in time of peace.'—Lechmere, Solicitor-General, moved that the words be taken down, and the speaker of them be sent to the Tower. Shippen would not retract anything he had uttered against maintaining an army of sixteen thousand men in time of peace. A majority of 175 to 81 sent him to the Tower.

Shippen's speech was delivered on December 4th. Two days later, an attack against the disaffected party was made from the stage. The assailant was Colley Cibber; his weapon was the comedy, which he adapted from Molière's 'Tartuffe,' and called 'The Nonjuror.' The town was in a ferment, and it would be difficult to say which faction was the more excited.

A glance at the dedication of 'The Nonjuror' to the king will not be superfluous. It will throw light on more than one illustration of this Jacobite time. Cibber addresses the king as 'Dread Sir,' and calls himself 'the lowest of your Subjects.' He justifies his political comedy as a proof 'what honest and laudable uses may be made of the Theatre, when its performances keep close to the true purpose of its Institution. It may be necessary,' he says, 'to divert the sullen and disaffected from busying their brains to disturb the happiness of a government which (for want of proper amusements) they often enter into wild and seditious schemes to reform.' Colley then reminds the king that the stage was never suppressed in England 'but by those very people that turned our Church and Constitution into Irreligion and Anarchy.' The Jacobites (by the way) might readily accept this remark, seeing the 'people' who upset Church and King, and established Irreligion and Anarchy, were the 'Whigs' of that day who slew the royal grandfather of that 'Chevalier' whom the Jacobites of the present time hoped to set up as their lawful king. Cibber professed to have made these Jacobites ridiculous, in 'The Nonjuror,' in order to make them ashamed of their cause! He affected to deplore that this loyal work had nobody better than 'a Comedian' for its author. In such an undertaking by such a low personage, his wise Majesty might discern an 'unlicensed boldness.' Yet, the undertaking exposes 'rebellious and unchristian tenets.'—Colley takes further comfort in the following Cibberian style: 'Nay, I have yet a further hope, that it has even discovered the strength and number of the *Misguided* to be much less than may have been artfully insinuated, there being no Assembly where People are so free and so apt to speak their minds as in a crowded Theatre; of which, Your Majesty may have lately seen an instance in the insuppressible Acclamations that were given on your appearing to honour this Play with your Royal presence.'

CIBBER'S
'NONJUROR.'

That was on the first night. The 'irrepressible acclamations' of the packed audience were still living in their echoes when the curtain rose for the Prologue. The king smiled when the house laughed aloud at the threat it contained that the play would treat the Jacobites roughly.

DEDICATION
TO THE KING.

Good breeding ne'er commands us to be civil
To those who wish our Nation at the devil!

The Whig faction thoroughly enjoyed the allusions to the Nonjuring parson, who rallied his flock in close back-rooms, reigned the patriarch of blind lanes and alleys, and who fulminated excommunications from London garrets. When the play began, Mrs. Oldfield and Booth, by their exquisite acting, almost made both factions overlook the political allusions.

The passages which excited the greatest enthusiasm included the following: *Colonel Woodville's* allusion to the Nonjuring pamphlet, 'The Case of Schism,' and his comment, 'I have seen enough of that in *The Daily Courant*, to be sorry it is in any hands but those of the common Hangman.' Next, *Maria's* remark to her brother: 'Why, you look as if the Minority had been likely to have carried a Question.' When the *Colonel* notices to *Wolf* that, in prayer, the latter (a Nonjuring clergyman, nearly a Romanist) never *names* the Royal family, the answer stirred much laughter: 'That's only to shorten the service, lest, in so large a family some few, vain, idle souls might think it tedious; and we ought, as it were, to allure them to what's good, by the gentlest, easiest manner we can.' The laughter was louder still in the subsequent words, 'But, why, Sir, is *naming* them so absolutely necessary, when Heaven, without it, knows the true intention of our hearts?'—And the Jacobites themselves may have ventured on murmuring approbation at *Wolf's* words, 'Power, perhaps, may change its hands, and you, ere long, as little dare to speak your mind as I do!' But the Whigs had their turn when the *Colonel* exclaimed, 'Traitor! but that our Laws have chains and gibbets for such villains, I'd this moment crackle all thy bones to splinters.' No doubt the laughter was at its loudest when the *Colonel* read the list of *Dr. Wolf's* expenses, on behalf of the Jacobite interest, which list had fallen from the Nonjuror's pocket. It ran to this effect:—

SIGNIFICANT
PASSAGES.

JACOBITE
OUTLAY.

Laid-out at several times for the secret service of His M....

May 28.	For six baskets of Rue and			
	Thyme	0	18	0
“ 29.	Ditto. Two cart-loads	2	0	0

June 10.	For two bushels of white roses	1	10	0
“	Ditto. Given to the bell-ringers of several parishes	10	15	0
“	To Simon Chaunter, Parish Clerk, for his selecting proper staves adapted to the day	5	7	6
“	For lemons and arrack sent into Newgate	9	5	0

(At the last *item* the *Colonel* observes: ‘Well, while they drink it in Newgate, much good may it do them!’)

June 10.	Paid to Henry Conscience, Juryman, for his extraordinary trouble in acquitting Sir Preston Rebel of his indictment	53	15	0
“	Allow’d to Patrick Mac Rogue, for prevailing with his comrade to desert	4	6	6
“	Given as Smart Money to Humfrey Staunch, cobbler, lately whipt for speaking his mind of the government	3	4	6
June 10.	Paid to Abel Perkin, newswriter, for several seasonable paragraphs	5	0	0
Aug. 1.	Paid to John Shoplift and Thomas Highway for endeavouring to put out the enemy’s bonfire	2	3	0

Aug. 2. Paid the Surgeon for sear cloth for their
 bruises

1 1 6

The above really includes much of what was then going on in the London of that Jacobite time. According as the dates marked Hanoverian or Stuart anniversaries, so was the outlay for material of a hostile or pleasant nature, rue or roses, oaken-boughs or putting out of Whig bonfires, punch for Jacobite prisoners in Newgate, and money for aid to various sorts of traitors. In a later passage, *Sir John Woodville* (a Jacobite) objects, however, to the employment of dissolute and abandoned fellows for whom the pillory and gallows seem to groan. To which objection, *Dr. Wolf* answers with this remarkable introduction of party politics, on the stage: ‘’Tis true, indeed, and I have often wish’d ’t were possible to do without them; but in a multitude all men won’t be Saints, and then again, they are really useful; nay, and in many things that sober men will not stoop to.... They serve, poor men, to bark at the Government in the open streets, and keep up the wholesome spirit of Clamour in the common people;—and, Sir, you cannot conceive the wonderful use of Clamour; ’tis so teasing to a Ministry; it makes them wince and fret, and grow uneasy in their posts.... Ah! many a comfortable point has been gain’d by Clamour; ’tis in the nature of mankind to yield more to that than to Reason. E’en Socrates himself could not resist it, for, wise as he was, yet you see his wife Xantippe carried all her points by Clamour. Come, come, Clamour is a useful monster, and we must feed the hungry mouths of it, it being of the last importance to us that hope to change the Government, to let it have no quiet.’

One may fancy the glances that went up to the royal box on the king’s nights, when the above words were emphasised; and the smiles among the Jacobite ladies, when *Wolf* paid the following compliment to their White Rose fidelity: ‘To give them their due, we have no Spirits among us like the Women; the Ladies have supported our Cause with a surprising constancy. Oh! there’s no daunting them even with ill-success! They will starve their very Vanities, their Vices, to feed their Loyalty! I am informed that my good Lady, Countess of Night-and-day, has never been seen in a new gown, or has once thrown a die at any of the Assemblies, since our last general Contribution.’ And once more the house must have rung with derisive laughter when *Wolf*,

ADVANTAGES
OF CLAMOUR.

POLITICAL
ALLUSIONS.

alone on the stage, sneered at Jacobite Sir John, in the popular phrase, as an idiot for supposing ‘that a Protestant church can never be secure till it has a Popish Prince to defend it.’

Allusions of kingly clemency to repentant rebels were not wanting in the play, but the most audacious passage in it was this sketch of *Wolf*, in which the audience recognised a portrait of Patten. ‘He went with us, Madam, none so active in the front of Resolution, till Danger came to face him; then, indeed, a friendly fever seized him, which, on the first alarm of the king’s forces marching towards Preston, gave him a cold pretence to leave the town’....

The political passages were skilfully enough worked into the dramatic story. With them, there was no lack of incense for the king or prince to savour. The daintiest dish of this sort was to be found in *Heartly*’s account of the interview of the pardoned Jacobite, *Charles*, with his Hanoverian father. ‘The tender father caught him in his arms, and, dropping his fond head upon his cheek, kissed him and sigh’d out, *Heaven protect thee!* Then gave into his hand the *Royal Pardon*, and, turning back his face to dry his manly eyes, he cried, “Deserve this Royal Mercy, and I’m still thy *Father!*” The grateful youth, raising his heart-swoll’n voice, reply’d, *May Heaven preserve the Royal Life that gave it!*’ Some could sympathise, others would laugh at this, but how great Augustus looked as he listened, supposing he understood it, is quite beyond conjecture.

INCENSE FOR
THE KING.

The Jacobites took it for satire in disguise, and the Whigs, after applauding, got their opportunity for a roar when *Sir John* expressed his satisfaction at *Heartly* having been born the year before the Revolution, as he might, in consequence, be taken for a ‘regular Christian’; and the roar was not less when this Jacobite, *Sir John*, was described as a man who, ‘Name to him but *Rome* or *Popery*, he startles, as at a Monster, but gild its grossest Doctrines with the Stile of *Catholick English*, he swallows down the poison, like a cordial!’ After this fling at the disloyal Ritualists of that day no more religious or political allusions were made to delight or exasperate portions of the audience, till *Heartly* delivered the last speech, which took the form of a little political lecture, as thus: ‘Give me leave to observe that, of all the arts our enemies make use of to embroil us, none seem so audaciously

A LECTURE
FROM THE
STAGE.

preposterous as their insisting that a Nation's best security is the Word of a Prince whose Religion indulges him to give it, and at the same time, obliges him to break it. And, though perhaps in lesser points our politick disputes won't suddenly be ended, methinks there's one Principle that all Parties might easily come into, that no change of Government can give us a blessing equal to our Liberty;' and then the too eager applause of the audience was hushed to hear the tag,—

Grant us but this and then of course you'll own,
To guard that Freedom, GEORGE must fill the Throne.—

On uttering which words, Mr. Wilks, as *Heartly*, bowed to the king. Amid the peals of applause that followed, Mrs. Oldfield swept down the stage to speak the epilogue. It was less indecent than such pieces usually were, and it half apologised for building a play on modern politics. At the same time it justified the proceeding, and claimed merit for 'executing it with good feeling':—

Even Rebels cannot say,
Though vanquished, they're insulted in this play!

They did, however, both say and feel it. There was not a **PUBLIC FEELING.** Tory, whether play-goer or otherwise, who ever forgave Cibber for this assault on his principles. Cibber however had no lack of supporters.

'Last night,' says Read's 'Weekly,' 'the comedy called "The Nonjuror" was acted at His Majesty's Theatre in Drury Lane, which, very naturally displaying the villainy of that most wicked and abominable crew, it gave great satisfaction to all the spectators.'

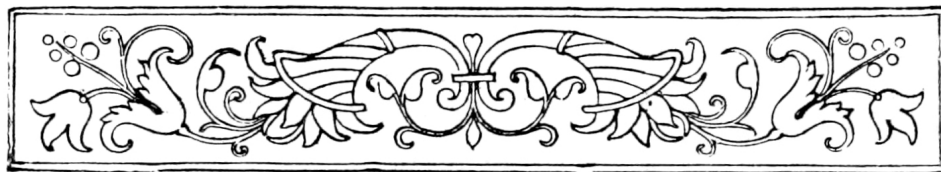
In the 'Apology for his Life,' Cibber gives a just reason for the scarcity of outspoken opposition to his partisan comedy which had a first run of eighteen consecutive days. 'Happy was it for this *play* that the very Subject was its Protection. A few Smiles of silent Contempt were the utmost Disgrace that on the first Day of its appearance it was thought safe to throw upon it. As the Satire was chiefly employed upon the Enemies of the Government, they were not so hardy as to own themselves such by any higher Disapprobation or Resentment.' The Jacobites attacked him in other

ways. They accused him of stealing a previous adaptation of Molière's 'Tartuffe,' and the following advertisement showed the spirit of the accusation: 'This day is published a translation of Molière's "Tartuffe, or the French Puritan," by Medbourne, in which may be seen the plot, characters, incidents, and most part of the language of "The Nonjuror."'

While this piece was being played, Atterbury, in a letter to Mar, describes the London Jacobites as 'sitting silent and quiet, and pleasing themselves with the odd management here at home, without raising any expectations from abroad. And in the present situation of affairs I am glad they do not, for our domestic divisions and folly are sufficient for the present to keep up men's spirits without being told that certain relief is near at hand.... What they see here pleases them so much that they can wait with a little patience for what they do not see or hear.' And so ended the year of the Act of Grace.

ATTERBURY'S
OPINION.





CHAPTER XV.

(1718.)



THE Jacobite rage aroused by 'The Nonjuror' (so 'damned a play,' Pope called it) seemed to increase even after the novelty had worn off. Cibber's bitterest foe in the press was Mist's 'Weekly Journal.' On the 4th February, 1718, this ultra-Jacobite paper contained the following paragraph: 'Yesterday, died Mr. Colley Cibber, late Comedian of the Theatre Royal, notorious for writing "The Nonjuror."' Upon this, Cibber pleasantly says, in his 'Apology':—'The compliment in the latter part, I confess I did not dislike; because it came from so impartial a Judge; and it really so happened that the former part of it was very near being true; for I had that very day just crawled out, after having been some weeks laid up by a Fever: However, I saw no use in being thought to be thoroughly dead, before my Time, and therefore had a mind to see whether the Town cared to have me alive again. So the play of the "Orphan" being to be acted that Day, I quietly stole myself into the part of the *Chaplain*, which I had not been seen in for many years before. The Surprize of the Audience at my unexpected Appearance on the very Day I had been Dead in the News, and the Paleness of my Looks seem'd to make it a Doubt, whether I was not the Ghost of my real Self Departed; But when I spoke, their Wonder eas'd itself by an Applause, which convinced me they were then satisfied that my Friend *Mist* had told a *Fib* of me.'

But there was at this period a tragedy in contemplation which drew the public interest far away from Cibber and his comedy. It is necessary to go back a year or so, in order the better to understand the principal actor.

In the year 1711, there was a pupil at the Latin school in Salisbury, who was remarkable for his 'fine parts.' His name was James Sheppard. His late father had been a glover in Southwark. His uncle, Dr. Hinchcliffe, took the father's place, and provided for this promising boy. The lad was excessively fond of reading;

A YOUTHFUL
JACOBITE.

and, in order to catch an intelligent young fellow for the Jacobite cause, some Salisbury Nonjurors thrust upon him their party pamphlets, which the boy read and re-read till he became more Jacobite than the writers. Perilous stuff, so thought Dr. Hinchcliffe, and he took the too earnest student from the Latin school, and bound him apprentice to a Liverpool coach-painter.

In 1715, Liverpool was as much excited as London by the question between the king regnant and the king claimant. Young Sheppard was gloomy and silent. The fray fought out adversely to the Jacobites, and the executions of the next year chafed his temper. Among his fellows, he let drop the fearful words that it might be a good thing *to kill the king*. He was counselled, if he would not go to the gallows, not to give tongue to such possibilities, for the future. The matter sank deep into his mind. Sheppard thought much and wrote much, and at last, he disappeared from Liverpool.

A WOULD-BE
REGICIDE.

Shortly after, it was early in 1718, a quiet-looking young man left a letter at the City dwelling of a Nonjuring minister, named Leake. He would call for an answer, he said, in a day or two. The minister was nearly lost in fear and horror when he read this monstrous epistle from a stranger. The writer spoke of the ‘discontents’ of the nation; and suggested that they might be remedied by removing *Prince George*, and putting ‘*our king*’ in his place. This could be done, said the writer, without much bloodshed! The young maniac then stated that if Leake would pay Sheppard’s journey to Italy, and furnish him with a letter to King James, he would undertake to bring the king secretly into the country, and to smite the usurper in his palace. It was, he said, ‘easy to cut the thread of human life.’ If he succeeded, King James could publicly appear. If he failed, the king might still lie safely hiding. Sheppard promised that, if he himself were taken, no amount of torture should extract from him a single word damaging to the sacred cause. He was ready to suffer the cruelest death, the best preparation for which, he thought, would be the reception of the Sacrament daily from the hands of a Priest, ignorant of his design.

To be found in possession of such a letter was a hanging matter. Leake dropped it at once into the flames, and then hurried to Sir John Fryer, a magistrate, who severely reprimanded him for destroying such an important document, and ordered the arrest of the enthusiast. Before the magistrate, in presence of the

A FIGHT IN
NEWGATE.

Secretary of State, and at his trial, at the Old Bailey, the speech and general carriage of young Sheppard were most becoming. When Leake tried to repeat the contents of the fatal letter, Sheppard calmly prompted or corrected him. The latter wrote it out from memory, and it agreed, literally, with a draft discovered among the prisoner's papers. He was, of course, found *Guilty*; and when the Recorder urged him to ask mercy of the king, Sheppard replied, 'I cannot hope for mercy from a King whom I cannot own!'

Between judgment and execution, this brave but erring boy of seventeen, lay in Newgate. Paul Lorraine, the Ordinary, and a Nonjuring minister, one Orme, fought for spiritual possession of him. 'He is of my flock!' said the Newgate chaplain. 'He is not of your communion,' retorted the Nonjuror. 'You are a rebel rascal!' rejoined Paul. 'You are a canting hypocrite!' cried the other reverend gentleman. At which words, they flew at each other and were in the midst of a furious stand-up fight, when discreet turnkeys rushed in, and separated the combatants.

On the day of execution, six persons suffered at Tyburn. In the morning, Ferdinando, Marquis of Paleotti, had the honour of hanging alone, out of compliment to his rank. He was the brother of the Duchess of Shrewsbury, and the murderer of his valet, whom he had slain, in a fit of passion, on some trivial provocation. The Duchess tried hard to get her brother beheaded, and the Prince and Princess of Wales called on her to express their regret that they could not turn the king from his determination that the Marquis should be hanged—an infamous way of death for a Marquis, as it would degrade every relative he had at foreign courts. Paleotti was hanged accordingly, and he died becomingly, as a gentleman should. Had he only lived as decently, he would never have gone to Tyburn at all.

UP THE HILL
TO TYBURN.

Later in the day, St. Patrick's Day, 1718, two carts went up Holborn Hill, to Tyburn. In one sat young Sheppard, in calm, unostentatious bearing, as much of a gentleman as Paleotti. Four companions, doomed to die at the same tree, rode, pale and silent, hustled together, in the other cart. One of them was a burglar; the second, a highwayman; the third was a young lad who had taken to thieving as a profession; and the fourth was a younger girl who had stolen some finery to the value of one pound sterling! These, however, attracted only a

SCENE AT
TYBURN.

passing attention. All eyes were turned more intently towards Sheppard. All Jacobite hearts sympathised with him on his dolorous way to death. Women looked down upon him from the windows, tenderly and tearfully, that one so young, and handsome, and well-endowed, should die so early, and in such dreadful manner. The Whig 'mobile' assailed him with insulting shouts. But Sheppard was not moved by it. His dignity was not even ruffled by the renewed contest in the cart of the Newgate chaplain and the Nonjuror. Each sought to comfort or confound the culprit, according to his way of thinking. Once more, the messengers of peace got to fisticuffs, but as they neared Tyburn, the Nonjuror kicked Paul out of the cart, and kept by the side of Sheppard till the rope was adjusted. Then he boldly, as those Jacobite Nonjurors were wont, gave the passive lad absolution for the crime for which he was about to pay the penalty; after which he jumped down to have a better view of the sorry spectacle, from the foremost rank of spectators.

The general belief was that Sheppard was perfectly sane; but there was a general conviction that the boy's assertion of the hopelessness of expecting mercy at the hands of a king whom he could not own, afforded a sublime opportunity (for showing that mercy) which the sovereign had thrown away. As nobody was the worse for the young Jacobite's design, his pardon would have shown that King George knew how to triumph over his own passions; 'but,' says an audacious Jacobite contemporary, 'the Great seldom forgive offences committed against themselves.'

Sheppard left a letter and a 'speech,' written, it was said, by Orme, which were printed privately, and circulated, in spite of the Government. The boy's portrait was as secretly and extensively sold, equally in spite of the authorities; and the ministry, having nothing better to do, settled an annuity of 200*l.* a year on the Nonjuror, Leake, for discovering the treason, and clapped the other Nonjuror, Orme, into Newgate, for absolving the traitor. Orme's chief offence lay in his being the author of the 'last dying speech,' in which the crime was justified. 'Mr. Orme's friends,' said the sarcastic Whig papers, 'are very apprehensive that he will shortly have to prepare a speech for himself!'

Neither severity nor sarcasm could subdue the Jacobite spirit. In the Jacobite taverns a new health was drunk with loud cheers:—'To Miss Clarke!' This was the name of a

A JACOBITE
TOAST.

pretty girl, in Sunderland, who had boldly drunk King James's health, in a mixed company. She was called to account for it, of course; but she was only lightly fined, and several of the justices kissed her, as she passed in front of the bench, on her way out of court. Thence came the health, given in London coffee-houses, 'to Miss Clarke and her friend,' as Jacobite revellers lifted their punch to their lips, and winked one eye as they went through this performance. Both eyes subsequently glittered with delight when Orme was liberated unconditionally, as no case could be made out against him.

One of the consequences of Sheppard's crime was to suggest murder to another hot-headed fanatic, of the opposite faction. His name was Bowes. To revenge the design of Sheppard to murder King George, Bowes offered to one of the ministers to go to Italy and murder the so-called King James. He was properly shut up as a madman.

Pamphleteers, on their side, were as active as men of darker designs.

SATIRICAL
PAMPHLET.

Some little insight into London manners is afforded by one of their works, published this year, entitled 'The Necessity of a Plot; or, Reasons for a Standing Army. By a Friend to K.G.' It is, of course, a satirical pamphlet. Among the good or bad reasons for having a permanent force is the one noticed in the following paragraph: 'I do not conceive where our youth of spirit could be so well educated as in a Military School. The laudable accomplishments of a Fine Gentleman are there so suddenly acquired that a Fellow who but just throws off a private person's Livery, to wear that of the King's, commences immediately a most accomplished Beau. He can swear with as good a grace, talk as rationally against Jesus Christ, the Church, and Parsons, as if he had served an Apprenticeship at the Grecian.'

This pamphlet, provoking in both style and subject, affected a reverence for the king, so finely expressed that the satire beneath it was ungraspable by the law. There were some members of the House of Commons, it remarks,

LOVAT
ALREADY
SUSPECTED.

who were bold enough to assert that there was disaffection in this country. The writer suggests that it was only disaffection to the German language, morals, custom, and ladies. The king himself might be called 'the Delight of Mankind,' if people chose—as Titus had been called by an earlier people.

Was not the king the darling of those who welcomed him with shouts, plays, balls, and bacchanals? How disloyal it was to oppose his wish for a standing army! Did the thinking people of London reflect on the danger which Russia was becoming to us? Russia was said to be far off. Not at all; she was next door to us. She was near to Sweden, which was next to Norway, which was only a few days' sail from Scotland, which *might yet prove to be but a week's march from London*. Therefore, let a standing army be raised, and the people be made to pay for it. Dull people! Why, there was already peril looming from Scotland. Brigadier Mackintosh's ghost had been seen in the Highlands, and Rob Roy (whose name was thus familiar to the Londoners of 1718) was moving about uncontrolled, as if he were undisputed lord of Scotland. The pamphlet-writer suggests that a standing army should not only be raised, but be kept standing in daily array, as if Mackintosh and Rob Roy were at the gates of St. James's! Then, as for Scotland, why not let Lord Lovat have 30,300 men to keep it safe? The character of Simon Fraser was thoroughly understood by the Paternoster-row pamphleteer, although Lovat had been thorough Whig and Hanoverian in the late rebellion. Let him have the men, says the 'Friend to K.G.' 'From Lovat's principles and dexterity, I think him almost capable of everything. Besides,' the laughing coffee-house readers were told, 'a Gentleman is coming from France who will give you reasons enough for keeping up a standing army.' This was the first intimation to the Londoners that Bolingbroke might possibly be recalled.

This clever pamphlet supported the cause which Shippen advocated, but in another way. That offender was then suffering a very mild imprisonment. His Jacobite friends supplied him with all the luxuries that money could purchase. A boat from France was freighted with wine for him, but it was run down in the Thames, and the precious liquid was lost. When downright Shippen was released at the end of the Session, jubilant sympathisers escorted him to the Strand; and there was a levee at his house in Norfolk Street, as crowded as the opposing levees of the king and his son put together.

The wrathful old Jacobites were certainly wanting in reason. Even wise, liberal, or politic actions were decried by that disappointed faction. In April, 1718, Echard published in London his 'History of England.' It was

HEARNE ON
ECHARD'S
'ENGLAND.'

dedicated to the king, who in return sent the author three hundred guineas. ‘I suppose,’ said Hearne, ‘t is a most roguish, whiggish thing, much such as what Kennet writes. I have not read it,’ added the Jacobite; ‘such writers ought to be laid aside. Yet I hear that Dr. Prideaux, Dean of Norwich, mightily commends this Echard’s “Church History.” But Prideaux is a great Whig himself, though a good scholar.’ Even Hearne allowed that Echard had a good pen; but he tempered the slight concession by the remark that Echard never looked into, much less followed, original authors.’

All this while secret but busy plotting was going on. Atterbury, in correspondence with the Chevalier and his Court, thus alludes (in a letter to Mar, June, 1718) to one of the go-betweens of that Court and the Deanery at Westminster. This agent passed by the name of ‘Johnson,’ but he was the Nonjuror Kelly, and he is thus described by the Bishop:—‘He has been far from meddling here, or venturing to enter with me into matters foreign to what I apprehend to have been the design of sending him. If he mistook my thoughts upon a certain occasion ... I will take effectual care that he shall mistake them no more.’ After speaking of his ‘natural indisposition towards a correspondence of this kind, especially at a juncture when so many, and such malicious, eyes are upon me,’ he laments want of wisdom and unity among the Jacobites around him, but he adds: ‘God grant that our deliverance may not be so far off!’

**ATTERBURY
CONSPIRING.**

In another document, written no doubt at the Deanery, Westminster, the patriotic bishop reviewed the general condition of things in London, and concluded by declaring that nothing would be done there unless an invading force came hither, ‘from France, Spain, or Sicily!’

The time, he thought, was favourable, and he gave his reasons in the following picturesque sketch of city, court, and administration:—

**THE BISHOP’S
VIEW OF
THINGS.**

‘June, 1718.—Informations are sometimes officiously given concerning transactions on foot; but no effectual care is taken to discover the men or the measures by which they are carried on; nor do those whose peculiar business it is to search into these things, seem at all to concern themselves in them, though they are forced now and then to commit and examine a person (upon particular information given) and then dismiss him, without

any hurt done or light gained by that means. Hearne' (the pseudonym for King George) 'in the meantime is soothed up with new pleasures and new Mistresses. English Ladies and a Garden take up all his time, and his indolence and ignorance of his affairs are more remarkable than ever; and this sense of life is not casual, but plainly contrived for him. Should any accident happen, they who manage under him have no refuge; their heads must answer for what they have conceived and done, and perhaps without any formal process of Law, vengeance would be taken of them. Nor could they have any methods of saving themselves but by a voluntary exile, should they have time enough to get away upon such an occasion. They seem to take no single step towards avoiding this storm, as the fastest friends of the present Settlement have been all along gradually removed and disgraced; so are some of them even now, that still continue in the service, far from receiving the encouragements they have promised themselves.'

The king kept none the more private, nor protected himself any the more, for any troubles that were seriously threatening. There seemed really to be in him the ignorance or indifference described by Atterbury. Early in July the king drove from Kensington to sup with the Duke of Kingston, at Kingston House, Acton. At three o'clock on the following morning he was cheerily trotting home in his ponderous carriage, daylight breaking on him, as he passed the men hanging in chains on the gibbet at Shepherd's Bush. There is something more lively in another royal incident. One evening during the summer, the young Princesses left London for Hampton Court. Nearly the whole way they were singing French and Italian songs, and as the 'Lady-governess' ordered the coachman to drive slowly through the crowds that lined the road, the pretty incident and the implied confidence in the public loyalty delighted the people, and rendered the princely vocalists as safe as if they had been in their father's drawing-room.

**THE ROYAL
FAMILY ON
THE ROAD.**

Nevertheless, there was much uneasiness in this same July, 1718, as to the temper of the army. It was not only that a drunken soldier would now and then shout for King James in the street, but that sergeants and men met in taverns, and talked or plotted treason against King George. Some of these latter, as they passed handcuffed through the Strand to the Savoy prison, were hissed by the Whigs and cheered by the Tories. Early in July the 'Scottish regiment of Foot Guards' was paraded in the Park, and the Articles

of War were read aloud to them, at the head of every company. This was the regiment most suspected of faithlessness, and whose members had been most watched. At this parade persons attended ‘incognito in Hackney Coaches,’ as the newspapers state, to identify any of the men whom they might have seen at private meetings held with treasonable ends in view. The spies failed to identify any; and when the significant War Articles had been read with distinct emphasis, the regiment marched, in sullen silence, out of the Park.

Later in the year, the public had the not too cheering spectacle of the 3rd Regiment of Guards having the oath of allegiance administered to them at the drumhead. Subsequently came an order that such of the gentlemen of the 4th troop of Horse Guards (commanded by the Earl of Dundonald) as followed trades, should abandon such lay occupations within three months, or dispose of their posts. This strange order becomes easier to understand, when it is remembered that ‘gentlemen’ is the word still applied to the whole regiment; and that, in 1718, Government did not like the practice of the soldier being half the day a civilian. Some solace was awarded to the army generally for various restrictions. Pay was advanced to 5s. a week; and clothes were to be furnished, as in the last Charles’s days, without deductions. This Stuart practice did not satisfy the perverse soldier. Two or three times a week, privates who had talked in too laudatory terms of King James, or who had deserted King George, were to be seen by thousands of spectators in the Park, undergoing the severe punishment—some of running, other of walking, the gauntlet. In either case the flagellation was severe. In October, when it was thought expedient to reform several regiments, which were accordingly ordered to be ‘broke,’ some men and, it is said, a whole regiment at Nottingham, refused to lay down their arms. Great discretion was required to tide smoothly over these perils.

There was, however, no appearance of any sense of peril at Court, where gaiety with a certain amount of quaintness prevailed. The people who attended there were of a mixed quality. On the little Duke of Gloucester’s birthday, Lord Lovat was to be seen bearing the sword of state before the king, to the Royal Chapel. On a levee day, the pushing, preaching, loyal, reverend Charles Lambe, with all the sermons he had preached against traitors, during the rebellion, printed in

**MILITARY
DIFFICULTIES**

**SCENES AT
COURT.**

one volume, laid them at the king's feet, kissed the king's hand, and got nothing by his motion. On another levee day, Colley Cibber was at Court, holding daintily a printed copy of 'The Nonjuror,' opened at the dedication, which he presented, kneeling, to his Majesty, who gave him his hand to kiss, and promised him a 'purse' for his work. Colley got the purse with a couple of hundred guineas in it. On a drawing-room day, a stranger courtier stood in the royal presence, namely, a woman who had journeyed from Lanark, under the impulse of a 'longing' to kiss the royal hand. This inclination was gratified, and, imprudently, a gift was added of twenty guineas, to take the lady home again—a circumstance which greatly moved sundry other wives in the same direction. When the Rev. Mr. Peploe, of Preston, who had stuck to his Hanoverian principles, while the Jacobites lorded it, in that town, made his appearance at Court, Whig zeal described the king as waxing merry, not to say witty. His Majesty is reported to have remarked that, '*Peep low* should look high.' Loyal people laughed at the joke, but Mr. Peploe laughed with better reason, on being appointed Warden of Manchester College. He was afterwards made Bishop of Carlisle. On a later occasion, Colonel Oughton was to be seen, pulling a shy private of the 2nd Foot Guards, through the press, to the front of the throne, where the man was duly presented to his Majesty, with a copy of an ode which he had written on 'Liberty.' He was the first soldier who obtained preferment, not on professional, but on literary, grounds.

After receptions like the above, the king usually honoured some Whig nobleman with his company, at dinner or supper—fearless, though the air was full of sinister reports. The Prince and Princess of Wales, on their parts, did not want for mirth. They went to see the mad folk in 'Bedlam,' and had especially good sport with a demented creature who thought herself a queen, and who solemnly married them to each other, amid royal bursts of questionable laughter.

Throughout the year the Nonjurors continued to be harassed by the Government. Their chapels were pointed out by the Whig press to the mob, for destruction. Sometimes the pulpit was protected by a burly butcher or two. No man was admitted who did not wear a black ribbon at his button-hole. Every woman was suspected who came to divine service without a black necklace. Loyal officials, notwithstanding, would force their way in,

A SCENE IN
'BEDLAM.'

tender the oath of allegiance to the congregation, and arrest all those who declined to take it, unless they could show they had been already sworn. When a report was circulated that the Nonjurors had ‘some design’ afoot, the Whig press piously hoped they ‘might all be blasted, like their departed brother, *Sheppard!*’

One at least of these pious loyalists came to grief himself. His name was Burridge. He was editor (‘writer’) or sub-editor (‘corrector’) of one of the three ‘Weekly Journals’—that one which had for its second name ‘The British Gazetteer.’ Loyal and pious Burridge got so drunk in a tavern as to lose all control over his tongue. He let it loose in the utterance of inexpressibly horrible blasphemies, for which he was indicted and found guilty. Loyal as he was, Burridge did not escape. His own paper very coolly recorded that he had, on such a morning, been whipt from the New Church in the Strand to Charing Cross, and then sent to prison for a month, there further to remain till he had paid a fine of 20s. The ‘Jacks’ were jubilant, and cheered lustily when the hangman ‘laced’ the poor wretch’s back with his whip, as Burridge passed at the cart’s tail slowly along the Strand. These ‘Jacks’ who gloried in seeing a blasphemous Whig thus mauled were not very religious people themselves. There was complaint being constantly made that Jacobites who went through the formality of attending church—and particularly the ladies—made a practice of laughing, sneering, or otherwise showing their contempt, whenever the king and royal family were prayed for.

One of the tumultuous Jacobite incidents of the year was the passage of the Rev. Mr. Bisse, of Bristol, from the Western Road to the house of the messenger who had him in custody, at the cost of 6s. 8d. daily, for his keep. Bisse, in the spring of the year, had preached a sermon to an ultra-Jacobite congregation, from this suggestive text, Psalm xciv. 20-23: ‘Shall the throne of iniquity have fellowship with thee, which frameth mischief by a law? They gather themselves together against the soul of the righteous, and condemn the innocent blood. But the Lord is my defence, and my God is the rock of my refuge. And He shall bring upon them their own iniquity, and shall cut them off in their own wickedness: yea, the Lord our God shall cut them off.’ The sermon proved to be more directly audacious than the text was suggestive. Bisse impressed upon his hearers that God hated usurpations, although, as

A WHIG
WHIPT.

TREASON IN
THE PULPIT.

they knew, he permitted them. God had allowed an usurpation of now thirty years' duration in England, where, he said, there had been neither laws nor parliament since James II.'s days. He is reported to have added: 'The present possessor is obliged to unite with Turks, infidels, and heretics, to save his bacon!' The treason was as malicious as the expression of it was vulgar. Messengers were sent down to arrest Bisse, on whom they laid hands on the following Sunday, in church. But the Jacobite congregation arose, they beat and repulsed the messengers, and they triumphantly rescued their pastor!

The offender, however, was in a short time arrested. A crowd assembled, to cheer or hiss him, on his way to the messenger's house, in Charles Street, Westminster. Between Bisse's various examinations, he seems to have been a prisoner at large—but bound to return to custody, nightly. He abused the liberty, if there be truth in the charge, that at this period he preached in a Nonjuring chapel, to this text from Ezekiel xxi. 25-27: 'And thou, profane wicked prince of Israel, whose day is come, when iniquity shall have an end, Thus saith the Lord God; Remove the diadem, and take off the crown: this shall not be the same: exalt him that is low, and abase him that is high. I will overturn, overturn, overturn it: and it shall be no more, *until he come whose right it is*; and I will give it him!' Such was the ring of the Jacobite metal; and Bisse, in his defence, asserted that he was only a humble instrument in God's hands, giving forth the sound which God impelled.

This Jacobite uttered those sounds in churches in three separate counties. He was found guilty in Somersetshire, Wiltshire, and Buckinghamshire; and the Court of King's Bench condemned him to stand twice in the pillory; to be imprisoned for four years, to pay a fine of 500*l.*, and to find sureties to the amount of 2,000*l.* for his good behaviour during life. Bisse stood in the pillory at the Royal Exchange and at Charing Cross. The Whigs complained that he was held so loosely, he could withdraw his head when he pleased. Favoured by the Jacobite hangman, Bisse was protected by a Jacobite mob. A collection was made for him on the spot; and people in carriages who did not contribute liberally were roughly handled. Women flung flowers on to the scaffold. A single individual who ventured to make an observation aloud, of a Whiggish quality, was compelled to ask Bisse's pardon on his knees. For the rudely, out-spoken priest, the affair was an ovation, and

**MORE
TREASON.**

Defoe remarked, in the 'Whitehall Evening Post,' that Mr. Bisse did not bear himself too modestly.

Similar scenes took place when another Jacobite, Harrison, stood in the pillory, at Whitechapel, for sedition. He stood at ease, he was protected from all assault and insult, and, according to the Whig papers, 'Non-resisting ladies supplied him with money or brandy.' Other offenders, felonious and political, were summarily got rid of. A Mr. Forward, a London merchant, offered to transport all the convicts of England to the Transatlantic Plantations, at 4*l.* a head. The Government offered him 3*l.* for each; and, at that price, whole ship-loads of ruffians, but with some honest fellows among them, were cast into slavery, for indefinite periods.

**JACOBITES IN
THE PILLORY.**

The light penalty of the pillory had no deterring effect on some ministers. On the 5th of November, the Rev. Mr. Milborne preached at St. Ethelburg's, London, and he traced all the present miseries of the Church to that abominable anniversary, but whether his conclusion was based on the fact that the gunpowder plot had failed, or William's invasion of England had succeeded, Mr. Milborne did not say.

Although London Jacobitism was not wanting in malice and menace in this and the preceding year, the king and royal family maintained a dignified indifference. George I. was the most exposed to peril, but he met it like a man. He frequently went to the theatre, not in a bullet-proof carriage densely surrounded by cavalry, but in a sedan chair, some members of the Court being conveyed in similar vehicles. Such vehicles were easily assailed; an 'ugly rush,' pet phrase of the modern demagogue, might have overturned the king, and put him 'out of the story,' as the Sagas say, in a minute; but he encountered nothing worse than a distant word of chaff, which was perhaps not audible, or, if so, not understood. In this way, he was carried, in a November night, 1718, to see 'The Orphan,' unmolested; and he went in the same conveyance, and in equal comfort and security, in the same perilous month, to the 'Little Theatre in Lincoln's Inn Fields', where he laughed over 'Le Maître Etourdi,' and fairly 'roared' at 'Les Fourberies d'Arlequin,' but he understood those farces better than he did Otway's loftier tragedy.

**THE KING AT
THE PLAY.**

There remains to be noted a most remarkable illustration of these Jacobite times, in connection with the celebrated Daniel Defoe, the Ministry, and the London press. Five letters written by Defoe, in the first half of this year, were discovered in the State Paper Office, a few years ago. They are inserted, in 'Notes and Queries, 3rd Series, vol. vi., p. 527-9.' They are addressed to some official in the Secretary of State's Office, for the information of his superiors. From these startling documents, sad truths are to be gathered. They make the strange revelation that the author of the 'True-Born Englishman' was in the secret service of the Government under whose resentment he was supposed to be suffering. He was giving information of 'traitorous pamphlets' to Lord Sunderland. By Lord Chief Justice Parker's recommendation to Lord Townshend's Ministry, Defoe had been employed on 'a little piece of secret service,' which won for him the subsequent favour of Lord Stanhope. Under Townshend, Defoe, the once ultra-Whig, appeared in the disguise of a Tory. He became chief proprietor of the 'News Letter,' a Jacobite paper very hostile to the Ministry. He took out all its sting, to the satisfaction of his secret employers, by writing mild Toryisms in it himself, and striking out all that was vigorous and damaging to ministers, in articles sent in by contributors. At a later period Lord Sunderland retained Defoe in the same questionable employment and rewarded him in the same manner as Lord Townshend had done. 'With his Lordship's approbation,' says Defoe, 'I introduced myself in the disguise of a translator of the "Foreign News," to be so far concerned in this paper of *Mist's*, as to be able to keep it within the circle of a secret management, also prevent the mischievous part of it, and yet neither *Mist* nor any of those concerned with him have the least guess or suspicion by whose direction I do it.' In this case, Defoe was not a proprietor, therefore should matter offensive to the Government slip in, despite his watchfulness, Lord Sunderland is begged to consider whether he has a servant (Defoe) to reprove, or a stranger to punish! The extent of the dirty work done by Defoe is to be seen by his remark that the 'News Letter,' the 'Mercurius Politicus,' and 'Mist's Journal' shall 'pass as Tory papers, and yet be disabled and enervated, so as to do no mischief or give any offence to the Government.' Subsequently, poor Defoe writes, 'I am for this service posted among Papists, Jacobites, and enraged High Tories,—a generation who, I profess, my very soul abhors. I am obliged to hear traitorous expressions and outrageous words against his Majesty's person

DANIEL
DEFOE.

and Government, and his most faithful servants, and smile at it all as if I approved it. I am obliged to take all the scandalous and indeed villainous papers that come, and keep them by me as if I would gather materials from them, to put them into the news; nay, I often venture to let things pass which are a little shocking, that I may not render myself suspected. Thus I bow in the house of Rimmon.'

This is pitiable in the extreme. So is Defoe's occasional expression of fear lest a paragraph too Jacobitish in flavour, inserted during his absence, should be laid to his charge.

**HIS DIRTY
WORK.**

He almost servilely entreats to be remembered as the Government's slave who could not help it, but who is yet worthy of his reward. Besides, 'it is a hard matter to please the Tory party, as their present temper operates, without abusing, not only the Government, but the persons of our Governors, in every thing they write.' Nevertheless, as all former 'mistakes' of his were forgiven by his former Ministerial Whig employers whom he served as a Tory, he trusts for a continuation of favour, which in his Tory disguise he will constantly endeavour to merit!

Even Jacobite Mist himself came into an 'arrangement' into which he was frightened by Defoe, as a cautious and prudent Tory. He was made to see safety in rallying the

**MIST'S
JOURNAL.**

Whig writers, and in admitting foolish and trifling things only in favour of the Tories! Mr. Mist resolved that his paper should in future 'amuse the Tories but not offend the Government!' But for such resolution, Defoe assured him ruin and a prison would speedily be his inheritance. Correspondents, in their innocence and ignorance, wrote letters loaded with treason to the 'Journal.' Mist submitted them to Defoe, who put them aside as improper; and then, without Mist's knowledge, sent them to the Government! As for the 'Journal' itself, Defoe writes: 'I believe the time is come, when the "Journal," instead of affronting and offending the Government, may in many ways be made serviceable to the Government, and I have Mr. Mist so absolutely resigned to proper measures for it, that I am persuaded I may answer for it.'

Such is a sample of the morality of 'honest Daniel Defoe,' in matters regarding the London press and home politics in those Jacobite times. The full benefit of what has been said in his defence he is, however, entitled too: namely, that he was a

**JACOBITE
HOPES.**

Whig, that he never ceased to be a Whig, and that he sincerely supported the Whig cause and Whig principles while (in the pay of a Whig Government) he passed resignedly for a Papist, a Jacobite, and a High Tory.

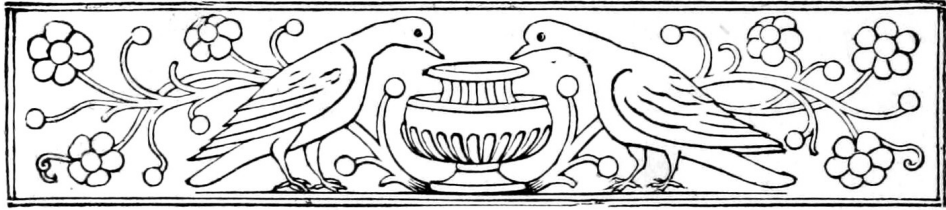
There was undoubtedly much active Jacobitism going on in London, throughout this year, of which the Government knew nothing, or despised; probably the latter. They ignored the Cardinal Dubois's English mistress who served him as his Intelligencer, and they let the fashionable French dancing-master, Dubuisson, carry about his kit to aristocratic houses without molestation, though he was well known to be an agent of Cardinal Alberoni, the friend of the Stuarts. 'How it was they did not hang him,' says Dubois, in his 'Mémoires,' 'I never could understand.'

Probably, Dubuisson served the Cabinet at St. James's better than he did Alberoni, whose ambitious projects had been checked by the death of his ally Charles XII. Yet, at the end of the year the Jacobites in London wore a radiant air. They toasted 'the Queen' that was to be, meaning the Princess Sobieska whom 'James III.' was about to marry; and again drank 'High Church and Ormond!' on learning that the duke was in Spain, preparing with Alberoni for an invasion of England and the restoration of the rightful king.

Towards the close of the year, the popular admiration was appealed to by the uncovering of the equestrian statue of George I., in the Royal Exchange. Neither loyalty, disaffection, or criticism had much to say to it. Indeed, criticism, such as it was, alone raised a voice, and then only with a mild sort of utterance: 'It was judged by the most eminent Masters of that Art to be an excellent and accomplished piece of Work.' Later in the year, December 15th, when Rowe died, one might expect to find some Tory sarcasm against that ultra-Whig Poet-Laureate, who furnished the prologue to 'The Nonjuror,' and for whom Nahum Tate had been displaced. The only expression in reference to the bard who revered Hanover was one of indifference for bards generally. 'Last Saturday,' say all the papers, 'died Nicholas Rowe, Esq., Poet Laureate to his Majesty, at his house in King Street, Covent Garden, and is to be interred in Westminster Abbey, where Cowley, Chaucer, Ben Jonson, and the rest of those people lie'!!

ART AND
POETRY.





CHAPTER XVI.

(1719.)



HE year 1719 opened with hopes on the part of the Jacobites which were doomed to be disappointed. The Chevalier had entered into

**THE SKIRMISH
AT
GLENASHIELS.**

the schemes of the Spanish Minister, Cardinal Alberoni, for overturning the English settlement. A landing in Scotland and an invasion of England were to be the means for re-establishing the Stuarts. Early in March, groups of Londoners were to be seen reading the proclamation which offered a reward of 5,000*l.* for the apprehension of the Duke of Ormond, the destined leader of the expedition that was to invade England. For catching and delivering attainted peers of less mark, 1,000*l.* was the sum offered; and rebel gentlemen beneath the dignity of a peer, were valued at 500*l.* each. The fleet destined to carry out the object of the invaders was so disabled by tempests, that after struggling from Cadiz to Cape Finisterre, most of the vessels returned to the former port, and no one in England enjoyed his anticipated chance of getting 5,000*l.* by capturing Ormond, 'Captain-General of the King of Spain;' or smaller prize for less important men. The Marquis of Tullibardine (the Jacobite son of the Whig Duke of Athol who came to London) and the Earls Marischal and Seaforth, did, however, land in Scotland in April, with about 400 followers, chiefly Spaniards. They were joined by 1,000 Highlanders. On the 10th of June, the Chevalier's birthday, the three leaders above named were defeated by General Wightman, at Glenashiels, but they contrived to escape. The Highlanders dispersed; the Spaniards surrendered; and therewith the first half of the year ended pleasantly for King George and his friends.

London lit her bonfires and otherwise illuminated. From Thomas's press behind the Royal Exchange was issued a satirical 'Hymn to the Victory in Scotland,' lines from which long hung on the popular tongue. The Scots and Spaniards were described in doggerel as being thoroughly beaten, yet escaping, 'Lost in a fog in sunshine weather.' The battle lasted from five a.m. till night, but when the field was won, there were neither wounded nor

slain upon it. 'Dead and Living fled together, without the loss of man or gun!'

Such mercy in this fight was shown,
We sav'd men's lives and lost our own.

After further doggerel and the usual infusion of coarseness, the Grub Street bard concludes by singing:—

Three hours beaten and none die,
Yet no man knows the reason why,
'Tis very strange 'tween you and I!

London, generally, had contemplated this new rebellion with indifference. The Government was by turns lenient and severe. It was thought expedient, one day, to pardon mutinous dragoons; on another, to be savagely cruel to a soldier who had, in his cups, sworn, sung, or said, hasty words in favour of King James. Under the windows of King George's palace men were thus punished. In Hyde Park, a soldier named Devenish, was tied nearly naked to a tree, and flogged by fourteen companies of his own regiment of foot-guards. This torture he underwent four times, and then he was flung into a hospital to die. A more guilty offender, Captain Lennard, who had enlisted men for the Chevalier's service, for which he might have been hanged, was allowed to transport himself out of the kingdom, on the promise never to return; and a too zealous Jacobite gentleman, who expressed to the soldiers at the Tower his astonishment at their serving an usurper, seems to have got off with a mere nominal penalty. On the other hand, printers, publishers, and vendors of papers that exaggerated the numbers of the rebels in Scotland, were sternly dealt with.

The Jacobites failed to keep their temper, even before their hopes were disappointed. In their eyes it was almost sacrilege for the Prince of Wales to occupy, even by purchase, the Duke of Ormond's forfeited White House at Richmond. When the duke's confiscated town house in St. James's Square was for sale, they went to it like pilgrims to a shrine, and saw it pass away, for 7,500*l.*, to an Irish gentleman, named Hackett, with unconcealed regret. 'The Duke of Ormond is in good health,' said the Jacobite papers vauntingly. The 'Post' scorned the idea that the duke had died at sea of fear

**JUDICIAL
CAPRICE.**

**ASSAULT ON
THE PRINCESS
OF WALES.**

or fever, as was reported by Whig writers of known veracity. The Jacobite press exasperated the Jacobites themselves into dangerous speech, and, in one instance, to dastardly action. On an afternoon in April, the Princess of Wales was being conveyed in her chair from Leicester Fields to St. James's. She was unprotected. A chairman of one of the foreign ambassadors, named Moor, took advantage of the opportunity, and, like the beast that he was, he spat three times in the lady's face before he could be seized. At his trial the ruffian tried to justify the act for which he ultimately suffered. Through a dense mass of people, Moor was whipt from Somerset House to the Haymarket. The mob encouraged the sufficiently active hangman, as cart, victim, and executioner passed along, by cries of 'Whip him!' 'Whip him!' Moor, wearing a cross from his neck, suffered stolidly; but at the bottom of the Haymarket the hangman continued to ply his whip till Moor was compelled to cry, 'God bless King George!' for which result the Whig mob hugged and caressed the hangman as if he had been a public benefactor.

At the palace there was so little alarm at the 'little rebellion' in progress, that the king resolved to leave his kingdom to the care of Lords Justices, and to go abroad, and to take with him the ungraceful and disreputable German women, who seldom appeared in the public highways without feeling the sting of a London epigram. In May, Lord Howe married Mary Sophia, reputed eldest daughter of the King's Master of the Horse, Baron Kielmansegge. But the bride was the daughter of that Master's master. The papers, however, only name the young lady's mother, and her fortune, 1,500*l.* a year, and 5,000*l.* in cash. On the day following the wedding, the king, whose interest in the matter was easily accounted for, wore a favour on the occasion, and had the newly-married couple to sup with him in the evening. A few days after, early in the morning, his Majesty was to be seen in a common hackney chair, being carried to Privy Garden stairs; thence a barge conveyed him over to Lambeth, where he took coach for Gravesend. Here, the king and suite went on board a boat, in which he was rowed to the buoy at the Nore, where the 'Caroline' yacht and an escort of men-of-war awaited him. A few minutes after he had set his foot on the deck of the yacht, he gave orders that all the nobility who had assembled there in his honour, should clear out of the ship. Thereupon the Majesty of England sailed away for Holland, having in attendance or company Mesdames von der Schulenburg and

**THE KING AND
HIS LADIES.**

Kielmansegge, and the ‘Duchess of Munster, *alias* Kendal,’ as the papers register that lady, with quite an Old Bailey air.

Just before the king’s departure, the trustees of the forfeited estates delivered in an account of Papists’ registered estates, which amounted to nearly 380,000*l*. The Lords Justices left in charge of the capital and kingdom were the Archbishop of Canterbury (Wake), and a dozen of the chief officers of the Crown. They did their office mildly, at a time when invasion was threatened on one side, but so little-feared on the other that the king went abroad in May, in perfect confidence that all would go well at home with 2,500 Dutch auxiliaries to help his own troops in London. County Magistrates were far more fussy in acts and suspicions than the Lords Justices. So jealous were Whig justices at this period, they detected, or suspected, treasonable purposes even in a charity sermon for a parish school! One Saturday in this year, 1719, a clergyman, the Rev. Mr. Hendley, and a friend or two arrived at Chislehurst, Kent, to make preparations for delivering a sermon in the church there on behalf of the schools of St. Anne’s, Aldersgate. The intended preacher had the consent of the rector and the license of the Diocesan, Atterbury, Bishop of Rochester. The churchwardens and constables ‘smelt a rat.’ Their Jacobite bishop was credited with hoping to raise money for the Pretender under guise of alms for charity-children. They swept the whole of the intruders into the presence of a bench of local magistrates, and charged them as suspected persons. The Rev. Mr. Hendley pleaded episcopal license and the rector’s sanction for preaching. ‘We don’t care,’ said one of the justices, ‘either for bishops, archbishops, or anybody else.’ The parties were dismissed with a caution not to commit vagrancy in that parish.

A SUSPICIOUS
CHARITY
SERMON.

On the following morning groups of men and women were assembled in front of St. Ann’s schools, Aldersgate, to see the sample children off. The best looking and best behaved were carried down to Chislehurst as warrant that all aids to bring up more of such children would be well-bestowed. They went off, with masters and friends, joyously, and they arrived, full of fresh air and gladness, at Chislehurst while the bells for church were cheerily ringing. The service was conducted by the rector and curate. The sermon was delivered by Mr. Hendley. The collection then commenced. Gentlemen

RIOT IN
CHURCH.

began to unbutton their pockets. The ladies quietly sank back on their cushions, for it was not the custom, in those days, to ask or to expect them to contribute at church collections. The eleemosynary cash rattled freely into the plates, till one of the collectors reached the pew wherein the local magistrates then sat. When the 'paten' was presented to the nearest of those potentialities, he seized the bearer, overturned the money, and denounced the whole proceedings as contrary to law. 'It is only on behalf of the poor charity children!' gasped the collector. 'They are all vagrants!' cried one from the magistrates' pew. 'They are all begging for the Pretender!' cried another. 'You must stop this!' said a third. 'Proceed with the collection!' was the command of the rector from within the communion rails. 'Go on with your business!' was the injunction of the preacher from the pulpit. 'Do it at your peril!' shouted the magistrate who had laid hold of the collector and upset the cash. 'I will come and do it myself!' remarked the rector. 'Do so,' called the preacher to him, **RIOT PROLONGED.** 'and someone bring me a prayer-book!' While the rector was collecting, Mr. Hendley read the Rubric which authorised the proceeding; after which he turned to the justices, and, rebuking them for brawling in church, announced that he should make complaint to the bishop. 'We care nothing at all for bishops nor for you,' was the reply from the magisterial pew,—'this matter must and shall be stopped!' The congregation, Whigs or Tories, were in favour of contributing. They crowded round the collector, and some who could not get near enough threw their money into the plate. Farrington, a magistrate, made a dash at the latter, but the bearer safely delivered it to the rector within the rails; and Mr. Hendley having delivered another, both were placed upon the communion table. Farrington charged fiercely to get within the rails, but Mr. Hendley warned him that his place was not there, and kept him back, forbidding him to persist in entering. Thereupon Sir Edward Bettison and Captain Farrington beckoned to a constable to approach, and after whispering to him certain instructions, sent him up to the rails, where, staff in hand, he ordered all present to disperse on pain of being 'guilty of riot.' 'Gentlemen,' said the rector to the justices, 'the congregation is not dismissed: service is not over; the prayer for the Church Militant has not been read; the Blessing has not been given.' The magistrates murmured 'Riot.' The rector rejoined, 'There is no riot but of your own making!' Ladies began to grow frightened as the gentlemen waxed angry; and it was

not till after much more unseemliness of word and action that the money was secured and the congregation lawfully dismissed. The charity children were conveyed back to London, delighted with the spectacle and its attendant sensations. The justices went to dinner, combining business with the banquet.

While the rector, preacher, and two or three of the gentlemen who had brought the Aldersgate children to Chislehurst, were at tea in the evening, they were all arrested, and brought before the justices, by whom they were all bound over to appear at the next Maidstone Quarter Sessions as rioters and vagrants. They duly appeared, the Grand Jury found ‘no bill,’ and the accused moved to be discharged. The justices looked on the Grand Jury as pestilent Jacobites, indicted the parties afresh, and bound them over to appear at the Assizes on the more serious charge of extortion, conspiracy, fraud, and ‘sedition,’—the alleged alms being nothing more, as they professed to believe, than a subscription for the Pretender.

**LIBERTY OF
THE PRESS.**

The real interests of the Pretender were being furthered in another quarter, namely, in some of the London printing-offices, and with an audacity that was very offensive to the authorities.

The liberty of the press was not for a moment tolerated, although the last words spoken or written of the hottest-headed Jacobites, who were hanged, were freely circulated without hindrance. Political pamphlets were sharply looked after. There was in Aldersgate a widow, Matthews, with her two sons. The latter carried on for her the business of printing. All the family were Nonjurors, and the sons were members of a Jacobite club. The younger son, John Matthews, was then in his nineteenth year, and he recognised no king but James Stuart. A Nonjuring family of printers were sure to be subjects of suspicion. The widow and elder son were themselves fearful of what the indiscretion of John might bring upon them. Their fear was well founded, for the young Jacobite, at night, was privately putting in type a treasonable pamphlet, by a friend, entitled, ‘Out of thy Mouth will I judge thee; or, the Voice of the People, the Voice of God.’ The elder brother, on learning this fact, scattered the type, locked up the printing-office, and gave the key to Lawrence Vozey, the foreman, with the order to keep young Matthews locked out of the office after the usual working hours. Lawrence Vozey, however, was a

**A CAPITAL
CONVICTION.**

rascal. He allowed the youthful Nonjuror to go back to his case at night, where he began again to print the dangerous pamphlet. When the young zealot was well advanced in his work, Vozey privately laid an information against him, and down came the police upon the office, smashing and destroying all in their way by virtue of a general warrant. The obnoxious sheets were found, and carried off as testimony against the offender. On Matthews's trial the law was as severely pressed against him as if he had killed the king with all the royal family, and he was found *guilty*.

The verdict was partly the result of the evidence of his elder brother George. The Jacobites never forgave this witness; George, however, was readily forgiven by John, who acknowledged the reluctant but inevitable truthfulness by which he suffered. When the horrible sentence—half-hanging, disembowelling, quartering, and burning of entrails was pronounced, the young lad never blenched. He bowed to the judges and left the bar. On the following Sunday, all the emotional and fashionable part of London crowded into the chapel of Newgate, to hear the Rev. Mr. Skerrit preach the young Jacobite's condemned sermon. At the end of the service, Matthews was double ironed and cast into the 'Condemned Hole.' Language has not terms to adequately describe the horrors, which indeed are unutterable, of that worse than Hell. Nothing at which nature is abhorrent was ever wanting there, to aggravate the sufferings of the condemned.

It is certain that this Jacobite youth might at least have saved his life if he would have given up the name of the writer of the pamphlet, which was known to himself alone. He did, indeed, name two persons who were beyond reach of capture. One of these was Lewis, the active but prudent Jacobite agent, the Roman Catholic bookseller in Covent Garden. The police broke into the house, which was empty. Its owner was in safe asylum, in Wales, and his whereabouts was not known until after his death. While Lewis was seeking refuge in Wales, a barrister named Browster died. Matthews is supposed to have named him as connected with the 'Vox Populi;' but there was no dealing with a dead man. The youth had done what a youth so circumstanced might be pardoned for doing, as the thought came upon him that life was a sweet thing, especially to the young, but he refused to give any real information to the Government; and it was resolved

JACOBITE
FIDELITY.

that he should die, and that the intervening period of life should be made as intolerable as possible.

Order was given, by 'brief authority,' that he should not be allowed to see his mother, even for a minute's leave-taking before death. The brave boy was, however, too much for 'brief authority.' That he might live to be hanged, it was necessary to take him up from the bottom of the fetid pit in which he lay, to breathe the less putrid air of the press-yard. On one of these occasions, when he knew the heartbroken widow was lingering about the prison-walls, he got to a window which looked into the street, saw her waiting in hope and anguish, and called to her, his arms extended through the bars, to come near. They had but a minute, each to look in the face of the other, yet it was long enough for him to bid the speechless gazing mother to take comfort, to be of good cheer, for that her son was fearless and happy. He was then pulled down by the turnkeys, who had probably been bribed to allow the short interview which *had* taken place.

**A POLITICAL
VICTIM.**

On the night before execution, the prisoners who were to suffer the next day generally held frightful revelry with friends and other prisoners, whose lease of life was longer by a week or two. The young Jacobite captive spent that last night alone with his brother George, the Rev. Mr. Skerrit, the ordinary *pro tem*. (Paul Lorraine being dead) occasionally looking in upon them. The two brothers prayed and comforted each other, and when the morning came, the younger, who was to suffer death, was the calmer of the two.

Three men traversed that morning the painful way from Newgate to Tyburn. It was a dreary, wet, November morning, but the streets were crowded, and from the windows were thrust faces of sympathisers with one of those three doomed men. The young printer was ignominiously drawn on a sledge, as one guilty of High Treason. A petty larceny rascal, a blind man named Moore, who had stolen some mean coverlet from his shabby lodgings, followed in a cart. A saucy highwayman, named Constable, went to be hanged in prouder state: he rode in a coach, as became a gentleman of the road. The sauciness, however, had left him. The blind thief rolled his sightless orbs, as if he would fain see if the horrid reality was in truth before him. The young

**THREE MORE
TO TYBURN.**

Jacobite was calm and composed. One account of them quaintly states that ‘they were all as sorrowful as the circumstances warranted.’

When the condemned three had been transferred into the cart beneath the gallows, Matthews placed a written paper in the hands of someone near him. The Sheriff, supposing it to be a speech, forbade it to be read, and snatched it away, that it might not be printed. It proved to be merely some directions by the young Christian Jacobite, that such remains as there might be of him after the sentence was executed, might be buried in St. Botolph’s, Aldersgate.

**A LAST
REQUEST.**

At the supreme moment, young Matthews, believing that the whole of his horrible sentence would be executed, said steadily to the hangman at his side, ‘Grant me one favour; do not burn my heart; a friend will come for it, I pray you, let him have it away with him.’ The fellow hurriedly replied that he need not fear, as he was only to be hanged; and with that grim comfort for the boy, he jumped down from the cart in which the three patients had been placed beneath the beam, and drew the vehicle from under them. Thief, highwayman, and young Jacobite were thus, in the yet new slang phrase of Poet Laureate Rowe, ‘launched into eternity.’

The sympathy of some of the news writers on this occasion took a curious turn. ‘The Gentlewoman,’ they said, ‘who tenanted the house near Tyburn, made ten guineas by letting her windows to spectators; but, how much more she would have made, but for the heavy rain!’

Truer sympathy was felt by the Jacobites, of course, for the cruelly fated Matthews. As in October a procession of six-and-twenty Nonjuring clergymen had gone in public procession from Orrery Street, Red Lion Square, to St. Andrew’s, Holborn, to bury the Rev. Mr. Maddison, their brother, so by the side of the grave of young Matthews, at night, there assembled a large body of sympathisers, by way of demonstration against those who had flung him to the hangman. ‘Sneaking Jacks,’ was the civil phrase applied to them; but it behoved them to be prudently demonstrative.

On the Sunday after the execution, a clergyman in the parish preached from 2 Corinthians i. 12, out of the simple words, ‘For our rejoicing is this, the testimony of our conscience, that in simplicity and godly sincerity, not with fleshly wisdom, but by the grace of God, we have had our conversation in

**AN
APOLOGETIC
SERMON.**

the world, and more abundantly to you-ward.' Out of such simple text and of similar simple comment, the Whig zealots strove to weave a charge of treason. Text and comment, they said, justified young Matthews, on the ground that in what he did, he acted conscientiously.

In what he did, a Government now would see small offence; but the young Jacobite knowingly ran the risk of death in the doing it. There was nothing in him of the murderer, but everything of true loyalty to the prince whom he looked upon as his king. From the time he was taken, there was no indulgence allowed him as there was to the rebel lords in 1716. What was necessary to make life even tolerable was denied to the brave lad who would not betray his Jacobite employer. Throughout the horrors of the Condemned Hole, horrors that Dante would not have dreamt of to heighten the terrors of his hell, Matthews never lost patience or self-control. He was like the young Spartan who is said to have let the fox eat out his heart rather than betray his agony by a cry. One hasty word alone fell from him, when the ruffian turnkey hammered off the convict's double fetters, on the fatal morning. The fellow's hammer fell as often on the Jacobite's ankles as on the iron rivetted round them, and this cruelty brought a hasty word to Matthews's lips, but he soon possessed his soul in patience again, and went the way to death in quiet submission. That death was more ignominious in its form than that suffered by more guilty and, socially, more noble, offenders. But the young Jacobite underwent his doom with all the dignity of Derwentwater, all the unostentatious and manly simplicity of Kenmure.

**AN INNOCENT
VICTIM.**

If you cannot, of your charity, as you pass St. Botolph's, pray for the soul of young Matthews the Jacobite, you will not refuse, with knowledge of why and how he suffered, to give a tender thought to the memory of the most innocent of the victims of loyalty to the Stuarts.

For putting partly in type a Jacobite pamphlet, Matthews was no sooner hanged than printed copies of the 'Vox Populi' were to be bought by those who knew how to go about it. As an example, the judicial murder of the young printer was useless. Messengers and constables, furnished with general warrants, sought for copies of the obnoxious work, and if any were discovered, the occupants of the houses where the discovery was made, appeared to be more astonished than the police. Even while Matthews was hanging, a Mrs.

**POLITICAL
PLAYS.**

Powell boldly sent forth the pamphlet, from her own press. Everybody thought it delicious to buy what it was death to print. Mrs. Powell, however, on expressing contrition at the bar, was only warned to be upon her guard; and when the pamphlet lost its prestige of being mortal to the printer, it ceased to be cared for by the public. Persecution did not make the party more loyal. Party spirit was as bitter as ever. When the Prince of Wales went on the 7th of November to the Lincoln's Inn Fields theatre to see young Beckingham's 'Henri IV. of France,' the Jacobite papers quietly remarked that the Fleet Street linen-draper's son showed, in his drama, how easily a king might be killed, as he passed on the highway, in his chariot. The Whig papers saw in the play a reflex of the times, and discerned Popish ecclesiastics putting their heads together in order to accomplish the sovereign's murder.

There was, of course, no offence in the play; and if there had been, penalty was not certain to follow. Law and justice 'danced the hays' in the wildest fashion.

Beckingham's tragedy at Lincoln's Inn Fields really had no political element in it. This was not the case with a tragedy produced four days later (Nov. 11) at Drury Lane, namely, Dennis's 'Invader of his Country, or the Fatal Resentment.' It was a mutilation of Shakespeare's 'Coriolanus,' and Booth was the hero. There is significance in the fact that neither party made any application of its speeches or incidents. After three nights the play was shelved, and Dennis swore in print that Cibber and other actors were ignorant, incapable, and destitute of all love of country; for the sake of which and for that of the king, Dennis declared he had constructed the piece. A sore point with Dennis was that his benefit was fixed for a night, when a hundred persons who designed to be at the theatre, 'were either gone to meet the king, or preparing in town to do their duty to him on his arrival from abroad.' When the king, on his arrival, passed through St. James's Park, a Nonjuring minister indiscreetly gave uncourteous expression to his Jacobite thoughts, and found his liberty curtailed, in consequence.

The latter half of the year was not a cheerful one in London. An epidemic distemper carried off hundreds, especially young persons. Women who ventured in the streets in calico gowns had them torn from their backs by

INCIDENTS.

ROYAL
CONDESCEND-
ON.

the weavers, who hung the shreds on the gibbets in the suburbs. For many weeks the Jacobites were busy in collecting subscriptions for the Spaniards who had surrendered at Glenashiel, and the Whigs went day after day to the northern road to see the foreign captives led in to the Savoy, but they were disappointed. There was something wrong about Lord Forrester's troop of Horse Guards, the gentlemen of which were ordered to dispose of their places. Even the jollity of the time had a demoniacal quality about it; and it was not edifying to see young gentlemen of large fortunes and 'coaches and six,' distributing gin and brandy to the basket-women in Covent Garden, and dancing country dances with them 'under the piazza.' One young gentleman, to show his joy at the Jacobite defeat, dressed as a baker and cried pies and tarts through the whole length of Long Acre, followed by two of his footmen in laced liveries. This sort of affability was perhaps the result of example given in higher quarters; example which set on the same level royal princesses and vendors of pipkins. On one night in this popularity-hunting year, the Prince of Wales went to a masquerade in the Haymarket; and the Princess was carried in a sedan chair into the City, where, as the papers said: 'Her royal Highness supped with Mrs. Toomes who keeps a great china-warehouse in Leadenhall Street.' The Prince of Wales had so upheld his popularity by visiting Bartholomew Fair, without ceremony, seeing the best of the shows, that when he made the first bid for the Duke of Ormond's confiscated house at Richmond—6,000*l.*—nobody bid against him. One Jacobite Surrey magistrate had the pluck, however, to withstand him. The prince announced that, on a certain day, he would have a bull baited on Kew Green. The justice publicly announced that he would order the arrest of the chief persons present—on the ground that the meeting put in peril the public peace; and the Lord Chancellor (Macclesfield) turned the justice out of the commission! Jacobitism turned up in various directions, and the pluck of the prince at going among the populace at 'Bartlemy Fair' was to be admired, since, at Epsom, a Jack lad came close to him, and shouted 'Ormond and Seaforth for ever!'—to be sure, the gentlemen near the prince caned the fellow till their arms grew weary of the work!

As the year waned through the autumn quarter, the Jacobites upheld the divinity, as it were, of their king, James, by referring to his having touched, and healed, by the touching, a score of diseased persons. The Whigs laughed at the story as fabulous. One Whig lady, following the example of a

**THE KING'S
GOOD
NATURE.**

predecessor, asserted the divinity in the touch of her own sovereign, King George, in a singular way. She made known to the Secretary of State that she was in a condition of health which would make no progress to any issue, till she had kissed the king's hand. The secretary informed the sovereign of this womanish caprice, and the good-natured monarch laughingly said, she might meet him in the gallery of St. James's, and have her wish gratified. She hung two minutes with her lips to the royal hand, King George looking down on her, the while, in the greatest good humour. But what the issue was is not noted in contemporary history.

In this year, the ultra-Whig Duke of Montrose (the first of that degree), one of the king's principal Secretaries of State, pleaded hotly at the Privy Council, at St. James's, for suppressing the Jacobite Rob Roy. A halo of romance has been thrown round this Robert Campbell Macgregor, by which he has acquired a measure of respect and admiration of which his memory is totally undeserving. He was a semi-savage, without any principle of honour or honesty; his courage was that of the wolf; and his sense of loyalty was so unstable that he was traitor to his own supposed side—the Jacobites—without being intentionally serviceable to the Hanoverians. Montrose was charged by the outlaw as having had (at the London Council Board) 'the impudence to clamour at Court for multitudes to hunt me like a fox, under pretence that I am not to be found above ground.' For this insult to dignity, Rob circulated a mock challenge, from Argyle to the Duke in London. It was simply intended to bring him to whom it was addressed, 'ane High and Mightie Prince, James, Duke of Montrose,' into contempt. It was composed in a flow of coarse and vulgar bluster.

**ROB ROY AND
THE DUKE OF
MONTROSE.**





CHAPTER XVII.

(1720-'21-'22.)



IN the year 1720 a grave Jacobite game was a-playing, but it was all below the surface. London street partisanship seemed to have nearly died out. There was some joyful stir in the coffee-houses where Jacobites most did congregate, when they read that the Government at Geneva, by whose order the Earl of Mar had been seized in that city, had set him free. It was the great South-Sea Stock bubble-year, when the first of the race of rascal 'promoters' on an ultra-gigantic scale of swindling arose, to the utter ruin of the victims whom they plundered. When the king sailed from Greenwich, early in the year, on his way to Hanover, and it was discovered that the lords who went with him, and who were 'proprietors,' had *sold* their stock, there was a ruinous panic. When he returned, in November, he made a gift to Cambridge of 2,000*l.*, towards building a library. In 1715, he had, at a cost of 6,000*l.*, presented that University with the books of Moore, Bishop of Ely. Dr. Trap's epigram said, the king had sent books to Cambridge and cavalry to Oxford, because the former lacked learning, and the latter failed in loyalty. The answer to this epigram (by Sir William Brown) was that the gifts were so disposed because the Tories owned no argument but force; and that Whigs admitted no force but argument. Jacobite Johnson (who, as Lord Marchmont said, 'was the first to bring *Whig* and *Tory* into a Dictionary'), once remarked, that the reply was the happiest extemporaneous production he had ever heard; he, however, confessed that he hated to repeat the wit of a Whig, urged in support of Whiggism!

The prelatish conspirator at the Deanery in Westminster addressed a letter to the Chevalier de St. George, in May, which was stuffed with treason and exultation. Atterbury makes this allusion in it to the Chevalier's marriage with the Princess Sobieska.

ATTERBURY'S
HOPES.

‘’Tis the most acceptable news,’ he says, ‘that can reach the ear of a *good* Englishman. May it be followed every day by such other accounts as may convince the world that Heaven has at last undertaken your cause, and is resolved to put an end to your sufferings!’

In another letter of this year, addressed to the King, James III, Atterbury expresses disappointment that James’s agents in London were not of noble rank. While measures however were being pursued, ‘I thought it my part to lie still and expect the Event.’ But he despairs of the Event occurring speedily: ‘Disaffection and uneasiness will continue everywhere, and probably increase; the bulk of the nation will be still in the true interest, and on the side of justice; and the present settlement will perhaps be detested every day more than it is already, and yet no effectual step will, or can, be taken here to shake it.’

A little later, he ‘is afraid the time is lost for any attempt that shall not be of force sufficient to encourage people to come in to it.’ He did not fail to encourage people who were ready to come into it. When Sacheverel preached a Charity Sermon at Bromley, Atterbury and a numerous body of High Tory clergy attended, with, as the Jacobite papers say, ‘A handsome appearance of Nobility and Gentry.’ On the other hand, if a quiet Nonjuror ventured to open a school, hostile papers denounced him as the evil genius of young people. The coffee-houses frequented by Nonjurors were pointed out for the rough attention of the Whig mob. There was grief, with indignation, in those coffee-houses when news came there of the death of the Rev. Laurence Howell. He was thrown into Newgate for publishing an explanatory book on the Nonjurors: ‘The Case of Schism truly stated;’ and in Newgate he was slowly murdered by the intolerable horrors of the place; intolerable, at least, to a sensitive and refined nature. For the general mob there was a new pleasure, apart from politics, to be had in Hyde Park. These censors of the time resorted there to pelt and hiss the ‘South-Sea Bubbles’ who had made enormous fortunes, and who came to the Ring in offensively magnificent equipages. The occupants were called by their names, and were told who their fathers and what their mothers were. The vociferators and pelters received the Nobility and Quality with cheers, and the Nobility and Quality sanctioned the ruffianism by laughter, and received the homage with familiar nods. To

DEATH OF
LAURENCE
HOWELL.

IN HYDE PARK.

abuse any of these great ones was ‘Scan-Mag,’ and brought highly painful consequences. While these scenes were one day being enacted in the Ring, a soldier of ‘the Duke of Marlborough’s company’ was being cruelly whipt in another part of the park, ‘*for abusing Persons of Quality.*’

The only public profession of an insurrectionary spirit this year was made, where it was to be expected, at Bartholomew Fair, which was then held in August. There came to the fair, when revelry was at its highest tide, a Yorkshire ‘squire named More. He was said to be of the blood of the famous Chancellor of that name. The ‘squire entered the Ram Inn, in Smithfield, and called for wine. The chambers were so crowded that he could find no place where to quaff it in comfort, nor the sort of company whom he cared to ask to make room for him. At length, he espied a table at which were seated two ‘Gentlemen of the Life Guards,’—a Captain Cunliffe and one of the same regiment variously described as ‘Corporal Giles Hill,’ and as the Captain’s ‘right-hand man.’ The ‘squire, saluting them, asked their leave to take a seat and drink his wine at their table. This was readily granted, and no small quantity of Bartholomew Fair wine seems to have been quaffed. Presently, entered the Fiddlers, who, after giving some taste of their quality, were ordered by the Yorkshire ‘squire to play the ‘Duke of Ormond’s March.’ In an instant the room was in an uproar. The Whigs were frantic with rage and the Jacks with delight. The gentlemen of the Life Guards grew angry, as they were bound to do; and their anger flamed higher when the descendant of the Lord Chancellor got to his feet and proposed the Duke of Ormond’s health. The landlord ran out of the room to escape being involved in unpleasant consequences. The Life Guardsmen railed at the Jacobite ‘squire as rogue and knave and liar. More persisted in giving the treasonable sentiment. ‘The Duke is an honest man,’ said the wine-flushed ‘squire,—‘let us drink his health.’ ‘You are a rascal Jacobite,’ cried the ‘right-hand man,’ ‘to propose such a health to gentlemen who wear his Majesty’s cloth and eat his bread.’ Corporal and ‘squire clapt their hands to their swords, and in less time than it takes to tell it, the Life Guardsman’s sword was ten inches deep in the ‘squire’s body; and the ‘squire himself, after a throe or two, was lying dead on the floor. The Jacobites swore that the trooper had slain him before the ‘squire could draw his own sword to defend his life. The Whigs swore all was done in fair fight, and pointed to the naked sword lying at More’s side. The Jacks

AT
BARTHOLOME
W FAIR.

accused them of having taken advantage of the confusion that prevailed, when the 'squire fell, to draw his sword from the scabbard and lay it at his side.—The issue of all was that Hill was tried and was convicted of 'Manslaughter.' His sentence was 'to be burnt in the hand;' but this could be done, on occasions, with a cold iron; and the loyal soldier was restored, nothing the worse, to his regiment.

The severity of the Government against the outspoken defiances of the Jacobites does not appear to have silenced many of them. Even the keeper of the Hounslow toll-bar was not afraid to publish such seditious principles as Atterbury more prudently kept within the knowledge of himself and his confederates. One night, a ministerial messenger,—a mounted post-boy, in fact,—with expresses for Scotland, rode up to the bar, announced his office, and demanded free and instant passage. The toll-collector, Hall, refused to accede to either demand. 'You don't know,' said the post-boy, 'what comes of stopping the king's expresses.' —'I care no more for the one than I do for the other!' was the disloyal reply of Hall, who actually kept the lad from proceeding for a couple of hours. When he raised the bar he was reminded of what would follow, at which he laughed; but he looked solemn enough a little later, when he stood in the pillory at Charing Cross, and lay for a fortnight in that Hell upon Earth, Newgate.

**STOPPING
THE KING'S
EXPRESSES.**

The year 1721 began with a burst of spring which terrified nervous people. 'Strange and ominous,' was the comment on the suburban fields full of flowers, and on the peas and beans in full bloom at Peterborough House, Milbank. When the carnations budded in January, there was 'general amazement' even among people who cut coarse jokes on the suicides which attended the bursting of the South Sea bubble. The papers were quite funny, too, at the devastation which an outbreak of smallpox was making among the young beauties of aristocratic families. The disease had silenced the scandal at tea-tables, by carrying off the guests, and poor epigrams were made upon them. Dying, dead, or ruined, everyone was laughed at. 'Among the many persons of distinction,' say the papers, 'that lie ill of various distempers, is the Lady of Jonathan Wild, Esq., Chief Thief-Taker-General to Great Britain. She is at the point of death at his worship's house in the Old Bailey.'

On St. Valentine's day, in this year, at Drury Lane, Cibber reaped the first fruits of politics grafted on the drama, from the seed he had sown, in 1717, by his 'Nonjuror.' The anti-Jacobite piece, on the present occasion, was 'The Refusal, or the Ladies' Philosophy.' It is a poor adaptation of Molière's 'Femmes Savantes,' but it served its purpose of crying up present Whiggery and crying down the Toryism of Queen Anne's reign. Applause or murmurs, according to individual circumstances, greeted such a provocative passage as this: 'What did your courtiers do all the last reign, but borrow money to make war, and make war to make peace, and make peace to make war; and then to be bullies in the one and bubbles in the other!'

CIBBER'S
REFUSAL.

This matter, however, was forgotten in the prosecution of Mist, the proprietor of one of the three Weekly Journals. Mist had dared to speak sarcastically of King George's interference on behalf of the Protestants of the Palatinate. On prosecution for the same, a Whig jury found him *guilty*, and a Whig judge sentenced the obnoxious Jacobite to stand in the pillory twice, at Charing Cross and at the Royal Exchange, to pay a fine of 50*l.*, to be imprisoned three months, and to find unquestionable security for his good behaviour, and the reform of his paper for seven years! There is no trace of the reform ever having been begun. Mist and his correspondents made the columns of his journal crackle with their fun. Jacobite writers complimented him on his elevation to the pillory as being equal to raising him to the rank of surveyor of the highways. When the Marshalsea gates opened for him to proceed to the high position in question, a countless guard of Jacobites received him, and they preceded, surrounded, or followed his coach to the Cross and the Exchange. At each place they gathered about the scaffold, in such numbers, that the most audacious and loyal of Whigs would not have dared to lift an arm against him. After Mist had stood his hour in both places, the carefully guarded object of popular ovation resumed his seat in his coach, escorted by his Jacobite friends, and cheered by the thundering *hurrahs!* of the densely-packed spectators.

IN STATE TO
THE PILLORY.

The more loyal Whig *mobile* did not neglect to manifest their own opinions. They set out from the Roebuck, and attacked the Tory White Horse, in Great Carter Lane. They had heard that some of Mist's servants were carousing there; and, consequently, they gutted the house, spilt all the

liquor they could not drink, and cut off a man's nose who attempted to remonstrate with them; all which they felt justified in doing, as the Jacobite Mist had not been treated in the pillory, according to his deserts! Meanwhile, the streets were melodious with street ballad-singers, who made Whigs mad with singing the 'New Hymn to the Pillory,' and with announcing the birth of Charles Edward at Rome, in December 1720, by the new and popular song, 'The Bricklayer's son has got a Son of his own!'

Each party resorted to bell-ringing by way of manifestation of their feelings. On the anniversary, in February, of Queen Anne's birthday 'of glorious memory,' Mist's Jacobite journal recorded its disgust, that 'honest ringers,' who wanted to ring a peal at St. Mildred's, were refused by puritanical Cheapside churchwardens, who spitefully told them that rather than suffer any ringing, they would cut the ropes and break the bells! At a later period, in April, the Jacobite churchwardens had it all their own way. Merry peals came rattling out from the tower of St. Mary Overy, and from other High Church summits. It was the turn of the Whig papers to sneer, as they explained that the ringing was in honour of 'the Anniversary of the Padlock's being taken off from the mouth of a certain Rev. Doctor, now living near St. Andrew's, Holborn.' This refers to Sacheverel's appointment to the living of St. Andrews, in April 1713, before the expiration of the term of three years' suspension from preaching, to which he had been condemned. The first sermon he preached there, as Rector, was published. Forty thousand copies were sold in London alone.

London saw the Duke of Gordon go northward, and were not sorry that he bore with him a pardon for Lochiel, who had been lately stirring among the Jacobites. Londoners saw the Countess of Mar drive with cheerful face, from the Secretary of State's office. They rightly guessed that she had obtained a letter of license to visit her husband, abroad. Some uneasiness existed. Sanguine Whigs affected to see 'the most hopeful and promising bulwark of the Protestant religion, in the charity schools,' and they jeered the Jacobites, in very coarse terms, on the accounts of the birth of Charles Edward, in the presence of two hundred witnesses, in Rome. Occasionally a condemned rebel of no note, who had escaped, might be seen in Cheapside, but he soon disappeared. He was not molested, he was simply warned to

**BIRTH OF THE
'YOUNG
CHEVALIER.'**

**GOVERNMENT
AND THE
JACOBITES.**

depart. There was a disposition to get rid of them, and even such a once fierce Jacobite as 'Major Mackintosh, brother to the late Brigadier Mackintosh,' was discharged from Newgate on his own prayer and showing that 'he was very old and altogether friendless.' The depressed party found consolation in the fact that the High Church party had gained the elections in Lincolnshire, Staffordshire, and in the University of Cambridge; but the cheering of the mob, as the king went to open Parliament, dashed their hopes again. His Majesty, in spite of mysterious threatening letters, written anonymously to wondering lords, who gave them up to the Secretary of State, continued to go about in public without any show of fear. He went from the Opera, where he had been 'mightily taken' with 'Rhadamanthus,' to sup with the Duchess of Shrewsbury, quite careless at the thought that anyone might assassinate him on the way. And he stood Godfather in person to 'Georgiana,' daughter of the Duke of Kingston, when moody Jacobites, in solitary lodgings, were meditating as to where it would be most easy to fall upon and despatch him. Whigs shook their heads at the lax discipline of the sentinels at the prince's house in Leicester Fields. They thought the king was too generous by half, when he sent Mr. Murphy, one of the gentlemen of his household, to Berlin, in charge of fifteen overgrown British Guardsmen, as a *present* to the 'Great King of Prussia!'

Undaunted Mist, in his paper of the 29th May, had an article on the Restoration. It went heartily into a description of the joy which England must have felt (after being oppressed by an usurper and his fool of a son) at the restoration of the glorious House of Stuart to the British throne. But the authorities saw treason in every line of it, and Mist was brought before the Privy Council. Pressed to give up the name of the writer, he persistently refused, and did not shelter himself under a plea of ignorance. He protested, moreover, that there could be no treason in rejoicing at the overthrow of an usurper, and the restoration of a legitimate monarch. What could be done with so crafty a Jacobite? He was sent back to prison, and was cheered as he went, by a delighted mob, many of whom had just come from the hanging spectacle at Tyburn; and most of whom, after they had seen Mist disappear within the gates of his prison, rushed to the Park, to see a race, 'fifteen times round,' contested by a couple of running footmen.

TREASONABLE WIT.

The footmen, at least those of Members of Parliament, had ceased to be partisans. On the Speaker's birthday, those people buried their and their masters' differences in punch. Of that conciliating liquor they brewed upwards of forty gallons in a trough, and drank it uproariously, in the Court of Wards, the use of which was granted to them for the occasion! Meanwhile the Whigs were uneasy. They pointed to the fact that recruiting was carried on for the Pretender in the obscure Tory mug-houses; that money had been subscribed and conveyed to Rome as a gift to the young Charles Edward, and that an Irish gentleman had been openly drinking, in London and Oxford coffee-houses, the healths of the Duke of Ormond and James III. It was some consolation to the Whigs that the offender was arrested and sentenced to be whipped. When he prayed to be hanged, as a circumstance which might befall an Irish gentleman without disgracing him, the Whigs roared at the joke,—that he would be altogether spared as a gentleman, and flogged simply as an Irish traitor.

*RECRUITING
FOR THE
CHEVALIER.*

A goodly body of Tories, on more solemn purpose, followed Prior to his grave in the South Cross of Westminster Abbey, on the 25th of September, 1721. Jacobite Atterbury, Dean of the Abbey, as well as Bishop of Rochester, was looked for, but he was conspicuous by his absence. Two days after, the bishop wrote to Pope:—‘I had not strength enough to attend Mr. Prior to his grave, else I would have done it to have shew'd his friends that I had forgot and forgiven what he wrote on me.’ The offence thus condoned lay in the sting of an epigram purporting to be an epitaph on the prelate, who, for the nonce, was supposed to be dead. The lines ran thus:—

Meek Francis lies here, friend. Without stop or stay,
As you value your peace, make the best of your way.
Though at present arrested by Death's caitiff paw,
If he stirs he may still have recourse to the law;
And in the King's Bench should a verdict be found,
That, by livery and seizin, his grave is his ground,
He will claim to himself what is strictly his due,
And an action of trespass will straightway ensue,
That you without right on his premises tread,
On a simple surmise that the owner is dead.

*EPIGRAMMATI
C EPITAPH.*

That Atterbury was actively engaged this year on behalf of the Chevalier is now well attested. In April, the bishop in London wrote to James:—‘Sir, the time is now come when with a very little assistance from your friends abroad, your way to your friends at home is become safe and easy.’ Of this there is earnest iteration. Late in December, James wrote to the bishop a letter which Atterbury received the next month at the Deanery by a messenger. Atterbury’s king thanked him for past service, and allured him with a prospect of ‘a rank superior to all the rest.’ The eventful year was supposed to be at hand.

The year was a critical one. The Jacobite press was more audacious than ever—sure symptom that some peril was at hand. In what it consisted was notified to the king by the Regent Duke of Orleans,—namely, a design to seize the king himself, and to restore the Stuarts. Angry Nonjurors, and still more angry Ultramontanists, accused the Earl of Mar, and cursed his folly, for having sent, through the ordinary post, a letter, which was opened in London as a matter of course, and which contained unmistakable treason. Walpole, with his intricate agencies, probably knew as much of the design as the Regent and Mar themselves, and the circle around his intended victims was gradually closing. The danger was real. It led to the formation of great camps, to various arrests in the course of the year, and to severe measures against the Papists. Among those arrested on suspicion of being guilty of treason were the Duke of Norfolk, the Earl of Orrery, and Lord North and Grey, with a Captain Kelly, a Nonjuring priest of the same name, and a prelate who was, in August, innocently engaged in a correspondence with Potter, Bishop of Oxford, as to the exact time at which the several Gospels were written. But it was for less innocent matter that Atterbury was arrested. There was not a more active agent of James III. in the kingdom than he, and Kelly, the Nonjuror, was his daring, crafty, and reckless aide-de-camp.

In the Stuart papers there is a letter, dated April, 1722, in which Atterbury writes to Mar, expressing his willingness to enter into a long-interrupted correspondence with Lord Oxford, and ‘upon a better foot than it has ever yet stood, being convinced that my doing so may be of no small consequence to the service. I have already taken the first step towards it,

ARREST OF
JACOBITES.

ATTERBURY’S
CORRESPONDENCE.

that is proper in our situation, and will pursue that by others as fast as I can have opportunity, hoping the secret will be as inviolably kept on your side, as it shall be on this, so far as the nature of such a transaction between two persons who must see one another sometimes can pass unobserved. I hope it will not be expected I should write by post, having many reasons to think it not advisable for me so to do.'

Outwardly there was a peaceful look, and peaceful thoughts and words, just where the storm and the thunderbolt were preparing. Atterbury, the most active Jacobite agent of the time, wrote pious and philosophical and pharisaical letters, from the Deanery at Westminster, to Pope. 'I know not,' he writes (April 6), 'how I have fallen into this train of thinking;—when I sat down to write I intended only to excuse myself for not writing, and to tell you that the time drew nearer and nearer to dislodge; I am preparing for it: for I am at this moment building a vault in the Abbey for me and mine. 'Twas to be in the Abbey, because of my relation to the place; but 'tis at the West door of it; as far from Kings and Cæsars as the space would admit of.' The prophet knew not the sense of his own prophecy. The despiser of kings and Cæsars was then plotting to overthrow a king to whom he had sworn allegiance, and to bring in a Cæsar hot from Rome, and ready to be Rome's humble vassal!

In May, when the peril was made known, there was great stir in London among the adherents of the royal family. The early Jacobites gathered together in the morning at the Exchange. At noon, groups of them collected about Temple Bar. The 'Malignants' in finer clothes walked and talked in front of the Cocoa Tree (St. James's Street) between two and three. The Temple Garden was the chosen spot of *all* of them at night. Hyde Park, and their old Walnut Tree walk there, were deserted by them as soon as preparations for pitching the camp in that spot were commenced. A few, however, were to be found there mingling with Whigs and discussing the aspects of the time. Amid it all, the king, by Lord Townshend, announced to the Lord Mayor that the Pretender was projecting an invasion of the kingdom. Mayor and municipality replied that they were ready to lay down their lives to prevent it. Then followed a seizure of seditious printers and their apprentices. Papists and Nonjurors were ordered to withdraw to a distance of ten miles from London; and these measures having been

JACOBITE
TRYSTING
PLACES.

adopted, the ministers deemed that the country was in safety. But timid men quoted Steele's expression, first made in 1715,—'Ministers employ a flute when they should blow a trumpet.' The louder alarum was soon given. The country was dotted with camps. The most important of these was pitched in Hyde Park. It consisted of about one thousand cavalry, of whom more than half comprised the 'gentlemen of the Horse Guards.' The infantry amounted to about four thousand. There was a reasonable amount of artillery, and a creditable supply of chaplains, the king having peremptorily ordered that Divine service should be celebrated *every day* at 11 o'clock.

This order could not have been obeyed by the *petits maîtres* among the officers. Perhaps they were exceptional, the Sybarites, whose tents were little palaces—tapestried and carpeted. Their gorgeously curtained beds were covered with heavily laced counterpanes. The military *petit maître* in the Park rose at ten, took his tea, and received friends in his dressing-gown till eleven. Then he slowly, languidly, yet elaborately, adorned himself, and when the world was sufficiently well aired for his Prettiness to appear in it, he issued from his retreat, a plumed, powdered, periwigged Adonis—a sword on his thigh, dice in his pocket, a gold-headed cane attached to one of his buttons, and a snuff-box, from which his diamonded finger, ever and anon, gave dust to the nose. The officers gave splendid entertainments to ladies from Court and ladies from the City. Of these, some took tea, some preferred ratifia. It was the humour of the belles to conform as nearly as they could to military fashions, by wearing red cloaks. These ladies in camp were severely satirised in a pungent pamphlet called 'Whipping Tom, or a rod for a proud lady, bundled up in four feeling discourses, both serious and merry. First, of the foppish mode of taking snuff. Second, of the expensive use of drinking tea. Third, of their ridiculous walking in red cloaks, like soldiers. Fourth, of their immodest wearing of hoop-petticoats. To which is added a new satire for the use of the Female Volunteers in Hyde Park.'

But for military fashion the ladies had an example in no less a person than the Bishop of Durham. That prelate was the nearly nonagenarian Nathaniel, Lord Crew, the first bishop of noble birth since the Reformation. At one of the reviews by the king—gallant spectacle, when peers and commoners, and illustrious foreigners, gathered round the sovereign, and 'the Right Honourable Robert

THE
OFFICERS IN
CAMP.

A CAVALRY
BISHOP.

Walpole, the famous Minister,' was coming among them, with be vies of semi-military ladies to soften the scene—the noble old bishop nobly caracolled in the presence, on a well-trained war-horse, which the right reverend father in God bestrode in a lay habit of purple, jack-boots, his hat cocked, and his black wig tied up behind in true military fashion. The ladies adored the old bishop; they perhaps had some awe of a man who as a boy had ridden his pony in the park in the days of Charles I. The amazons having seen him ride away, and gazed at the spectacle of the procession of royalty, from its position near the walnut trees, to the magnificent banqueting pavilion, they prepared for the dance, and, oblivious of politics, ended the day in camp to the stimulating music of the fiddles.

One of the disciplinary regulations seemed harsh to the gayer lads in arms, namely, the prohibition to 'lie out of their tents at night,' but as the ladies remained late to dance, there was not much to complain of.

Never was a Metropolis more merrily guarded. Pope remarks that the Scythian ladies that dwelt in the waggonsof war were not more attached to the luggage than the modern women of quality were to Hyde Park Camp. 'The Matrons,' he writes to Digby, 'like those of Sparta, attend their sons to the field, to be the witnesses of their glorious deeds; and the Maidens, with all their charms displayed, provoke the spirit of the Soldiers. Tea and Coffee supply the place of Lacedemonian black broth. The Camp seems crowned with perpetual victory, for every sun that rises in the thunder of cannon, sets in the music of violins. Nothing is yet wanting but the constant presence of the Princess to represent the *Mater Exercitus*!'

THE LADIES
IN CAMP.

While the military were encamped in the Park, the civil authorities were busy in hunting down traitors. Unlucky Jacobite printers and their apprentices were dragged from their beds in the middle of the night, and they thought themselves fortunate if, instead of fine, imprisonment, or ruin in worse shape, they were admitted to even heavy bail in the morning. The shops of sword- and gun-makers were overhauled, and forfeiture of weapons followed detection of sword blades bearing some questionable motto on them, or of gun-barrels directed to as questionable localities.

Whigs recognised the bloodthirstiness of the Tories in the stabbing of honest Mr. Barrett in the Strand, who had

WHIG
SUSCEPTIBILI

recently quitted the Romish religion for that of King **TY.** George. For the safety of that royal person, they were so anxious as to consider with fear the fact that he occasionally walked for an hour or two together, almost alone, in Kensington Gardens, and went to dine with his most favoured nobles, or to the playhouse with its mixed audience, almost unattended. They were dissatisfied with messengers, assumed to be Jacobites, from whose custody traitors of mark escaped, as was supposed in return for costly bribes. They plucked up courage when an Irish papist priest, having been seized with dangerous papers upon him, was held to such bail as it was impossible for the wretch to procure. They shook their heads in displeasure when Colonel Arskine (Erskine) was allowed to go at large, on the security of his brother, the Earl of Buchan. The hanging of two Irish soldiers, lately in the Spanish service, Carrick and Mulhoney, who had come to London to be ready for the outbreak that was preparing, was perhaps justifiable; but a couple of strange gentlemen could not take lodgings in St. James's parish without risk of being arrested; and ladies unprotected, and having apartments in the same district, were often invited to give an account of themselves to the nearest magistrate. The lightest words were strangely perverted; and when the Rev. Mr. Mussey, in Sacheverel's old church, St. Andrew's, Holborn, preached against the practice of Inoculation, contending factions thought there might be something in it; but neither party could well make out *what*!

The appearance of the Earl of Oxford once more in public was an event to be discussed. As Harley walked **MORE ARRESTS.** from his house in Lincoln's Inn Fields, holding Harcourt by the arm, there were men who thought as they gazed that Harley should never have been allowed to leave the Tower. Treason seemed to lurk in the least likely places. Why had the Lord Chamberlain so summarily ordered Lady Wentworth to vacate the lodgings she had been permitted to occupy, at the Cockpit? Simply because she had allowed disaffected persons to meet there. There had been a mysterious vessel lying off the Tower, and a going to and fro between it and Lady Wentworth's lodgings. The police visited both. They seized treasonable papers aboard the ship, and they swept the lodgings clear of all its inmates, including the servants. The former included the famous Captain Dennis Kelly, his wife, her mother, Lady Bellew (sister of the Earl of Strafford), and some persons of less note. They were all about to ship for France, in furtherance of the conspiracy. The ladies were allowed

to go free, but the Captain, with some co-mates in misery, were fast locked up in the Tower. There, reflection so worked upon Kelly, that he became fearfully depressed, and petitioned to have a warder sleep in his room at night, for the company's sake!

To be going to France was as dangerous as coming from it, for plotting. In the former case, money was carried to the Jacobite chiefs, raised here under guise of subscriptions in aid of poor foreign Protestants. There was a 'sensation' in town, when the papers one morning announced that 'A certain Person of Quality has been seized in the Isle of White, upon Account of the Conspiracy, as he was endeavouring to make his Escape beyond Sea.' The 'Person' was Lord North and Grey of Rolleston. Whigs saw him go from the Lords' Committee of Council to the Tower with approval. They could not see why Charles Boyle, Earl of Orrery, who had been taken at his seat in Buckinghamshire, should be permitted to be under arrest in his London mansion in Glass House Street, though it was garrisoned by thirty soldiers whom he had to keep. This earl's subsequent removal to the Tower was a gratification to loyal minds.

On July 30th, Atterbury, not long before his arrest, was indulging in disquisitions on death, in railing at human greatness, in sneers at the Duke of Marlborough, lately deceased—a man whose loyalty, like that of the bishop who was about to bury him—had been paid to two antagonistic masters. 'I go to-morrow,' the prelate tells Pope, 'to the Deanery; and I believe I shall stay there till I have said Dust to dust, and shut up that last scene of pompous vanity.... I shall often say to myself while expecting the funeral—

**ATTERBURY
TO POPE.**

O Rus, quando ego te aspiciam! quandoque licebit
Ducere sollicitæ jucunda oblivia vitæ!

This gentle sigher after a quiet life was then ready to welcome James III. to London, and very probably had his eye on the 'pompous vanity' of Canterbury.



CHAPTER XVIII.

(1722.)



ON the 24th of August the storm burst on the prelate's head. Of this event the public were aware long before the press reported it.

**THE BISHOP
IN THE
TOWER.**

When the report *was* made, it described the following scenes of this Jacobite time:—‘On St. Bartholomew’s day last, in the afternoon, the Right Reverend Dr. Francis Atterbury, Lord Bishop of Rochester and Dean of Westminster, was committed to the Tower, on an accusation of High Treason. His Lordship was at his Deanery of Westminster, when two Officers of the Guards and two Messengers came to his House and carried him and his papers to a Committee of Council. At the same time two other Officers and as many Messengers were despatched to the Episcopal Palace of Bromley, in Kent, who, with the assistance of a Constable, searched his Lordship’s House and brought away what Papers they thought proper. John Morrice, Esq., the High Bailiff of Westminster, and his lady, the Bishop’s daughter, were then at his Lordship’s House at Bromley. On Monday last, they both went to the Tower to enquire after the Bishop’s health, but were not suffered to see him.’ So spoke the ‘Weekly Journal’ of Saturday, September 1st. ‘It was on Friday last,’ says another paper, the ‘Post Boy,’ of August 25th to Tuesday, August 28th, ‘in the afternoon that the Bishop of Rochester was committed to the Tower; but the Bishop was not carried to the Tower in his own coach, as some papers have mentioned.’ The ‘Post Boy’ says that his Lordship went from the Committee of Council in Whitehall ‘in his own Coach round by Holbourne, London Wall, &c., attended by a Messenger and Colonel Williamson of the Guards.’ He was again before the Committee on the following day. In the Tower, ‘his chaplain, his *valet-de-chambre* and a footman are allowed to attend him, but nobody else is permitted to see him. ’Tis said that several letters in his own hand-writing, but signed in fictitious names, have been intercepted, by which the Government has made some important discoveries.’ A strong military force from the camp in the Park was marched

through the City to reinforce the Guard at the Tower. In September the bishop was little likely to break locks and take flight, being confined to his bed with gout in both hands and feet. The report that he would be tried by a special commission of Oyer and Terminer, at the King's Bench Bar, gained little credit, for the feeling was very strong that even if he were guilty, the crafty leader of the Opposition against Walpole, in the Lords, was not likely to have left any traces of his guilt. The publication of the prelate's portrait looking through a grate, with Ward's seditious verses beneath, caused much excitement, the confiscation of the portrait, and the incarceration of the poet.

In the Tower the bishop was treated with unusual severity. Pope, in a letter to Gay (September 11th, 1722),
POPE AND ATTERBURY.
ridicules the rigour observed with respect to small things: 'Even pigeon-pies and hogs'-puddings are thought dangerous by our governors; for those that have been sent to the Bishop of Rochester are opened and profanely pried into at the Tower. It is the first time that dead pigeons have been suspected of carrying intelligence.' In October, however, means seem to have been adopted by which the annoyance of 'prying' could be avoided. In a letter to Carlyle (October 26th) Pope says: 'I very much condole with my friend whose confinement you mention, and very much applaud your obliging desire of paying him a compliment at this time of some venison, the method of which I have been bold to prescribe to Lady Mary.'

John Wesley's elder brother, 'Sam,' earnest in his duties as one of the masters of Westminster School, but still more earnestly hopeful, though not active, as a High Tory and Jacobite, showed his indignation at his patron's incarceration and treatment, in a lively poem called 'The Blackbird.' This pleasant songster's enemies were nailed to the general 'barn-door' as screech-owl, vulture, hawk, bat, and

The noisy, senseless, chattering Pie,
The mere Lord William of the sky.

The poet next disposed of Colonel Williamson:—

The Kite, fit gaoler must be nam'd,
In prose and verse already fam'd:

Bold to kill mice, and now and then
 To steal a chicken from a hen.
 None readier was, when seized, to slay,
 And often to dissect his prey;
 With all the insolence can rise
 From power when join'd to cowardice.
 The captive Blackbird kept his cheer;
 The gaoler, anxious, shook with fear,
 Lest roguy traitors should conspire
 T' unlock the door or break the wire;
 Traitors, if they but silence broke,
 And disaffected if they look.
 For, by himself, he judg'd his prey,
 If once let loose, would fly away.
 Conscious of weakness when alone,
 He dares not trust him, one to one.
 So, every day and every hour,
 He shows his caution and his power,
 Each water-drop he close inspects,
 And every single seed dissects;
 Nay, swears with a suspicious rage,
 He'll shut the air out of the cage.
 The Blackbird, with a look, replies,
 That flash'd majestic from his eyes;
 Not sprung of Eagle-brood, the Kite
 Falls prostrate, grovelling, at the sight.
 A Hero thus, with awful air
 (If birds with heroes may compare),
 A ruffian greatly could dismay:
 'Man! dar'st thou Caius Marius slay?'
 Blasted the coward wretch remains,
 And owns the Roman, though in chains.

The Jacobite sympathy for Atterbury was, of course, very active. Hawkers boldly sold seditious songs and broadsheets in his favour, despite the magistrates. The prelate himself lay day and night in bed in the Tower, suffering from gout in hands and feet. The Jacobite barrister, Sir Constantine Phipps, moved for

**TREATMENT
 OF
 ATTERBURY.**

his release, and that of Kelly, on bail; but the application was refused. On the following Sunday bills were distributed by active agents through the London churches, asking the prayers of the congregation for a suffering captive in bonds. The only favour granted to Atterbury was that he should have the occasional company of the Rev. M. Hawkins, of the Tower, to whose companionship the bishop preferred that of the gout. When the illustrious prisoner was convalescent, he used to sit at a window of the house in which he was confined, and converse with his friends who assembled below. It was manifest that mischief might come of it, but there was meanness in the method taken to prevent it. The window was nailed up and partly covered with deal boards. The chief warden of the Tower was censured for allowing Atterbury's servants to speak with those of his son-in-law, Mr. Morrice, without the warden being present. At last, the bishop's servants were kept as closely confined as their master.

London was busy with the Tower incidents to talk about, and with the martial spectacle in the Park, which people daily witnessed. But all things must have an end; and the camp, which was pitched in May, was broken up towards the end of October. The gayest times were when the king visited it, or reviewed the troops. He was popular there, for the various regiments, foot, horse, and artillery, had, in marching to or from the ground, to pass through the Mall, and the king invariably greeted them from his garden wall. He was so pleased with the City of London artillery, that he ordered 500*l.* to be paid in to their treasurer. After the reviews held near the camp, the Earl of Cadogan entertained the monarch and a noble company, either in the earl's tent or at his house in Piccadilly. Each banquet cost the host about 800*l.* A costly hospitality was maintained by other commanders. The dinners in tent given by Colonel Pitt to the Duke of Wharton and other peers were the subject of admiration. In what sense the Jacobite duke drank the king's health, may be easily conjectured. A coarser jollity prevailed in the booths set up near the camp, and there, a reckless reveller of the night was, now and then, to be found stark dead on the grass in the morning.

Wine and politics brought several men to grief. Inspired by the first, an Ensign Dolben spoke disrespectfully of the king's Government, and was cashiered for his recklessness. Some indiscreet wagging of tongues led to Captain

**SCENES IN
CAMP.**

**SOLDIERS
AND
FOOTPADS.**

Nicholls and Mr. Isaac Hancocke drawing their swords, and the Captain passing *his*, up to the hilt, through Hancocke's body. As the dead man lay on the ground, someone remarked, he was worth 300*l.* a year; and for killing so well-furnished a gentleman, the Captain got off with a slight punishment under a verdict of manslaughter. Other 'bloody duels' are recorded, and the pugnacity of the gentlemen took a savage character in some of the rank and file. It was by no means rare to hear of a hackney-coach full of officers returning at night, through Piccadilly to the camp, being attacked, brutally used, and plundered by men in disguise, who were at least suspected of being soldiers. Never were so many footpads northward, in the direction of Harrow and of Hampstead (which latter place yielded victims laden with gold on their road from the 'tables' at Belsize), as during the time of the encampment. A Lieutenant, who was entrusted with 10*l.* subsistence-money, to pay to some men of his (the second) regiment of Guards, hired a hackney-coach, rather early in the morning, put the coachman inside, and took the reins himself. He thought by this means to carry his money safely. The coach, however, was stopped by a single mounted highwayman in Piccadilly, who bade the inside gentleman deliver his money or his life. 'I am only a poor man,' said the rascal, 'but the gentleman on the box has 10*l.* in his pocket, a gold watch in his fob, and a silver-hilted sword under his coat,'—and the highwayman stripped the young hero of his property, and rode contentedly away, by Hay Hill.

In camp itself, there were continual quarrels and savage fights between brawlers of the horse and foot. The rioters there lost all respect for their officers. On one occasion, the Earl of Albemarle intervened, but with so little effect that he was soon seen issuing from the fray without his hat and wig! Nevertheless, these savage rioters could be subdued to the melting mood, and weep solemn showers like old Greek heroes. Detachments from the camp attended Marlborough's funeral, in August. As they passed under their old commander's garden wall in the Park, many officers and men are said to have burst into tears; a circumstance which the Whig papers were unanimous in describing as 'very remarkable,' and 'well worth mentioning.' A Jacobite hackney-coachman laid his whip to the shoulders of one of these honest fellows; and, strangely enough, for all punishment only lost his license. A fact more 'remarkable' than the genuine sympathy of the soldiers for Marlborough, was that there were Frenchmen in the ranks, in camp! One of them, named Leman, did,

what might have been expected of him, drank the Pretender's health, in liquor bought with money coming to him from King George. Monsieur Leman did not love the latter any the more for the terrible whipping he received in the Savoy. Other military offenders 'ran the gauntlet,' at the hands and scourges of their comrades in the Park. The place was not so pleasant as to make desertions unfrequent. But, deserters, when caught, were summarily treated. One Tompkins, 'a jolly young fellow of about twenty,' say the newsmongers, was shot for the crime; yet, the practice was not diminished by the penalty. When the camp was about to break up in October, the infantry, artillery, cavalry, and the gentlemen of his Majesty's horse guards paraded, for the last time. The Earl of Cadogan inspected the line from right to left; and when it was announced that he had left a guinea to each troop and company, to drink the king's health, cheers, as the news spread, burst forth along the line like a running fire. Soon after, there was not a soldier left in the Park, except the bodies of those who had been shot there, and were buried where they fell.

On the day of the break-up, however, there were Jacobites on the ground who were contemplating how they could most easily seize the person of the king, murder the Earl of Cadogan, and restore the Chevalier de St. George to his rightful place. A few soldiers, having left their arms behind them, stealthily followed those men to aid them in their purpose. They went towards Chancery Lane, where however the civil authorities had long been on the watch before them.

Neither exile nor death on the scaffold, which had followed this outbreak of 1715-16, quenched the ardour of individual Jacobites. An enthusiastic candidate for martyrdom was earning the reward of his unrighteous enthusiasm this year. He was an eminent barrister of the Middle Temple, named Christopher Layer. He was a man of extreme views. He hated the Act of Settlement and (it is said) he loved unlovable women. In order that he might be the Lord Chancellor of James III., he was willing to murder, by deputy, George I. Layer went to Rome and had an interview with 'the King over the Water.' The zealot sought to be permitted to accomplish a revolution which, he said, no one would understand till it had been carried out successfully. Layer's theory was that King George should be seized, which meant murdered, at Kensington, by hired assassins; that, at the same time, the

**CHRISTOPHER
LAYER.**

prince and princess should be secured, and the ministry be summarily dispatched. Layer boasted of having the ultra-Papists and Jacobites with him, and it is certain that, whether James favoured the design or not, Layer and his confederates met at an inn in Stratford-le-Bow; where Layer protested that the so-called Prince of Wales should never succeed to the crown of England.

After conspiring at Stratford, and trying to entice soldiers at Romford, the would-be Chancellor of the Stuart wrote his letters and despatches at the residence, now of one Dalilah, in Queen Street, now at that of another in Southampton Buildings! He who would fain have had the keeping of his king's conscience could not keep his own secret. He might have written in comparative secrecy and safety in his own chambers in the Middle Temple, but he both wrote and prattled in the presence of two beautiful and worthless women, who, in their turn, first betrayed and then gave testimony against him. It was subsequent to one of his examinations before the magistrate by whose warrant Layer had been arrested, that the Jacobite counsellor was confined in a messenger's house. There, he asked for pen, ink, and paper, and to be left perfectly undisturbed while he wrote out a full confession of all his treasonable designs. All that he asked was granted; but Layer devoted his undisturbed time to other objects, and not to confession. He prepared means for descending from the window of his room into a yard below. In testing them, he fell on to a bottle rack, by which he was grievously hurt; yet, not so much but that he was up and off before the alarmed officials reached the yard. A hot pursuit commenced. The messenger and his men came upon Layer's trail at Westminster Ferry, and finally ran him down at Newington.

Layer was put in close confinement in the Tower; even his clerks were placed in the custody of messengers; and his wife was brought to town from Dover in custody. Previous to his trial, his passage from the Tower to Whitehall, where the Secretaries of State and the Committee of Council sat to interrogate him, was one of the sights of London. The state prisoner was conveyed in a carriage, surrounded by warders, and preceded and followed by detachments of foot guards. With similar solemnity he was carried down to Romford, to plead, after a true bill had been found against him; and then followed, but not immediately, the last struggle for life.

THE PLOT.

**LAYER AT
WESTMINSTER.
R.**

The case was carried to the Court of King's Bench, on the 21st of October, 1722. The accused traitor was brought into court, heavily chained and fettered. Threats from loyal Whigs assailed him as he staggered beneath his clanking burthen through Westminster Hall. A cowardly fellow shouted that Laver, or the plot, must die! Two or three men, waiting to be summoned on the jury, declared that, if called, they would hang him! He mentioned these insults in court, and he asked that he might be allowed to stand free of the grievous bonds which oppressed him. He would then have his reason clearer, and he might hope for 'a fair and tender trial.' Chief Justice Pratt promised him 'a fair and just one,' but would not order his bonds to be unloosed. The Attorney-General, Raymond, said, 'He has as much liberty as is allowed to prisoners who have tried to escape.' Yorke, the Solicitor-General, declared that Laver's complaints were only made to excite sympathy. Pratt agreed with both gentlemen. Hungerford, Laver's chief counsel, protested that this was the first case of a prisoner from the Tower coming loaded with irons to plead; and Kettleby, also on his side, maintained that Laver had a right to stand unshackled before he pleaded to the charge against his life. This latter barrister tempered his boldness with a little servility. 'Having been appointed by your lordship to defend the prisoner, I will not apologize for the course I take.' This was one way of begging the court to excuse that course. Laver, in pitiful state from painful organic suffering, which was aggravated by his heavy load of chains, was compelled to stand. The sympathising 'gentleman gaoler' held up his captive's bonds in his own hands, to save him from fainting. The charge was then read in Latin, and Kettleby argued its worthlessness, if not in law, in the badness of its Latin. 'It is Latin,' he said, 'that may go down in Westminster Hall, but it would not in Westminster School.' Similar pointed remarks came up at the close of long—very long—winded discussions, to which Sergeant Pengelly, for the Crown, replied by expressing his suspicion that Kettleby's objections, made with such pomp and ceremony, probably meant something else than mere quashing of the indictment; upon which all the judges, Pratt, Powys, and Fortescue Aland, declared all the objections groundless; but a world of words was wasted before Laver could be brought to plead. Ultimately he pleaded *Not Guilty*, and he was ordered back to the Tower. He asked earnestly to be allowed to have there the comfort of the company of his wife and sister. In his hour of great peril, he thought of his two best, truest,

ANTAGONISTI
C LAWYERS.

and wisest friends. Pratt sanctioned the companionship of the wife alone. Layer urged that she would be subject to humiliating search on the part of rude warders every time she passed to or fro; but that when there were two women, one might save the other from gross insult. 'No, no!' said the Chief Justice, 'we must not be too forward in allowing women to go there. We all remember how an escape from the Tower was managed by women going thither.'

The trial was opened on the 21st of November. Layer
stumbled forward to his place, still weighed down by irons. **THE TRIAL.**
Pratt, at the sight, exclaimed, as if the matter occurred to him for the first time, 'I will not stir till the prisoner's irons are taken off;'—accordingly they fell; and the next scene in the drama was the calling and challenging the jury. Layer recognised some of them who had said they would hang him if they were on the panel, and his 'challenge for cause' was allowed. His right to peremptory challenge was also unquestioned, but almost invariably when Layer accepted the juror, by remaining silent at the calling of the name, the Attorney-General struck in with the cry: 'I challenge him for the king,' and the possible Tory or Jacobite was set aside. **A FALSE WITNESS.**
Every avenue of escape was as carefully closed by the Whig lawyers. The junior counsel, in opening the case, asked how the jury could find a man not guilty who had fled from justice as soon as he was accused. The jury were told, moreover, that even if it were possible they could not convict him, they would have 'to enquire of his goods and chattels;' thus forfeiture of estate seems to have followed the mere charge of high treason! Layer was charged with every possible sort of treason, but the heaviest and highest included all the rest,—regicide, or what Layer's Jacobite friends called 'securing the person of King George in safety from the mob.' Wearg did not go into detail with much bitterness, and the Attorney-General, who followed, confined himself to a renewal of circumstances already detailed. He then called Stephen Lynch, and a very accomplished villain stepped into the box with ostentatious alacrity. He was objected to by Layer as a man who had confessed to treason, and who was about to give evidence which had already bought for him a promise of pardon. This was pooh-poohed by one of the judges. Lynch, he remarked, might speak the truth under that promise; and suppose he did not, he could not be questioned on it. Lynch's evidence showed one side of Jacobite hireling life. He (a broken-down merchant) had been engaged in affairs, he

said, with a Dr. Murphy, abroad and at home. By Murphy he was introduced to Layer, who engaged him in a special affair, and paid him money for furthering the end desired by himself and confederates; or, he and ‘*other gentlemen*,’ as the witness called them. The means were the enlisting of discontented soldiers when the camp broke up; seizing the Tower, the Mint, the Bank, &c.; getting possession of the king and royal family, and (like the Cato Street conspirators of later days) murdering the commander-in-chief and ministers whenever the plotters could find them together. For all these objects ample aid was promised at all the several points, and much preparation was made, but there was vexatious delay, which Lynch protested against; and, most singular of all, there were two or three visits to the house of Lord North and Grey, in Essex, where the ‘affair’ was discussed; but not a word was said by Lynch, or asked by counsel on either side, to show what part in the ‘affair’ was borne by that peer of the realm.

Lynch was succeeded by Matthew Plunket, a discharged sergeant, a confessed traitor, and an avowed purchaser of safety by giving testimony against the counsellor. According to this witness, he himself was a simple-minded soldier, who had been beguiled into attending Sacheverel’s church, in Holborn, and drawn further away from loyalty by a tippling, insinuating, ‘unjuring parson,’ named Jeffreys. Parson and sergeant met and drank and concocted treason in half the taverns of Fleet Street and Drury Lane. The ex-sergeant, having received his fee, was told that his services would be required in enlisting old soldiers who could discipline a mob. On yielding consent, Plunket was introduced to Layer, who encouraged him by the assurance that Lord North and Grey, an experienced soldier, was the ‘promoter’ of the enterprise, and that Lord Strafford was deeply engaged in it. Plunket affected to be scrupulous, like Lynch, on religious grounds. Would not bringing in the Chevalier be putting a Papist on the throne? What of that? asked Layer, the usurper who now sits there is a Lutheran. What’s the difference? The ex-halberdier thought there was none.

The cross-examination was carried on simultaneously by the two barristers and their client. Neither of them made the slightest allusion to the peers referred to by Plunket, and all three wandered from the point at issue.

The next step was to prove the discovery of treasonable papers in Layer’s handwriting. This proof was established

A
CONFEDERAT
E.

LAYER’S

by King's Messengers, who, acting on information, made **LADIES.** seizure of such papers in a house in Stonecutter's Yard, Little Queen Street. Laver had entrusted them to the keeping of 'an honest woman named Mason,' who kept the house with equally honest ladies in it. He called them 'love letters,' said they were worth 500*l.*, and was anxious that his wife should be kept from all knowledge of them. 'What's your trade, mistress?' asked Kettleby. 'What's that to you?' rejoined the honest woman; with which reply the learned gentleman seemed satisfied.

Her testimony helped Laver towards the scaffold, for among the papers was one entitled the 'Scheme,' which a **LAYER'S
'SCHEME.'** Mr. Doyley, in whose office, many years before, Laver had been a clerk, swore to be in Laver's handwriting, to the best of his belief. This most damaging document bore, by way of epigraph, these words: 'Au défaut de la force il faut employer la ruse.' In detail it gave instructions how the insurrection was to be begun, carried on, and ended,—from the first summoning of soldiers in their lodgings, and of drilled mobs, to their various quarters in and about London, to the insulting direction which bade 'an officer to go to Richmond, and at the exact hour of 9, to seize on Prince Prettyman, and bring him away to Southwark.' The details were made out as a stage-manager might note down dramatic business, wherein every actor knows what he has to do, and can find no obstacle in the doing of it, except from his own dulness. When some comment came to be made by the Chief Justice on this and on certain correspondence between Laver and the Pretender, Mr. Hungerford interrupted with 'I humbly beg your lordship's pardon——,' but Pratt cut the remark and the maker of it short by petulantly exclaiming, 'Sir, if you will not hear me, you'll teach me not to hear you!' After this rebuke, ample proof was adduced of the intimate relations which existed between the Pretender's family and Mr. Laver's. One instance was, that the exiled prince and his wife had consented to stand, by proxies, godfather and godmother to Laver's daughter. The proxies were Lord North and Grey and the Duchess of Ormond. The ceremony was privately performed at a china shop in Chelsea, the minister being, doubtless, what Plunket would have called 'an unjuring parson.'

The defence was not badly sustained, especially by **THE
DEFENCE.** Laver himself. His chief point was that being accused of an overt act of treason in the county of Essex, if that

accusation failed to be proved, whatever he had done elsewhere was irrelevant. Kettleby too addressed himself so clearly to this elucidation as to excite the chief judge to reprehensible pettishness. ‘You have mixed your discourse so,’ cried Pratt, ‘that nobody knows what to make of it!’ The counsel tried hard to prove that Layer had not even been where Lynch swore he had committed an act of treason. Mackreth, the host of the ‘Green Man,’ at Epping, his wife, and John Paulfreeman, their servant, swore positively that no one resembling Layer had ever been in that house. ‘But,’ said mine host, ‘there was the Duke of Grafton and Lord Halifax came to my house some time since. The Duke said to me, “Mackreth, you’re to be hanged.” “Hanged!” said I, “for what?” “You and your friend, Layer, are to be hanged!” Said I, “I never saw him in all my life.” He added, “They walked to and fro in the hall.” “What!” said they, “do you know nothing of this Layer?” “No!” said I, “I don’t, directly nor indirectly, as I hope to be saved.”’ This characteristic attempt by great personages to intimidate a witness failed.

Great interest was next excited by the appearance of Lord North and Grey, a prisoner from the Tower. He had been captured in the Isle of Wight, in an attempt to escape to France. He served the Government rather than Layer, on whose part he was called. Lord North confessed that Lynch was twice at his house, in Essex; but was rather uncivilly got rid of the second time. Being pressed as to what passed between himself, Lynch, and Layer, he answered:—‘It is a little hard for a man of honour to betray conversation that passed over a bottle of wine, in discourse.’ Although he said he must submit if ordered to betray, he was *not* ordered; and he the more confidently added: ‘As to particular things, I don’t care to speak of them. I should be sorry to say it, when it was said in my company and under my roof.’ Having made this singular speech, Layer’s counsel rejoined with one as singular:—‘We won’t press it,’—as if my lord’s silence bore less peril to their client than his outspokenness would bear. At length, said Lord North and Grey, ‘I must, by your Lordship’s leave, if these gentlemen have no further to say to me, and your Lordships have no further commands, ask that I may return to my prison.’ Upon which, Mr. Hungerford, as if he were glad to be well rid of him, called out, ‘I hope you will make way there for Lord North and Grey through the crowd!’ It was a turbulent crowd, and given to ‘tumbling about’ such witnesses as happened to displease them. This was especially the case

**STRANGE
WITNESSES.**

with Sir Dennis O'Carroll, one of many witnesses who swore to the rascal repute of Lynch and Plunket. 'It's a mighty bad character Plunket has,' said the gallant knight, 'I wouldn't take his evidence to hang a dog!' 'And here he is,' said Hungerford, 'trying to hang a Protestant!' Other witnesses spoke to the infamous life led by Mrs. Mason; others swore that the 'Scheme' was not in Layer's handwriting, and Layer himself denounced it as a forgery. He and his counsel argued one after the other in his defence; he did not trust his case entirely to their idea of conducting it; and they seemed more pleased than troubled by his interference. His courage, without the slightest bravado, was beyond all praise. His course was rather to deny the alleged proof adduced on the trial than to deny acts which, he contended, were unproved.

The Solicitor-General then, in a manner, rushed at him. When he had finished his long and blindly furious speech, Kettleby merely said in reply: 'I shall not take up much of your Lordship's time, especially since your Lordship and Court have been so long and so well entertained by Mr. Solicitor-General at least two hours, as I have observed by my watch, but it was impossible for me to think him tedious, though so late at night.' Therewith, he seated himself; and a few persons having been called by the Crown in support of the honesty and virtue of some of its very questionable witnesses, the Lord Chief Justice summed up with a cruel sort of equity, and the verdict of *Guilty*, which followed from an unanimous jury, brought to an end a trial of eighteen hours' duration.

Sentence was not pronounced till the 27th. The doomed man was brought from the Tower heavily ironed. The cruelty excited sympathy, but the Lord Chief Justice said he could not interfere. It was not lawful for a man to be ironed when on his trial, but this trial was over, and Mr. Layer was legally in chains. Pity, however, prevailed, and the prisoner was relieved of the burthen while he pleaded ably but vainly in arrest of judgment. He made no craven cry for mercy promising abundant loyalty in return, but he did not affect to look with indifference on death, and he certainly hoped that his life might be spared. Pratt, in passing sentence, smote Layer's counsel as well as their client. 'Your Counsel,' he said, 'have been permitted to say whatever they thought proper for your service; and I heartily wish I could say they had not exceeded, that they had not taken a greater liberty than they ought to have

THE VERDICT.

LAYER'S
DIGNITY.

done.’ After this philippic, Pratt pointed out the happiness of England in possessing such a church, such a constitution, such laws, such lords and commons, and such a king and royal family. Not to enthusiastically worship these blessings was, in his eyes, inexplicable folly. To attempt to overthrow any of them was a criminal madness worthy of death; and he who had so dared must now die. Layer was accordingly condemned to be hanged, drawn, and quartered. ‘I will dare,’ said he, ‘to die like a gentleman and a Christian.’ Whereupon, he was again ironed, hurried into a coach, and driven off to the Tower.

There was another Jacobite ‘wanted’ by the Government. This was Carte, the Nonjuror. The Government thought it worth while to offer a thousand pounds for the apprehension of this obnoxious clergyman, but as in the proclamation to that effect, he was described in exactly opposite terms to those by which he could possibly be recognised, Carte got off to France, where he lived under the name of Phillips, till in the next reign Queen Caroline kindly obtained permission for the Jacobite scholar to return to England. In the Mall, and at other public places, the authorised watchers of suspected persons were surprised to find several of the latter, in mourning. This was accounted for, when it was known that Princess Sobieska, the mother of her whom the Jacobites acknowledged as the true Queen of England,—the wife of the Chevalier—was dead. ‘Chevalier!’ said an enthusiastic handmaid to a distiller in Fleet Street, ‘I wish all the hairs on my head were so many dragoons, to fight for the Chevalier!’ That night she lay in Bridewell, and a day or two after, the poor handmaid was whipped,—into a more determined Jacobite than ever!

**THE
JACOBITES IN
MOURNING.**

Towards the close of the year, the Tories took their condition joyously enough. Indeed, Whig and Tory fraternised over the punch-bowl. The Whig Sir John Shaw entered into drunken frolics with the Tory Duke of Wharton. A body of tipsy companions, members of Parliament, including Sir John, tumbled in to a committee of the whole House. ‘We met,’ he writes to Lord Cuthcart, ‘the Duke of Wharton, as well refreshed as I. He proposed to survey all the ladies in the galleries. I was for turning them all up: but he declined. He proposed to knock up Argyle; but I proposed the king.’ The roysterers did knock up Argyle, and the loyal Whig Duke received them well. A strong illustration of the coarseness of the times is to be seen in the

circumstance that Sir John is not ashamed to let his wife know that *he* had proposed to practise on the ladies, the ruffianly insult often indulged in by Mohawks, Bloods, and cowardly muscular gentlemen generally, namely, flinging their garments over their heads.

While the riotous character of the time was thus kept up by such gentlemen as the Duke and Sir John, the Jacobite feeling among a few actors of the Lincoln's Inn Fields theatre was maintained by John Ogden. He was not a secret agent, like handsome Scudamore, of the same house, but an outspoken Tory in coffee-houses and elsewhere. He was too much of a roysterer for an actor who played such serious or dignified parts as the *Duke de Bouillon*, in Beckingham's 'Henry IV.,' *Northumberland, Kent, Shylock, Mr. Page*, and *Bellarius*, in Shakespeare's 'Richard II.,' 'King Lear,' 'Merchant of Venice,' 'Merry Wives of Windsor,' and 'Cymbeline.' Towards the close of the year, Ogden, being in a tavern, drank King James's health on his knees; then, rising, he proposed that the company present should do the same, and the Tory player drew his sword, in order to enforce the proposal. At this time, there were always constables on the look-out for such offenders, and a leash of them on this occasion made a rush at John Ogden. The player kept them at a distance with his sword, very unceremoniously damned King George, and urged the constables to follow his example. Ultimately, John was knocked down and captured. He passed his Christmas in Newgate, before trial, when he had a narrow escape of going to Tyburn. Considering how full the air was of plots, Ogden was not harshly treated. On being found *guilty*, he was sentenced to three months' imprisonment, to pay a fine of 50*l.*, and to find security for his good behaviour for three years. He satisfied all the conditions of law and justice. In the next summer season of Lincoln's Inn Fields he made his reappearance as *Prince of Rosignano* in d'Urfey's revived play of 'Masaniello,' and he created the part of *Diocletian* in Hurst's tragedy, 'The Roman Maid.' He might have been seen studying both parts as he walked to and fro in the noisy Newgate press-yard.

After the sham fights in the camp, the hotter contests in Parliament drew the attention of all London. In October, a Bill for the suspension of the Habeas Corpus Act, for a whole year, was brought into the House of Lords, where it passed through all the forms, and was sent to the Commons, in one day. The

A JACOBITE
PLAYER.

SUSPENSION
OF THE
'HABEAS
CORPUS.'

Commons passed the Bill. Nineteen peers, including the Archbishop of York, protested against the suspension for so long a time of an Act which was the bulwark of the liberties of all Englishmen; and which was brought in when the detestable conspiracy, which was the motive for the suspension, had been rendered abortive. The ministry were of another opinion. In the latter half of October, the king asked the consent of the peers for the continued detention of members of the House, namely, the Bishop of Rochester, the Duke of Norfolk, Lord Boyle (Earl of Orrery), and Lord North and Grey. In the case of the Duke of Norfolk, the consent was opposed, but was carried by 60 to 28. Again, nineteen peers protested, on very good grounds. The Duke was described as being suspected of having committed high treason, and the protestors held that it was contrary to the rights and privileges of the House, to detain any member (while a session was in existence) on suspicion, without the grounds for such suspicion being communicated to the House. There was probably no ground.

Commoners, naturally, were not treated with more courtesy than peers. Their houses were invaded by messengers in search of a reason for the invasion. On a similar search, in November 1722, Mr. Spratt, king's messenger, knocked at young Mr. Cotton's door, in Westminster, and entered the house with a warrant for his arrest. Cotton received the unwelcome visitor civilly, and Spratt's eye, falling on a picture of a lady, he asked, as if he were interested, whose portrait it might be? Cotton answered, 'the Queen's.' 'What Queen's?' rejoined the messenger. 'The Queen of England's, the wife of James III.,' was the bold reply. 'You mean,' observed the officer, 'the Princess Sobieska.' 'You may call it what you please,' returned Cotton, 'I acknowledge it as my Queen's portrait; and if Lord Townshend was to ask me, I should make the same answer.' On his trial subsequently, a constable and two men who supported the messenger, deposed to similar effect; but Mr. Cotton's footman gave a modified relation. Their testimony was that when their master was asked as to the portrait, he replied, 'You may call it whose you please!' Counter-evidence was then adduced to corroborate the prosecutor's story, according to which, the messenger had facetiously called the picture, 'The portrait of the lady who married the young gentleman 'tother side of the water!' To which Mr. Cotton, being heated, cried, 'A plague!—something worse, upon you! Why do you trouble me? Call it what you please!'

**ARREST OF
PEERS.**

Lord Chief Justice Pratt, in summing up, found that the evidence for the Crown was confirmed rather than contradicted by the witnesses for the defence, and his lordship suggested a verdict accordingly. When, after a quarter of an hour's consultation, the jury returned with the words 'Not guilty!' on the lips of their foreman, the Chief Justice looked surprised, and the Whig papers, in the course of the week, clearly thought the jury were as great *Jacks* as Mr. Cotton himself.

**LORD CHIEF
JUSTICE
PRATT.**

Never was society in London in a worse condition than at this time. In every class there was a pitiful cynicism, and pitiless savagery, with open contempt for becomingness in man and woman. A report of a sermon in the newspapers would be followed by an unutterably filthy epigram. Essayists claimed to exercise the utmost nastiness of life, and denied the right of anyone to find fault with it. The monthly executions at Tyburn were periodical fiendish revels. The newspapers made jokes upon them; and Newgate convicts who cut their throats to avoid the long agony in a Tyburn cart, were banteringly censured for disappointing a public eager for such shows. The doomed man who rode thither pluckily, was lauded. Much notice was taken of a gentleman highwayman, with many *aliases*, who was captured in a western county, and who drove up to Newgate with attendant constables, in his own coach and six. The papers reminded him, however, that his next ride would be in a cart and two. The departure of criminals for the Plantations was another sight. It was always spoken of as the exportation from the storehouse in Newgate Street of certain merchandise to America. The crowds of young thieves, who, with finer company, lined the route by which the older ruffians walked from Newgate to Blackfriars, where the lighter lay which was to convey them to the ship waiting for them off Gravesend—were spoken of as nice young shoots that would be transplanted in two or three years. The convicts walked, slightly guarded, free in limbs, free and foul in tongue, full of spirits and blasphemy. It was among their gentler acts of felony, committed on their way, to rob the fine gentlemen who stood near enough as they passed, of their hats and perukes. They clapped the stolen property on their own heads, and congratulated themselves that they would land in America, something like gentlemen. This sort of theft was a favourite one at the time. A gentleman riding in his chariot, to court or opera, was not so safe as walking on the

**LONDON
SIGHTS.**

**AMBITIOUS
THIEVES.**

highway with a sword in his hand. A thief, fond of dress, would cut a square in the back part of the chariot, draw the new wig off the beau's head, and wear it proudly at night in presence of his own Sukey Tawdry! Gentlemen, in defence of their new wigs, were obliged to ride with their backs to their horses!





CHAPTER XIX.

(1723.)



THE year 1723 found society variously agitated. There was real terror about the Plot; but among the gayer portion of society there was but small concern save to know whether Cuzzoni would come out at the Opera, and whether the racing season would be affected or not by the conspiracy. The above lady not only came out, but the king went, attended only by a few gentlemen, to hear the Syren. Criticism took this form of expression in the London Journals, January 19th, 1723:—

‘His Majesty was at the Theatre in the Haymarket when Signora Cotzani (Cuzzoni) performed for the first Time, to the Surprise and Admiration of a numerous Audience, who are ever too fond of Foreign Performers. She has already jump’d into a handsome Carriage and an Equipage accordingly. The Gentry seem to have so high a Taste for her fine Parts, that she is likely to be a great Gainer by them.’

At this very time, the more serious drama was approaching its last act.

On the 15th of January, 1723, the House of Commons resolved that a committee, consisting of such members of **THE PLOT.** the House as were also Privy Councillors, should examine Layer and his papers, in the Tower, in order to get to a deeper knowledge of the plot to dispose of the king, than they yet possessed. In the subsequent report of this committee, it was stated that the horrible and execrable design had long been entertained by ‘persons of figure and distinction’ at home as well as by traitors abroad. Of those at home were Lord Orrery, Lord North and Grey, Lord Kinoul, Lord Strafford, Sir Henry Goring, and, with these, Bishop Atterbury, Captain Kelly, Kelly *alias* Johnson, and one John Plunkett. Actively or passively, these were all concerned in a conspiracy for an invasion of the kingdom by a force that was to leave Spain under the Duke of Ormond, to be joined by a Jacobite force on the coast and in the capital,

and by their united power to destroy the existing state of things, the royal family included.

The committee complained that Layer would give them no assistance, but that by prevarications, contradictions, and downright lying, as they called it, he threw every sort of obstacle in their way. This threw them back on such papers as they had seized; but these papers, being partly or wholly in cypher, they had first to construct a key, and they then assumed that it solved every difficulty. They were indeed not far wrong, as the Stuart papers have since proved; but all the interpretations of initial letters, fictitious names, numbers for words, things or animals for persons, whereby Atterbury, Kelly, and Plunkett were chiefly implicated, were stoutly denied as being applicable, and such circumstantial evidence was not only denounced by the accused, but at a later period was derided by the great satirist of the day.

Swift, in the sixth chapter of Gulliver's account of Laputa, gives the captain's report, as it was delivered to him by a distinguished Laputan professor, how to detect the difference between a man who intended to murder a king, and one who only designed to burn a metropolis. The captain explained to him the method taken in Tribnia (or Britain), in matters of high treason. 'I told him that in the kingdom of Tribnia, by the natives called Langden, where I had sojourned some time in my travels, the bulk of the people consisted in a manner wholly of discoverers, witnesses, informers, accusers, prosecutors, evidencers, swearers, together with their several subservient instruments, all under the colours, the conduct, and the pay of ministers of state and their deputies. The plots in that kingdom are usually the workmanship of those persons who desire to raise their own characters of profound politicians; to restore new vigour to a crazy administration; to stifle, or divert general discontents; to fill their pockets with forfeitures, and raise or sink the opinion of public credit as either shall best answer their private advantage. It is first agreed and settled among them what suspected persons shall be accused of a plot; then effectual care is taken to secure all their letters and papers, and put the owners in chains. These papers are delivered to a set of artists very dexterous in finding out the mysterious meanings of words, syllables, and letters; for instance, they can discover ... a flock of geese to signify a senate; a lame dog, an invader; the

**SATIRE ON
THE PLOT.**

DECYPHERING.

plague, a standing army; a buzzard, the prime minister; the gout, a high priest; a gibbet, a secretary of state; ... a sieve, a court lady; a broom, a revolution; a mouse-trap, an employment; a bottomless pit, a treasury; a sink, a court; a cap and bells, a favourite; a broken reed, a court of justice; an empty ton, a general; a running sore, the administration. When this method fails, they have two others more effectual, which the learned among them call crotchets and anagrams. First, they can decipher all initial letters into political meanings; thus N shall signify a plot; B, a regiment of horse; I, a fleet at sea; or, secondly, by transposing the letters of the alphabet in any suspected paper, they can lay open the deepest designs of a discontented party. So, for example, if I should say, 'Our brother Tom has got the piles,' a skilful decipherer would discover that the same letters which compose that sentence may be analysed into the following words:—"Resist—a plot—is brought home—the tour;" and that is the anagrammatic method.'

Under this rich satire there is a world of truth. But, as already said, the committee were not far wrong in interpreting at least some of the papers in cypher; and the legislature was not unjustified in bringing in separate Bills of Pains and Penalties against Plunkett, Kelly (Nonjuror, Jesuit, perhaps both), and Atterbury.

When the proceedings against Plunkett, Kelly, and Atterbury were preliminarily begun in the Commons by motions to the effect that a devilish conspiracy existed, the Jacobite members were boldly outspoken. Shippen and Dr. Freind were especially so. They had, indeed, no shadow of doubt as to the existence of the conspiracy, seeing there had been one 'carrying on against the present Settlement ever since the Revolution;' but they did not believe in any particular Plot, such as the alleged one on which the Ministry hoped to obtain Bills of Pains and Penalties against the above three persons. Against the first two, the object of the Ministry was attained; and then came the stormy day, on which the attack was opened against the Bishop of Rochester.

On March 11th, Mr. Yonge, on moving a resolution which laid the crime of high treason on Atterbury, concluded a violently rabid speech with a text from Acts i. 20, 'Let his habitation be desolate, and let no man dwell therein: and his bishoprick let another take.' After Sir John Cope had

**PROCEEDINGS
AGAINST
ATTERBURY.**

seconded the motion, all the Jacobites in the House, one after the other, led by Wyndham, denounced the proceeding. Bromley, Shippen, Hutcheson, Hungerford, Strangeways, Lutwyche, and Dr. Freind, ridiculed the idea of prosecuting a man against whom there was no evidence that was legal or trustworthy. The motion was carried; but the opposition officered by the Jacobite physician was so fierce and outspoken, that hardly unexpected consequences speedily followed.

On March 13th, Sir Robert Walpole informed the House that the king (empowered by the suspension of *Habeas Corpus*) had ordered Dr. Freind to be arrested and detained on a charge of high treason, and the minister asked the House to sanction the act. Shippen and Bromley opposed this request and the act also, on the ground that nothing was specified, and that Dr. Freind was committed on accusation unsupported by oath.

DEBATE IN
THE
COMMONS.

Walpole, Jekyll, and others, maintained the king's right to arrest whom he pleased, and under any circumstances; but the former assured many members near him, in conversation, that the information against the Doctor was supported by oath. 'Doctor Freind,' said Shippen, 'is a prisoner for nothing more than what he has said in this House; and the members, therefore, were deprived of the freedom of speech.' Walpole, of course, expressed himself amazed that anyone should for a moment suppose that any ministry could be capable of so base a thing as to take up any gentleman for what he said in that House, without any other reason. Pulteney described the speeches of Freind, in defence of Kelly and Atterbury, as excuses which one traitor made for another. To which Shippen with great warmth declared that it was past bearing for a member to be called a 'traitor,' before he was proved to be one. At the end of it all, a majority of the House justified the king in sending Freind to the Tower, and expressed a hope that he would keep him there.

The Doctor quietly turned his imprisonment to good purpose, by producing his 'De quibusdam Variolarum generibus,' and laying down the plan, subsequently carried out, of his famous 'History of Physic, from the time of Galen to the beginning of the Sixteenth Century.'

DEBATE IN
THE LORDS.

Lords Strafford, Kinnoul, North and Grey, with Atterbury, were compromised so far as the evidence of the Captain-Lieutenant Pancier of Cobham's Dragoons went. He deposed that he had been told by one Skene that the above peers were concerned in the plot. This took place when a Committee of the House of Commons visited Layer, under sentence of death, in the Tower. Plunkett deposed that he had heard Layer say the same of the Earls Scarsdale, Strafford, and Cowper, Lords Craven, Gower, Bathurst, and Bingley, all of whom were said to belong to a seditious company called Barford's Club. Motions to get Pancier, Skene, and Plunkett before the House of Peers were made and lost. Lord Cowper was the only peer who denied the alleged facts by a formal declaration; he shocked Lord Townshend, moreover, by his ridiculing as a fiction 'a horrible and execrable conspiracy.' Townshend, however, acknowledged that the peers named were blameless as to the allegations. It was on this occasion that the Earl of Strafford declared his feelings in a very lofty manner. 'I have the honour,' he said, 'to have more ancient noble blood running in my veins than some others; so, I hope I may be allowed to express more than ordinary resentments against insults offered to the peerage.' This vain boast was founded on the fact that the Wentworths held land in Yorkshire in the Saxon times. But the Barony, Viscountcy, and Earldom dated only from the reign of Charles I., in the person of Thomas Wentworth, who was born in Chancery Lane, in 1593. The later earl, who boasted of the antiquity and the nobility of his blood, was once rebuked in the House of Lords by Earl Cowper. Lord Strafford had referred to Marlborough as a general who 'fomented war.' In reply, Earl Cowper remarked, 'The noble lord does not express himself in all the purity of the English tongue; but he has been so long abroad, he has forgotten both the constitution and the language of his country.'

The jokers had their fun out of this serious matter. Pasquin, in March, sarcastically congratulated the Ministry on their vigilance and success in detecting the horrid conspiracy; adding, 'A great Patriot was heard last Tuesday night to declare in a public Coffee House, that after hearing the Report of the Commons, "*no man in his senses would doubt there had been a PLOT.* N.B.—He said this without any grimace!"'

Several weeks elapsed before the first of the three accused persons was disposed of. It was not till April that

CONDEMNATI
ON OF

the Bill against Plunkett went through all its legal stages, **PLUNKETT.** whereby he was condemned to perpetual imprisonment, with forfeiture of all his possessions, and in case of breaking prison, followed by recapture, death, for himself and any who might aid him.

Kelly was next brought from the Tower, before the Lords. Like Plunkett he was so rigorously watched in his prison that two warders were at his side night and day, and even the use of a knife was prohibited. There were certain fees to be paid to the Governor for severe duties, with which the captive would willingly have dispensed; and a rent was required for his room, the tenancy of which was imposed on him against his will. For these matters, however, the Government that prosecuted him furnished him with means. **KELLY'S TRIAL.**

The Jacobite lawyer, Sir Constantine Phipps, fought his client's battle with aggravating pertinacity. He denied the legality of evidence which consisted, as in Plunkett's case, of copies of letters, the alleged originals of which no one but the reporting committee had seen; and also did he deny the validity of testimony founded on mere hearsay. Sir Constantine, however, was sharply pulled up by the Lord Chancellor, who informed him that their Lordships had had full satisfaction of the truth of the extracts copied from letters, and of the hearsay evidence on other occasions. Kelly's friends among the peers attempted to attach a rider to the Bill, providing that, on his giving good security he should be permitted to reside abroad. The attempt failed. An extract from one of the letters addressed to Kelly, and seized when in his possession, relating to a dog brought from Paris, was supposed to have reference to Atterbury, and to be very redolent of treason. Phipps ridiculed this, but Lord Cartaret rose and said: 'I have received letters from his Majesty's Minister in Paris, relating to Kelly's procuring a dog in Paris, for some person here.'

Kelly delivered a remarkably able speech in his own defence. Its chief points were a general denial of every charge—a denial that he had ever employed one Neynoe in treasonable matters. This fellow had himself been arrested, but was drowned in the Thames in an attempt to escape. Kelly called on Heaven to witness that he had never been employed by Atterbury to write letters of any sort; that he had never visited the bishop privately, nor had ever conversed with him but in company with other persons. As for the **KELLY'S DEFENCE.**

treasonable-looking dog, 'He was given to me,' said Kelly, 'by a surgeon in Paris;' he added that the surgeon's affidavit could be procured, and, that it was trustworthy was warranted by the surgeon being the medical attendant of the Minister himself. 'The dog,' said the prisoner, 'was never intended for anybody but who I gave him to,' which was true enough. Kelly then complained, but contemptuously, that creatures of the vilest condition had been hired as witnesses, and that partly on their testimony, heard in private, this Bill was founded. Newgate had been swept for evidence-men. A servant of his own, discharged for grave offence, was sought out and heard against his master. A man in Government employment, on being tampered with, had honestly declared that he knew nothing whatever against the prisoner, Kelly. He was, in consequence, dismissed from his employment, but was reinstated on dishonestly offering to bear witness against him. 'All which,' said the candid Jesuit in conclusion, 'is of a piece with an infamous offer made to myself by one of the under-secretaries of State, who, the morning after I was first examined, came to me with a message (as he said) from one of his superiors, to let me know "That I had now a very good opportunity of serving myself, and that he was sent to offer me my own conditions." And when I declared myself an entire stranger to the conspiracy, and was sorry to find that noble Lord have so base an opinion of me, he seemed to wonder that I would neglect so good an occasion of serving myself; "especially when I might have anything I pleased to ask for." What authority that person had for his message, or the rest of his after-proceedings, I will not pretend to say; but as I have been ruined and utterly undone by them, I hope your Lordships will take my sufferings as well as circumstances into consideration, and instead of inflicting any further pains and penalties on me (as I really am) a person highly injured, and not a criminal concerned in any transactions against the government.'

Of course the defence availed the speaker nothing. Like Plunkett, Kelly was condemned to perpetual imprisonment, with forfeiture of all property. Since their offence was precisely of the same nature as Councillor Layer's, it is incomprehensible that their sentences and fates were not similar.

Among the public, a sensation was kept up. The 'Plot' was as much talked of as Titus Oates's. Arrests were made, especially of Nonjurors, ministers, or laymen. Even young

**SENTENCE ON
KELLY.**

**THE KING AT
KENSINGTON.**

ladies could not arrive in London from France without being subject to a summons to explain the wherefore to some sapient Justice of the Peace. Judges were furiously anti-Jacobite. One of these—finding a jury resolute in returning a verdict of *not guilty* against a respectable Pall Mall tradesman, whom two rascally soldiers, unsuccessful in trying to extort money from him, charged with uttering treasonable words—loaded the jurors with obloquy, then attempted to cajole them into a loyal verdict, and failing, ordered their names and addresses to be taken down, and declared them too infamous to ever have the honour of serving on a jury again. Persons who had a proper sense of allegiance quite pitied the king, whom the temper of the times drove into taking care of himself. Every day he walked in Kensington Gardens, alone, but before beginning that wholesome exercise, the gardens were thoroughly gone over by soldiers, and during the promenade, every outlet was strictly guarded. This done, the king went alone, as he loved to do, and had the gardens all to himself.

Throughout the early part of the year there was an incessant persecution of Tory printers, pamphlet-writers, and of noisy and conspicuous Nonjurors. Thus the ‘British Journal’ tells its readers: ‘The late Duke of Buckingham’s Works, in two vols. in quarto, lately printed by Alderman Barber, were on Sunday last seized by some of his Majesty’s Messengers, as it is said, because in some parts of these volumes great Reflections are cast upon the late happy Revolution.’ Later, may be gathered from the ‘Weekly Journal,’ the following intelligence, likely to painfully stir all Tory hearts:—‘Mr. Matthias Earbery, a Nonjuring Parson, appeared upon his recognizances, having lately been taken up for a seditious libel; but he having in the year 1717 been outlaw’d upon an indictment found against him for a most virulent and traitorous Libel, entitled “The History of the Clemency of our English Monarchs,” Mr. Attorney-General moved that he might thereupon be committed, which was order’d by the Court accordingly. Thus, this Gentleman, regardless of the Mercy and Forbearance of the Government to him, hath by a base Ingratitude, common to a certain set of people, brought this upon himself, which one might think should be a Caution to others not to abuse the great Clemency they daily meet with.’ The same paper announces the conviction of Redmayne, the printer, for a ‘scurrilous pamphlet,’ ‘The Advantages accruing to England from the Hanover Succession.’ Phillips was also convicted for printing ‘A Second Part of the “Advantages.”’ On the other

hand, persons with too much zeal for the House of Hanover, which they demonstrated by accusing innocent persons of high treason, and broke down in endeavouring to substantiate their accusation, were flung into Newgate by Lord Cartaret with an alacrity which did that Secretary great credit. One of these was Middleton, a fellow who was so steeped in perjury that he was set in the pillory, where a mob of both Whigs and Jacobites killed him. The inquest jury, equally united, brought in a verdict of ‘accidental strangulation.’ This fate did not deter others, for the remainder of the year. ‘It is reckoned,’ writes Swift, ‘that the best trade in London this winter will be that of an evidence.’ It is curious to find **PATTEN IN PERIL.** drawn to town by the atmosphere of treachery and perjury; no less a person than that Rev. Mr. Patten, who turned King’s evidence in 1716, against the Preston prisoners. He was taken up in Fleet Street for disorderly conduct, in pretty disreputable company; and he came to temporary grief through beating the constable, hectoring the justice, and maintaining, with a modern ritualistic minister’s contempt for the law, that his offence was cognizable only in an Ecclesiastical Court!

Previous to Atterbury’s appearance before his Judges, the papers on the Whig side reported petty details of his life in the Tower, and of the doings of his chaplains outside of it. In March, the ‘British Journal’ understood that ‘the Rev. Mr. Thomas Moore, Chaplain to the Bishop of Rochester, now in custody, is charged with secreting a Duty-Bond of Accounts, kept by William Ward, the bishop’s coachman (who is likewise in custody), in which book the Times of the said Bishop’s coming in and going out of Town were set down.’ In another column was given this exquisite specimen of sermon-reporting in the first quarter of the last century:—

‘We hear that on Monday last, a certain Bishop’s Chaplain preach’d a wonderful sermon not far from **A STRANGE SERMON.** Somerset House. The subject was, *Honour the King*——. The words, *Fear God*, in the same verse, he had no mind to trouble his Hearers with, and therefore disjoin’d what the Holy Writer had put together. What was most remarkable in the odd Composition of the Discourse was the Flow of uncouth Similies and Comparisons; particularly he compar’d his Majesty’s subjects to Monkeys pricking and playing with their Tails in China-shops, and by their Gambols throwing down the Wares. His Majesty himself escap’d not a Strook of his queer Wit, for he was compar’d to a

Surgeon who first gives Physick before he probes the Wound. He considered, by the By, the wise Ends of proroguing the Convocation which, he said, are not proper to be known at present, but would appear to be all very good, in their Time. We hear the Congregation have desired the favour of him not to preach there any more.'

Atterbury's probable doom was made a subject of coarse humour after a manner which was uproariously approved in Whig coteries. For example, the 'British Journal,' March 23rd, says:—'What will be the fate of a certain Prelate is not yet known, but if his fears are of the same complexion with those that influenced his Sire, he will not be hang'd, for as 'tis story'd of *him*—he was drown'd as he resolutely cross'd at a Ferry on Horseback, when Two Pence might have sav'd him. This he thought a fare too much for Charon.' At the same time, a tender treatment was adopted towards some of the other accused persons. Lord Orrery was said to be ill. A conference of physicians was accordingly held (by command of the Secretary of State) at the Cockpit, on Lord Orrery's health; a result was come to which is indicated in the following paragraph: 'On Thursday evening, the Earl of Orrery was carried privately from the Tower to Whitehall, and admitted to Bail in a Recognizance of 200,000*l.*;—himself in 100,000*l.*, and his Sureties, the Earl of Burlington and the Lord Carlton, in the rest. His Lordship lay that night at his House in Glass-House Street, near Piccadilly, and will, as we hear, remove, in a day or two, to his Seat of Brittall in Buckinghamshire.'

On the 4th of April, Atterbury being then at dinner, in the Tower, the room was suddenly and unceremoniously entered by Col. Williamson (the Deputy-Lieutenant of the Tower), Mr. Serjeant (the Gentleman Porter), and two Warders. The Colonel abruptly intimated to Atterbury that he had come to search him. 'Show your warrant,' said the prelate. 'I have warrant by word of mouth,' was the reply; but when the Colonel was asked from whom he held it, he only declared, on his salvation, that he had a verbal order from the Ministry, and would name no other authority. The bishop appears to have been harshly treated, and he was deprived of everything he possessed. Atterbury immediately petitioned the House of Lords, and a motion was consequently made, that the above-named officials should be brought to answer for their conduct before the House. The motion was lost by fifty-six

TREATMENT
OF
ATTERBURY.

against thirty-four; but fifteen of the minority entered a strong protest, on the ground that the House by its decision seemed to justify the depriving an accused person of his papers and other means of defence, and the violence by which the illegal deprivation had been carried out.

A fair sample of the spirit of that part of the Opposition which could not be said to be anti-Hanoverian, was afforded by Oglethorpe, a member of the House of Commons, when, on April 6th, it was proposed that the Bill against Atterbury should be read a third time, and passed. ‘It is plain,’ said this gentleman, ‘the Pretender has none but a company of silly fellows about him, and it was to be feared that if the Bishop, who was allowed to be a man of great parts, should be banished, he might be tempted and solicited to go to Rome, and there be in a capacity to do more mischief by his advice than if he was suffered to stay in England under the watchful eye of those in power.’ The Bill passed, nevertheless.

OGLETHORPE
AND
ATTERBURY.

Some days later, Atterbury addressed an earnest letter to Viscount Townshend. He was thankful (he said) for being allowed to see his daughter ‘any way;’ but the boon was marred by official circumstance;—namely, the presence of an officer during the interview. Father and child had been separated for eight months. By the passing of the Bill against him, they might be separated for ever. The Jacobite prelate implored for permission to talk in strict privacy, with one who was so near and so dear to him.

A little before that letter was written, Sir John Shaw wrote to his wife some account of what was being done in London against the Jacobites. He tells, joyfully, how the Whigs carried a bill of Pains and Penalties in the House against John Plunkett, and how ‘the Torryes lay by.’ That against Kelly, *alias* Johnston, had like success. ‘So, he is like to be a jayl bird for the rest of his days.’ Then comes a Whig fling at Atterbury. ‘We shall be on the Bishop on Thursday, who probably will be banyshed.’ While the process was going on in the Commons, Sir John wrote: ‘I count we shall be done with him to-morrow, for we sit down sometimes at nine o’clock in the morning, and do not raise until ten o’clock.’

The bishop’s trial before the Lords, if it may be so called, began on the 9th of April. This was the day on which the Bill of Pains and Penalties (framed against him

IN THE HOUSE
OF LORDS.

on letters which had fallen into the hands of ministers, or on hearsay and circumstantial evidence) was read for the first time. The proceedings were of an extraordinary character.

The counsel for the Bill began by proposing to read extracts from Sir Luke Schaub's letter to Lord Cartaret (20th April, 1722), which referred to the 'plot in general.' Sir Constantine Phipps, with characteristic Jacobite energy, opposed the reading of extracts, on the ground that the name of the informer was not given, and that the peers ought not to be kept in the dark, on this point. The bishop and his counsel were removed while this objection was being discussed (as they were on every similar occasion). The House resolved that it was proper that such extracts should be read in evidence of the plot, generally. Thirty-one peers protested against the injustice of such a proceeding.

After Atterbury and his counsel resumed their respective places (the former at the bar), decyphered renderings of letters in cypher, which had been opened at the Post Office, and then sent on, were put forward for reading. Mr. Willes, the decypherer, swore he had interpreted them by a key. Atterbury insisted that the key should be produced. On a division, the House decided that it was not expedient to do so; and against the unfairness of the decision, thirty-three peers entered a protest. The bill was read a first time, and the House adjourned.

Meanwhile, the Whig press abused the bishop, discussed his guilt in an affirmative sense, and speculated upon his being hanged or exiled. The 'British Journal,' of April 13th, ridiculed Atterbury's complaints against the Deputy Governor of the Tower: 'At a late rencounter between a certain Colonel and a certain Prelate, the latter eat up his words; had there been any harm in what he eat, he would not have run the Hazard.' At this same time, certain Jacobite wags had dared, like my Lord Cowper, to intimate that there had never been any serious plot at all. 'A scandalous copy of verses,' says the 'London Journal,' 'burlesquing the discovery of the wicked conspiracy, is being printed and handed about Town. Strict search is being made after the contrivers and dispersers of the same.' Search too was being made for other offenders. Two or three supposed Dukes of Ormond were captured in out-of-the-way inns; and not less than three representatives of Mr. Carte, the Nonjuror, allowed

**THE WHIG
PRESS AND
THE BISHOP.**

**STREET
INCIDENTS.**

themselves to be taken on the same day by two eager messengers; only to be dismissed by disappointed Magistrates. A brace of these officials noisily entered the library of the learned Royal Society, in search of the grave, but Jacobite librarian, Mr. Thomas. The nest was warm, but the bird had flown. These were of the smaller episodes while the bishop's trial was in progress. Some were serious enough. The temper of the people altered with the progress of the day. On successive mornings, the crowd was silent as Atterbury passed through it in his chariot, strongly guarded, from the Tower to Westminster Hall. Generally, his friends, close packed, awaited him at the entrance of the Hall, where, being lame with gout, he was carried in an easy chair through the Court of Requests and the Painted Chamber, into the House of Lords. In the evening, on the return to the Tower, the Jacobite spirit took a rough turn, especially in Fleet Street. That of the guards there took a rougher, which generally manifested itself in bayonetting some over-zealous fool. But Mr. Ridout, the great surgeon, lived in Salisbury Court, close at hand, and he profited by such accidents.

As soon as Atterbury had taken his place at the bar of the House, on the day for the second reading of the Bill—in support of the latter, the examination of one Neynoe before the Privy Council was about to be read aloud. Here, the prelate at once interfered. Neynoe had been drowned in the Thames, in attempting to escape from the custody of a messenger. Atterbury was ignorant as to whether Neynoe was a Jacobite or an enemy; and he urged his right to ask (what seems a dangerous question for himself) namely, if Neynoe had ever declared that the Earl Marischal, under the name of Watson, was in England in the spring of 1722, and had slept several nights at the Deanery in Westminster. The House resolved that the bishop had no right to put such a question.

Next, Thouvois, a post-office clerk, deposed as to the letters he had opened and copied, before forwarding them (with no sign of violation) to the persons to whom they were addressed. The bishop, who was often more ready to interfere than his more wary and less impatient counsel, here pertinaciously claimed to know if the clerk had opened these letters, by superior authority, and if so, from whom he held the warrant, and where was that document at the present moment. The wisdom of a majority of the House declared itself to the effect, that to accord the bishop's demand would be highly inconvenient for

**OPENING OF
LETTERS.**

the public safety, and was altogether unnecessary for the prelate's defence. Thirty-one lords energetically protested against this conclusion.

At the re-appearance of Willes, the next witness, Atterbury showed more than ordinary eagerness to grapple with him. Willes quietly asserted that he had properly decyphered the arrested letters, given to him for that purpose. 'Pray, sir,' said the bishop (who had failed to obtain the production of the key), 'will you explain to me your process of decyphering?' 'No, my lord,' was the reply, 'I will not. It would tend to the discovery of my art, and to instruct ill-designing men to contrive more difficult cyphers.' The usual majority of the House was of the same opinion, and their lordships passed on to other matter—the production of copies of letters written by Kelly (the Nonjuror and sometime acting secretary to Atterbury), according to, it was said, the bishop's dictation or instructions. Sir Constantine Phipps here saw his chance. He denounced altogether this course, at least till it could be proved that the prelate had any part whatever in them. The counsel for the Crown replied that they offered the letters written by Kelly, not in proof of special particular action, but of a conspiracy in general. They promised to make special and particular application of them to the detriment of the bishop, by evidence, at a future stage of the proceedings. Sir Constantine Phipps demonstrated that such a course would be one of rank injustice, unless he, on the part of the 'unfortunate prisoner at the bar,' was allowed to rebut the application by both evidence and argument.

**SIR
CONSTANTINE
PHIPPS.**

On the return to the Tower in the evening, the Jacobite spirit of the mob was adopted by some of the guard. Four of them, after Atterbury entered his room, went and drank the 'Pretender's health at the canteen, and smarted for it before the week was out.'

On the 9th of May, Sir Constantine repeated his protest, whereupon he was rather summarily bidden to go on with what he had to advance in his 'unhappy client's' behalf.

**THE
DEFENCE.**

Sir Constantine remarked that his task would be all the easier, since the counsel for the Bill allowed that they had no better reliance than circumstantial testimony. But the liberty and property of Englishmen were not to be, and never had been, confiscated by circumstance; and accused men could be legally tried only by the laws that were in force when the

alleged offence was committed, and not by *ex post facto* legislation taking form in Bills of Pains and Penalties. Moreover, Bills of Attainder had never yet been brought against any persons but those who had hid from, or fled from, justice. The bishop since he had fallen under vain suspicion, had lived openly, had received company in his own house, had gone into society, had passed to and fro in the streets of London, and had followed a course which only the guiltless and guileless followed. If the Bill by which Sir John Fenwick was attainted was legal, that very circumstance proved the illegality of this Bill against the Bishop of Rochester, for this prelate had never been indicted, nor had ever dallied with the Government, nor promised to make discoveries which were ever to be, but never were, made; nor had he bribed the deponents of fatal testimony to withdraw beyond the kingdom: all which incidents distinguished the Fenwick case. Sir Constantine was persuaded that the truth of what he advanced would reach their Lordships' hearts, and that the majesty of the court would not allow a blot to fall on the majesty of justice.

The punishment sought to be inflicted on his client was in severity only next to death itself. The bishop's generous and hospitable way of life had eminently fitted him for the next world, but had left him nothing for this. If he were to be driven into a foreign land, he must, said Sir Constantine, 'beg upon his crutches or starve.' The evidence against him was not good in law, and was therefore inadmissible here. Copies of letters, but no production of originals; decyphered extracts, but no proof of correct decyphering; much allegation, but nothing corroborated—such was the quality of the testimony produced on the other side, and it was simply worthless. To correspond with attainted traitors, with treason for a subject, was a capital offence, but to write to even guilty men on common innocent topics, as it might be allowed the bishop had done, once or twice, addressing unfortunate friends, was surely not an evil in a Christian prelate, and it afforded no evidence that 'Atterbury had any knowledge of their guilty designs—invasion of England by foreign troops, occupation of London and the ports, the seizure of the king and royal family, and the bringing in the Pretender!' As Willes had acknowledged his inability to interpret some of the cyphers, might he not have misinterpreted those which were supposed to attach guilt to his blameless client? To strike down and fling to reproach and ruin a man against whom no guilt can be proved,

**SPECIAL
PLEADING.**

**EVIDENCE
FOR
ATTERBURY.**

appeared to Sir Constantine a most grievous circumstance. After pursuing this line of defence for many hours, the wary counsellor concluded by saying: ‘If there be a difference between your legislative and judicial capacity, I submit it—whether your lordships will be pleased to give that judgment in your legislative capacity, which the counsel for the Bill do, in my apprehension, admit you could not do in your judicial. And, therefore, I hope your lordships will be pleased to reject this Bill (*sic*).’

Mr. Wynne succeeded Sir Constantine; where the latter spoke for one minute, Mr. Wynne spoke for ten. His speech was, what Serjeant Woolrych has called it, ‘a bold and elaborate display of the criticism of evidence,’ with an obstinate insistence on the supposed fact that harmless terms could not possibly mean hurtful things. The speech was altogether so able that his envious learned friends asserted he had stolen all the ideas from the bishop when conversing with him in the Tower; but this weak invention of the enemy has been effectually trampled out, and will not rise again.

The evidence on the bishop’s side went very briefly to show that there was iniquity in Government offices in the concocting of testimonies; that not only handwriting could be, and in fact was, imitated, but that seals and impressions could be forged, and that the prelate himself (according to the evidence of his servants) neither received traitors in his house nor visited them at their own. The most remarkable witness was ‘Mr. Pope,’ but there was nothing remarkable in the poet’s testimony. He was nervous, embarrassed, and he blundered in his phrases. Atterbury had warned Pope, in a letter from the Tower, April 10th, to this effect: ‘I know not but I may call upon you at my hearing, to say somewhat about the way of spending my time at the Dean’ry, which did not seem calculated towards managing plots and conspiracies. But of that I shall consider.’ Pope replied the same day: his letter is warm, tender, and full of assurances of a love for his friend which he can only show in a way which ‘needs no open warrant to authorise it, or secret conveyance to secure it; which no bills can preclude, and no king prevent.... You prove yourself, my lord, to know me for the friend I am; in judging that the manner of your defence and your reputation by it is a point of the highest concern to me.’ Pope thus described to Spence how he played his part in this Jacobite episode: ‘Though I had but ten words to say and that on a plain point, how the Bishop spent his time while I was with him at Bromley, I made two or

POPE, AS A
WITNESS.

three blunders in it, and that notwithstanding the first row of lords, which was all I could see, were mostly of my acquaintance.’

An attempt was made, through Mr. Erasmus Lewis, of the Secretary of State’s office (a witness for the bishop), to get at one secret, the unveiling of which would have served Atterbury materially. Mr. Lewis was asked what he knew of the ability or habit of one Brocket, a clerk in that office, in counterfeiting the handwriting of other people? Two-thirds of the judicial assembly seem to have started with terror at the audacity of the question; and they speedily resolved that ‘it was not proper that Mr. Lewis should be examined on any thing relating to government, which came to his knowledge by being employed in the Secretary of State’s office.’ Notwithstanding this rebuke, Mr. Lewis did contrive to let it be known that Brocket was a clever imitator of handwriting; and it was proved that even from a broken seal of an opened letter an impression could be taken, from which a new seal could be engraved. Phipps, in his rejoinder to the prosecuting counsel, dwelt upon these points. Wynne then took up the theme, and pursued it for hours, ending his speech with this singular peroration: ‘I hope I may venture to affirm that there does not now remain the least suspicion of the charge brought against the bishop; not even the least suspicion of a suspicion of high treason; not the probability of a probability, nor the presumption of a presumption.’

Undoubtedly the most sensational incident of the whole proceeding was when Atterbury rose on the 11th of May to speak in his own behalf. He kept his judges gravely intent for two hours. He introduced much matter that was little to the purpose, and all the rest was special pleading. He dared not—at least he did not—boldly assert, ‘I am guiltless!’ but he urged to this effect, ‘You cannot prove me guilty!’ One sample will be as good as the whole measure.—‘As to that part of the accusation where it is said the letter to “Jackson” was a letter to the Pretender, I have nothing to do with it. (!) He that writ that letter, when known, will best be able, and most concerned, to disprove it.’ The bishop added, and well might he add, ‘This objection carries a very odd sound,’ but he maintained that it rested on reasonable grounds. His reasoning often wandered from the mark, which does not surprise a reader who is now aware of the bishop’s guilt. At one moment he asserted there was no proof at all. At another, that there was only very weak proof—nothing but the

ATTERBURY’S
DEFENCE.

hearsay of a hearsay. He alluded to his bodily infirmities; the insults he had received in the Tower; his Protestant orthodoxy; the calm, unplotting tenour of his life; and the probable ruin that revolution would bring down upon him as an ecclesiastic and a peer of Parliament. If his judges proved severe in their conclusions, he hoped mercy would be extended to him; but still, naked he came into the world, and so would go out of it; and whether the Lord gave or took away, blessed be the name of the Lord!’

On the 12th, Reeves and Wreag tore all the bishop’s special pleading to tatters. The former insisted that every charge had been proved, and that the bishop’s exalted character and holy function only aggravated his detestable crime. As to the penalty named in the Bill, of the intolerable pressure of which Atterbury had complained, almost in tears, Wreag took up the complaint, and said, ‘I venture to affirm this is the mildest punishment that ever was inflicted for such an offence. His life is not touched, his liberty not properly affected. He is only expelled the society, whose government he disapproved, and has endeavoured to subvert; and is deprived of the public employment which that government had entrusted him with. The enjoyment of his life, his private estate, and his liberty, under any government that may be more agreeable, is allowed him.’

**REJOINDER
FOR THE
CROWN.**

The debate on the question whether the Bill should then be read a third time and passed took place on the 15th. Willis, Bishop of Salisbury, and Gastrell, Bishop of Chester, pressed hardly against their brother prelate. The Duke of Argyle, the Earls of Peterborough and Cholmondely, and Lord Findlater, were as hostile as those bishops. On the other side, Gibson, Bishop of London, spoke in behalf of Atterbury. Earl Poulett commented upon the extraordinary character of the proceedings, and the Duke of Wharton, Lords Bathurst, Cowper, Strafford, Trevor, and Gower, spoke vigorously against the Bill,—the first two especially distinguished themselves in this way. Lord Bathurst, with vigour equal to Wharton’s, put forth a vigorous wit of his own. In allusion to the hostility of some of the bishops to Atterbury, Lord Bathurst remarked, ‘I can hardly account for the inveterate hatred and malice which some persons bear the learned and ingenious Bishop of Rochester, unless it was that they were intoxicated with the infatuation of some of the wild Indians, who fondly believe that they inherit not only the

**WIT OF LORD
BATHURST.**

spoils, but even the abilities of the great enemy whom they kill,' Nevertheless, the Bill, by which the bishop was deprived of his estate and function, and was doomed to perpetual banishment, with *death* as the penalty of returning without leave, passed the House. Forty peers in all (nearly the whole of the minority) protested on various grounds,—irregularity, illegality, and of conclusions unwarranted by evidence.

Of the London street scenes enacted during the proceedings there is this record of two (towards the close of the trial), taken from the 'Weekly Journal' of May 18th:

NEWSPAPER
COMMENTS.

—'The bishop was remanded to the Tower about five in the evening, attended not only by his Guards, but several Volunteers, both Whigs and Tories, between whom, near Temple Bar, there happened a small skirmish to the disadvantage of the latter; and yesterday his lordship was for the last time carried up to the House of Lords to hear the King's Counsel's reply to his lordship's defence; and, being remanded about nine, considerable numbers of both parties above named met and engaged in a pitched battle, which lasted with great violence for some time, but ended at last in the utter Rout and Confusion of those who love the b——p so well that they would willingly introduce the Pope to defend and support him. That High Church is no more, and it is to be hoped it will be a warning to them how they attempt again to force Nature against Principle.'

An event occurred on the 17th of May, in the Tower, which must have cast a heavy shadow of gloom on Atterbury and the friends who crowded to see him before he left his native country for ever. Counsellor Layer was led out that morning to undergo ignominious death at Tyburn. His crime was being active in the plot of which Atterbury quietly held the threads. But Layer was indiscreet, and was condemned by his own acts and handwriting. Atterbury apparently lived the life of a quiet scholar, and seems to have taken care that neither word nor handwriting should ever be so indulged in as to expose him even to suspicion. These men were equally guilty; but, rather than say, —the prelate deserved to be hanged with the counsellor, it might be urged that the lawyer might, in mercy, have been banished with the bishop. Atterbury must have felt a pang when as good, or as bad, a gentleman as himself began the long agony from the fortress to Tyburn Field.

ATTERBURY
AND LAYER.

Counsellor Layer, who had been convicted in November, 1722, was respited from time to time. Ministers hoped to get disclosures of importance from him, which he bravely declined to make. What promises were held out to this obstinate Jacobite in return are not known. At all events he made none. Some of 'my lords' were repeatedly with him, to urge him to unburthen his mind, but their urging had no effect. On the 16th of May, 1723, the evening before his execution, the Earls of Lincoln and Scarborough, and Col. Crosby, were in deep consultation with him, in the Tower, but Layer remained faithful to those by whom he had been trusted. There was, indeed, another cause for the frequent respites. Being an obstinate Jacobite, he would have been sent sooner to Tyburn, only for the pressure of his distinguished clients' unsettled affairs. For their sake also, it was said, he was reprieved from time to time; and among the singular sights of the Tower in that Jacobite time, not the least singular was that of 'Counsellor Layer, with a rope round his neck,' transacting law business with the attorneys of his clients, and arranging matters of which he was never to see the end, yet for which he did not scruple to take the fees. But then, wine was dear, though plentiful, in prison, and a man condemned to death did not choose to be inhospitable to the visitors who sympathised with, still less in this case, to the clients who employed him. It was observed, however, that the affairs between the clients and their counsel were never likely to come to a conclusion, and Layer would not serve the Government by turning traitor. The impatient authorities at once ordered Layer to 'travel westward,' and he rode up Holborn Hill accordingly. But he rode up like a gentleman who had, indeed, serious business in hand, but which must not be allowed to disturb his gentlemanlike self-possession. The Jacobite agent made his last appearance in public in a fine suit of black clothes full trimmed, and his new tye wig could not have looked smarter if he had been going to be married. Seated in a sledge drawn by five horses, he went the weary way between the Tower and Tyburn. The dignified seriousness of his self-possession was not mocked by the bitterest of the Whigs who watched his passage, while many a Jacobite shed tears, yet was proud of the calm courage with which he bore his dreadful fate. In a carriage behind the sledge rode two reverend clergymen, Messrs. Berryman and Hawkins—one of them a Nonjuror, of course. At Tyburn, as the two stood up in the cart beneath the gallows, there ensued the scene not uncommon on such

LAYER ON
HOLBORN
HILL.

occasions. The utmost liberty was given to a man, about to die, to unburthen his soul in any way he pleased. Layer made the most of the privilege. He said boldly, but without bluster, that there was no king but James III.; that the so-called King George was an usurper; that it was a glorious duty to take up arms for the rightful sovereign; that there would be no joy in the land till that sovereign was restored; and that, for his own part, he was glad to die for his legitimate monarch, King James. Having said which, the Nonjuror gave the speaker absolution, the people cheered, and the once eminent and able barrister was soon beyond the reach of further suffering.

Layer kept the word he had pledged to Colonel Williamson as he was leaving the Tower. ‘Colonel,’ he said, ‘I will die like a man.’ ‘I hope, Mr. Layer,’ replied the Deputy-Governor, ‘you will die like a Christian.’ The Jacobite counsellor fulfilled both hope and promise. Only a Whig paper or two affected to sneer at the calm courage with which he met that mortal ignominy at Tyburn.

LAYER AT
TYBURN.

Within a few hours of the execution, an Old Bailey bard had thrown off and published the following ‘Sorrowful *Lamentation* of Counsellor Layer’s who was Condemned to die at London for High *Treason*,’ and which is here given as a specimen of the London gutter-and-gallows poetry in the Jacobite times:—

Noble Hearts all around the Nation;
—That do hear my wretched Fate,
I’d have you lay by all confusion,
—Do not meddle with the State,
Let my Exit be a warning.
Now unto you both great and small,
My mirth is turned to grief and mourning,
Thus you see poor *Layer*’s Fall.

LAMENTATION
FOR LAYER.

A Counsellor I was of late,
And oft I did for Justice plead,
I lov’d both Noble, Rich, and Great,
Till I pursu’d this fatal Deed,
Who by a Woman was betray’d,
And I was apprehended soon,
And now I am arraign’d and cast,

And thus you see poor *Layer's* Doom.

At *Westminster* I took my tryal,
Which lasted 16 Hours long,
While a multitude to hear it,
There into the Court did throng;
While I with Iron Fetters loaded,
For my life did stand to plead,
But no mercy is afforded,
I must suffer for the Deed.

Christopher Layer, come and answer,
For what unto your Charge is laid,
For listing Men for the Pretender,
As by witness here is said.
You have been a most rebellious Traytor,
Against our Sovereign Lord the King,
Answer to your Accusation,
Are you guilty of the thing?

I boldly for a while did plead,
And spoke up on my own Defence,
But yet my Case was made so plain,
Guilty was I of the offence,
At four a Clock all in the Morning,
I was then cast for my Life,
And I at Tyburn must expire,
A Grief unto my dearest Wife.

And my Children who lies weeping
For my most unhappy Fate,
I cannot expect no pity,
For the Crime that is so great,
It is best to be at Quiet,
I advise you one and all,
Lest like me it proves your Ruin,
Thus you see poor *Layer's* Fall.

For sure this is the Hand of Heaven
Suffers me this Death to die,
For to finish my intention,
I could not expect; for why,
Because for men so bold attempting,
Many here before did die;
But still I could not be at Quiet,
By which I have wrought my Destiny.

I hope my fall will be a warning,
To all that see my fatal End,
My dearest Friends they do me blame,
That I the Nation should offend.
My tender Wife does lie lamenting,
My Children are ready to despair,
I hope that this will be a warning,
To all that see the fall of *Layer*.

When my Body it is Quarter'd,
And my Head expos'd on high,
I hope my fleeting Soul will dwell
With Christ for evermore on high.
Farewel my dearest Wife and Children,
To Heaven I you recommend,
Weep not for me unhappy Creature,
Think not on my fatal End.^[7]

The ballad was yet being said or sung in London, when on June 1st the metropolis was startled with the news that the 'late Lord Bolingbroke,' as the attainted Jacobite peer was called by the Whigs, was about to be pardoned. **BOLINGBROKE:
E:
ATTERBURY.** 'About!' shouted a Jacobite paper, in its loudest type, 'the pardon has already passed the seal.' But this shout was one of indignation, for the papers of all hues seem to have agreed that my Lord Bolingbroke's pardon was the consequence of services to King George and the existing Government, with reference to the plot for upsetting both by establishing the Pretender and a Stuart ministry in their place.

Another incident occupied the public mind, namely, the sale of Atterbury's goods and chattels. Political partisans and votaries of fashion repaired to the episcopal palace at Bromley, and to the deanery at Westminster, as to shrines where both could indulge in their respective sentiments. At the two sales about 5,000*l.* were realised. 'There was a remarkable fondness,' says the 'London Journal,' sneeringly, '*in some sort of people*, to buy these goods almost at any rate; but whether from a motive of superstition or party zeal we know not; but many think both.' It is true that numerous articles fetched four times their value; and the Jacobite journals, as well as the better natured of the opposite faction, acknowledged that the purchasers naturally desired to have some remembrance of their fallen friend.

Jacobitism ventured to look up in public, before the bishop went into exile. On the 10th of June, numbers of persons appeared in the streets wearing white roses. It was like displaying a flag of defiance against the Government. Whigs who were really loyal to 'great Brunswick,' and who dearly loved a fight, fell upon the white rose wearers, and many a head was broken in expiation of the offence.

**ATTERBURY
LEAVING THE
TOWER.**

On the 17th of the month, Atterbury received company in the Tower for the last time. During the whole day there was no cessation of arrivals of friends of all degrees who came to bid a last and long farewell. On the following morning, Tuesday, June 18th, which was fixed for the bishop's departure, every avenue to the Tower was closed. The authorities were in fear of a riotous demonstration. The vicinity was densely crowded. The river was covered with boats. As Atterbury passed the window where his old acquaintance, Dr. Freind, sat (under arrest in the old matter of the Plot), the two were allowed to converse together for a quarter of an hour. In a sedan chair, preceded by the deputy-governor, and surrounded by warders, the bishop was conveyed to the King's Stairs. 'He was not in a lay habit, as it was reported he would be,' says one paper, in censoring mood. 'He was in a lay habit, a suit of grey cloth,' says another journal. A third confirms the second, but generally adds: 'He was waited on by two footmen, *more episcoporum*, in purple liveries.' Some of the spectators boasted of the sums that had been raised for him. One sympathising lady had subscribed 1000*l.*, and the total was said to reach six times that amount. He had many a tender

greeting from sympathising women as he passed. One of the fair enthusiasts went up to his chair and kissed his hand. She manifested a world of affectionate tenacity, and the ex-prelate was only just in time to discover that the pretty, tearful *Jenny Diver* had quietly drawn a valuable ring off his finger, with her lips. The ring was saved, but Atterbury consigned her to the mob who, as the papers remark, followed the usual custom, on such occasions. They ducked her in the river. Forgiveness would have been a more appropriate act on the prelate's part.

In that same river lay an eight-oared navy barge, on board of which he was conveyed with humane and respectful care. The deputy-governor, and warders, with the Duke of Wharton, two of the bishop's chaplains, and other Jacobite friends, accompanied him. His servants, baggage, and books, were in a barge which followed. Early in the afternoon the oars were dipped and the barges were steered down stream. A fleet of deeply-laden boats went in the same direction. In Long Reach lay the 'Aldborough,' man-of-war. As the bishop was hoisted up the side in a cradle, Captain Laurence was at the gangway, ready to receive him. The boats clustered densely round the ship, and Atterbury with gravity acknowledged the sympathy. As the officials were about to leave he gave 'a few guineas' to the warders; justifying the 'few' on the ground of the many they had received in fees and douceurs from his visitors during his captivity. He was still in durance, for two messengers had him in charge till he landed at Calais. There, occurred the well-known incident. Atterbury and Bolingbroke crossed each other; and the bishop remarked epigrammatically: 'We are exchanged!'

**ATTERBURY
ON THE
THAMES.**

'He is gone!' wrote Pope to Blount (June 27th). 'He carried away more learning than is left in this nation behind, but he left us more in the noble example of bearing calamity well. It is true, we want literature very much; but, pray God, we do not want patience more, if these precedents' (Bills of Pains and Penalties) 'prevail.' Pope's impatience was at this time natural. When he took final leave of the Jacobite prelate in the Tower, Atterbury remarked that he would allow his friend to say that the sentence was a just one, if Pope ever found that the bishop 'had any concerns with that' (the Stuart) 'family in his exile.' Atterbury openly and immediately took service in that very family, where, however, he found little gratitude for his fidelity.

**POPE AND
ATTERBURY.**

The Duke of Wharton, in his own barge, reached the Tower stairs at midnight. One of his first acts, the next day, was to appoint as his chaplain the Rev. Mr. Moore, who had been one of Atterbury's chaplains, and who was well-nigh as turbulent a Jacobite as Sacheverel himself.

Pope turned Bishop Atterbury to very good account, pleasurable alike to the Jacobites who admired the prelate for his politics, if for nothing besides, and to himself, for another reason. The poet possessed an original portrait of the Bishop of Rochester, the work of Sir Godfrey Kneller. There was a contemporary painter, named Worsdale, who had also been an actor, who had moreover been satirised on the stage, and who had kept, loved, lived on, and kicked the once celebrated and ever unfortunate Lætitia Pilkington. Pope got Worsdale to make copies of Kneller's portrait of Atterbury, for three or four guineas. 'And when,' says Sir James Prior, in his 'Life of Malone,' 'he wished to pay a particular compliment to one of his friends, he gave him an original picture of Atterbury.' Of these original Knellers, Worsdale painted several.

Atterbury having passed away from the public gaze, there was nothing more attractive to look at than Layer's head, which was spiked on Temple Bar. Whig caricaturists loved to show the hideous sight in a ridiculous point of view. Jacobites went to the Bar as to a sanctified shrine of martyrs. There never was a head there that did not seem to them holy. That of Layer was blown down as Mr. Pearce, of Took's Court, a well-known nonjuring attorney and an agent for the nonjuring party, was passing. He bought the head of him who had picked it up. Dr Rawlinson, the learned Jacobite antiquary, bought it, at a high price, from Pearce, kept the skull in his study, and was buried with it in his hand. But there is a tradition that after the relic had been exhibited in a tavern, it was buried beneath the kitchen of the house, and the head of some other person was sold to Rawlinson, as that of Layer!' Imagine,' says a note in Nichol's 'Literary Anecdotes,' 'the venerable antiquary and his companion waking out of their slumber! How would the former be amazed and mortified on his perceiving he had been taking to his bosom, not the head of the counsellor, but the worthless pate of some strolling mendicant, some footpad, or some superannuated harlot!'

For some time, Atterbury's speech in the Lords was cried and sold in the public streets; whereupon, the faithful

LAYER'S
HEAD.

THE CO-
CONSPIRATOR

magistracy had the rejoinders made by the counsel for the **S.** Crown printed and sold to counteract the effect. Atterbury's convicted confederates, Kelly and Plunkett, were despatched, the first to Hurst Castle; the second, to Sandown Fort, Isle of Wight. The peers who had been arrested were now admitted to bail, in 20,000*l.* each, themselves; and four sureties in 10,000*l.*! For Lord North and Grey, the Marquis of Caermarthen, the Earls of Lichfield and Scarsdale, and Lord Gower answered. The sureties of the Duke of Norfolk were, first, one of the king's ministers, the Duke of Kingston, the Earls of Carlisle and Cardigan, and Lord Howard. There were two gentlemen in the Tower involved in the plot, Thomas Cochran and Captain Dennis Kelly. Bail was taken for them, the personal at 4,000*l.*, and four sureties in 2,000*l.* The Duke of Montrose, the Marquis of Caermarthen, Earl Kinnoul, and Mr. Stewart, of Hanover Square, became responsible for Cochran; and Earl Strafford, Lords Arundel and Bathurst, with 'downright Shippen,' for the Captain, rank Jacobites, the most of them. Dr. Mead entered into recognisances for Dr. Freind. It was a noble feeling that prompted the Prince of Wales to appoint Freind one of his physicians immediately after his liberation. That the doctor accepted the appointment was bitterly commented on by the Jacobites, who might have taken some comfort from Prince Prettyman's life being now in the Jacobite doctor's hands!

Quietly-minded people now looked for quiet times, and hoped that plots and projects of war and invasion had come to an end. But the Stuart papers show that Atterbury hoped yet to bring his king to London. In Brussels, by aid of the Papal Nuncio and one of the Ladies Howard, then at the head of an English nunnery in Belgium, the Jacobite ex-prelate secretly kept up a correspondence with James.

On October 12th, 1723, Atterbury wrote a letter to that prince, in which was the following passage:—'I despair not of being in some degree useful to your service here, and shall be ready to change my station upon any great contingency that requires it. And I hope the present counsels and interests of foreign courts may soon produce such a juncture as may render the activity and efforts of your friends reasonable and successful.' Again, in December, the ex-bishop thus coolly writes of an invasion of England in the Jacobite interest:

**ATTERBURY
SERVING THE
CHEVALIER.**

**LETTER FROM
ATTERBURY.**

—‘Providence, I hope, is now disposing everything towards it; and, when that happens, let the alarm be given, and, taken as loudly as it will, it will have nothing frightful in it,—nothing that can in any way balance the advantages with which such a step will plainly be attended.’

[7] The above has no date nor printer’s name. That it is inserted here is owing to the kindness of a gentleman who has contributed it from his valuable Collection of old Ballads,—Frederic Ouvry, Esq., President of the Society of Antiquaries.

END OF THE FIRST VOLUME.

LONDON: PRINTED BY
SPOTTISWOODE AND CO., NEW-STREET SQUARE
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Transcriber's Note:

This book was written in a period when many words had not become standardized in their spelling. Words may have multiple spelling variations or inconsistent hyphenation in the text. These have been left unchanged. Obsolete and alternative spellings were left unchanged.

Footnotes were renumbered sequentially and were moved to the end of the chapter in which the corresponding anchor occurs. Page headers were converted to sidenotes.

Obvious printing errors, such as backwards, upside down, or partially printed letters and punctuation, were corrected.

The following items were changed:

usual for a Jabobite [[Jacobite](#)],
the Whig 'Eveninig [[Evening](#)] Post,'
who appeared at Dumblane [[Dunblane](#)]
urged that the [[she](#)] would be subject

*** END OF THE PROJECT GUTENBERG EBOOK LONDON IN THE
JACOBITE TIMES, VOLUME I ***

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